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House of Representatives

The House met at 9 a.m. and was called to order by the Speaker.

PRAYER

Reverend Dr. Lindsay Curtis, Grace Baptist Church, Norwalk, Connecticut, offered the following prayer:

Dear Jehovah God, our divine company keeper, it is with hearts full of passion and unwavering faith that we gather today, seeking Your divine protection and wisdom. Envelop us in Your safety as we pursue our daily tasks, ever mindful of Your promise to send angels to guard us.

Please, dear God, guide this deliberative body in every decision, trusting in Your steadfastness and in Your presence as our beacon of truth. Walk beside us, gently moving our hearts unto Your intended path. Enter our lives, Lord, filling us with Your wisdom to see our choices through Your vision. Wrap us in the warmth of Your love, as we place all hopes and faith in You. Grateful for Your protection, we surrender our worries, aligning our steps and our thoughts to Your will and Your way. We pray in the mighty name of Your Son.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House the approval thereof.

Pursuant to clause 1 of rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentlewoman from Pennsylvania (Ms. DEAN) come forward and lead the House in the Pledge of Allegiance.

Ms. DEAN of Pennsylvania led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

WELCOMING REVEREND DR. LINDSAY CURTIS

The SPEAKER. Without objection, Mr. HIMES of Connecticut was recognized for 1 minute.

There was no objection.

Mr. HIMES. Mr. Speaker, on this consequential day, when this body is likely to make law and debate critical things, it has already been a good and blessed day because our day was opened with a prayer by Reverend Dr. Lindsay Curtis.

Dr. Curtis is well into his second decade leading as senior pastor at Grace Baptist Church, a 129-year-old faith community in the center of my district, Norwalk, Connecticut.

The church has thrived under Pastor Curtis' leadership, and I admire him as a friend, as a mentor, and as a spiritual guide not just for his understanding of the Scripture, but for his deep commitment to ministry.

Dr. Curtis, over the course of his career, has served as president of the Connecticut State Missionary Baptist Convention. He has served as chairman of the Advisory Board of Directors of Norwalk ACTS, which is a partnership of civic leaders. He has acted as the president of the Norwalk NAACP, commissioner of the Judicial Selection Commission, and when he sees a problem, he uses ministry to solve it.

Just this summer, out of nowhere, he conjured up a summer camp for 150 children in Norwalk, Connecticut, who might not otherwise have a way to constructively spend their days.

I have always loved the quote attributed to St. Francis of Assisi. That quote is familiar to so many of you: Always preach the Gospel. Sometimes use words.

Lindsay Curtis embodies that idea in his ministry, and his superb record is blemished perhaps only by my suspicion—and it is a suspicion—that he thinks that somehow the Chicago Bulls fit into the Trinity, but above all else, our God is a forgiving God, so I am sure that that will not be a problem.

Mr. Speaker, I thank Dr. Curtis so much for opening us up today.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Lasky, one of its clerks, announced that the Senate has passed with an amendment in which the concurrence of the House is requested, a bill of the House of the following title:

H.R. 4. An act to rescind certain budget authority proposed to be rescinded in special messages transmitted to the Congress by the President on June 3, 2025, in accordance with section 1012(a) of the Congressional Budget and Impoundment Control Act of 1974.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. MOORE of Utah). The Chair will entertain up to five further requests for 1-minute speeches on each side of the aisle.

RECOGNIZING AYBRAH ZELENSKI AND ELENA GOURLEY

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today to recognize two outstanding students from West Shamokin Junior-Senior High School, Aybrah Zelenski and Elena Gourley, who earned top national honors at the Future Business Leaders of America National Leadership Conference.

FBLA is a nationwide student organization that prepares young people to become community-minded business

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leaders through career development and leadership opportunities. Their annual leadership conference brings together over 11,000 students from more than 2,000 schools nationwide to compete in career and leadership building events.

While in Anaheim, California, Aybrah placed sixth in public speaking and Elena placed seventh in career exploration.

West Shamokin's FBLA chapter, founded in the fall of 2023, has quickly made a name for itself and has proven that a small, rural school can leave a big mark on the national stage.

Mr. Speaker, I applaud both Aybrah and Elena and the entire West Shamokin FBLA team for their leadership, hard work, and bright futures. They make their school, their community, the Commonwealth, and this Congressman very proud.

RECOGNIZING PASQUOTANK COUNTY EMS NATIONAL AWARD

(Mr. DAVIS of North Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DAVIS of North Carolina. Mr. Speaker, I rise to recognize Pasquotank County Emergency Medical Services for earning their prestigious 2025 Best in Category Award for Health from the National Association of Counties.

Out of 157 entries, Pasquotank County EMS was recognized as one of the best health programs in the country and the only winner from North Carolina.

During the COVID–19 pandemic, Pasquotank County EMS, like many counties, faced a serious shortage of paramedics and emergency safety workers.

In response, they developed an innovative tiered response system allowing ambulances to quickly respond to emergencies while paramedics provided essential support when needed, improving their service, making it faster and more efficient.

Pasquotank County EMS is a shining example of hard work, innovation, and dedication.

Mr. Speaker, I congratulate each and every one on this remarkable honor.

□ 0910

LOVE THY CITY INITIATIVE

(Mr. MORAN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MORAN. Mr. Speaker, I rise today to recognize the Love Thy City event held in Tyler, Texas, a community-wide initiative that reminds us that service to our neighbors does not start in Washington, D.C. It starts in the heart and in the home, and it extends to every corner of this Earth.

Organized by local citizen leaders, churches, nonprofits, and volunteers of all ages, Love Thy City is a day of service to others, rooted in the great command to love our neighbors. That is a principle that transcends politics and parties, race and gender, and every other perceived difference between us.

It is our shared responsibility to care for everyone around us just as the Good Samaritan did, not because government would tell us to, but because the love of Christ propels us to.

Whether it is cleaning up a park, helping a neighbor in need, or simply showing kindness to a stranger, Love Thy City challenges us to use our active faith to lead by example and invest in our communities, not just with words, but with action.

This is what makes east Texas strong: faith, service, and a deep love for God and for others. I am proud to honor this effort today and to recognize all those who give their time to love their neighbor.

PROVIDING BEST EDUCATION FUNDING FOR ALL FAMILIES

(Ms. DEAN of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. DEAN of Pennsylvania. Mr. Speaker, our children are under attack.

Mr. Speaker, $6.8 billion in education funding, dollars appropriated by Democrats and Republicans, is frozen. These are funds that should have been available on July 1.

In Pennsylvania, that is $230 million. Resources, including summer programs and teacher training, hang in limbo.

Abington School District, my alma mater, is missing more than $250,000. Some schools may be able to function while the President's latest whims play out in court, but as is the case with most of his orders, Trump has stolen the most from those who have the least.

The Norristown Area School District, just 15 miles from my district of Abington, is owed three times as much, more than $750,000 in Federal funds.

This is not about government efficiency. It is about greed, incompetence, and cruelty.

When Secretary McMahon testified before the Appropriations Committee, I asked her: ''Why are you in this job?'' Her response: ''I want the best for my family,'' not all families, her family.

When Republicans tell us who they are, Mr. Speaker, we should believe them.

GETTING ANIMAL HEALTH RESEARCH RIGHT IN FARM BILL

(Mr. MANN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MANN. Mr. Speaker, in honor of the Nation's 249th birthday, House Republicans delivered the largest tax cut in our Nation's history for middle- and working-class families, strengthened the farm safety net, and voted to get our country back on track.

The One Big Beautiful Bill Act gave a lifeline to the agricultural community by updating reference prices, expanding crop insurance, and saving millions of family farms from the death tax. The relief was long overdue. We are grateful, but the work doesn't stop there.

It is past time for Congress to pass a fiscally conservative 5-year farm bill, including support for agricultural research and development. We have seen the devastating impact disease outbreaks can have with the HPAI virus, and now we must continue to take steps to prevent the New World screwworm from reaching our borders.

The Big First District is home to crown jewels of the animal health corridor, where world-renowned research happens, positioning the United States to focus on disease prevention rather than outbreak control after the fact.

By investing in agricultural research, we strengthen our food supply chain and, in turn, our national security, all while providing the best and most effective return on taxpayer dollars.

We cannot afford to put our food security at risk by not prioritizing adequate investments in animal health research when we pass the next iteration of the farm bill. I urge this body to get this right.

STARVATION IN GAZA

(Ms. TLAIB asked and was given permission to address the House for 1 minute.)

Ms. TLAIB. Mr. Speaker, the Israeli Government has deliberately blocked food, medicine, and fuel from entering Gaza. The entire population of Gaza is experiencing famine, and half a million Palestinians are facing catastrophic levels of starvation.

At least 66 Palestinian children have already been starved to death. Maybe if my colleagues would close their eyes, or pretend that they are not Palestinians, they would care, that they would care that Palestinians have been forced to eat grass and animal feed—they are human beings—while thousands of trucks carrying food sit blocked at the border.

The Israeli Government is using starvation as a weapon of war. Now, the Israeli forces are deliberately shooting and killing starving Palestinians lined up for food, and the responses by the Israeli Government do not add up. Mr. Speaker, 875 have been murdered in 6 weeks alone.

The so-called Gaza Humanitarian Foundation, backed by the Israeli Government and the Trump administration, is a deadly sham. The United Nations calls it a death trap.

The Israeli soldiers have even admitted it themselves. They were ordered to deliberately shoot unarmed Palestinians, many of them children, calling it a killing field.

This is not a game, Mr. Speaker. These are human beings.

If colleagues need to close their eyes again and pretend they are not Palestinians to care, then maybe they should. We would stop this madness and stop supporting the genocide in Gaza.

FIX BROKEN PERMITTING AND REGULATORY LAWS

(Mr. WESTERMAN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WESTERMAN. Mr. Speaker, I rise to shed light on the broken permitting process that creates roadblocks to unleashing American innovation and development while costing more taxpayer dollars with basically nothing to show for the expenses.

The Fiscal Responsibility Act of 2023 attempted to change course and imposed a 2-year deadline and a 150-page cap on environmental impact statements. However, the Council on Environmental Quality reports that 61 percent of environmental impact statements still take over 2 years to complete.

The other two branches of government are taking actions to inject some regulatory common sense into the process. President Trump's ''Unleashing American Energy'' executive order directs Federal agencies to confine NEPA analysis to applicable law, and in May, the Supreme Court ruled unanimously on narrowing the scope of NEPA.

It is time for Congress to take bipartisan, bicameral action to fix the broken permitting and regulatory laws so that America can thrive.

□ 0920

HAPPY 105TH BIRTHDAY TO ROY DRINKARD

(Mr. ADERHOLT asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ADERHOLT. Mr. Speaker, I rise today here on the House floor of the United States House of Representatives to recognize an extraordinary American and a dear personal friend, Mr. ROY Drinkard of Cullman, Alabama, who just celebrated his 105th birthday this past weekend, on July 12.

Born in 1920, Mr. Drinkard is a proud veteran of the Second World War, who served his country with courage and continues to inspire all those who know him. He is the oldest living marine in the United States of America.

After the war, he returned to Alabama and built a legacy as a successful businessman, civic leader, and helped shape the growth and character of Cullman, Alabama, as well as the State.

At the age of 105, Mr. Drinkard remains active in his business. He still serves on the board of trustees at Troy University, demonstrating that age is no barrier to leadership, commitment, or purpose.

Mr. Speaker, Roy Drinkard is a living example of American grit and grace. My wife, Caroline, and I are proud to call him our friend. I ask my colleagues to join me in wishing Mr. Drinkard a very happy 105th birthday and in thanking him for a lifetime of service to his community and to his Nation.

May God bless Roy Drinkard and his family, and may God bless the United States of America.

HONORING LUNA AND OUR DIFFERENCES

(Mr. LATIMER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LATIMER. Mr. Speaker, I rise today to honor Luna Higbie, the daughter of my friend, Brian, back in Westchester County, New York.

Luna is a delightful 6-year-old girl, but she has already endured bullying simply for looking different. Luna wears an eye patch and glasses to treat her amblyopia. Mistreatment by a few peers has made Luna want to reject her treatment.

Disney's Pixar has recently released the movie, ''Elio,'' about a boy who is wrestling with his insecurity and a longing to belong. Representation matters. Research shows that seeing someone in the media who mirrors your experiences boosts self-esteem, supports identity formation, and reduces stigma. Imagine how it might feel for Luna to see a character who wears an eye patch—someone like her. It makes it more likely to help keep her patch on, to feel proud and seen.

As someone who grew up with strabismus and experienced teasing firsthand, I know how much it can hurt. We must teach our children that differences are not deficits, but paths to empathy and connection.

Mr. Speaker, I invite my colleagues to join me in sending Luna a message of inclusion: You belong. You are valued, and you matter to America.

DIGITAL ASSET MARKET CLARITY ACT OF 2025

Mr. HILL of Arkansas. Mr. Speaker, pursuant to House Resolution 580, I call up the bill (H.R. 3633) to provide for a system of regulation of the offer and sale of digital commodities by the Securities and Exchange Commission and the Commodity Futures Trading Commission, and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore (Mr. SMITH of Nebraska). Pursuant to House Resolution 580, in lieu of the amendments in the nature of a substitute recommended by the Committees on Agriculture and Financial Services printed in the bill, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 119–6, modified by the amendment printed in part B of House Report 119–199, is adopted and the bill, as amended, is considered read.

The text of the bill, as amended, is as follows:

H.R. 3633

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Digital Asset Market Clarity Act of 2025'' or the ''CLARITY Act of 2025''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.

TITLE I—DEFINITIONS; RULEMAKING; EXPEDITED REGISTRATION

Sec. 101. Definitions under the Securities Act of 1933.
Sec. 102. Definitions under the Securities Exchange Act of 1934.
Sec. 103. Definitions under the Commodity Exchange Act.
Sec. 104. Definitions under this Act.
Sec. 105. Rulemakings.
Sec. 106. Expedited registration for digital commodity exchanges, brokers, and dealers; provisional status.
Sec. 107. Commodity Exchange Act and securities laws savings provisions.
Sec. 108. Administrative requirements.
Sec. 109. Treatment of certain non-controlling blockchain developers.
Sec. 110. Application of the Bank Secrecy Act.
Sec. 111. Rule of construction.
Sec. 112. Implementation.

TITLE II—OFFERS AND SALES OF DIGITAL COMMODITIES

Sec. 201. Treatment of investment contract assets.
Sec. 202. Exempted primary transactions in digital commodities.
Sec. 203. Treatment of secondary transactions in digital commodities that originally involved investment contracts.
Sec. 204. Requirements for offers and sales of digital commodities by digital commodity related persons and digital commodity affiliated persons.
Sec. 205. Mature blockchain system requirements.
Sec. 206. Effective date.

TITLE III—REGISTRATION FOR INTERMEDIARIES AT THE SECURITIES AND EXCHANGE COMMISSION

Sec. 301. Treatment of digital commodities and permitted payment stablecoins.
Sec. 302. Anti-fraud authority over permitted payment stablecoins and certain digital commodity transactions.
Sec. 303. Eligibility of alternative trading systems.
Sec. 304. Rulemaking for dual-registered entities.
Sec. 305. Modernization of recordkeeping requirements.
Sec. 306. Exemptive authority.
Sec. 307. Additional registrations with the Commodity Futures Trading Commission.
Sec. 308. Exempting digital commodities from State securities laws.
Sec. 309. Exclusion for decentralized finance activities.
Sec. 310. Treatment of custody activities by banking institutions.
Sec. 311. Broker and dealer disclosures regarding the treatment of assets.

Sec. 312. Digital commodity activities that are financial in nature.
Sec. 313. Effective date; administration.
Sec. 314. Educational material requirements.
Sec. 315. Discretionary Surplus Fund.
TITLE IV—REGISTRATION FOR DIGITAL COMMODITY INTERMEDIARIES AT THE COMMODITY FUTURES TRADING COMMISSION
Sec. 401. Commission jurisdiction over digital commodity transactions.
Sec. 402. Requiring futures commission merchants to use qualified digital asset custodians.
Sec. 403. Trading certification and approval for digital commodities.
Sec. 404. Registration of digital commodity exchanges.
Sec. 405. Qualified digital asset custodians.
Sec. 406. Registration and regulation of digital commodity brokers and dealers.
Sec. 407. Registration of associated persons.
Sec. 408. Registration of commodity pool operators and commodity trading advisors.
Sec. 409. Exclusion for decentralized finance activities.
Sec. 410. Resources for implementation and enforcement.
Sec. 411. Requirements related to control persons.
Sec. 412. Other tradable assets.
Sec. 413. Conflict of interest rulemaking.
Sec. 414. Effective date.
Sec. 415. Sense of Congress.
TITLE V—INNOVATION AND TECHNOLOGY IMPROVEMENTS
Sec. 501. Findings; sense of Congress.
Sec. 502. Strategic Hub for Innovation and Financial Technology.
Sec. 503. Codification of LabCFTC.
Sec. 504. Study on decentralized finance.
Sec. 505. Study on non-fungible tokens.
Sec. 506. Study on expanding financial literacy amongst digital commodity holders.
Sec. 507. Study on financial market infrastructure improvements.
Sec. 508. Study on blockchain in payments.
Sec. 509. Study on illicit use of digital assets.
Sec. 510. GAO study on certain centralized intermediaries that are primarily located in foreign jurisdictions.
Sec. 511. Studies on foreign adversary participation.
Sec. 512. Conforming amendments.

TITLE I—DEFINITIONS; RULEMAKING; EXPEDITED REGISTRATION

SEC. 101. DEFINITIONS UNDER THE SECURITIES ACT OF 1933.

Section 2(a) of the Securities Act of 1933 (15 U.S.C. 77b(a)) is amended by adding at the end the following:

''(20) BLOCKCHAIN.—The term 'blockchain' means—

''(A) any technology—

''(i) where data is—

''(I) shared across a network to create a distributed ledger of independently verifiable transactions or information among network participants;

''(II) linked using cryptography to maintain the integrity of the distributed ledger and to execute other functions; and

''(III) propagated among network participants to reach consensus on the state of the distributed ledger and any other functions; and

''(ii) composed of source code that is publicly available; and

''(B) any similar technology to the technology described in subparagraph (A).

''(21) BLOCKCHAIN APPLICATION.—The term 'blockchain application' means any executable software that is deployed to a blockchain and composed of source code that is publicly available, including a smart contract or any network of smart contracts, or other similar technology.

''(22) BLOCKCHAIN PROTOCOL.—The term 'blockchain protocol' means publicly available source code of a blockchain that is executed by the network participants of a blockchain to facilitate its functioning, or other similar technology.

''(23) BLOCKCHAIN SYSTEM.—The term 'blockchain system' means any blockchain, together with its blockchain protocol or any blockchain application or network of blockchain applications.

''(24) DECENTRALIZED GOVERNANCE SYSTEM.—

''(A) IN GENERAL.—The term 'decentralized governance system' means, with respect to a blockchain system, any transparent, rules-based system permitting persons to form consensus or reach agreement in the development, provision, publication, maintenance, or administration of such blockchain system, where participation is not limited to, or under the effective control of, any person or group of persons under common control.

''(B) RELATIONSHIP OF PERSONS TO DECENTRALIZED GOVERNANCE SYSTEMS.—With respect to a decentralized governance system, the decentralized governance system and any persons participating in the decentralized governance system shall be treated as separate persons unless such persons are under common control or acting pursuant to an agreement to act in concert.

''(C) LEGAL ENTITIES FOR DECENTRALIZED GOVERNANCE SYSTEMS.—The term 'decentralized governance system' shall include a legal entity used to implement the rules-based system described in subparagraph (A), provided that the legal entity does not operate pursuant to centralized management. For the purposes of this subparagraph, the delegation of ministerial or administrative authority at the direction of the participants in a decentralized governance system shall not be construed to be centralized management.

''(25) DIGITAL ASSET.—The term 'digital asset' means any digital representation of value which is recorded on a cryptographically-secured distributed ledger or other similar technology.

''(26) DIGITAL COMMODITY.—The term 'digital commodity' has the meaning given that term under section 1a of the Commodity Exchange Act (7 U.S.C. 1a).

''(27) DIGITAL COMMODITY AFFILIATED PERSON.—The term 'digital commodity affiliated person'—

''(A) means a person (including a digital commodity related person) that, with respect to any digital commodity—

''(i) acquires or has any right to acquire 5 percent or more of the total outstanding units of such digital commodity from a digital commodity issuer or an agent or underwriter thereof;

''(ii) is a founder of the digital commodity issuer; or

''(iii) is an executive officer, director, trustee, general partner, or person serving in a similar capacity of the digital commodity issuer or held such role at any point in the previous 12-month period; and

''(B) does not include a decentralized governance system.

''(28) DIGITAL COMMODITY ISSUER.—

''(A) IN GENERAL.—With respect to a digital commodity, the term 'digital commodity issuer' means any person that—

''(i) issues or causes to be issued, or proposes to issue or cause to be issued, a unit of such digital commodity to a person; or

''(ii) offers or sells a right to a future issuance of a unit of such digital commodity to a person.

''(B) PROHIBITION ON EVASION.—It shall be unlawful for any person to knowingly evade classification as a 'digital commodity issuer' and facilitate an arrangement for the primary purpose of effecting an offer, sale, distribution, or other issuance of a digital commodity, including via any arrangement involving the transfer of intellectual property associated with the blockchain system to which the digital commodity relates.

''(29) DIGITAL COMMODITY RELATED PERSON.—

''(A) IN GENERAL.—With respect to a digital commodity issuer, the term 'digital commodity related person'—

''(i) means a person—

''(I) that is or was in the previous 6-month period a promoter, senior employee, advisory board member, consultant, advisor, or person serving in a similar capacity; or

''(II) that acquires or has any right to acquire 1 percent or more of the total outstanding units of such digital commodity from a digital commodity issuer or an agent or underwriter thereof; and

''(ii) does not include a decentralized governance system.

''(B) SENIOR EMPLOYEE DEFINED.—In this paragraph and with respect to a digital commodity issuer, the term 'senior employee' means any employee materially involved in the management of the digital commodity issuer, including management of the development of the blockchain system to which the digital commodity relates.

''(30) END USER DISTRIBUTION.—

''(A) IN GENERAL.—The term 'end user distribution' means a distribution of a unit of a digital commodity that—

''(i) does not involve an exchange of more than a nominal value of cash, property, or other assets; and

''(ii) is distributed in a broad and equitable manner based on conditions capable of being satisfied by any participant in the blockchain system, including, as incentive-based rewards—

''(I) to users of the digital commodity or any blockchain system to which the digital commodity relates;

''(II) for activities directly related to the operation of the blockchain system, such as mining, validating, staking, or other activity directly tied to the operation of the blockchain system; or

''(III) to the existing holders of another digital commodity, in proportion to the total units of such other digital commodity as are held by each person.

''(B) PROTOCOL CONSENSUS PARTICIPATION.—The term 'end user distribution' includes the following:

''(i) SELF STAKING.—The distribution of a unit of a digital commodity as a programmatic result of validating or staking activity for a blockchain system's consensus mechanism, including the staking of a digital commodity and the operation of a node or validator for such activity where the owner of the staked digital commodity and operator of the node or validator are the same person or entity.

''(ii) SELF-CUSTODIAL STAKING WITH A THIRD PARTY.—The distribution of a unit of a digital commodity as a programmatic result of validating or staking activity for a blockchain system's consensus mechanism, including the staking of a digital commodity and the operation of a node or validator for such activity where—

''(I) the owner of the staked digital commodity and operator of the node or validator for such activity are different persons or entities; and

''(II) the operator of the node or validator does not maintain custody or control of the staked digital commodity.

''(iii) CUSTODIAL AND ANCILLARY STAKING SERVICES.—Subject to the rules issued pursuant to subparagraph (C), the provision of custodial or ancillary staking services enabling the owner of a digital commodity to participate in validating or staking activity for a blockchain system's consensus mechanism that results in the programmatic distribution of a unit of a digital commodity, provided that such custodial or ancillary services are exclusively administrative or ministerial in nature.

''(C) RULEMAKING TO DEFINE THE CUSTODIAL AND ANCILLARY STAKING SERVICES.—Not later than 270 days after the date of the enactment of this paragraph, the Commission shall issue rules defining the custodial and ancillary staking

services described in subparagraph (B)(iii) that are exclusively administrative or ministerial in nature, consistent with what is necessary or appropriate for the public interest or for the protection of investors.

''(31) MATURE BLOCKCHAIN SYSTEM.—The term 'mature blockchain system' means a blockchain system, together with its related digital commodity, that is not controlled by any person or group of persons under common control.

''(32) PERMITTED PAYMENT STABLECOIN.—The term 'permitted payment stablecoin' means a payment stablecoin (as defined in section 2 of the GENIUS Act) issued by a permitted payment stablecoin issuer.

''(33) PERMITTED PAYMENT STABLECOIN ISSUER.—The term 'permitted payment stablecoin issuer' has the meaning given that term in section 2 of the GENIUS Act.''.

SEC. 102. DEFINITIONS UNDER THE SECURITIES EXCHANGE ACT OF 1934.

Section 3(a) of the Securities Exchange Act of 1934 (15 U.S.C. 78c(a)) is amended—

(1) by redesignating the second paragraph (80) (relating to funding portals) as paragraph (81); and

(2) by adding at the end the following:

''(82) BANK SECRECY ACT.—The term 'Bank Secrecy Act' means—

''(A) section 21 of the Federal Deposit Insurance Act (12 U.S.C. 1829b);

''(B) chapter 2 of title I of Public Law 91–508 (12 U.S.C. 1951 et seq.); and

''(C) subchapter II of chapter 53 of title 31, United States Code.

''(83) ADDITIONAL DIGITAL COMMODITY-RELATED TERMS.—

''(A) SECURITIES ACT OF 1933.—The terms 'blockchain system', 'decentralized governance system', 'digital asset', 'digital commodity affiliated person', 'digital commodity issuer', 'digital commodity related person', 'end user distribution', 'mature blockchain system', 'permitted payment stablecoin', and 'permitted payment stablecoin issuer' have the meaning given those terms, respectively, under section 2(a) of the Securities Act of 1933 (15 U.S.C. 77b(a)).

''(B) COMMODITY EXCHANGE ACT.—The terms 'digital commodity', 'digital commodity broker', 'digital commodity dealer', 'digital commodity exchange', 'decentralized finance messaging system', and 'decentralized finance trading protocol' have the meaning given those terms, respectively, under section 1a of the Commodity Exchange Act (7 U.S.C. 1a).''.

SEC. 103. DEFINITIONS UNDER THE COMMODITY EXCHANGE ACT.

(a) IN GENERAL.—Section 1a of the Commodity Exchange Act (7 U.S.C. 1a) is amended—

(1) in paragraph (10)—

(A) in subparagraph (A)—

(i) by redesignating clauses (iii) and (iv) as clauses (iv) and (v), respectively; and

(ii) by inserting after clause (ii) the following:

''(iii) digital commodity;''; and

(B) by redesignating subparagraph (B) as subparagraph (C) and inserting after subparagraph (A) the following:

''(B) EXCLUSION.—For purposes of this paragraph, the term 'trading in commodity interests' shall not include transacting in digital commodities for the purpose of—

''(i) acting as a digital commodity custodian;

''(ii) establishing, maintaining, or managing inventory or payment instruments for commercial purposes; or

''(iii) maintaining or supporting the operation of, or validating transactions on, a blockchain system.'';

(2) in paragraph (11)—

(A) in subparagraph (A)(i)—

(i) by redesignating subclauses (III) and (IV) as subclauses (IV) and (V), respectively; and

(ii) by inserting after subclause (II) the following:

''(III) digital commodity;''; and

(B) by redesignating subparagraph (B) as subparagraph (C) and inserting after subparagraph (A) the following:

''(B) EXCLUSION.—For purposes of this paragraph, the term 'trading in commodity interests' shall not include transacting in digital commodities for the purpose of—

''(i) acting as a digital commodity custodian;

''(ii) establishing, maintaining, or managing inventory or payment instruments for commercial purposes; or

''(iii) maintaining or supporting the operation of, or validating transactions on, a blockchain system.'';

(3) in paragraph (12)(A)(i)—

(A) in subclause (II), by adding at the end a semicolon;

(B) by redesignating subclauses (III) and (IV) as subclauses (IV) and (V), respectively; and

(C) by inserting after subclause (II) the following:

''(III) a digital commodity;'';

(4) by redesignating paragraphs (16) through (51) as paragraphs (17) through (52), respectively, and inserting after paragraph (15) the following:

''(16) TERMS RELATED TO DIGITAL COMMODITIES.—

''(A) ASSOCIATED PERSON OF A DIGITAL COMMODITY BROKER.—

''(i) IN GENERAL.—Except as provided in clause (ii), the term 'associated person of a digital commodity broker' means a person who is associated with a digital commodity broker as a partner, officer, employee, or agent (or any person occupying a similar status or performing similar functions) in any capacity that involves—

''(I) the solicitation or acceptance of an order for the purchase or sale of a digital commodity; or

''(II) the supervision of any person engaged in the solicitation or acceptance of an order for the purchase or sale of a digital commodity.

''(ii) EXCLUSION.—The term 'associated person of a digital commodity broker' does not include any person associated with a digital commodity broker the functions of which are solely clerical or ministerial.

''(B) ASSOCIATED PERSON OF A DIGITAL COMMODITY DEALER.—

''(i) IN GENERAL.—Except as provided in clause (ii), the term 'associated person of a digital commodity dealer' means a person who is associated with a digital commodity dealer as a partner, officer, employee, or agent (or any person occupying a similar status or performing similar functions) in any capacity that involves—

''(I) the solicitation or acceptance of a contract for the purchase or sale of a digital commodity; or

''(II) the supervision of any person engaged in the solicitation or acceptance of a contract for the purchase or sale of a digital commodity.

''(ii) EXCLUSION.—The term 'associated person of a digital commodity dealer' does not include any person associated with a digital commodity dealer the functions of which are solely clerical or ministerial.

''(C) BANK SECRECY ACT.—The term 'Bank Secrecy Act' means—

''(i) section 21 of the Federal Deposit Insurance Act (12 U.S.C. 1829b);

''(ii) chapter 2 of title I of Public Law 91–508 (12 U.S.C. 1951 et seq.); and

''(iii) subchapter II of chapter 53 of title 31, United States Code.

''(D) DECENTRALIZED FINANCE MESSAGING SYSTEM.—

''(i) IN GENERAL.—The term 'decentralized finance messaging system' means a software application that provides a user with the ability to create or submit an instruction, communication, or message to a decentralized finance trading protocol for the purpose of executing a transaction by the user.

''(ii) ADDITIONAL REQUIREMENTS.—The term 'decentralized finance messaging system' does not include any system that provides any person other than the user with control over—

''(I) the funds of the user; or

''(II) the execution of the transaction of the user.

''(E) DECENTRALIZED FINANCE TRADING PROTOCOL.—

''(i) IN GENERAL.—The term 'decentralized finance trading protocol' means a blockchain system through which multiple participants can execute a financial transaction—

''(I) in accordance with an automated rule or algorithm that is predetermined and non-discretionary; and

''(II) without reliance on any other person to maintain control of the digital assets of the user during any part of the financial transaction.

''(ii) EXCLUSIONS.—

''(I) IN GENERAL.—The term 'decentralized finance trading protocol' does not include a blockchain system if—

''(aa) a person or group of persons under common control or acting pursuant to an agreement to act in concert has the authority, directly or indirectly, through any contract, arrangement, understanding, relationship, or otherwise, to control or materially alter the functionality, operation, or rules of consensus or agreement of the blockchain system; or

''(bb) the blockchain system does not operate, execute, and enforce its operations and transactions based solely on pre-established, transparent rules encoded directly within the source code of the blockchain system.

''(II) SPECIAL RULE.—For purposes of subclause (I), a decentralized governance system shall not be considered to be a person or a group of persons under common control or acting pursuant to an agreement to act in concert.

''(F) DIGITAL COMMODITY.—

''(i) IN GENERAL.—The term 'digital commodity' means a digital asset that is intrinsically linked to a blockchain system, and the value of which is derived from or is reasonably expected to be derived from the use of the blockchain system.

''(ii) RELATIONSHIP TO A BLOCKCHAIN SYSTEM.—For purposes of this subparagraph, a digital asset is intrinsically linked to a blockchain system if the digital asset is directly related to the functionality or operation of the blockchain system or to the activities or services for which the blockchain system is created or utilized, including where the digital asset is—

''(I) issued or generated by the programmatic functioning of the blockchain system;

''(II) used to transfer value between participants in the blockchain system;

''(III) used to access the activities or services of the blockchain system;

''(IV) used to participate in the decentralized governance system of the blockchain system;

''(V) used or removed from circulation in whole or in part to pay fees or otherwise verify or validate transactions on the blockchain system;

''(VI) used as payment or incentive to participants in the blockchain system to engage in the activities of the blockchain system, provide services to other participants in the blockchain system, or otherwise participate in the functionality of the blockchain system; or

''(VII) used as payment or incentive to participants in the blockchain system to validate transactions, secure the blockchain system, provide computational services, maintain or distribute information, or otherwise participate in the operations of the blockchain system.

''(iii) EXCLUSION.—The term 'digital commodity' does not include any of the following:

''(I) SECURITY.—

''(aa) Any security, other than a note, an investment contract, or a certificate of interest or participation in any profit-sharing agreement.

''(bb) A note, an investment contract, or a certificate of interest or participation in any profit-sharing agreement that—

''(AA) represents or gives the holder an ownership interest or other interest in the revenues, profits, obligations, debts, assets, or assets or

debts to be acquired of the issuer of the digital asset or another person (other than a decentralized governance system);

''(BB) makes the holder a creditor of the issuer of the digital asset or another person; or

''(CC) represents or gives the holder the right to receive interest or the return of principal from the issuer of the digital asset or another person.

''(II) SECURITY DERIVATIVE.—A digital asset that, based on its terms and other characteristics, is, represents, or is functionally equivalent to an agreement, contract, or transaction that is—

''(aa) a security future, as defined in section 2a of the Securities Act of 1933;

''(bb) a security-based swap, as defined in section 2a of the Securities Act of 1933;

''(cc) a put, call, straddle, option, or privilege on any security, certificate of deposit, or group or index of securities (including any interest therein or based on the value thereof), as defined in section 2a of the Securities Act of 1933; or

''(dd) a put, call, straddle, option, or privilege on any security, as defined in section 2a of the Securities Act of 1933.

''(III) PERMITTED PAYMENT STABLECOIN.—A digital asset that is a permitted payment stablecoin.

''(IV) BANKING DEPOSIT.—

''(aa) A deposit (as defined under section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813)), regardless of the technology used to record the deposit.

''(bb) An account (as defined in section 101 of the Federal Credit Union Act (12 U.S.C. 1752)), regardless of the technology used to record the account.

''(V) COMMODITY.—A digital asset that references, represents an interest in, or is functionally equivalent to—

''(aa) an agricultural commodity;

''(bb) an excluded commodity, other than a security; or

''(cc) an exempt commodity, other than the digital commodity itself, as shall be further defined by the Commission.

''(VI) COMMODITY DERIVATIVE.—A digital asset that, based on its terms and other characteristics, is, represents, or is functionally equivalent to an agreement, contract, or transaction that is—

''(aa) a contract of sale of a commodity for future delivery or an option thereon;

''(bb) a security futures product;

''(cc) a swap;

''(dd) an agreement, contract, or transaction described in section 2(c)(2)(C)(i) or section 2(c)(2)(D)(i);

''(ee) a commodity option authorized under section 4c; or

''(ff) a leverage transaction authorized under section 19.

''(VII) POOLED INVESTMENT VEHICLE.—

''(aa) IN GENERAL.—A digital asset not described by subclause (I) that, based on its terms and other characteristics, is, represents, or is functionally equivalent to an interest in—

''(AA) a commodity pool, as defined in this Act; or

''(BB) a pooled investment vehicle.

''(bb) POOLED INVESTMENT VEHICLE DEFINED.—In this subclause, the term 'pooled investment vehicle' means—

''(AA) any investment company as defined in section 3(a) of the Investment Company Act of 1940 (15 U.S.C. 80a–3(a));

''(BB) any company (as defined in section 2 of such Act (15 U.S.C. 80a–2)) that would be an investment company under section 3(a) of such Act but for the exclusions provided from that definition by section 3(c) of such Act, if for purposes of this subclause the company were assumed to be an issuer (as defined in section 2 of such Act); or

''(CC) any entity or person that is not an investment company but holds or will hold assets other than securities.

''(VIII) GOOD, COLLECTIBLE, AND OTHER NON-COMMODITY ASSET.—A digital asset that has value, utility, or significance beyond its mere existence as a digital asset, including the digital equivalent of a tangible or intangible good, such as—

''(aa) a work of art, a musical composition, a literary work, or other intellectual property;

''(bb) collectibles, merchandise, virtual land, and video game assets;

''(cc) affinity, rewards, or loyalty points, including airline miles or credit card points, that are not primarily speculative in nature; or

''(dd) rights, licenses, and tickets.

''(iv) RULE OF CONSTRUCTION.—No presumption shall exist that a digital asset is a security, nor shall a digital asset be excluded from being a digital commodity pursuant to clause (iii)(I), solely due to—

''(I) the digital asset providing voting or economic rights with respect to the blockchain system to which the digital asset relates or the decentralized governance system of the blockchain system to which the digital asset relates;

''(II) the value of the digital asset having the potential to appreciate or depreciate in response to the efforts, operations, or financial performance of the blockchain system to which the digital asset relates or the decentralized governance system of the blockchain system to which the digital asset relates; or

''(III) the value of the digital asset appreciating or depreciating due to the use of the blockchain system to which the digital asset relates or the decentralized governance system of the blockchain system to which the digital asset relates.

''(G) DIGITAL COMMODITY BROKER.—

''(i) IN GENERAL.—The term 'digital commodity broker' means any person who, as a regular business—

''(I) is engaged in—

''(aa) soliciting or accepting an order from a customer for—

''(AA) the purchase or sale of a digital commodity; or

''(BB) an agreement, contract, or transaction described in section 2(c)(2)(D)(iv); and

''(bb) in conjunction with the activities in item (aa), accepts or maintains control over—

''(AA) the funds of any customer; or

''(BB) the execution of any transaction of a customer;

''(II) is engaged in soliciting or accepting orders from a customer for the purchase or sale of a unit of a digital commodity on or subject to the rules of a registered entity; or

''(III) is registered with the Commission as a digital commodity broker.

''(ii) EXCEPTIONS.—The term 'digital commodity broker' does not include a person solely because the person—

''(I) solicits or accepts an order described in clause (i)(I)(aa)(AA) from a customer who is an eligible contract participant;

''(II) enters into 1 or more digital commodity transactions that are attributable or solely incidental to making, sending, receiving, or facilitating payments, whether involving a payment service provider or on a peer-to-peer basis; or

''(III) is a bank (as defined under section 3(a) of the Securities Exchange Act of 1934) engaging in certain banking activities with respect to a digital commodity in the same or a similar manner as a bank is excluded from the definition of a broker under such section, as determined by the Commission.

''(iii) FURTHER DEFINITION.—The Commission, by rule or regulation, may exclude from the term 'digital commodity broker' any person or class of persons if the Commission determines that the rule or regulation will effectuate the purposes of this Act.

''(H) DIGITAL COMMODITY DEALER.—

''(i) IN GENERAL.—The term 'digital commodity dealer' means any person who, as a regular business—

''(I) is, or offers to be a counterparty to a person for the purchase or sale of a digital commodity as a regular business, and in conjunction with the activities, accepts or maintains control over the funds of any counterparty; or

''(II) is registered with the Commission as a digital commodity dealer.

''(ii) EXCEPTION.—The term 'digital commodity dealer' does not include a person solely because the person—

''(I) is or offers to be a counterparty to a person who is an eligible contract participant;

''(II) enters into a digital commodity transaction with an eligible contract participant;

''(III) enters into a digital commodity transaction on or through a registered digital commodity exchange, with a registered digital commodity broker, or through a decentralized finance trading protocol;

''(IV) enters into a digital commodity transaction for the person's own account, either individually or in a fiduciary capacity, but not as a part of a regular business;

''(V) enters into 1 or more digital commodity transactions that are attributable or solely incidental to making, sending, receiving, or facilitating payments, whether involving a payment service provider or on a peer-to-peer basis; or

''(VI) is a bank (as defined under section 3(a) of the Securities Exchange Act of 1934) engaging in certain banking activities with respect to a digital commodity in the same or a similar manner as a bank is excluded from the definition of a dealer under section 3(a)(5) of such Act, as determined by the Commission.

''(iii) FURTHER DEFINITION.—The Commission, by rule or regulation, may exclude from the term 'digital commodity dealer' any person or class of persons if the Commission determines that the rule or regulation will effectuate the purposes of this Act.

''(I) DIGITAL COMMODITY EXCHANGE.—The term 'digital commodity exchange' means a trading facility that offers or seeks to offer a cash or spot market in at least 1 digital commodity.

''(J) MIXED DIGITAL ASSET TRANSACTION.—The term 'mixed digital asset transaction' means a transaction in which a digital commodity is traded for a security.

''(K) TERMS DEFINED UNDER THE SECURITIES ACT OF 1933.—The terms 'blockchain system', 'decentralized governance system', 'digital asset', 'digital commodity issuer', 'digital commodity affiliated person', 'digital commodity related person', 'end user distribution', 'mature blockchain system', 'permitted payment stablecoin', and 'permitted payment stablecoin issuer' have the meaning given those terms, respectively, under section 2(a) of the Securities Act of 1933 (15 U.S.C. 77b(a)).''; and

(5) in paragraph (41) (as so redesignated by paragraph (4) of this subsection)—

(A) by striking ''and'' at the end of subparagraph (E);

(B) by striking the period at the end of subparagraph (F) and inserting ''; and''; and

(C) by adding at the end the following:

''(G) a digital commodity exchange registered under section 5i.''.

(b) CONFORMING AMENDMENTS.—

(1) Each of the following provisions of law is amended by striking ''1a(18)'' and inserting ''1a(19)'':

(A) Section 4s(h)(5)(A)(i) of the Commodity Exchange Act (7 U.S.C. 6s(h)(5)(A)(i)).

(B) Section 5(e) of the Securities Act of 1933 (15 U.S.C. 77e(e)).

(C) Section 6(g)(5)(B) of the Securities Exchange Act of 1934 (15 U.S.C. 78f(g)(5)(B)).

(D) Section 15F(h)(5)(A)(i) of the Securities Exchange Act of 1934 (15 U.S.C. 78o–10(h)(5)(A)(i)).

(2) Section 752 of the Wall Street Transparency and Accountability Act of 2010 (15 U.S.C. 8325) is amended by striking ''1a(39)'' and inserting ''1a(40)''.

(3) Section 4s(f)(1)(D) of the Commodity Exchange Act (7 U.S.C. 6s(f)(1)(D)) is amended by striking ''1a(47)(A)'' and inserting ''1a(48)(A)''.

(4) Each of the following provisions of the Commodity Exchange Act is amended by striking ''1a(47)(A)(v)'' and inserting ''1a(48)(A)(v)'':

(A) Section 4t(b)(1)(C) (7 U.S.C. 6t(b)(1)(C)).
(B) Section 5(d)(23) (7 U.S.C. 7(d)(23)).
(C) Section 5b(k)(3) (7 U.S.C. 7a–1(k)(3)).
(D) Section 5h(f)(10)(A)(iii) (7 U.S.C. 7b–3(f)(10)(A)(iii)).

(5) Section 21(f)(4)(C) of the Commodity Exchange Act (7 U.S.C. 24a(f)(4)(C)) is amended by striking ''1a(48)'' and inserting ''1a(49)''.

(6) Section 403 of the Legal Certainty for Bank Products Act of 2000 (7 U.S.C. 27a) is amended—

(A) in subsection (a)(2), by striking ''1a(47)(A)(v)'' and inserting ''1a(48)(A)(v)''; and

(B) in each of subsections (b)(1) and (c)(2), by striking ''1a(47)'' and inserting ''1a(48)''.

(7) Section 712 of the Wall Street Transparency and Accountability Act of 2010 (15 U.S.C. 8302) is amended—

(A) in subsection (a)(8), by striking ''1a(47)(D)'' each place it appears and inserting ''1a(48)(D)''; and

(B) in subsection (d)(1), by striking ''1a(47)(A)(v)'' each place it appears and inserting ''1a(48)(A)(v)''.

SEC. 104. DEFINITIONS UNDER THIS ACT.

In this Act:

(1) DEFINITIONS UNDER THE COMMODITY EXCHANGE ACT.—The terms ''decentralized finance messaging system'', ''decentralized finance trading protocol'', ''digital commodity'', ''digital commodity broker'', ''digital commodity dealer'', ''digital commodity exchange'', and ''mixed digital asset transaction'' have the meaning given those terms, respectively, under section 1a of the Commodity Exchange Act (7 U.S.C. 1a).

(2) DEFINITIONS UNDER THE SECURITIES ACT OF 1933.—The terms ''blockchain'', ''blockchain system'', ''blockchain protocol'', ''decentralized governance system'', ''digital asset'', ''digital commodity issuer'', ''end user distribution'', ''mature blockchain system'', ''permitted payment stablecoin'', and ''permitted payment stablecoin issuer'' have the meaning given those terms, respectively, under section 2(a) of the Securities Act of 1933 (15 U.S.C. 77b(a)).

(3) DEFINITIONS UNDER THE SECURITIES EXCHANGE ACT OF 1934.—The terms ''Bank Secrecy Act'', ''securities laws'', and ''self-regulatory organization'' have the meaning given those terms, respectively, under section 3(a) of the Securities Exchange Act of 1934 (15 U.S.C. 78c(a)).

SEC. 105. RULEMAKINGS.

(a) DEFINITIONS.—The Commodity Futures Trading Commission and the Securities and Exchange Commission shall jointly issue rules to further define the following terms:

(1) The terms—

(A) ''blockchain'', ''blockchain application'', ''blockchain system'', ''blockchain protocol'', ''decentralized governance system'', ''digital commodity affiliated person'', ''digital commodity issuer'', ''digital commodity related person'', ''end user distribution'', and ''mature blockchain system'', as defined under section 2(a) of the Securities Act of 1933;

(B) ''unilateral authority'', as such term is used in section 42 of the Securities Exchange Act of 1934 and section 1a of the Commodity Exchange Act; and

(C) ''programmatic functioning'', as such term is used in sections 4C of the Securities Act of 1933, section 42 of the Securities Exchange Act of 1934, and section 1a of the Commodity Exchange Act.

(2) The terms ''digital commodity'', ''decentralized finance messaging system'', and ''decentralized finance trading protocol'', as defined under section 1a of the Commodity Exchange Act.

(b) JOINT RULEMAKING FOR MIXED DIGITAL ASSET TRANSACTIONS.—The Securities and Exchange Commission and the Commodity Futures Trading Commission shall jointly issue rules applicable to mixed digital asset transactions under this Act and the amendments made by this Act, including by further defining such term.

(c) PROTECTION OF SELF-CUSTODY.—

(1) IN GENERAL.—A United States individual shall retain the right to—

(A) maintain a hardware wallet or software wallet for the purpose of facilitating the individual's own lawful custody of digital assets; and

(B) engage in direct, peer-to-peer transactions in digital assets with another individual or entity for the individual's own lawful purposes using a hardware wallet or software wallet, if—

(i) such other individual or entity is not a financial institution (as defined in section 5312 of title 31, United States Code); and

(ii) the transactions do not involve any property or interests in property that are blocked pursuant to, or are otherwise prohibited by, United States sanctions.

(2) APPLICATION.—This subsection—

(A) applies solely to personal use by individuals; and

(B) does not apply to individuals acting in a custodial or fiduciary capacity for others.

(3) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to limit the authority of the Secretary of the Treasury, the Securities and Exchange Commission, the Commodity Futures Trading Commission, the Board of Governors of the Federal Reserve System, the Comptroller of the Currency, the Federal Deposit Insurance Corporation, or the National Credit Union Administration to carry out any enforcement action or special measure authorized under applicable law, including—

(A) the Bank Secrecy Act, section 9714 of the Combating Russian Money Laundering Act (31 U.S.C. 5318A note), and section 7213A of the Fentanyl Sanctions Act (21 U.S.C. 2313a); or

(B) any other law relating to illicit finance, money laundering, terrorism financing, or United States sanctions.

(d) JOINT RULEMAKING, PROCEDURES, OR GUIDANCE FOR DELISTING.—Not later than 180 days after the date of the enactment of this Act, the Commodity Futures Trading Commission and the Securities and Exchange Commission shall jointly issue rules, procedures, or guidance (as determined appropriate by the Commissions) regarding the process to delist an asset for trading under section 106 if the Commissions determine that the listing is inconsistent with the Commodity Exchange Act, the securities laws (including regulations under those laws), or this Act.

(e) JOINT RULES FOR PORTFOLIO MARGINING DETERMINATIONS.—

(1) IN GENERAL.—Not later than 360 days after the date of the enactment of this Act, the Commodity Futures Trading Commission and the Securities and Exchange Commission shall jointly issue rules describing the process for persons registered with either such Commission to seek a joint order or determination with respect to margin, customer protection, segregation, or other requirements as necessary to facilitate portfolio margining of securities (including related extensions of credit), security-based swaps, contracts for future delivery, options on a contract for future delivery, swaps, and digital commodities, or any subset thereof, in—

(A) a securities account carried by a registered broker or dealer or a security-based swap account carried by a registered security-based swap dealer;

(B) a futures or cleared swap account carried by a registered futures commission merchant;

(C) a swap account carried by a swap dealer; or

(D) a digital commodity account carried by a registered digital commodity broker or digital commodity dealer that is also registered in such other capacity as is necessary to also carry the other customer or counterparty positions being held in the account.

(2) PROCESS.—With respect to a joint order or determination described in paragraph (1), the rules required to be issued pursuant to paragraph (1) shall require—

(A) the joint order or determination to be issued only if the order or determination is in the public interest and provides for the appropriate protection of customers;

(B) applicants to file a standard application, in a form and manner determined by the Securities and Exchange Commission and the Commodity Futures Trading Commission, which shall include the information necessary to make the joint order or determination;

(C) the Securities and Exchange Commission and the Commodity Futures Trading Commission to make a final determination not later than 270 days after the filing of a completed application;

(D) the Securities and Exchange Commission and the Commodity Futures Trading Commission to consider the public interest of the joint order or determination through the solicitation of public comments; and

(E) the Securities and Exchange Commission and the Commodity Futures Trading Commission to consult with other relevant foreign or domestic regulators, including the Board of Governors of the Federal Reserve System, the Federal Deposit Insurance Corporation, and the Office of the Comptroller of the Currency, as appropriate.

(f) CAPITAL REQUIREMENTS TO ADDRESS NETTING AGREEMENTS.—No later than 360 days following the date of enactment of this Act, the Board of Governors of the Federal Reserve System, the Comptroller of the Currency, and the Federal Deposit Insurance Corporation shall develop risk-based and leverage capital requirements for insured depository institutions, depository institution holding companies, and nonbank financial companies supervised by the Board of Governors that address netting agreements that provide for termination and close-out netting across multiple types of financial transactions, consistent with subsection (e), in the event of a counterparty's default.

SEC. 106. EXPEDITED REGISTRATION FOR DIGITAL COMMODITY EXCHANGES, BROKERS, AND DEALERS; PROVISIONAL STATUS.

(a) REGISTRATION.—

(1) IN GENERAL.—Unless exempted from registration, a person shall not act as a digital commodity broker, digital commodity dealer, or digital commodity exchange after the end of the 90-day period beginning on the date the process described in paragraph (2) is adopted by the Commodity Futures Trading Commission, unless, as the case may be, the person is registered as a—

(A) digital commodity broker pursuant to section 4u of the Commodity Exchange Act;

(B) digital commodity dealer pursuant to section 4u of the Commodity Exchange Act; or

(C) digital commodity exchange pursuant to section 5i of the Commodity Exchange Act.

(2) EXPEDITED PROCESS.—Within 180 days after the date of the enactment of this Act, the Commodity Futures Trading Commission shall adopt, by rule, regulation, or order, a process for expedited registration of persons required to be registered pursuant to paragraph (1).

(b) PROVISIONAL STATUS.—

(1) IN GENERAL.—A person who is registered in accordance with subsection (a) of this section shall be in provisional status until—

(A) in the case of a digital commodity broker or dealer, 270 days after the final effective date of the rulemakings required under section 4u of the Commodity Exchange Act; or

(B) in the case of a digital commodity exchange, 270 days after the final effective date of the rulemakings required under section 5i of such Act.

(2) PAYMENT OF FEES.—A person in provisional status shall pay all fees and penalties required under section 410.

(c) OPERATIONS PRIOR TO REGULATIONS.—

(1) REQUIREMENTS.—A person in provisional status shall be subject to the requirements of this section and the Commodity Exchange Act and any rules or regulations promulgated under this section or the Commodity Exchange Act, as applicable.

(2) LISTINGS.—

(A) IN GENERAL.—Except as provided in subparagraph (B), a person in provisional status may continue to offer, solicit, trade, facilitate, execute, clear, report, or otherwise deal in any digital asset offered on or through the facilities of the person before the date of registration under this section, until such time as the joint rulemaking on definitions required under section 105(a) is effective.

(B) DELISTING.—Before the effective date of the joint rulemaking on definitions under section 105(a), a person in provisional status shall cease offering, soliciting, trading, facilitating, executing, clearing, reporting, or otherwise dealing in any digital asset required to be delisted pursuant to a joint delisting process established under section 105(d).

(3) EXEMPTIVE AUTHORITY.—In order to promote responsible innovation and fair competition, or protect customers, the Commodity Futures Trading Commission may exempt any persons or class of persons registered pursuant to subsection (a) and in provisional status pursuant to subsection (b) from any requirements of this section or the Commodity Exchange Act or any rules or regulations promulgated under this section or the Commodity Exchange Act, as applicable.

(d) CUSTOMER DISCLOSURE BEFORE REGISTRATION.—

(1) IN GENERAL.—Beginning 30 days after the date of the enactment of this Act, any person acting as a digital commodity exchange, digital commodity broker, or digital commodity dealer shall disclose to the customers of the person so acting, in the disclosure documents, offering documents, and promotional material of the person so acting, in a prominent manner, that the person is not registered with or regulated by the Commodity Futures Trading Commission.

(2) EXPIRATION.—Paragraph (1) of this subsection shall not apply to any person who registers pursuant to subsection (a).

SEC. 107. COMMODITY EXCHANGE ACT AND SECURITIES LAWS SAVINGS PROVISIONS.

(a) IN GENERAL.—Nothing in this Act shall affect or apply to, or be interpreted to affect or apply to—

(1) any agreement, contract, or transaction that is subject to the Commodity Exchange Act as—

(A) a contract of sale of a commodity for future delivery or an option on such a contract;

(B) a swap;

(C) a security futures product;

(D) an option authorized under section 4c of such Act;

(E) an agreement, contract, or transaction described in section 2(c)(2)(C)(i) of such Act; or

(F) a leverage transaction authorized under section 19 of such Act;

(2) any agreement, contract, or transaction that is subject to the securities laws as—

(A) a security-based swap;

(B) a security futures product; or

(C) an option on or based on the value of a security; or

(3) the activities of any person with respect to any such agreement, contract, or transaction.

(b) PROHIBITIONS ON SPOT DIGITAL COMMODITY ENTITIES.—Nothing in this Act authorizes, or shall be interpreted to authorize, a digital commodity exchange, digital commodity broker, or digital commodity dealer to engage in any activities involving any transaction, contract, or agreement described in subsection (a)(1), solely by virtue of being registered as a digital commodity exchange, digital commodity broker, or digital commodity dealer.

(c) DEFINITIONS.—In this section, each term shall have the meaning provided in the Commodity Exchange Act or the regulations prescribed under such Act.

SEC. 108. ADMINISTRATIVE REQUIREMENTS.

Section 4c(a) of the Commodity Exchange Act (7 U.S.C. 6c(a)) is amended—

(1) in paragraph (3)—

(A) in subparagraph (B), by striking ''or'' at the end;

(B) in subparagraph (C), by striking the period and inserting ''; or''; and

(C) by adding at the end the following:

''(D) a contract of sale of a digital commodity.'';

(2) in paragraph (4)—

(A) in subparagraph (A)—

(i) in clause (ii), by striking ''or'' at the end;

(ii) in clause (iii), by striking the period and inserting ''; or''; and

(iii) by adding at the end the following:

''(iv) a contract of sale of a digital commodity.'';

(B) in subparagraph (B)—

(i) in clause (ii), by striking ''or'' at the end;

(ii) in clause (iii), by striking the period and inserting ''; or''; and

(iii) by adding at the end the following:

''(iv) a contract of sale of a digital commodity.''; and

(C) in subparagraph (C)—

(i) in clause (ii), by striking ''or'' at the end;

(ii) by striking ''(iii) a swap, provided however,'' and inserting the following:

''(iii) a swap; or

''(iv) a contract of sale of a digital commodity, provided, however,''; and

(iii) by striking ''clauses (i), (ii), or (iii)'' and insert ''any of clauses (i) through (iv)''.

SEC. 109. TREATMENT OF CERTAIN NON-CONTROLLING BLOCKCHAIN DEVELOPERS.

(a) IN GENERAL.—Notwithstanding applicable law, a non-controlling blockchain developer or provider of a blockchain service shall not be treated as a money transmitter or as engaged in ''money transmitting'' or, following the date of enactment of this Act, be otherwise subject to any new registration requirement that is substantially similar to the requirement that currently applies to money transmitters, solely on the basis of—

(1) creating or publishing software to facilitate the creation of, or provision of maintenance services to, a blockchain or blockchain service;

(2) providing hardware or software to facilitate a customer's own custody or safekeeping of the customer's digital assets; or

(3) providing infrastructure support to maintain a blockchain service.

(b) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to affect whether a blockchain developer or provider of a blockchain service is otherwise subject to classification or treatment as a money transmitter, or as engaged in ''money transmitting'', under applicable State or Federal law, including laws relating to anti-money laundering or countering the financing of terrorism, based on conduct outside the scope of subsection (a). Nothing in this section shall be construed to affect whether a blockchain developer or provider of a blockchain service is otherwise subject to classification or treatment as a financial institution under the Bank Secrecy Act, this Act, or any Act enacted after the date of enactment of this Act.

(c) EFFECT ON OTHER LAWS.—

(1) INTELLECTUAL PROPERTY LAW.—Nothing in this section shall be construed to limit or expand any law pertaining to intellectual property.

(2) STATE LAW.—Nothing in this section shall be construed to prevent any State from enforcing any State law that is consistent with this section. No cause of action may be brought and no liability may be imposed under any State or local law that is inconsistent with this section.

(d) DEFINITIONS.—In this section:

(1) BLOCKCHAIN DEVELOPER.—The term ''blockchain developer'' means any person or business that creates or publishes software to facilitate the creation of, or provide maintenance to, a blockchain or a blockchain service.

(2) BLOCKCHAIN SERVICE.—The term ''blockchain service'' means any information, transaction, or computing service or system that provides or enables access to a blockchain network by multiple users, including specifically a service or system that enables users to send, receive, exchange, or store digital assets described by blockchain networks.

(3) NON-CONTROLLING BLOCKCHAIN DEVELOPER OR PROVIDER OF A BLOCKCHAIN SERVICE.—The term ''non-controlling blockchain developer or provider of a blockchain service'' means a blockchain developer or provider of a blockchain service that in the regular course of operations, does not have the legal right or the unilateral and independent ability to control, initiate upon demand, or effectuate transactions involving digital assets that users are entitled to, without the approval, consent, or direction of any other third party.

SEC. 110. APPLICATION OF THE BANK SECRECY ACT.

(a) IN GENERAL.—Section 5312(c)(1)(A) of title 31, United States Code, is amended—

(1) by inserting ''digital commodity broker, digital commodity dealer,'' after ''futures commission merchant,''; and

(2) by inserting before the period the following: ''and any digital commodity exchange registered, or required to register, under the Commodity Exchange Act which permits direct customer access''.

(b) BANK SECRECY ACT REQUIREMENTS.—

(1) REGULATIONS.—The Secretary of the Treasury, acting through the Director of the Financial Crimes Enforcement Network, and in consultation with Commodity Futures Trading Commission, shall issue requirements consistent with the requirements of futures commission merchants to apply the Bank Secrecy Act to digital commodity brokers, digital commodity dealers, and digital commodity exchanges that are tailored to the size and complexity of such entities, including by requiring each such entity to—

(A) establish and maintain an anti-money laundering and countering the financing of terrorism program, which shall include—

(i) an appropriate risk assessment;

(ii) the development of internal policies, procedures, and controls;

(iii) the designation of a compliance officer;

(iv) an ongoing employee training program; and

(v) an independent audit function to test such program;

(B) retain appropriate records of transactions;

(C) monitor and report suspicious activity, which may include use of appropriate distributed ledger analytics; and

(D) maintain an effective customer identification program to identify and verify account holders and carry out appropriate customer due diligence.

(2) COMPLIANCE WITH SANCTIONS.—A digital commodity broker, digital commodity dealer, or digital commodity exchange shall comply with all laws and regulations related to United States sanctions administered by the Office of Foreign Assets Control.

SEC. 111. RULE OF CONSTRUCTION.

Nothing in this Act, or the amendments made by this Act, shall be construed to limit or prevent the continued application of applicable ethics statutes and regulations administered by the Office of Government Ethics, or the ethics rules of the Senate and the House of Representatives, including section 208 of title 18, United States Code, and sections 2635.702 and 2635.802 of title 5, Code of Federal Regulations. For the avoidance of doubt, existing Office of Government Ethics laws and the ethics rules of the Senate and the House of Representatives prohibit any member of Congress or senior executive branch official from issuing a digital commodity during their time in public service. For the purposes of this section, an employee described in section 202 of title 18, United States Code, shall be deemed an executive branch employee for purposes of complying with section 208 of that title.

SEC. 112. IMPLEMENTATION.

(a) GLOBAL RULEMAKING TIMEFRAME.—Unless otherwise provided in this Act or an amendment made by this Act, the Commodity Futures Trading Commission and the Securities and Exchange Commission, or both, shall individually, and jointly where required, promulgate rules and regulations required of each Commission under this Act or an amendment made by this Act not later than 360 days after the date of enactment of this Act.

(b) RULES AND REGISTRATION BEFORE FINAL EFFECTIVE DATES.—

(1) IN GENERAL.—In order to prepare for the implementation of this Act, the Commodity Futures Trading Commission and the Securities and Exchange Commission may, before any effective date provided in this Act—

(A) promulgate rules, regulations, or orders permitted or required by this Act;

(B) conduct studies and prepare reports and recommendations required by this Act;

(C) register persons under this Act; and

(D) exempt persons, agreements, contracts, or transactions from provisions of this Act, under the terms contained in this Act.

(2) LIMITATION ON EFFECTIVENESS.—An action by the Commodity Futures Trading Commission or the Securities and Exchange Commission under paragraph (1) shall not become effective before the effective date otherwise applicable to the action under this Act.

TITLE II—OFFERS AND SALES OF DIGITAL COMMODITIES

SEC. 201. TREATMENT OF INVESTMENT CONTRACT ASSETS.

(a) SECURITIES ACT OF 1933.—Section 2(a) of the Securities Act of 1933 (15 U.S.C. 77b(a)), as amended by section 101, is further amended—

(1) in paragraph (1), by adding at the end the following: ''The term 'investment contract' does not include an investment contract asset.''; and

(2) by adding at the end the following:

''(36) The term 'investment contract asset' means a digital commodity—

''(A) that can be exclusively possessed and transferred, person to person, without necessary reliance on an intermediary, and is recorded on a blockchain; and

''(B) sold or otherwise transferred, or intended to be sold or otherwise transferred, pursuant to an investment contract.''.

(b) INVESTMENT ADVISERS ACT OF 1940.—Section 202(a)(18) of the Investment Advisers Act of 1940 (15 U.S.C. 80b–2(a)(18)) is amended by adding at the end the following: ''The term 'investment contract' does not include an investment contract asset (as such term is defined under section 2(a) of the Securities Act of 1933).''.

(c) INVESTMENT COMPANY ACT OF 1940.—Section 2(a)(36) of the Investment Company Act of 1940 (15 U.S.C. 80a–2(a)(36)) is amended by adding at the end the following: ''The term 'investment contract' does not include an investment contract asset (as such term is defined under section 2(a) of the Securities Act of 1933).''.

(d) SECURITIES EXCHANGE ACT OF 1934.—Section 3(a)(10) of the Securities Exchange Act of 1934 (15 U.S.C. 78c(a)(10)) is amended by adding at the end the following: ''The term 'investment contract' does not include an investment contract asset (as such term is defined under section 2(a) of the Securities Act of 1933).''.

(e) SECURITIES INVESTOR PROTECTION ACT OF 1970.—Section 16(14) of the Securities Investor Protection Act of 1970 (15 U.S.C. 78lll(14)) is amended by adding at the end the following: ''The term 'investment contract' does not include an investment contract asset (as such term is defined under section 2(a) of the Securities Act of 1933).''.

SEC. 202. EXEMPTED PRIMARY TRANSACTIONS IN DIGITAL COMMODITIES.

(a) IN GENERAL.—The Securities Act of 1933 (15 U.S.C. 77a et seq.) is amended—

(1) in section 4(a), by adding at the end the following:

''(8) the offer or sale of an investment contract involving units of a digital commodity by its digital commodity issuer (including all entities controlled by or under common control with the issuer), if—

''(A) the blockchain system to which the digital commodity relates, together with the digital commodity, is certified as a mature blockchain system under section 42 of the Securities Exchange Act of 1934 or the issuer intends for the blockchain system to which the digital commodity relates to be a mature blockchain system by the later of—

''(i) the date that is four years after the first sale of the investment contract involving a unit of such digital commodity in reliance on the exemption provided under this paragraph, subject to any extensions as may be granted by the Commission; or

''(ii) the date that is four years after the effective date of this paragraph;

''(B) the sum of all cash and other consideration to be received by the digital commodity issuer in reliance on the exemption provided under this paragraph, during the 12-month period preceding the date of such offering, including the amount received in such offering, is not more than $50,000,000 (as such amount is annually adjusted by the Commission to reflect the change in the Consumer Price Index for All Urban Consumers published by the Bureau of Labor Statistics of the Department of Labor);

''(C) after the completion of the transaction, a purchaser does not own more than 10 percent of the total amount of the outstanding units of the digital commodity;

''(D) the transaction does not involve the offer or sale of an investment contract involving units of a digital commodity by its digital commodity issuer that—

''(i) is not organized under the laws of a State, a territory of the United States, or the District of Columbia;

''(ii) is a development stage company that either—

''(I) has no specific business plan or purpose; or

''(II) has indicated that the business plan of the company is to merge with or acquire an unidentified company;

''(iii) is an investment company, as defined in section 3 of the Investment Company Act of 1940 (15 U.S.C. 80a–3), or is excluded from the definition of investment company by section 3(c) of that Act (15 U.S.C. 80a–3(b) or 80a–3(c));

''(iv) is issuing fractional undivided interests in oil or gas rights, or a similar interest in other mineral rights;

''(v) is, or has been, subject to any order of the Commission entered pursuant to section 12(j) of the Securities Exchange Act of 1934 during the 5-year period before the filing of the offering statement; or

''(vi) is disqualified pursuant to section 230.262 of title 17, Code of Federal Regulations; and

''(E) the issuer meets the requirements of section 4B(b).''; and

(2) by inserting after section 4A the following:

''SEC. 4B. REQUIREMENTS WITH RESPECT TO CERTAIN DIGITAL COMMODITY TRANSACTIONS.

''(a) COMMISSION JURISDICTION.—For the purposes of this section:

''(1) The Commission shall have jurisdiction and enforcement authority with respect to disclosures described in this section.

''(2) Section 17 shall apply to a statement made in an offering statement, disclosure, or report filed under this section to the same extent as such section 17 applies to a statement made in any other offering statement, disclosure, or report filed under this Act.

''(b) REQUIREMENTS FOR DIGITAL COMMODITY ISSUERS.—

''(1) TERMS AND CONDITIONS.—A digital commodity issuer offering or selling an investment contract involving units of a digital commodity in reliance on section 4(a)(8) shall file with the Commission an offering statement and any related documents, in such form and with such content as prescribed by the Commission, including financial information, a description of the issuer and the operations of the issuer, the financial condition of the issuer, a description of the plan of distribution of any unit of a digital commodity that is to be offered as well as the intended use of the offering proceeds, and a description of the development plan for the blockchain system, and the related digital commodity, to become a mature blockchain system, if such blockchain system is not already certified as a mature blockchain system pursuant to section 42 of the Securities Exchange Act of 1934 (15 U.S.C. 78a et seq.).

''(2) INFORMATION REQUIRED FOR PURCHASERS.—A digital commodity issuer that has filed a statement under paragraph (1) to offer and sell an investment contract involving a unit of a digital commodity in reliance on section 4(a)(8) shall include in such statement the following information:

''(A) MATURITY STATUS.—Whether the blockchain system to which the digital commodity relates has been certified as a mature blockchain system pursuant to section 42 of the Securities Exchange Act of 1934 (15 U.S.C. 78a et seq.) and, where such blockchain system is not so certified, a statement of the digital commodity issuer's intent for the blockchain system to which the digital commodity relates to be a mature blockchain system within the time period described in section 4(a)(8)(A).

''(B) SOURCE CODE.—The source code, or a publicly accessible webpage displaying such source code, for any blockchain system to which the digital commodity relates, and whether the source code was sourced from an external third party, whether there are any existing external dependencies, and whether the code underwent a third-party security audit, along with material results of any such audit.

''(C) TRANSACTION HISTORY.—A description of the steps necessary to independently access, search, and verify the transaction history of any blockchain system to which the digital commodity relates, to the extent any such independent access, search, and verification activities are technically feasible with respect to such blockchain system.

''(D) DIGITAL COMMODITY ECONOMICS.—A description of the purpose of any blockchain system to which the digital commodity relates and the operation of any such blockchain system, including—

''(i) information explaining the launch and supply process, including the number of units of the digital commodity to be issued in an initial allocation, the total number of units of the digital commodity to be created, the release schedule for the units of the digital commodity, and the total number of units of the digital commodity outstanding;

''(ii) information explaining the technical requirements for holding, accessing, and transferring the digital commodity;

''(iii) information on any applicable consensus mechanism or process for validating transactions, method of generating or mining digital commodities, and any process for burning or destroying units of the digital commodity on the blockchain system;

''(iv) an explanation of any mechanism for driving value to the digital commodity of such blockchain system; and

''(v) an explanation of governance mechanisms for implementing changes to the blockchain system or forming consensus among holders of units of such digital commodity.

''(E) PLAN OF DEVELOPMENT.—The current state and timeline for the development of any blockchain system to which the digital commodity relates, detailing how and when the blockchain system is intended to be a mature blockchain system, if the blockchain system is not yet certified as a mature blockchain system,

and the various roles that exist or are intended to exist in connection with the blockchain system, such as users, service providers, developers, transaction validators, and governance participants, including a discussion of any mechanisms by which control or authority are exerted with respect to the blockchain system or its related digital commodity, and any critical operational dependencies of the blockchain system or its related digital commodity.

''(F) OWNERSHIP DISCLOSURES.—

''(i) IN GENERAL.—A list of all persons who are digital commodity related persons or digital commodity affiliated persons who have been issued a unit of the digital commodity by the digital commodity issuer or have a right to a unit of the digital commodity from the digital commodity issuer.

''(ii) CONFIDENTIALITY.—The Commission shall keep each list described under clause (i) confidential, consistent with what is necessary or appropriate in the public interest or for the protection of investors.

''(G) RISK FACTOR DISCLOSURES.—A description of the material risks surrounding ownership of a unit of a digital commodity.

''(3) ONGOING DISCLOSURE REQUIREMENTS FOR MATURING BLOCKCHAIN SYSTEMS.—Subject to paragraph (5), the issuer of a digital commodity related to a blockchain system that is not yet certified as a mature blockchain system under section 42 of the Securities Exchange Act of 1934 that has filed a statement under paragraph (1) to offer and sell an investment contract involving a unit of a digital commodity in reliance on section 4(a)(8) shall file the following with the Commission:

''(A) SEMIANNUAL REPORTS.—Every 6 months, a report containing—

''(i) an updated description of the current state and timeline for the development of the blockchain system to which the digital commodity relates, showing how and when the blockchain is intended to be a mature blockchain system;

''(ii) a description of the efforts of the issuer and digital commodity related persons in developing the blockchain system to which the digital commodity relates;

''(iii) the amount of money raised by the digital commodity issuer in reliance on section 4(a)(8), how much of that money has been spent, and the general categories of activities for which that money has been spent and amounts spent per category; and

''(iv) financial statements, where applicable.

''(B) CURRENT REPORTS.—A current report reflecting any material changes relevant to the information previously reported to the Commission by the digital commodity issuer, which shall be filed as soon as practicable after the material change occurred, in accordance with such rules as the Commission may prescribe as necessary or appropriate in the public interest or for the protection of investors.

''(4) RULEMAKING.—Not later than 360 days after the date of the enactment of this section, the Commission shall prescribe rules on requirements applicable to issuers of digital commodities in reliance on section 4(a)(8).

''(5) TERMINATION OF CERTAIN REPORTING REQUIREMENTS; POST-MATURITY REPORTING REQUIREMENTS.—

''(A) IN GENERAL.—The ongoing reporting requirements under paragraph (3) shall not apply to a digital commodity issuer 180 days after the end of the covered fiscal year, if the information with respect to the digital commodity and the blockchain system to which it relates described in subparagraphs (A) through (C) of paragraph (2) is made publicly available and the disclosure requirements under subparagraph (C) of this paragraph are satisfied.

''(B) COVERED FISCAL YEAR DEFINED.—In this paragraph, the term 'covered fiscal year' means, with respect to a digital commodity, the first fiscal year of a digital commodity issuer in which the blockchain system to which such digital commodity relates is certified as a mature blockchain system under section 42 of the Securities Exchange Act of 1934.

''(C) POST-MATURITY REPORTING REQUIREMENTS.—After the blockchain system to which a digital commodity relates is certified as a mature blockchain system under section 42 of the Securities Exchange Act of 1934, any digital commodity issuer that has filed a statement under paragraph (1) to offer and sell an investment contract involving a unit of a digital commodity in reliance on section 4(a)(8) and is engaged in material ongoing efforts related to the mature blockchain system shall disclose, in a manner reasonably calculated to inform the public, and at such frequency as the Commission may prescribe, by rule, a description of such efforts, including—

''(i) any participation in a decentralized governance system of such blockchain system;

''(ii) any participation in alterations or proposed alterations to the functionality or operation of such blockchain system;

''(iii) the use or planned use of any funds raised in reliance on section 4(a)(8) or any rulemaking pursuant to section 202(c) of the CLARITY Act of 2025 in such efforts;

''(iv) the amount of units of the digital commodity, or rights thereto, owned and controlled by such issuer and any use, sale, trading, or other disposition thereof; and

''(v) any affiliations of such issuer material to the efforts of such issuer.

''(D) TERMINATION OF AND EXEMPTION FROM POST-MATURITY REPORTING REQUIREMENTS.—Not later than 270 days after the date of the enactment of this section, the Commission shall issue rules—

''(i) for terminating the disclosure requirements described in subparagraph (C) during the first fiscal year in which the digital commodity issuer does not engage in material ongoing efforts related to the mature blockchain system; and

''(ii) to, as is necessary or appropriate in the public interest or for the protection of investors, exempt a digital commodity issuer from the requirements described in subparagraph (C) where only a de minimis amount of market activity involving the digital commodity of such digital commodity issuer is taking place.

''(E) RULE OF CONSTRUCTION.—Nothing in subparagraph (C) may be construed to make any digital commodity described in such subparagraph a security.

''(c) REQUIREMENTS FOR INTERMEDIARIES.—A person acting as an intermediary in connection with the offer or sale of an investment contract involving units of a digital commodity in reliance on section 4(a)(8) shall—

''(1) register with the Commission as a broker or dealer; and

''(2) be a member of a national securities association registered under section 15A of the Securities Exchange Act of 1934 (15 U.S.C. 78o–3).

''(d) DISQUALIFICATION PROVISIONS.—The Commission shall issue rules to apply the disqualification provisions under section 230.262 of title 17, Code of Federal Regulations, to the exemption provided under section 4(a)(8).

''(e) FAILURE TO MATURE.—

''(1) IN GENERAL.—Not later than 270 days after the date of the enactment of this section, the Commission shall issue rules applying such additional obligations and disclosures for the digital commodity issuers, digital commodity related persons, and digital commodity affiliated persons of a blockchain system described under subsection (b)(1) that does not become a mature blockchain system within the time period described in section 4(a)(8)(A) as are necessary or appropriate in the public interest or for the protection of investors. Such obligations and disclosures shall include the following:

''(A) DISCLOSURES.—Disclosures regarding the following:

''(i) FAILURE TO MATURE.—A detailed explanation of the reason that the blockchain system has not become a mature blockchain system within the time period described in section 4(a)(8)(A).

''(ii) DEVELOPMENT PLANS.—The future plans of development of the blockchain system, including information required under subsection (b)(3).

''(iii) RISK FACTOR DISCLOSURES.—The material risks surrounding ownership of a unit of a digital commodity that relates to a blockchain system described under subsection (b)(1) that has not become a mature blockchain system within the time period described in section 4(a)(8)(A).

''(B) OBLIGATIONS.—Transaction reporting and beneficial ownership disclosure obligations applicable to digital commodity related persons and digital commodity affiliated persons of such blockchain system.

''(2) QUALIFICATION REQUIRED.—The Commission may not permit any additional reliance on an exempt offering for the offer or sale of an investment contract involving a unit of a digital commodity by the issuer of the digital commodity related to a blockchain system described under subsection (a)(1) that has not become a mature blockchain system within the time period described in section 4(a)(8)(A) unless the Commission has qualified any offering statement related to such exempt offering.''.

(b) ADDITIONAL EXEMPTIONS.—

(1) CERTAIN REGISTRATION REQUIREMENTS.—Section 12(g)(6) of the Securities Exchange Act of 1934 (15 U.S.C. 78l(g)(6)) is amended by striking ''under section 4(6)'' and inserting ''under section 4(a)(6) or 4(a)(8)''.

(2) EXEMPTION FROM STATE REGULATION.—Section 18(b)(4) of the Securities Act of 1933 (15 U.S.C. 77r(b)(4)) is amended—

(A) in subparagraph (B), by striking ''section 4(4)'' and inserting ''section 4(a)(4)'';

(B) in subparagraph (C), by striking ''section 4(6)'' and inserting ''section 4(a)(6)'';

(C) in subparagraph (F)—

(i) by striking ''section 4(2)'' each place such term appears and inserting ''section 4(a)(2)''; and

(ii) by striking ''or'' at the end;

(D) in subparagraph (G), by striking the period and inserting ''; or''; and

(E) by adding at the end the following:

''(H) section 4(a)(8).''.

(c) USE OF OTHER EXEMPTIONS.—

(1) RULE OF CONSTRUCTION.—Except as provided in this subsection, nothing in this section or the amendments made by this section may be construed as prohibiting the offer or sale of an investment contract involving units of a digital commodity in reliance on an exemption from registration under the Securities Act of 1933, including as provided under section 3, 4(a), or 19 of the Securities Act of 1933, other than that provided under section 4(a)(8) of the Securities Act of 1933.

(2) RULEMAKINGS.—

(A) The Securities and Exchange Commission may issue rules—

(i) to permit the issuer of a digital commodity related to a blockchain system described under section 4B(b)(1) of the Securities Act of 1933 that has not become a mature blockchain system within the time period described in section 4(a)(8)(A) of such Act, or the issuer of a digital commodity described in subparagraph (B)(iii), to utilize an exempt offering to offer or sell an investment contract involving the digital commodity, if the Commission qualifies any offering statement related to such exempt offering; and

(ii) for the offer and sale of investment contracts involving units of a digital commodity by issuers that are not organized under the laws of a State, a territory of the United States, or the District of Columbia.

(B) Not later than 270 days after the date of the enactment of this section, the Securities and Exchange Commission shall issue the following rules:

(i) A rule requiring a digital commodity issuer that last offered or sold an investment contract

involving units of a digital commodity in reliance on an exemption from registration under the Securities Act of 1933, including as provided under section 3, 4(a), or 19 of the Securities Act of 1933, prior to the date of enactment of this Act, to file a comparable set of disclosures to those described under section 4B of the Securities Act of 1933 as the Commission determines appropriate based on the exemption, the maturity of the blockchain system to which such digital commodity relates, and any material ongoing efforts of such digital commodity issuer (provided that for blockchains certified as a mature blockchain system under section 42 of the Securities Exchange Act of 1934, such disclosures shall be comparable to those under section 4B(b)(5)(C)), not later than the later of—

(I) one year after the effective date of this section; or

(II) the date of any secondary market sale of such digital commodity made in reliance on section 203.

(ii) A rule requiring a digital commodity issuer that offers or sells an investment contract involving units of a digital commodity in reliance on an exemption from registration under the Securities Act of 1933, including as provided under section 3, 4(a), or 19 of the Securities Act of 1933, other than that provided under section 4(a)(8) of the Securities Act of 1933, on or after the date of enactment of this Act, to file a comparable set of disclosures to those described under section 4B of the Securities Act of 1933 as the Commission determines appropriate based on the exemption, the maturity of the blockchain system to which such digital commodity relates, and any material ongoing efforts of such digital commodity issuer, prior to the date of any secondary market sale of such digital commodity made in reliance on section 203.

(iii) With respect to a digital commodity where the digital commodity issuer is required to file disclosures under clause (i) or (ii) and where the blockchain system to which the digital commodity relates is not certified as a mature blockchain system pursuant to section 42 of the Securities Exchange Act of 1934 after the 4-year period beginning on the date that the first such disclosure is filed—

(I) a rule prohibiting the offer or sale of an investment contract involving units of the digital commodity unless the Commission has qualified any offering statement related to such offer or sale, where such offer or sale is permitted pursuant to subparagraph (A)(i); and

(II) a rule requiring the digital commodity issuer to make disclosures comparable to those described in 4B(e)(1)(A) of the Securities Act of 1933.

(iv) A rule permitting a successor to a digital commodity issuer, or such other appropriate person as designated by the Commission, to make the disclosures required under clause (i), where such issuer does not make the required disclosures.

SEC. 203. TREATMENT OF SECONDARY TRANSACTIONS IN DIGITAL COMMODITIES THAT ORIGINALLY INVOLVED INVESTMENT CONTRACTS.

(a) SECONDARY MARKET TREATMENT.—Notwithstanding any other provision of law, the offer or sale of a digital commodity that originally involved an investment contract by a person other than the issuer of such digital commodity, or an agent or underwriter thereof, shall be deemed not to be an offer or sale of such investment contract between the issuer of the investment contract involving the digital commodity, or an agent or underwriter thereof, and the purchaser of such digital commodity under—

(1) the Securities Act of 1933 (15 U.S.C. 77a et seq.);

(2) the Investment Advisers Act of 1940 (15 U.S.C. 80b–1 et seq.);

(3) the Investment Company Act of 1940 (15 U.S.C. 80a–1 et seq.);

(4) the Securities Exchange Act of 1934 (15 U.S.C. 78a et seq.);

(5) the Securities Investor Protection Act of 1970 (15 U.S.C. 78aaa et seq.); and

(6) any applicable provisions of State law.

(b) END USER DISTRIBUTIONS NOT AN OFFER OR SALE OF A SECURITY.—An end user distribution does not involve the offer or sale of a security.

(c) AGENT DEFINED.—In this section and with respect to a digital commodity issuer, the term ''agent'' means any person directly or indirectly controlled by the issuer or under direct or indirect common control with the issuer.

SEC. 204. REQUIREMENTS FOR OFFERS AND SALES OF DIGITAL COMMODITIES BY DIGITAL COMMODITY RELATED PERSONS AND DIGITAL COMMODITY AFFILIATED PERSONS.

The Securities Act of 1933 (15 U.S.C. 77a et seq.), as amended by section 202, is further amended by inserting after section 4B the following:

''SEC. 4C. REQUIREMENTS FOR OFFERS AND SALES OF DIGITAL COMMODITIES BY DIGITAL COMMODITY RELATED PERSONS AND DIGITAL COMMODITY AFFILIATED PERSONS.

''(a) IN GENERAL.—It shall be a violation of this Act for a digital commodity affiliated person or a digital commodity related person to offer or sell a digital commodity acquired directly from its issuer, or an agent or underwriter thereof, pursuant to an investment contract in reliance on section 4(a)(8) or another exemption under this Act, other than as provided in this section.

''(b) COMMISSION JURISDICTION.—

''(1) Where a digital commodity affiliated person or a digital commodity related person offers or sells a digital commodity acquired directly from its issuer, or an agent or underwriter thereof, pursuant to an investment contract in reliance on section 4(a)(8), or another exemption under this Act, other than as provided in this section, such digital commodity affiliated person or digital commodity related person shall be considered an issuer of such investment contract.

''(2) For the purposes of this section, the Commission shall have jurisdiction and enforcement authority with respect to an offer or sale of a digital commodity described in subsection (a).

''(c) RESTRICTIONS ON DIGITAL COMMODITY RELATED PERSONS AND DIGITAL COMMODITY AFFILIATED PERSONS.—

''(1) PRIOR TO BEING A MATURE BLOCKCHAIN SYSTEM.—Prior to the blockchain system to which a digital commodity relates being certified as a mature blockchain system under section 42 of the Securities Exchange Act of 1934, units of the digital commodity acquired by a digital commodity related person or digital commodity affiliated person directly from its issuer (or an agent or underwriter thereof) pursuant to an investment contract in reliance on section 4(a)(8), or another exemption under this Act, may be offered or sold by such digital commodity related person or digital commodity affiliated person if—

''(A) reports with respect to such digital commodity, where required under section 4B(b)(3) (or, with respect to a digital commodity not issued in reliance on section 4(a)(8), a comparable set of reports where required by the Commission) have been filed with the Commission;

''(B) the digital commodity related person or digital commodity affiliated person has held the units for not less than 12 months; and

''(C) the aggregate amount of the units of the digital commodity offered or sold by the digital commodity related person or digital commodity affiliated person is—

''(i) in any 12-month period, or shorter period as the Commission may prescribe, not less than 5 percent or greater than 20 percent of the total units of the digital commodity acquired directly from its issuer (or an agent or underwriter thereof) by the digital commodity related person or digital commodity affiliated person, as determined by the Commission pursuant to paragraph (3); and

''(ii) an amount, as determined by the Commission pursuant to paragraph (3), not less than 30 percent or greater than 50 percent of the total units of the digital commodity acquired directly from its issuer (or an agent or underwriter thereof) by the digital commodity related person or digital commodity affiliated person.

''(2) AFTER BECOMING A MATURE BLOCKCHAIN SYSTEM.—After the blockchain system to which a digital commodity relates is certified as a mature blockchain system under section 42 of the Securities Exchange Act of 1934, units of the digital commodity acquired by a digital commodity related person or digital commodity affiliated person directly from its issuer (or an agent or underwriter thereof) pursuant to an investment contract in reliance on section 4(a)(8) or another exemption under this Act, may be—

''(A) offered or sold by a digital commodity related person; or

''(B) offered or sold by a digital commodity affiliated person if—

''(i) information described in section 4B(b)(5)(C), where required (or, with respect to a digital commodity not issued in reliance on section 4(a)(8), a comparable set of information, where required) is publicly available;

''(ii) the digital commodity affiliated person has held the units for not less than the earlier of—

''(I) 12 months; or

''(II) 3 months following the date on which the blockchain system is certified as a mature blockchain system under section 42 of the Securities Exchange Act of 1934; and

''(iii) the aggregate amount of the units of the digital commodity offered or sold by the digital commodity affiliated person in any 12-month period is an amount, as determined by the Commission pursuant to paragraph (3), not less than 5 percent or greater than 10 percent of the total outstanding amount of the digital commodity.

''(3) RULEMAKINGS REQUIRED.—Not later than 270 days after the date of the enactment of this section, consistent with protecting investors, maintaining fair, orderly, and efficient markets, and facilitating capital formation, and to foster the development of mature blockchain systems, the Commission, by rule, after notice and comment—

''(A) shall set the percentage amounts described in paragraphs (1)(C)(i), (1)(C)(ii), and (2)(B)(iii); and

''(B) may provide an exemption from the limitation described in paragraph (1)(C)(ii), if the Commission requires any offer or sale pursuant to such exemption of a digital commodity related to a blockchain system that has failed to become a mature blockchain system under this Act or any rule promulgated hereunder to be accompanied by the disclosures required under, as applicable, section 4B(e)(1)(A) or section 202(c)(2)(B)(iii)(II) of the CLARITY Act of 2025.

''(d) RULES OF CONSTRUCTION.—For purposes of this section, the use of a digital commodity in the programmatic functioning of the blockchain system to which it relates is not an offer or sale of a digital commodity.

''(e) MANIPULATIVE AND DECEPTIVE DEVICES; REPORTING.—

''(1) IN GENERAL.—It shall be unlawful for any digital commodity issuer, digital commodity related person, or digital commodity affiliated person, directly or indirectly, by the use of any means or instrumentality of interstate commerce or of the mails, to use or employ, in connection with the purchase or sale of any digital commodity, any manipulative or deceptive device or contrivance in contravention of such rules and regulations as the Commission may prescribe as necessary or appropriate in the public interest or for the protection of investors.

''(2) AFFIRMATIVE DEFENSE.—Not later than 270 days after the date of the enactment of this section, the Commission shall issue rules to implement paragraph (1), including by providing

any affirmative defenses to an enforcement action thereunder as the Commission may prescribe as necessary or appropriate in the public interest or for the protection of investors.

''(3) REPORTING.—Not later than 270 days after the date of the enactment of this section, the Commission shall issue rules to prescribe such transaction reporting and beneficial ownership disclosure obligations applicable to digital commodity related persons and digital commodity affiliated persons, as necessary or appropriate in the public interest or for the protection of investors.

''(4) DIFFERENTIATION BETWEEN PERSONS.—In issuing rules required under paragraphs (2) and (3), the Commission shall differentiate between digital commodity related persons and digital commodity affiliated persons, as necessary or appropriate in the public interest or for the protection of investors.

''(f) CERTAIN UNITS RECEIVED PRIOR TO ENACTMENT.—A unit of a digital commodity received from the digital commodity issuer prior to the date of the enactment of this section through an offer or sale of an investment contract involving units of a digital commodity in reliance on an exemption from registration under this Act, including as provided under section 3, 4(a), or 19, may be offered or sold by a digital commodity related person or digital commodity affiliated person, if—

''(1) the digital commodity issuer is no longer engaged in material ongoing efforts related to the blockchain system to which the digital commodity relates and the blockchain system to which the digital commodity relates is certified as a mature blockchain system under section 42 of the Securities Exchange Act of 1934; or

''(2) the appropriate disclosures required under section 202(c)(2)(B) of the CLARITY Act of 2025 have been made with the Commission.

''(g) RULEMAKING ON FURTHER USAGE OF DIGITAL COMMODITIES.— The Commission, consistent with protecting investors, maintaining fair, orderly, and efficient markets, and facilitating capital formation, as well as fostering the development of mature blockchain systems, may, by rule, exempt unconditionally or on stated terms or conditions, a digital commodity related person or a digital commodity affiliated person, or any class thereof, from the requirements of this section for the offer or sale of a digital commodity, including for the purposes of promoting market liquidity.''.

SEC. 205. MATURE BLOCKCHAIN SYSTEM REQUIREMENTS.

Title I of the Securities Exchange Act of 1934 (15 U.S.C. 78a et seq.) is amended by adding at the end the following:

''SEC. 42. MATURE BLOCKCHAIN SYSTEMS.

''(a) CERTIFICATION OF BLOCKCHAIN SYSTEMS.—

''(1) CERTIFICATION.—A digital commodity issuer, digital commodity related person, digital commodity affiliated person, decentralized governance system of the blockchain system, or a registered digital commodity exchange, or any other appropriate person as designated by the Commission, may certify to the Commission that the blockchain system to which a digital commodity relates is a mature blockchain system.

''(2) FILING REQUIREMENTS.—A certification described under paragraph (1) shall be filed with the Commission, and include such information that is reasonably necessary to establish that the blockchain system is not controlled by any person or group of persons under common control, which may include information regarding—

''(A) the operation of the blockchain system;

''(B) the functionality of the related digital commodity;

''(C) how the market value of the digital commodity is substantially derived from the programmatic functioning of such blockchain system;

''(D) any decentralized governance system which relates to the blockchain system; and

''(E) the current roles, if any, of the digital commodity issuer, digital commodity affiliated persons, and digital commodity related persons where such roles are material to the development or operation of such blockchain system or the decentralized governance system of such blockchain system.

''(3) REBUTTABLE PRESUMPTION.—The Commission may rebut a certification described under paragraph (1) with respect to a blockchain system if the Commission, within 60 days of receiving such certification, determines that the blockchain system is not a mature blockchain system.

''(4) CERTIFICATION REVIEW.—

''(A) IN GENERAL.—Any blockchain system that relates to a digital commodity for which a certification has been made under paragraph (1) shall be considered a mature blockchain system 60 days after the date on which the Commission receives a certification under paragraph (1), unless the Commission notifies the person who made the certification within such time that the Commission is staying the certification due to—

''(i) an inadequate explanation by the person making the certification; or

''(ii) any novel or complex issues which require additional time to consider.

''(B) PUBLIC NOTICE.—The Commission shall make the following available to the public and provide a copy to the Commodity Futures Trading Commission:

''(i) Each certification received under paragraph (1).

''(ii) Each stay of the Commission under this subsection, and the reasons therefor.

''(iii) Any response from a person making a certification under paragraph (1) to a stay of the certification by the Commission.

''(C) CONSOLIDATION.—The Commission may consolidate and treat as one submission multiple certifications made under paragraph (1) for the same blockchain system which relates to a digital commodity which are received during the review period provided under this paragraph.

''(5) STAY OF CERTIFICATION.—

''(A) IN GENERAL.—A notification by the Commission pursuant to paragraph (4)(A) shall stay the certification once for up to an additional 120 days from the date of the notification.

''(B) PUBLIC COMMENT PERIOD.—Before the end of the 60-day period described under paragraph (4)(A), the Commission may begin a public comment period of at least 30 days in conjunction with a stay under this subsection.

''(6) DISPOSITION OF CERTIFICATION.—A certification made under paragraph (1) shall—

''(A) become effective—

''(i) upon the publication of a notification from the Commission to the person who made the certification that the Commission does not object to the certification; or

''(ii) at the expiration of the certification review period; and

''(B) not become effective upon the publication of a notification from the Commission to the person who made the certification that the Commission has rebutted the certification.

''(7) RECERTIFICATION.—With respect to a blockchain system for which a certification has been rebutted under this subsection, no person may make a certification under paragraph (1) with respect to such blockchain system during the 90-day period beginning on the date of such rebuttal.

''(8) APPEAL OF REBUTTAL.—

''(A) IN GENERAL.—If a certification is rebutted under this section, the person making such certification may appeal the decision to the United States Court of Appeals for the District of Columbia, not later than 60 days after the notice of rebuttal is made.

''(B) REVIEW.—In an appeal under subparagraph (A), the court shall have de novo review of the determination to rebut the certification.

''(b) MATURITY CRITERIA.—

''(1) SENSE OF CONGRESS.—It is the sense of the Congress that protecting investors, maintaining fair, orderly, and efficient markets, and facilitating capital formation necessitates establishing clear criteria for blockchain systems to be deemed mature, as well as enabling the Commission to develop, without prejudice to any such criteria codified in statute, alternative criteria by which blockchain systems may be considered not to be controlled by any person or group of persons under common control in order to accommodate changes in markets and technology.

''(2) IN GENERAL.—The Commission may issue rules identifying conditions by which a blockchain system, together with its related digital commodity, shall be considered a mature blockchain system, consistent with the protection of investors, maintenance of fair, orderly, and efficient markets, and the facilitation of capital formation.

''(3) RULES OF CONSTRUCTION.—

''(A) Nothing in this subsection may be construed to permit the Commission to impose additional criteria to the criteria in subsection (c) for certifying that a blockchain system is a mature blockchain system pursuant to subsection (c).

''(B) Nothing in this subsection or subsection (c) may be construed to limit the Commission's ability to identify alternative conditions and criteria by which a blockchain system may be considered a mature blockchain system.

''(c) DEEMED MATURE.—

''(1) IN GENERAL.—Notwithstanding subsection (b), for the purposes of subsection (a), a digital commodity issuer, digital commodity related person, digital commodity affiliated person, or decentralized governance system of the blockchain system may establish that a blockchain system, together with its related digital commodity, is not controlled by any person or group of persons under common control, if the blockchain system, together with its related digital asset, meets the requirements described in paragraph (2) or (3).

''(2) CRITERIA FOR ANY BLOCKCHAIN SYSTEM.—The requirements described in this paragraph are the following:

''(A) SYSTEM VALUE.—

''(i) MARKET VALUE.—The digital commodity has a value that is substantially derived from the use and functioning of the blockchain system.

''(ii) DEVELOPMENT OF VALUE MECHANISM SUBSTANTIALLY COMPLETED.—Where the digital commodity issuer has made public a development plan describing how the digital commodity's value is reasonably expected to be derived from the programmatic functioning of the blockchain system, the development of such mechanisms has been substantially completed.

''(B) FUNCTIONAL SYSTEM.—The blockchain system allows network participants to engage in the activities the blockchain system is intended to provide, including—

''(i) using, transmitting, or storing value, or otherwise executing transactions, on the blockchain system;

''(ii) deploying, executing, or accessing software or services, or otherwise offering or participating in services, deployed on or integrated with the blockchain system;

''(iii) participating in the consensus mechanism, transaction validation process, or decentralized governance system of the blockchain system; or

''(iv) operating any client, node, validator, or other form of computational infrastructure with respect to the blockchain system.

''(C) OPEN AND INTEROPERABLE SYSTEM.—The blockchain system—

''(i) is composed of source code that is open source; and

''(ii) does not restrict or prohibit based on the exercise of unilateral authority any person, other than a digital commodity issuer, digital commodity related person, or digital commodity affiliated person from engaging in the activities the blockchain system is intended to provide, including the activities described in subparagraph (B).

''(D) PROGRAMMATIC SYSTEM.—The blockchain system operates, executes, and enforces its operations and transactions based solely on pre-established, transparent rules encoded directly within the source code of the blockchain system.

''(E) SYSTEM GOVERNANCE.—No person or group of persons under common control—

''(i) has the unilateral authority, directly or indirectly, through any contract, arrangement, understanding, relationship, or otherwise, to control or materially alter the functionality, operation, or rules of consensus or agreement of the blockchain system or its related digital commodity; or

''(ii) has the unilateral authority to direct the voting, in the aggregate, of 20 percent or more of the outstanding voting power of such blockchain system by means of a related digital commodity, nodes or validators, a decentralized governance system, or otherwise, in a blockchain system which can be altered by a voting system.

''(F) IMPARTIAL SYSTEM.—No person or group of persons under common control possesses a unique permission or privilege with respect to functionality, operation, or rules of consensus or agreement of the blockchain system or its related digital commodity, unless such alteration—

''(i) addresses errors, regular maintenance, or cybersecurity risks of the blockchain system that affect the programmatic functioning of the blockchain system; and

''(ii) is adopted through the consensus or agreement of a decentralized governance system.

''(G) DISTRIBUTED OWNERSHIP.—No digital commodity issuer, digital commodity related person, or digital commodity affiliated person beneficially owns, in the aggregate, 20 percent or more of the total amount of units of the digital commodity.

''(3) OPTIONAL CRITERIA FOR PREEXISTING BLOCKCHAIN SYSTEMS.—The requirements described in this paragraph are that the blockchain system—

''(A) was created prior to the date of enactment of this section;

''(B) met the requirements of subparagraphs (A) through (F) of paragraph (2) prior to the date of enactment of this section; and

''(C) at least 50 percent of the units of the digital commodity related to the blockchain system are held by persons other than the digital commodity issuer, a digital commodity related person, or a digital commodity affiliated person.

''(d) DECENTRALIZED GOVERNANCE SYSTEM.—

''(1) For the purposes of this section, a decentralized governance system is not a 'person' or a 'group of persons under common control'.

''(2) A blockchain system, together with its digital commodity, shall not be precluded from being considered a mature blockchain system solely based on a functional, administrative, clerical, or ministerial action of a decentralized governance system, including any such action taken by a person acting on behalf of and at the direction of the decentralized governance system, as determined by the Commission and consistent with the protection of investors, maintenance of fair, orderly, and efficient markets, and the facilitation of capital formation.

''(e) RULEMAKING.—Not more than 270 days after the date of enactment of this section, the Commission shall issue rules to carry out this section.''.

SEC. 206. EFFECTIVE DATE.

Unless otherwise provided in this title, this title and the amendments made by this title shall take effect 360 days after the date of enactment of this Act, except that, to the extent a provision of this title requires a rulemaking, the provision shall take effect on the later of—

(1) 360 days after the date of enactment of this Act; or

(2) 60 days after the publication in the Federal Register of the final rule implementing the provision.

TITLE III—REGISTRATION FOR INTERMEDIARIES AT THE SECURITIES AND EXCHANGE COMMISSION

SEC. 301. TREATMENT OF DIGITAL COMMODITIES AND PERMITTED PAYMENT STABLECOINS.

(a) SECURITIES ACT OF 1933.—Section 2(a)(1) of the Securities Act of 1933 (15 U.S.C. 77b(a)(1)), as amended by the GENIUS Act, is amended by striking the final sentence and inserting the following: ''The term does not include a digital commodity or permitted payment stablecoin.''.

(b) SECURITIES EXCHANGE ACT OF 1934.—Section 3(a)(10) of the Securities Exchange Act of 1934 (15 U.S.C. 78c(a)), as amended by the GENIUS Act, is amended by striking the final sentence and inserting the following: ''The term does not include a digital commodity or permitted payment stablecoin.''.

(c) INVESTMENT ADVISERS ACT OF 1940.—Section 202(a) of the Investment Advisers Act of 1940 (15 U.S.C. 80b–2(a)) is amended—

(1) in paragraph (18), as amended by the GENIUS Act, by striking the final sentence and inserting the following: ''The term does not include a digital commodity or permitted payment stablecoin.'';

(2) by redesignating the second paragraph (29) (relating to commodity pools) as paragraph (31); and

(3) by adding at the end, the following:

''(32) DIGITAL COMMODITY-RELATED TERMS.—The terms 'digital commodity' and 'permitted payment stablecoin' have the meaning given those terms, respectively, under section 2(a) of the Securities Act of 1933 (15 U.S.C. 77b(a)).''.

(d) INVESTMENT COMPANY ACT OF 1940.—Section 2(a) of the Investment Company Act of 1940 (15 U.S.C. 80a–2) is amended—

(1) in paragraph (36), as amended by the GENIUS Act, by striking the final sentence and inserting the following: ''The term does not include a digital commodity or permitted payment stablecoin.''; and

(2) by adding at the end, the following:

''(55) DIGITAL COMMODITY-RELATED TERMS.—The terms 'digital commodity' and 'permitted payment stablecoin' have the meaning given those terms, respectively, under section 2(a) of the Securities Act of 1933 (15 U.S.C. 77b(a)).''.

(e) SECURITIES INVESTOR PROTECTION ACT OF 1970.—Section 16 of the Securities Investor Protection Act of 1970 (15 U.S.C. 78lll) is amended—

(1) in paragraph (14), as amended by the GENIUS Act, by striking the final sentence and inserting the following: ''The term does not include a digital commodity or permitted payment stablecoin, as such terms are defined, respectively, under section 2(a) of the Securities Act of 1933 (15 U.S.C. 77b(a))''; and

(2) by adding at the end the following:

''(15) TREATMENT OF PERMITTED PAYMENT STABLECOINS.—A permitted payment stablecoin, as defined in section 2(a) of the Securities Act of 1933, shall not qualify as 'cash' and a claim for a permitted payment stablecoin shall not qualify as a 'claim for cash'.''.

SEC. 302. ANTI-FRAUD AUTHORITY OVER PERMITTED PAYMENT STABLECOINS AND CERTAIN DIGITAL COMMODITY TRANSACTIONS.

(a) IN GENERAL.—Section 10 of the Securities Exchange Act of 1934 (15 U.S.C. 78j) is amended—

(1) by moving subsection (c) so as to appear after subsection (b);

(2) by inserting after subsection (c) the following:

''(d) To use or employ, in connection with the purchase or sale of any permitted payment stablecoin or digital commodity, by or through, as applicable, a broker, dealer, national securities exchange, or an alternative trading system, any manipulative or deceptive device or contrivance in contravention of such rules and regulations as the Commission may prescribe as necessary or appropriate in the public interest or for the protection of investors.''; and

(3) by adding at the end the following: ''Rules promulgated under subsection (b) that prohibit fraud, manipulation, or insider trading (but not rules imposing or specifying reporting or recordkeeping requirements, procedures, or standards as prophylactic measures against fraud, manipulation, or insider trading), and judicial precedents decided under subsection (b) and rules promulgated thereunder that prohibit fraud, manipulation, or insider trading, shall apply with respect to permitted payment stablecoin and digital commodity transactions engaged in by or through a broker or dealer or through an alternative trading system or, as applicable, a national securities exchange to the same extent as they apply to securities transactions. Judicial precedents decided under section 17(a) of the Securities Act of 1933 and sections 9, 15, 16, 20, and 21A of this title, and judicial precedents decided under applicable rules promulgated under such sections, shall apply to permitted payment stablecoins and digital commodities with respect to those circumstances in which the permitted payment stablecoins and digital commodities are, as applicable, brokered, traded, or custodied by or through a broker or dealer or through an alternative trading system or a national securities exchange to the same extent as they apply to securities.''.''.

(b) TREATMENT OF PERMITTED PAYMENT STABLECOINS.—Title I of the Securities Exchange Act of 1934 (15 U.S.C. 78a et seq.) is amended by inserting after section 6 the following:

''SEC. 6A. TREATMENT OF TRANSACTIONS IN PERMITTED PAYMENT STABLECOINS.

''(a) AUTHORITY TO BROKER, TRADE, AND CUSTODY PERMITTED PAYMENT STABLECOINS.—Permitted payment stablecoins may be brokered, traded, or custodied by a broker or dealer or through an alternative trading system or national securities exchange.

''(b) COMMISSION JURISDICTION.—The Commission shall only have jurisdiction over a transaction in a permitted payment stablecoin with respect to those circumstances in which a permitted payment stablecoin is brokered, traded, or custodied—

''(1) by a broker or dealer;

''(2) through a national securities exchange; or

''(3) through an alternative trading system.

''(c) LIMITATION.—Subsection (b) shall only apply to a transaction described in subsection (b) for the purposes of regulating the offer, execution, solicitation, or acceptance of a permitted payment stablecoin in those circumstances in which the permitted payment stablecoin is brokered, traded, or custodied—

''(1) by a broker or dealer;

''(2) through a national securities exchange; or

''(3) through an alternative trading system.''.

SEC. 303. ELIGIBILITY OF ALTERNATIVE TRADING SYSTEMS.

(a) IN GENERAL.—Section 5 of the Securities Exchange Act of 1934 (15 U.S.C. 78e) is amended—

(1) by striking ''It'' and inserting the following:

''(a) IN GENERAL.—It''; and

(2) by adding at the end the following:

''(b) DIGITAL COMMODITY PROTECTIONS.—

''(1) IN GENERAL.—The Commission may not preclude a trading platform from operating pursuant to a covered exemption to exchange registration under section 6 of this title on the basis that the assets traded or to be traded on such platform include—

''(A) digital commodities or permitted payment stablecoins; and

''(B) securities.

''(2) COVERED EXEMPTION.—In this subsection, the term 'covered exemption' means an exemption—

''(A) described in subsection (a)(2); or

''(B) with respect to any other rule of the Commission relating to the definition of 'exchange'.''.

(b) SECURITIES EXCHANGE ACT OF 1934.—Section 3(a)(2) of the Securities Exchange Act of 1934 (15 U.S.C. 78c(a)(2)) is amended by adding at the end the following: ''Neither an alternative trading system predominantly facilitating the trading of digital commodities, permitted payment stablecoins, or both, relative to its securities traded, nor a digital commodity exchange, is a 'facility' of an exchange.''.

(c) RULE OF CONSTRUCTION.—Nothing in this section, the amendments made by this section, or section 304 may be construed to—

(1) prohibit a national securities exchange from owning or operating any other type of alternative trading system; or

(2) create a presumption that any other type of alternative trading system owned or operated by a national securities exchange is a facility of that exchange.

SEC. 304. RULEMAKING FOR DUAL-REGISTERED ENTITIES.

(a) CONFLICT OF INTEREST POLICIES AND PROCEDURES.—Each person or entity dual-registered with the Commodity Futures Trading Commission as permitted under section 15(p) of the Securities Exchange Act of 1934 shall establish, maintain, and, as applicable, enforce and comply with written policies and procedures reasonably designed to mitigate any conflicts of interest, including with respect to transactions or arrangements with affiliates registered with the Securities and Exchange Commission, taking into consideration the nature of the business of such person or entity.

(b) EXEMPTION FROM DUPLICATIVE, CONFLICTING, OR UNDULY BURDENSOME PROVISIONS.—The Securities and Exchange Commission shall prescribe rules for a person or entity with multiple registrations, where at least one such registration includes any dual registration permitted under section 15(p) of the Securities Exchange Act of 1934, to exempt the person or entity from duplicative, conflicting, or unduly burdensome provisions of the Securities Exchange Act of 1934 and rules thereunder, to the extent such an exemption would protect investors, maintain fair, orderly, and efficient markets, and facilitate capital formation.

(c) IMPLEMENTING ORGANIZATIONS.—The Securities and Exchange Commission shall require any registered national securities association that has as a member a registered broker or registered dealer that is registered with the Commodity Futures Trading Commission as a digital commodity broker or digital commodity dealer as permitted under section 15(p)(1) of the Securities Exchange Act of 1934 or otherwise transacts in permitted payment stablecoins to revise such rules as may be necessary to further the purposes of and compliance with this section.

(d) MEMORANDUM OF UNDERSTANDING.—The Securities and Exchange Commission shall enter into a memorandum of understanding with the Commodity Futures Trading Commission to ensure—

(1) non-duplicative supervision and enforcement with respect to registrants of the Securities and Exchange Commission dual-registered with the Commodity Futures Trading Commission as permitted under section 15(p) of the Securities Exchange Act of 1934; and

(2) appropriate information sharing between the Commissions to further the purposes of and compliance with this section, the Securities Exchange Act of 1934, and the Commodity Exchange Act.

(e) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to limit the anti-fraud, anti-manipulation, or false reporting enforcement authorities of the Commodity Futures Trading Commission with respect to a contract of sale of a commodity and persons effecting such contracts.

SEC. 305. MODERNIZATION OF RECORDKEEPING REQUIREMENTS.

(a) IN GENERAL.—For purposes of books and records requirements for brokers, dealers, transfer agents, national securities exchanges under the Securities and Exchange Act of 1934 (15 U.S.C. 78a et seq.), investment advisers under the Investment Advisers Act of 1940 (15 U.S.C. 80b–1 et seq.), and investment companies under the Investment Company Act of 1940 (15 U.S.C. 80a–1 et seq.), a person may, consistent with any rules promulgated under subsection (b), utilize records from a blockchain system.

(b) REVISION OF RULES.—Not later than 180 days after the date of enactment of this Act, the Securities and Exchange Commission shall issue and revise such rules as may be necessary to implement this section.

SEC. 306. EXEMPTIVE AUTHORITY.

Section 28 of the Securities Act of 1933 (15 U.S.C. 77z–3) is amended by striking ''by rule or regulation'' and inserting ''by rule, regulation, or order''.

SEC. 307. ADDITIONAL REGISTRATIONS WITH THE COMMODITY FUTURES TRADING COMMISSION.

Section 15 of the Securities Exchange Act of 1934 (15 U.S.C. 78o) is amended by adding at the end the following:

''(p) ADDITIONAL REGISTRATIONS WITH THE COMMODITY FUTURES TRADING COMMISSION.—

''(1) REGISTERED BROKERS AND DEALERS.—A registered broker or registered dealer shall be permitted to maintain a registration with the Commodity Futures Trading Commission as a digital commodity broker or digital commodity dealer.

''(2) NATIONAL SECURITIES EXCHANGES.—A national securities exchange or affiliate thereof shall be permitted to maintain a registration with the Commodity Futures Trading Commission as a digital commodity exchange.

''(3) ALTERNATIVE TRADING SYSTEMS.—An alternative trading system, and the operator thereof, shall be permitted to maintain a registration with the Commodity Futures Trading Commission as a digital commodity exchange.

''(4) NOTICE OF APPLICATION.—Any person or entity described in paragraph (1) through (3) shall provide to the Securities and Exchange Commission, at such time and in such form and manner as the Securities and Exchange Commission shall prescribe, notice of any application to register with the Commodity Futures Trading Commission as a digital commodity broker, digital commodity dealer, or digital commodity exchange.''.

SEC. 308. EXEMPTING DIGITAL COMMODITIES FROM STATE SECURITIES LAWS.

(a) COVERED SECURITY.—Section 18(b) of the Securities Act of 1933 (15 U.S.C. 77r(b)) is amended by adding at the end the following:

''(5) EXEMPTION IN CONNECTION WITH DIGITAL COMMODITIES.—A digital commodity shall be treated as a covered security.''.

(b) RULE OF CONSTRUCTION.—Nothing in this section, section 202, or the amendments made by such sections may be construed to limit the existing authority described in section 18(c)(1) of the Securities Act of 1933 (15 U.S.C. 77r(c)(1)) of a securities commission (or any agency or office performing like functions) of any State with respect to a covered security or any security.

SEC. 309. EXCLUSION FOR DECENTRALIZED FINANCE ACTIVITIES.

The Securities Exchange Act of 1934 (15 U.S.C. 78a et seq.) is amended by inserting after section 15G the following:

''SEC. 15H. DECENTRALIZED FINANCE ACTIVITIES NOT SUBJECT TO THIS ACT.

''(a) IN GENERAL.—Notwithstanding any other provision of this Act, a person shall not be subject to this Act and the regulations promulgated under this Act based on the person directly or indirectly engaging in any of the following activities, whether singly or in combination, in relation to the operation of a blockchain system or in relation to a decentralized finance trading protocol:

''(1) Compiling network transactions or relaying, searching, sequencing, validating, or acting in a similar capacity.

''(2) Providing computational work, operating a node or oracle service, or procuring, offering, or utilizing network bandwidth, or providing other similar incidental services.

''(3) Providing a user-interface that enables a user to read and access data about a blockchain system.

''(4) Developing, publishing, constituting, administering, maintaining, or otherwise distributing a blockchain system or a decentralized finance trading protocol.

''(5) Developing, publishing, constituting, administering, maintaining, or otherwise distributing a decentralized finance messaging system, or operating or participating in a liquidity pool, for the purpose of executing a spot contract for the purchase or sale of a digital commodity in relation to a decentralized finance trading protocol.

''(6) Developing, publishing, constituting, administering, maintaining, or otherwise distributing software or systems that create or deploy hardware or software, including wallets or other systems, facilitating an individual user's own personal ability to keep, safeguard, or custody the user's digital assets or related private keys.

''(b) EXCEPTIONS.—Subsection (a) shall not apply to the anti-fraud and anti-manipulation authorities of the Commission.''.

SEC. 310. TREATMENT OF CUSTODY ACTIVITIES BY BANKING INSTITUTIONS.

(a) TREATMENT OF CUSTODY ACTIVITIES.—The appropriate Federal banking agency, the National Credit Union Administration (in the case of a credit union), and the Securities and Exchange Commission may not require a depository institution, national bank, Federal credit union, State credit union, trust company, broker, or dealer, or any affiliate thereof (the ''entity'')—

(1) to include assets held in custody that are not accounted for as assets of the entity as a liability on the financial statement or balance sheet of the entity, including digital commodity or permitted payment stablecoin custody or safekeeping services; and

(2) to hold regulatory capital against assets, including reserves backing such assets, in custody or safekeeping, except as necessary to mitigate against operational risks inherent with the custody or safekeeping services, as determined by—

(A) the appropriate Federal banking agency;

(B) the National Credit Union Administration (in the case of a credit union);

(C) a State bank supervisor;

(D) a State credit union supervisor (as defined in section 6003 of the Anti-Money Laundering Act of 2020 (31 U.S.C. 5311 note)); or

(E) the Securities and Exchange Commission (in the case of a broker or dealer).

(b) DEFINITIONS.—In this section:

(1) BANKING TERMS.—The terms ''appropriate Federal banking agency'', ''depository institution'', ''national bank'', and ''State bank supervisor'' have the meaning given those terms, respectively, under section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813).

(2) CREDIT UNION TERMS.—The terms ''Federal credit union'' and ''State credit union'' have the meaning given those terms, respectively, under section 101 of the Federal Credit Union Act (12 U.S.C. 1752).

SEC. 311. BROKER AND DEALER DISCLOSURES REGARDING THE TREATMENT OF ASSETS.

(a) IN GENERAL.—Not later than 270 days after the date of the enactment of this Act, the Securities and Exchange Commission shall issue rules requiring written disclosures regarding the treatment of customer assets in the event of an insolvency, resolution, or liquidation proceeding to be provided by a registered broker or dealer to an investor before a digital commodity, a permitted payment stablecoin, or an investment contract involving a unit of a digital commodity is received, acquired, or held by the broker or dealer for the account of the investor, which

shall include, as necessary or appropriate for the protection of investors—

(1) a description of the manner in which any digital commodity, permitted payment stablecoin, or investment contact involving a unit of a digital commodity received, acquired, or held by the broker or dealer for the account of such investor would be treated in an insolvency, resolution, or liquidation proceeding with respect to the broker or dealer under—

(A) title II of the Dodd-Frank Wall Street Reform and Consumer Protection Act (12 U.S.C. 5381 et seq.);

(B) the Securities Investor Protection Act of 1970 (15 U.S.C. 78aaa et seq.); or

(C) as applicable, chapter 7 or chapter 11 of title 11, United States Code; and

(2) how the treatment described in paragraph (1) differs from the treatment of securities and cash received, acquired, or held by the broker or dealer for the account of such investor in the event of an insolvency, resolution, or liquidation proceeding with respect to the broker or dealer under each law described under subparagraph (A) through (C) of paragraph (1).

SEC. 312. DIGITAL COMMODITY ACTIVITIES THAT ARE FINANCIAL IN NATURE.

(a) DIGITAL COMMODITY ACTIVITIES THAT ARE FINANCIAL IN NATURE.—Section 4(k)(4) of the Bank Holding Company Act of 1956 (12 U.S.C. 1843(k)(4)) is amended—

(1) in subparagraph (A), by striking ''or securities'' and inserting '', securities, or digital commodities''; and

(2) in subparagraph (E), by inserting ''or digital commodities'' before the period at the end.

(b) NATIONAL BANK ACTIVITY.—

(1) IN GENERAL.—A national bank may use a digital asset or blockchain system to perform, provide, or deliver any activity, function, product, or service that the national bank is otherwise authorized by law to perform, provide, or deliver.

(2) RULE OF CONSTRUCTION.—Nothing in this subsection may be construed to exempt a national bank's performance, provision, or delivery of an activity, function, product, or service from a requirement that would apply if the activity were not performed, provided, or delivered using a digital asset or blockchain system.

(c) INSURED STATE BANKS AND SUBSIDIARIES OF INSURED STATE BANKS.—For purposes of sections 24(a) and 24(d) of the Federal Deposit Insurance Act (12 U.S.C. 1831a(a) and (d)), all of the activities authorized for a national bank under subsection (b) that are principal activities shall be permissible for an insured State bank and subsidiary of an insured State bank.

SEC. 313. EFFECTIVE DATE; ADMINISTRATION.

Except as otherwise provided under this title, this title and the amendments made by this title shall take effect 360 days after the date of enactment of this Act, except that, to the extent a provision of this title requires a rulemaking, the provision shall take effect on the later of—

(1) 360 days after the date of enactment of this Act; or

(2) 60 days after the publication in the Federal Register of the final rule implementing the provision.

SEC. 314. EDUCATIONAL MATERIAL REQUIREMENTS.

The Securities and Exchange Commission, in consultation with the Commodity Futures Trading Commission, shall require any registered entity that facilitates the trading of digital commodities or investment contracts involving units of a digital commodity to provide clear and accessible educational materials to the public, including—

(1) an overview of how blockchain technology functions;

(2) a description of common risks associated with digital commodities;

(3) a description of the differences between digital commodity markets and traditional financial markets;

(4) information on reporting requirements related to digital commodity transactions or investment contracts involving units of a digital commodity; and

(5) guidance on recognizing fraudulent schemes and instructions for reporting suspected fraud.

SEC. 315. DISCRETIONARY SURPLUS FUND.

(a) IN GENERAL.—The dollar amount specified under section 7(a)(3)(A) of the Federal Reserve Act (12 U.S.C. 289(a)(3)(A)) is reduced by $15,000,000.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall take effect on September 30, 2035.

TITLE IV—REGISTRATION FOR DIGITAL COMMODITY INTERMEDIARIES AT THE COMMODITY FUTURES TRADING COMMISSION

SEC. 401. COMMISSION JURISDICTION OVER DIGITAL COMMODITY TRANSACTIONS.

(a) SAVINGS CLAUSE.—Section 2(a)(1) of the Commodity Exchange Act (7 U.S.C. 2(a)(1)) is amended by adding at the end the following:

''(J) Except as expressly provided in this Act, nothing in the CLARITY Act of 2025 shall affect or apply to, or be interpreted to affect or apply to—

''(i) any agreement, contract, or transaction that is subject to this Act as—

''(I) a contract of sale of a commodity for future delivery or an option on such a contract;

''(II) a swap;

''(III) a security futures product;

''(IV) an option authorized under section 4c of this Act;

''(V) an agreement, contract, or transaction described in subparagraph (C)(i) or (D)(i) of subsection (c)(2) of this section; or

''(VI) a leverage transaction authorized under section 19; or

''(ii) the activities of any person with respect to any such an agreement, contract, or transaction.''.

(b) LIMITATION ON AUTHORITY OVER PERMITTED PAYMENT STABLECOINS.—Section 2(c)(1) of the Commodity Exchange Act (7 U.S.C. 2(c)(1)) is amended—

(1) in subparagraph (F), by striking ''or'' at the end;

(2) in subparagraph (G), by striking the period and inserting ''; or''; and

(3) by adding at the end the following:

''(H) permitted payment stablecoins.''.

(c) COMMISSION JURISDICTION OVER FINANCING AGREEMENTS.—Section 2(c)(2)(D) of the Commodity Exchange Act (7 U.S.C. 2(c)(2)(D)) is amended—

(1) in clause (ii)(I), by inserting after ''paragraph (1)'' the following: ''(other than an agreement, contract, or transaction in a permitted payment stablecoin)''; and

(2) by redesignating clause (iv) as clause (v) and inserting after clause (iii) the following:

''(iv) AGREEMENTS FOR MARGIN FINANCING.—Notwithstanding clause (iii), a digital commodity broker may, subject to the requirements of section 4u(c)(2), offer to or enter into an agreement for margin financing with a customer for the purchase or sale of a digital commodity, provided any purchase or sale made pursuant to the agreement shall result in the delivery of the digital commodity into or from an account carried for the customer by the digital commodity broker, as determined by the Commission by rule or regulation, based on commercial spot market practices.''.

(d) COMMISSION AUTHORITY OVER CERTAIN DIGITAL COMMODITY AND STABLECOIN SPOT TRANSACTIONS.—Section 2(c)(2) of the Commodity Exchange Act (7 U.S.C. 2(c)(2)) is amended by adding at the end the following:

''(F) COMMISSION JURISDICTION WITH RESPECT TO DIGITAL COMMODITY TRANSACTIONS.—

''(i) IN GENERAL.—Subject to sections 6d and 12(e), the Commission shall have exclusive jurisdiction with respect to any account, agreement, contract, or transaction involving a contract of sale of a digital commodity or tradable asset (as defined in section 4x) in interstate commerce, including in a digital commodity or tradable asset (as so defined) cash or spot market, that is offered, solicited, traded, facilitated, executed, cleared, reported, or otherwise dealt in—

''(I) on or subject to the rules of a registered entity or an entity that is required to be registered as a registered entity; or

''(II) by any other entity registered, or required to be registered, with the Commission.

''(ii) LIMITATIONS.—Clause (i) shall not apply with respect to—

''(I) custodial or depository activities for a digital commodity of an entity regulated by an appropriate Federal banking agency or a State bank supervisor (within the meaning of section 3 of the Federal Deposit Insurance Act); or

''(II) an offer or sale of an investment contract involving a digital commodity or of a securities offer or sale involving a digital commodity.

''(iii) MIXED DIGITAL ASSET TRANSACTIONS.—

''(I) IN GENERAL.—Clause (i) shall not apply to a mixed digital asset transaction.

''(II) REPORTS ON MIXED DIGITAL ASSET TRANSACTIONS.—A digital commodity issuer, digital commodity related person, digital commodity affiliated person, or other person registered with the Securities and Exchange Commission that engages in a mixed digital asset transaction, shall, on request of the Commission, open to inspection and examination by the Commission all books and records relating to the mixed digital asset transaction, subject to the confidentiality and disclosure requirements of section 8.

''(G) AGREEMENTS, CONTRACTS, AND TRANSACTIONS IN STABLECOINS.—

''(i) TREATMENT OF PERMITTED PAYMENT STABLECOINS ON COMMISSION-REGISTERED ENTITIES.—Subject to clauses (ii) and (iii), the Commission shall have jurisdiction over a cash or spot agreement, contract, or transaction in a permitted payment stablecoin that is offered, offered to enter into, entered into, executed, solicited, or accepted, or for which the execution of is confirmed—

''(I) on or subject to the rules of a registered entity; or

''(II) by any other entity registered with the Commission.

''(ii) PERMITTED PAYMENT STABLECOIN TRANSACTION RULES.—This Act shall apply to a transaction described in clause (i) only for the purpose of regulating the offer, execution, solicitation, or acceptance of a cash or spot permitted payment stablecoin transaction on a registered entity or by any other entity registered with the Commission, as if the permitted payment stablecoin were a digital commodity.

''(iii) NO AUTHORITY OVER PERMITTED PAYMENT STABLECOINS.—Notwithstanding clauses (i) and (ii), the Commission shall not make a rule or regulation, impose a requirement or obligation on a registered entity or other entity registered with the Commission, or impose a requirement or obligation on a permitted payment stablecoin issuer, regarding the operation of a permitted payment stablecoin issuer or a permitted payment stablecoin.''.

(e) CONFORMING AMENDMENTS.—The Commodity Exchange Act is amended—

(1) in section 1a(9) (7 U.S.C. 1a(9)), as amended by the GENIUS Act, by striking the second sentence; and

(2) in section 2(a)(1)(A) (7 U.S.C. 2(a)(1)(A)), in the 1st sentence, by inserting ''subparagraphs (F) and (G) of subsection (c)(2) of this section or'' before ''section 19''.

SEC. 402. REQUIRING FUTURES COMMISSION MERCHANTS TO USE QUALIFIED DIGITAL ASSET CUSTODIANS.

Section 4d of the Commodity Exchange Act (7 U.S.C. 6d) is amended—

(1) in subsection (a)(2)—

(A) in the 1st proviso, by striking ''any bank or trust company'' and inserting ''any bank, trust company, or qualified digital asset custodian, as applicable,''; and

(B) by inserting '': Provided further, That any such property that is a digital asset shall be held in a qualified digital asset custodian'' before the period at the end; and

(2) in subsection (f)(3)(A)(i), by striking ''any bank or trust company'' and inserting ''any bank, trust company, or qualified digital asset custodian''.

SEC. 403. TRADING CERTIFICATION AND APPROVAL FOR DIGITAL COMMODITIES.

Section 5c of the Commodity Exchange Act (7 U.S.C. 7a–2) is amended—

(1) in subsection (a), by striking ''5(d) and 5b(c)(2)'' and inserting ''5(d), 5b(c)(2), and 5i(c)'';

(2) in subsection (b)—

(A) in each of paragraphs (1) and (2), by inserting ''digital commodity exchange,'' before ''derivatives''; and

(B) in paragraph (3), by inserting ''digital commodity exchange,'' before ''derivatives'' each place it appears;

(3) in subsection (c)—

(A) in paragraph (2), by inserting ''or participants'' before ''(in a'';

(B) in paragraph (4)(B), by striking ''1a(10)'' and inserting ''1a(9)''; and

(C) in paragraph (5), by adding at the end the following:

''(D) SPECIAL RULES FOR DIGITAL COMMODITY CONTRACTS.—In certifying any new rule or rule amendment, or listing any new contract or instrument, in connection with a contract of sale of a commodity for future delivery, option, swap, or other agreement, contract, or transaction, that is based on or references a digital commodity, a registered entity shall make or rely on a certification under subsection (d) for the digital commodity.''; and

(4) by inserting after subsection (c) the following:

''(d) CERTIFICATIONS FOR DIGITAL COMMODITY TRADING.—

''(1) IN GENERAL.—Notwithstanding subsection (c), for the purposes of listing or offering a digital commodity for trading in a digital commodity cash or spot market, an eligible entity shall submit a written certification to the Commission that the digital commodity meets the requirements of this Act (including the regulations prescribed under this Act).

''(2) CONTENTS OF THE CERTIFICATION.—

''(A) IN GENERAL.—In making a written certification under this paragraph, the eligible entity shall furnish to the Commission an analysis of how the digital commodity meets the requirements of section 5i(c)(3).

''(B) RELIANCE ON PRIOR DISCLOSURES.—In making a certification under this subsection, an eligible entity may rely on the records and disclosures of any relevant person registered with the Securities and Exchange Commission or other State or Federal agency.

''(3) MODIFICATIONS.—

''(A) IN GENERAL.—An eligible entity shall modify a certification made under paragraph (1) to—

''(i) account for significant changes in any information provided to the Commission under paragraph (2)(A)(ii); or

''(ii) permit or restrict trading in units of a digital commodity held by a digital commodity related person or a digital commodity affiliated person.

''(B) RECERTIFICATION.—Modifications required by this subsection shall be subject to the same disapproval and review process as a new certification under paragraphs (4) and (5).

''(4) DISAPPROVAL.—

''(A) IN GENERAL.—The written certification described in paragraph (1) shall become effective unless the Commission finds that the listing of the digital commodity is inconsistent with the requirements of this Act or the rules and regulations prescribed under this Act.

''(B) ANALYSIS REQUIRED.—The Commission shall include, with any findings referred to in subparagraph (A), a detailed analysis of the factors on which the decision was based.

''(C) PUBLIC FINDINGS.—The Commission shall make public any disapproval decision, and any related findings and analysis, made under this paragraph.

''(5) REVIEW.—

''(A) IN GENERAL.—Unless the Commission makes a disapproval decision under paragraph (4), the written certification described in paragraph (1) shall become effective, pursuant to the certification by the eligible entity and notice of the certification to the public (in a manner determined by the Commission) on the date that is—

''(i) 20 business days after the date the Commission receives the certification (or such shorter period as determined by the Commission by rule or regulation), in the case of a digital commodity that has not been certified under this section or for which a certification is being modified under paragraph (3); or

''(ii) 1 business day after the date the Commission receives the certification (or such shorter period as determined by the Commission by rule or regulation) for any digital commodity that has been certified under this section.

''(B) EXTENSIONS.—The time for consideration under subparagraph (A) may be extended through notice to the eligible entity that there are novel or complex issues that require additional time to analyze, that the explanation by the submitting eligible entity is inadequate, or of a potential inconsistency with this Act—

''(i) once, for 30 business days, through written notice to the eligible entity by the Commission; and

''(ii) once, for an additional 30 business days, through written notice to the eligible entity from the Commission that includes a description of any deficiencies with the certification, including any—

''(I) novel or complex issues which require additional time to analyze;

''(II) missing information or inadequate explanations; or

''(III) potential inconsistencies with this Act.

''(6) PRIOR APPROVAL BEFORE REGISTRATION.—

''(A) IN GENERAL.—A person applying for registration with the Commission for the purposes of listing or offering a digital commodity for trading in a digital commodity cash or spot market may request that the Commission grant prior approval for the person to list or offer the digital commodity on being registered with the Commission.

''(B) REQUEST FOR PRIOR APPROVAL.—A person seeking prior approval under subparagraph (A) shall furnish the Commission with a written certification that the digital commodity meets the requirements of this Act (including the regulations prescribed under this Act) and the information described in paragraph (2).

''(C) DEADLINE.—The Commission shall take final action on a request for prior approval not later than 90 business days after submission of the request, unless the person submitting the request agrees to an extension of the time limitation established under this subparagraph.

''(D) DISAPPROVAL.—

''(i) IN GENERAL.—The Commission shall approve the listing of the digital commodity unless the Commission finds that the listing is inconsistent with this Act (including any regulation prescribed under this Act).

''(ii) ANALYSIS REQUIRED.—The Commission shall include, with any findings made under clause (i), a detailed analysis of the factors on which the decision is based.

''(iii) PUBLIC FINDINGS.—The Commission shall make public any disapproval decision, and any related findings and analysis, made under this paragraph.

''(7) ELIGIBLE ENTITY DEFINED.—In this subsection, the term 'eligible entity' means a registered entity or group of registered entities acting jointly.''.

SEC. 404. REGISTRATION OF DIGITAL COMMODITY EXCHANGES.

The Commodity Exchange Act (7 U.S.C. 1 et seq.) is amended by inserting after section 5h the following:

''SEC. 5i. REGISTRATION OF DIGITAL COMMODITY EXCHANGES.

''(a) IN GENERAL.—

''(1) REGISTRATION.—

''(A) IN GENERAL.—A trading facility that offers or seeks to offer a cash or spot market in at least 1 digital commodity shall register with the Commission as a digital commodity exchange.

''(B) APPLICATION.—A person desiring to register as a digital commodity exchange shall submit to the Commission an application in such form and containing such information as the Commission may require for the purpose of making the determinations required for approval.

''(C) EXEMPTIONS.—A trading facility that offers or seeks to offer a cash or spot market in at least 1 digital commodity shall not be required to register under this section if the trading facility—

''(i) permits no more than a de minimis amount of trading activity, as the Commission may determine by rule or regulation, in a digital commodity; or

''(ii) serves only customers in a single State, territory, or possession of the United States.

''(2) ADDITIONAL REGISTRATIONS.—

''(A) WITH THE COMMISSION.—In order to foster the development of fair and orderly markets, protect customers, and promote responsible innovation, the Commission—

''(i) shall prescribe rules to exempt an entity registered with the Commission under more than 1 section of this Act from duplicative, conflicting, or unduly burdensome provisions of this Act and the rules under this Act;

''(ii) shall prescribe rules to address conflicts of interests and activities of the entity; and

''(iii) may, after an analysis of the risks and benefits, prescribe rules to provide for portfolio margining.

''(B) WITH A REGISTERED FUTURES ASSOCIATION.—

''(i) IN GENERAL.—A registered digital commodity exchange shall become and remain a member of a registered futures association and comply with rules related to such activity, if the registered digital commodity exchange accepts customer funds required to be segregated under subsection (d).

''(ii) RULEMAKING REQUIRED.—The Commission shall require any registered futures association with a digital commodity exchange as a member to provide such rules as may be necessary to further compliance with subsection (d), protect customers, and promote the public interest.

''(C) REGISTRATION REQUIRED.—A person required to be registered as a digital commodity exchange under this section shall register with the Commission as such regardless of whether the person is registered with another State or Federal regulator.

''(b) TRADING.—

''(1) PROHIBITION ON CERTAIN TRADING PRACTICES.—

''(A) Section 4b shall apply to any agreement, contract, or transaction in a digital commodity as if the agreement, contract, or transaction were a contract of sale of a commodity for future delivery.

''(B) Section 4c shall apply to any agreement, contract, or transaction in a digital commodity as if the agreement, contract, or transaction were a transaction involving the purchase or sale of a commodity for future delivery.

''(C) Section 4b–1 shall apply to any agreement, contract, or transaction in a digital commodity as if the agreement, contract, or transaction were a contract of sale of a commodity for future delivery.

''(2) PROHIBITION ON ACTING AS A COUNTERPARTY.—

''(A) IN GENERAL.—A digital commodity exchange or any affiliate of such an exchange

shall not trade on or subject to the rules of the digital commodity exchange for its own account.

''(B) EXCEPTIONS.—Subject to any conditions, requirements, or limitations imposed by the Commission pursuant to subparagraph (C), a digital commodity exchange may engage in trading on the exchange so long as the trading is not solely for the purpose of the profit of the exchange, including the following:

''(i) CUSTOMER DIRECTION.—A transaction for, or entered into at the direction of, or for the benefit of, an unaffiliated customer.

''(ii) RISK MANAGEMENT.—A transaction to manage the credit, market, and liquidity risks associated with the digital commodity business of the exchange.

''(iii) OPERATIONAL NEEDS.—A transaction related to the operational needs of the business of the digital commodity exchange or its affiliate.

''(iv) FUNCTIONAL USE.—A transaction related to the functional operation of a blockchain system.

''(C) RULEMAKING.—The Commission may, by rule, establish conditions, requirements, or other limitations on the activities of a digital commodity exchange and its affiliate permitted pursuant to subparagraph (B) that are necessary for the protection of customers, the promotion of innovation, or the maintenance of fair, orderly, and efficient markets.

''(D) NOTICE REQUIREMENT.—In order for a digital commodity exchange or any affiliate of a digital commodity exchange to engage in trading on the affiliated exchange pursuant to subsection (B), notice must be given to the Commission that shall enumerate how any proposed activity is consistent with the exceptions in subsection (B) and the purposes of this Act.

''(c) CORE PRINCIPLES FOR DIGITAL COMMODITY EXCHANGES.—

''(1) COMPLIANCE WITH CORE PRINCIPLES.—

''(A) IN GENERAL.—To be registered, and maintain registration, as a digital commodity exchange, a digital commodity exchange shall comply with—

''(i) the core principles described in this subsection; and

''(ii) any requirement that the Commission may impose by rule or regulation pursuant to section 8a(5).

''(B) REASONABLE DISCRETION OF A DIGITAL COMMODITY EXCHANGE.—Unless otherwise determined by the Commission by rule or regulation, a digital commodity exchange described in subparagraph (A) shall have reasonable discretion in establishing the manner in which the digital commodity exchange complies with the core principles described in this subsection.

''(2) COMPLIANCE WITH RULES.—A digital commodity exchange shall—

''(A) establish and enforce compliance with any rule of the digital commodity exchange, including—

''(i) the terms and conditions of the trades traded or processed on or through the digital commodity exchange; and

''(ii) any limitation on access to the digital commodity exchange;

''(B) establish and enforce trading, trade processing, and participation rules that will deter abuses and have the capacity to detect, investigate, and enforce those rules, including means—

''(i) to provide market participants with impartial access to the market; and

''(ii) to capture information that may be used in establishing whether rule violations have occurred; and

''(C) establish rules governing the operation of the exchange, including rules specifying trading procedures to be used in entering and executing orders traded or posted on the facility.

''(3) LISTING STANDARDS FOR DIGITAL COMMODITIES.—

''(A) IN GENERAL.—A digital commodity exchange shall establish policies and procedures to permit trading in a digital commodity only if—

''(i) reports with respect to the digital commodity required under, as applicable, section 4B(b)(3) or 4B(b)(5)(C) of the Securities Act of 1933 (or, with respect to a digital commodity not issued in reliance on section 4(a)(8) of the Securities Act of 1933, a comparable set of reports, where required by the Securities and Exchange Commission) have been filed with the Securities and Exchange Commission; or

''(ii) such other similar information as the Commission may, by rule or regulation require, that is related to the ongoing development plan of the blockchain system and is able to be publicly ascertained, has been provided to the public.

''(B) PUBLIC INFORMATION REQUIREMENTS.—

''(i) IN GENERAL.—A digital commodity exchange shall—

''(I) permit trading in a digital commodity only if the digital commodity exchange reasonably determines that the information required by clause (ii) is correct, current, and available to the public; and

''(II) establish policies and procedures to determine that the information provided pursuant to clause (ii) is correct, current, and available to the public.

''(ii) REQUIRED INFORMATION.—With respect to a digital commodity and each blockchain system to which the digital commodity relates for which the digital commodity exchange will make the digital commodity available to the customers of the digital commodity exchange, the following information:

''(I) SOURCE CODE.—The source code for any blockchain system to which the digital commodity relates.

''(II) TRANSACTION HISTORY.—A description of the steps necessary to independently access, search, and verify the transaction history of any blockchain system to which the digital commodity relates, to the extent any such independent access, search, and verification activities are technically feasible with respect to the blockchain system.

''(III) DIGITAL COMMODITY ECONOMICS.—A narrative description of the purpose of any blockchain system to which the digital commodity relates and the operation of any such blockchain system, including—

''(aa) information explaining the launch and supply process, including the number of digital assets to be issued in an initial allocation, the total number of digital commodities to be created, the release schedule for the digital commodities, and the total number of digital commodities then outstanding;

''(bb) information detailing any applicable consensus mechanism or process for validating transactions, method of generating or mining digital commodities, and any process for burning or destroying digital commodities on the blockchain system;

''(cc) an explanation of governance mechanisms for implementing changes to the blockchain system or forming consensus among holders of the digital commodities; and

''(dd) sufficient information for a third party to create a tool for verifying the transaction history of the digital asset.

''(IV) TRADING VOLUME AND VOLATILITY.—The trading volume and volatility of the digital commodity on the exchange.

''(V) ADDITIONAL INFORMATION.—Such additional information as the Commission may determine by rule to be necessary for a customer to understand the financial and operational risks of a digital commodity, and to be practically feasible to provide.

''(iii) FORMAT.—The Commission shall prescribe rules and regulations for the standardization and simplification of disclosures under clause (ii), including requiring that disclosures—

''(I) be conspicuous;

''(II) use plain language comprehensible to customers;

''(III) are not drafted in a way that presumes the customer already has a base knowledge, familiarity, or understanding of the basic terminology, operation, and function of blockchain systems; and

''(IV) succinctly explain the information that is required to be communicated to the customer.

''(iv) RELIANCE ON PREVIOUS DISCLOSURES.—In complying with this subparagraph, a digital commodity exchange may rely on and make available to the public relevant information publicly disclosed to the Commission, the Securities and Exchange Commission, or an appropriate Federal banking agency.

''(C) DIGITAL COMMODITIES HELD BY RELATED AND DIGITAL COMMODITY AFFILIATED PERSONS.—A digital commodity exchange shall establish policies and procedures designed to permit the trading of a unit of a digital commodity acquired from the issuer and held by a digital commodity affiliated person or a digital commodity related person, only in accordance with the requirements of section 4C of the Securities Act of 1933.

''(4) TREATMENT OF CUSTOMER ASSETS.—A digital commodity exchange shall establish policies and procedures that are designed to protect and ensure the safety of customer money, assets, and property.

''(5) MONITORING OF TRADING AND TRADE PROCESSING.—

''(A) IN GENERAL.—A digital commodity exchange shall provide a competitive, open, and efficient market and mechanism for executing transactions that protects the price discovery process of trading on the exchange.

''(B) PROTECTION OF MARKETS AND MARKET PARTICIPANTS.—A digital commodity exchange shall establish and enforce rules—

''(i) to protect markets and market participants from abusive practices committed by any party, including abusive practices committed by a party acting as an agent for a participant; and

''(ii) to promote fair and equitable trading on the exchange.

''(C) TRADING PROCEDURES.—A digital commodity exchange shall—

''(i) establish and enforce rules or terms and conditions defining, or specifications detailing—

''(I) trading procedures to be used in entering and executing orders traded on or through the facilities of the digital commodity exchange; and

''(II) procedures for trade processing of digital commodities on or through the facilities of the digital commodity exchange; and

''(ii) monitor trading in digital commodities to prevent manipulation, price distortion, and disruptions, through surveillance, compliance, and disciplinary practices and procedures, including methods for conducting real-time monitoring of trading and comprehensive and accurate trade reconstructions.

''(6) ABILITY TO OBTAIN INFORMATION.—A digital commodity exchange shall—

''(A) establish and enforce rules that will allow the facility to obtain any necessary information to perform any of the functions described in this section;

''(B) provide the information to the Commission on request; and

''(C) have the capacity to carry out such international information-sharing agreements as the Commission may require.

''(7) EMERGENCY AUTHORITY.—A digital commodity exchange shall adopt rules to provide for the exercise of emergency authority, in consultation or cooperation with the Commission or a registered entity, as is necessary and appropriate, including the authority to facilitate the liquidation or transfer of open positions in any digital commodity or to suspend or curtail trading in a digital commodity.

''(8) TIMELY PUBLICATION OF TRADING INFORMATION.—

''(A) IN GENERAL.—A digital commodity exchange shall make public timely information on price, trading volume, and other trading data on digital commodities to the extent prescribed by the Commission.

''(B) CAPACITY OF DIGITAL COMMODITY EXCHANGE.—A digital commodity exchange shall

have the capacity to electronically capture and transmit trade information with respect to transactions executed on the exchange.

''(9) RECORDKEEPING AND REPORTING.—

''(A) IN GENERAL.—A digital commodity exchange shall—

''(i) maintain records relating to the business of the exchange, including a complete audit trail, in a form and manner acceptable to the Commission for a period of 5 years;

''(ii) report to the Commission, in a form and manner acceptable to the Commission, such information as the Commission determines to be necessary or appropriate for the Commission to perform the duties of the Commission under this Act; and

''(iii) keep any such records of digital commodities which relate to a security open to inspection and examination by the Securities and Exchange Commission.

''(B) INFORMATION-SHARING.—Subject to section 8, and on request, the Commission shall share information collected under subparagraph (A) with—

''(i) the Board;

''(ii) the Securities and Exchange Commission;

''(iii) each appropriate Federal banking agency;

''(iv) each appropriate State bank supervisor (within the meaning of section 3 of the Federal Deposit Insurance Act);

''(v) the Financial Stability Oversight Council;

''(vi) the Department of Justice; and

''(vii) any other person that the Commission determines to be appropriate, including—

''(I) foreign financial supervisors (including foreign futures authorities);

''(II) foreign central banks; and

''(III) foreign ministries.

''(C) CONFIDENTIALITY AGREEMENT.—Before the Commission may share information with any entity described in subparagraph (B), the Commission shall receive a written agreement from the entity stating that the entity shall abide by the confidentiality requirements described in section 8 relating to the information on digital commodities that is provided.

''(D) PROVIDING INFORMATION.—A digital commodity exchange shall provide to the Commission (including any designee of the Commission) information under subparagraph (A) in such form and at such frequency as is required by the Commission.

''(10) ANTITRUST CONSIDERATIONS.—Unless necessary or appropriate to achieve the purposes of this Act, a digital commodity exchange shall not—

''(A) adopt any rules or take any actions that result in any unreasonable restraint of trade; or

''(B) impose any material anticompetitive burden on trading.

''(11) CONFLICTS OF INTEREST.—The digital commodity exchange shall establish and enforce rules—

''(A) to minimize conflicts of interest in the decision making processes of the contract market; and

''(B) to establish a process for resolving conflicts of interest referred to in subparagraph (A).

''(12) FINANCIAL RESOURCES.—

''(A) IN GENERAL.—A digital commodity exchange shall have adequate financial, operational, and managerial resources, as determined by the Commission, to discharge each responsibility of the digital commodity exchange.

''(B) MINIMUM AMOUNT OF FINANCIAL RESOURCES.—A digital commodity exchange shall possess financial resources that, at a minimum, exceed the sum of—

''(i) the total amount that would enable the digital commodity exchange to cover the operating costs of the digital commodity exchange for a 1-year period, as calculated on a rolling basis; and

''(ii) the total amount necessary to meet the financial obligations of the digital commodity exchange to all customers of the digital commodity exchange.

''(13) DISCIPLINARY PROCEDURES.—A digital commodity exchange shall establish and enforce disciplinary procedures that authorize the digital commodity exchange to discipline, suspend, or expel members or market participants that violate the rules of the digital commodity exchange, or similar methods for performing the same functions, including delegation of the functions to third parties.

''(14) GOVERNANCE FITNESS STANDARDS.—

''(A) GOVERNANCE ARRANGEMENTS.—A digital commodity exchange shall establish governance arrangements that are transparent and designed to permit consideration of the views of market participants.

''(B) FITNESS STANDARDS.—A digital commodity exchange shall establish and enforce appropriate fitness standards for—

''(i) officers and directors; and

''(ii) any individual or entity with direct access to, or control of, customer assets.

''(15) SYSTEM SAFEGUARDS.—A digital commodity exchange shall—

''(A) establish and maintain a program of risk analysis and oversight to identify and minimize sources of operational and security risks, through the development of appropriate controls and procedures, and automated systems in accordance with industry standards, that—

''(i) are reliable and secure; and

''(ii) have adequate scalable capacity;

''(B) establish and maintain emergency procedures, backup resources, and a plan for disaster recovery that allow for—

''(i) the timely recovery and resumption of operations; and

''(ii) the fulfillment of the responsibilities and obligations of the digital commodity exchange; and

''(C) periodically conduct tests to verify that the backup resources of the digital commodity exchange are sufficient to ensure continued—

''(i) order processing and trade matching;

''(ii) price reporting;

''(iii) market surveillance; and

''(iv) maintenance of a comprehensive and accurate audit trail.

''(d) HOLDING OF CUSTOMER ASSETS.—

''(1) IN GENERAL.—A digital commodity exchange shall hold customer money, assets, and property in a manner to minimize the risk of loss to the customer or unreasonable delay in customer access to the money, assets, and property of the customer.

''(2) SEGREGATION OF FUNDS.—

''(A) IN GENERAL.—A digital commodity exchange shall treat and deal with all money, assets, and property that is received by the digital commodity exchange, or accrues to a customer as the result of trading in digital commodities, as belonging to the customer.

''(B) COMMINGLING PROHIBITED.—Money, assets, and property described in subparagraph (A) shall be separately accounted for and shall not be commingled with the funds of the digital commodity exchange or be used to margin, secure, or guarantee any trades or accounts of any customer or person other than the person for whom the same are held.

''(C) EXCEPTIONS.—

''(i) USE OF FUNDS.—

''(I) IN GENERAL.—Notwithstanding subparagraph (A), money, assets, and property described in subparagraph (A) may, for convenience, be commingled and deposited in the same account or accounts with any bank, trust company, derivatives clearing organization, or qualified digital asset custodian.

''(II) WITHDRAWAL.—Notwithstanding subparagraph (A), such share of the money, assets, and property described in subparagraph (A) as in the normal course of business shall be necessary to margin, guarantee, secure, transfer, adjust, or settle a contract of sale of a digital commodity with a registered entity may be withdrawn and applied to such purposes, including the payment of commissions, brokerage, interest, taxes, storage, and other charges, lawfully accruing in connection with the contract.

''(ii) COMMISSION ACTION.—Notwithstanding subparagraph (A), in accordance with such terms and conditions as the Commission may prescribe by rule, regulation, or order, any money, assets, or property of the customers of a digital commodity exchange may be commingled and deposited in customer accounts with any other money, assets, or property received by the digital commodity exchange and required by the Commission to be separately accounted for and treated and dealt with as belonging to the customer of the digital commodity exchange.

''(3) PERMITTED INVESTMENTS.—Money described in paragraph (2) may be invested in obligations of the United States, in general obligations of any State or of any political subdivision of a State, and in obligations fully guaranteed as to principal and interest by the United States, or in any other investment that the Commission may by rule or regulation prescribe, and such investments shall be made in accordance with such rules and regulations and subject to such conditions as the Commission may prescribe.

''(4) CUSTOMER PROTECTION DURING BANKRUPTCY.—

''(A) CUSTOMER PROPERTY.—All assets held on behalf of a customer by a digital commodity exchange, and all money, assets, and property of any customer received by a digital commodity exchange for trading or custody, or to facilitate, margin, guarantee, or secure contracts of sale of a digital commodity (including money, assets, or property accruing to the customer as the result of the transactions), shall be considered customer property for purposes of section 761 of title 11, United States Code.

''(B) TRANSACTIONS.—A transaction involving the sale of a unit of a digital commodity occurring on or subject to the rules of a digital commodity exchange shall be considered a contract for the purchase or sale of a commodity for future delivery, on or subject to the rules of, a contract market or board of trade for purposes of the definition of 'commodity contract' in section 761 of title 11, United States Code.

''(C) EXCHANGES.—A digital commodity exchange shall be considered a futures commission merchant for purposes of section 761 of title 11, United States Code.

''(D) ASSETS REMOVED FROM SEGREGATION.—Assets removed from segregation due to a customer election under paragraph (6) shall not be considered customer property for purposes of section 761 of title 11, United States Code.

''(5) MISUSE OF CUSTOMER PROPERTY.—

''(A) IN GENERAL.—It shall be unlawful—

''(i) for any digital commodity exchange that has received any customer money, assets, or property for custody to dispose of, or use any such money, assets, or property as belonging to the digital commodity exchange or any person other than a customer of the digital commodity exchange; or

''(ii) for any other person, including any depository, other digital commodity exchange, or digital asset custodian that has received any customer money, assets, or property for deposit, to hold, dispose of, or use any such money, assets, or property, or property, as belonging to the depositing digital commodity exchange or any person other than the customers of the digital commodity exchange.

''(B) USE FURTHER DEFINED.—For purposes of this section, 'use' of a digital commodity includes utilizing any unit of a digital asset to participate in a blockchain service defined in paragraph (6) or a decentralized governance system associated with the digital commodity or the blockchain system to which the digital commodity relates in any manner other than that expressly directed by the customer from whom the unit of a digital commodity was received.

''(6) PARTICIPATION IN BLOCKCHAIN SERVICES.—

''(A) USE OF FUNDS.—A digital commodity exchange (or a designee of a digital commodity exchange) may use a unit of a digital commodity

belonging to a customer to provide a blockchain service for a blockchain system to which the unit of the digital commodity relates if—

''(i) the customer expressly permits the use, in writing to the digital commodity exchange; and

''(ii) the digital commodity exchange complies with subparagraph (B).

''(B) LIMITATIONS.—

''(i) IN GENERAL.—The Commission shall, by rule, establish notice and disclosure requirements, and may, by rule, establish any other limitations and rules related to a permission provided under subparagraph (A) that are reasonably necessary to protect customers, including eligible contract participants, non-eligible contract participants, or any other class of customers.

''(ii) CUSTOMER CHOICE.—A digital commodity exchange may not require a customer to provide the permission referred to in subparagraph (A) as a condition of doing business on the exchange.

''(C) REQUIREMENTS.—The Commission may, by rule, waive or modify the requirements of paragraph (2) or subsection (h), to facilitate the use of a unit of a digital commodity belonging to a customer to provide a blockchain service.

''(D) BLOCKCHAIN SERVICE DEFINED.—In this paragraph, the term 'blockchain service' means any activity relating to validating transactions on a blockchain system, providing security for a blockchain system, or other similar activity, including protocol consensus participation activities described in section 2(a)(30)(B) of the Securities Act of 1933, required for the ongoing operation of a blockchain system.

''(e) MARKET ACCESS REQUIREMENTS.—The Commission may, by rule, impose any additional requirements related to the operations and activities of the digital commodity exchange and an affiliated digital commodity broker necessary to protect market participants, promote fair and equitable trading on the digital commodity exchange, and promote responsible innovation.

''(f) DESIGNATION OF CHIEF COMPLIANCE OFFICER.—

''(1) IN GENERAL.—A digital commodity exchange shall designate an individual to serve as a chief compliance officer.

''(2) DUTIES.—The chief compliance officer shall—

''(A) report directly to the board or to the senior officer of the exchange;

''(B) review compliance with the core principles in this subsection;

''(C) in consultation with the board of the exchange, a body performing a function similar to that of a board, or the senior officer of the exchange, resolve any conflicts of interest that may arise;

''(D) establish and administer the policies and procedures required to be established pursuant to this section;

''(E) ensure compliance with this Act and the rules and regulations issued under this Act, including rules prescribed by the Commission pursuant to this section; and

''(F) establish procedures for the remediation of noncompliance issues found during compliance office reviews, look backs, internal or external audit findings, self-reported errors, or through validated complaints.

''(3) REQUIREMENTS FOR PROCEDURES.—In establishing procedures under paragraph (2)(F), the chief compliance officer shall design the procedures to establish the handling, management response, remediation, retesting, and closing of noncompliance issues.

''(4) ANNUAL REPORTS.—

''(A) IN GENERAL.—In accordance with rules prescribed by the Commission, the chief compliance officer shall annually prepare and sign a report that contains a description of—

''(i) the compliance of the digital commodity exchange with this Act; and

''(ii) the policies and procedures, including the code of ethics and conflicts of interest policies, of the digital commodity exchange.

''(B) REQUIREMENTS.—The chief compliance officer shall—

''(i) submit each report described in subparagraph (A) with the appropriate financial report of the digital commodity exchange that is required to be submitted to the Commission pursuant to this section; and

''(ii) include in the report a certification that, under penalty of law, the report is accurate and complete.

''(g) APPOINTMENT OF TRUSTEE.—

''(1) IN GENERAL.—If a proceeding under section 5e results in the suspension or revocation of the registration of a digital commodity exchange, or if a digital commodity exchange withdraws from registration, the Commission, on notice to the digital commodity exchange, may apply to the appropriate United States district court where the digital commodity exchange is located for the appointment of a trustee.

''(2) ASSUMPTION OF JURISDICTION.—If the Commission applies for appointment of a trustee under paragraph (1)—

''(A) the court may take exclusive jurisdiction over the digital commodity exchange and the records and assets of the digital commodity exchange, wherever located; and

''(B) if the court takes jurisdiction under subparagraph (A), the court shall appoint the Commission, or a person designated by the Commission, as trustee with power to take possession and continue to operate or terminate the operations of the digital commodity exchange in an orderly manner for the protection of customers subject to such terms and conditions as the court may prescribe.

''(h) QUALIFIED DIGITAL ASSET CUSTODIAN.—A digital commodity exchange shall hold in a qualified digital asset custodian each unit of a digital asset that is—

''(1) the property of a customer of the digital commodity exchange;

''(2) required to be held by the digital commodity exchange under subsection (c)(12) of this section; or

''(3) otherwise so required by the Commission to reasonably protect customers.

''(i) EXEMPTIONS.—

''(1) IN GENERAL.—In order to promote responsible innovation and fair competition, or protect customers, the Commission may (on its own initiative or on application of the digital commodity exchange) exempt, either unconditionally or on stated terms or conditions or for stated periods and either retroactively or prospectively, or both, a digital commodity exchange from the requirements of this Act, if the Commission determines that—

''(A) the exemption would be consistent with the public interest and the purposes of this Act; and

''(B) the exemption will not have a material adverse effect on the ability of the Commission or the digital commodity exchange to discharge regulatory or self-regulatory duties under this Act.

''(2) FOREIGN EXCHANGES.—The Commission may exempt, conditionally or unconditionally, a digital commodity exchange from registration under this section if the Commission finds that the digital commodity exchange is subject to comparable, comprehensive supervision and regulation on a consolidated basis by the appropriate governmental authorities in the home country of the facility.

''(j) CUSTOMER DEFINED.—In this section, the term 'customer' means any person that maintains an account for the trading of digital commodities directly with a digital commodity exchange (other than a person that is owned or controlled, directly or indirectly, by the digital commodity exchange) for its own behalf or on behalf of any other person.

''(k) FEDERAL PREEMPTION.—Notwithstanding any other provision of law, the Commission shall have exclusive jurisdiction over any digital commodity exchange registered under this section with respect to activities and transactions subject to this Act.''.

SEC. 405. QUALIFIED DIGITAL ASSET CUSTODIANS.

The Commodity Exchange Act (7 U.S.C. 1 et seq.), as amended by the preceding provisions of this Act, is amended by inserting after section 5i the following:

''SEC. 5j. QUALIFIED DIGITAL ASSET CUSTODIANS.

''(a) IN GENERAL.—A person is a qualified digital asset custodian for purposes of this Act if the person—

''(1) holds digital assets on behalf of a person registered under this Act or a customer of a person registered under this Act; and

''(2) is in compliance with subsections (b) and (c).

''(b) SUPERVISION REQUIREMENT.—A person is in compliance with this subsection if the person is subject to—

''(1) supervision and examination for custody and safekeeping of digital assets by an appropriate Federal banking agency, the National Credit Union Administration, the Commission, or the Securities and Exchange Commission; or

''(2) adequate supervision and appropriate regulation for custody and safekeeping of digital assets by—

''(A) a State bank supervisor (within the meaning of section 3 of the Federal Deposit Insurance Act);

''(B) a State officer, agency, or other entity which has primary regulatory authority over nondepository State trust companies;

''(C) a State credit union supervisor, as defined under section 6003 of the Anti-Money Laundering Act of 2020; or

''(D) an appropriate foreign governmental authority in the home country of such person.

''(c) OTHER REQUIREMENTS.—A person shall be in compliance with this subsection if:

''(1) NOT OTHERWISE PROHIBITED.—The person has not been prohibited by its supervisor from engaging in an activity with respect to the custody and safekeeping of digital assets.

''(2) INFORMATION SHARING.—

''(A) IN GENERAL.—The person shares information with the Commission on request and complies with such requirements for periodic sharing of information regarding customer accounts that the person holds on behalf of an entity registered with the Commission as the Commission determines by rule are reasonably necessary to effectuate any of the provisions, or to accomplish any of the purposes, of this Act.

''(B) PROVISION OF INFORMATION.—If the person is subject to regulation and examination by an appropriate Federal banking agency, the person may satisfy any information request described in subparagraph (A) by providing the Commission with a detailed listing, in writing, of the digital assets of a customer in the custody of, or use by, the person.

''(C) RULEMAKING FOR CFTC ENTITIES.—

''(i) IN GENERAL.—The Commission shall prescribe rules to permit a person registered with the Commission to be a qualified digital asset custodian in compliance with this section.

''(ii) CONTENT.—In prescribing the rules under subparagraph (A), the Commission shall require a person registered with the Commission to—

''(I) implement requirement consistent with the requirements in subsection (d)(1);

''(II) establish sufficient system safeguards;

''(III) prevent or mitigate conflicts of interest, as appropriate; and

''(IV) establish separate governance arrangements for the custodial function of the entity.

''(d) ADEQUATE SUPERVISION AND APPROPRIATE REGULATION.—

''(1) IN GENERAL.—For purposes of subsection (b), the terms 'adequate supervision' and 'appropriate regulation' mean such minimum standards for supervision and regulation as are reasonably necessary to protect the digital assets held by a person registered under this Act, including standards relating to the licensing, examination, and supervisory processes that require the person to, at a minimum—

''(A) receive a review and evaluation of ownership, character and fitness, conflicts of interest, business model, financial statements, funding resources, and policies and procedures of the person;

''(B) hold capital sufficient for the financial integrity of the person;

''(C) protect customer assets;

''(D) establish and maintain books and records regarding the business of the person;

''(E) submit financial statements and audited financial statements to the applicable supervisor described in subsection (b);

''(F) provide disclosures to the applicable supervisor described in subsection (b) regarding actions, proceedings, and other items as determined by the supervisor;

''(G) maintain and enforce policies and procedures for compliance with applicable State and Federal laws, including those related to anti-money laundering and cybersecurity;

''(H) establish a business continuity plan to ensure functionality in cases of disruption; and

''(I) establish policies and procedures to resolve complaints.

''(2) RULEMAKING WITH RESPECT TO DEFINITIONS.—

''(A) IN GENERAL.—For purposes of this section, the Commission may, by rule, further define the terms 'adequate supervision' and 'appropriate regulation' as necessary and appropriate for the protection of customers, and consistent with the purposes of this Act.

''(B) EXISTING DIGITAL ASSET CUSTODIANS.—A trust company operating as a digital asset custodian before the effective date of a rulemaking under subparagraph (A) is deemed subject to adequate supervision and appropriate regulation if—

''(i) the trust company is expressly permitted by a State bank supervisor to engage in the custody and safekeeping of digital assets;

''(ii) the State bank supervisor has established licensing, examination, and supervisory processes that require the trust company to, at a minimum, meet the conditions described in subparagraphs (A) through (I) of paragraph (1); and

''(iii) the trust company is in good standing with its State bank supervisor.

''(C) TRANSITION PERIOD FOR CERTAIN CUSTODIANS.—In implementing the rulemaking under subparagraph (A), the Commission shall provide a transition period of not less than 2 years for any trust company that is deemed subject to adequate supervision and appropriate regulation under subparagraph (B) on the effective date of the rulemaking.

''(e) AUTHORITY TO TEMPORARILY SUSPEND STANDARDS.—The Commission may, by rule or order, temporarily suspend, in whole or in part, any requirement imposed under, or any standard referred to in, this section, or any requirement to utilize a qualified digital asset custodian, if the Commission determines that the suspension would be consistent with the public interest and the purposes of this Act.''.

SEC. 406. REGISTRATION AND REGULATION OF DIGITAL COMMODITY BROKERS AND DEALERS.

The Commodity Exchange Act (7 U.S.C. 1 et seq.) is amended by inserting after section 4t the following:

''SEC. 4u. REGISTRATION AND REGULATION OF DIGITAL COMMODITY BROKERS AND DEALERS.

''(a) REGISTRATION.—

''(1) REQUIREMENT.—It shall be unlawful for any person to act as a digital commodity broker or digital commodity dealer unless the person is registered as such with the Commission.

''(2) ADDITIONAL REGISTRATION.—

''(A) RULES.—In order to foster the development of fair and orderly markets, protect customers, and promote responsible innovation, the Commission—

''(i) shall prescribe rules to exempt an entity registered with the Commission under more than 1 section of this Act from duplicative, conflicting, or unduly burdensome provisions of this Act and the rules under this Act;

''(ii) shall prescribe rules to address conflicts of interests and the activities of the entity; and

''(iii) may after an analysis of the risks and benefits, prescribe rules to provide for portfolio margining.

''(B) WITH MEMBERSHIP IN A REGISTERED FUTURES ASSOCIATION.—Any person required to be registered as a digital commodity broker or digital commodity dealer under this section shall become and remain a member of a registered futures association.

''(b) REQUIREMENTS.—

''(1) IN GENERAL.—A person shall register as a digital commodity broker or digital commodity dealer by filing a registration application with the Commission.

''(2) CONTENTS.—

''(A) IN GENERAL.—The application shall be made in such form and manner as is prescribed by the Commission, and shall contain such information as the Commission considers necessary concerning the business in which the applicant is or will be engaged.

''(B) CONTINUAL REPORTING.—A person that is registered as a digital commodity broker or digital commodity dealer shall continue to submit to the Commission reports that contain such information pertaining to the business of the person as the Commission may require.

''(3) STATUTORY DISQUALIFICATION.—Except to the extent otherwise specifically provided by rule, regulation, or order, it shall be unlawful for a digital commodity broker or digital commodity dealer to permit any person who is associated with a digital commodity broker or a digital commodity dealer and who is subject to a statutory disqualification to effect or be involved in effecting a contract of sale of a digital commodity on behalf of the digital commodity broker or the digital commodity dealer, respectively, if the digital commodity broker or digital commodity dealer, respectively, knew, or in the exercise of reasonable care should have known, of the statutory disqualification.

''(c) RULEMAKING.—

''(1) IN GENERAL.—The Commission shall prescribe such rules applicable to registered digital commodity brokers and registered digital commodity dealers as are appropriate to carry out this section, including rules in the public interest that limit the activities of digital commodity brokers and digital commodity dealers.

''(2) FINANCING AGREEMENTS.—

''(A) IN GENERAL.—The Commission shall prescribe rules and regulations applicable to digital commodity brokers or digital commodity dealers which shall set forth minimum requirements related to disclosure, recordkeeping, margin financing arrangements, rehypothecation, capital, reporting, business conduct, documentation, and supervision of employees and agents, in connection with—

''(i) an agreement described in section 2(c)(2)(D)(iv); or

''(ii) any other margined, leveraged, or financing arrangement for the purchase or sale of a digital commodity with an eligible contract participant.

''(B) SPECIFIC AUTHORITY.—Except as prohibited in section 2(c)(2)(G)(iii), the Commission may also make, promulgate, and enforce such rules and regulations as, in the judgment of the Commission, are reasonably necessary to effectuate any of the provisions of, or to accomplish any of the purposes of, this Act in connection with an agreement referred to in subparagraph (A) of this paragraph.

''(d) CAPITAL REQUIREMENTS.—

''(1) IN GENERAL.—Each digital commodity broker and digital commodity dealer shall meet such minimum capital requirements as the Commission may prescribe to address the risks associated with digital commodity trading and to ensure that the digital commodity broker or digital commodity dealer, respectively, is able, at all times, to—

''(A) meet, and continue to meet the obligations of such a registrant; and

''(B) fulfill obligations to customers or counterparties for any margined, leveraged, or financed transactions.

''(2) FUTURES COMMISSION MERCHANTS AND OTHER DEALERS.—Each futures commission merchant, introducing broker, digital commodity broker, digital commodity dealer, broker, and dealer shall maintain sufficient capital to comply with the stricter of any applicable capital requirements to which the futures commission merchant, introducing broker, digital commodity broker, digital commodity dealer, broker, or dealer, respectively, is subject under this Act or the Securities Exchange Act of 1934 (15 U.S.C. 78a et seq.).

''(e) REPORTING AND RECORDKEEPING.—Each digital commodity broker and digital commodity dealer—

''(1) shall make such reports as are required by the Commission by rule or regulation regarding the transactions, positions, and financial condition of the digital commodity broker or digital commodity dealer, respectively;

''(2) shall keep books and records in such form and manner and for such period as may be prescribed by the Commission by rule or regulation; and

''(3) shall keep the books and records open to inspection and examination by any representative of the Commission.

''(f) DAILY TRADING RECORDS.—

''(1) IN GENERAL.—Each digital commodity broker and digital commodity dealer shall maintain daily trading records of the transactions of the digital commodity broker or digital commodity dealer, respectively, and all related records (including related forward or derivatives transactions) and recorded communications, including electronic mail, instant messages, and recordings of telephone calls, for such period as the Commission may require by rule or regulation.

''(2) INFORMATION REQUIREMENTS.—The daily trading records shall include such information as the Commission shall require by rule or regulation.

''(3) COUNTERPARTY RECORDS.—Each digital commodity broker and digital commodity dealer shall maintain daily trading records for each customer or counterparty in a manner and form that is identifiable with each digital commodity transaction.

''(4) AUDIT TRAIL.—Each digital commodity broker and digital commodity dealer shall maintain a complete audit trail for conducting comprehensive and accurate trade reconstructions.

''(g) BUSINESS CONDUCT STANDARDS.—

''(1) IN GENERAL.—Each digital commodity broker and digital commodity dealer shall conform with such business conduct standards as the Commission, by rule or regulation, prescribes related to—

''(A) fraud, manipulation, and other abusive practices involving spot or margined, leveraged, or financed digital commodity transactions (including transactions that are offered but not entered into);

''(B) diligent supervision of the business of the registered digital commodity broker or digital commodity dealer, respectively; and

''(C) such other matters as the Commission deems appropriate.

''(2) BUSINESS CONDUCT REQUIREMENTS.—The Commission shall, by rule, prescribe business conduct requirements which—

''(A) require disclosure by a registered digital commodity broker and registered digital commodity dealer to any counterparty to the transaction (other than an eligible contract participant) of—

''(i) information about the material risks and characteristics of the digital commodity; and

''(ii) information about the material risks and characteristics of the transaction;

''(B) establish a duty for such a digital commodity broker and such a digital commodity

dealer to communicate in a fair and balanced manner based on principles of fair dealing and good faith;

''(C) establish standards governing digital commodity broker and digital commodity dealer marketing and advertising, including testimonials and endorsements; and

''(D) establish such other standards and requirements as the Commission may determine are appropriate for the protection of customers.

''(3) PROHIBITION ON FRAUDULENT PRACTICES.—It shall be unlawful for a digital commodity broker or digital commodity dealer to—

''(A) employ any device, scheme, or artifice to defraud any customer or counterparty;

''(B) engage in any transaction, practice, or course of business that operates as a fraud or deceit on any customer or counterparty; or

''(C) engage in any act, practice, or course of business that is fraudulent, deceptive, or manipulative.

''(h) DUTIES.—

''(1) RISK MANAGEMENT PROCEDURES.—Each digital commodity broker and digital commodity dealer shall establish robust and professional risk management systems adequate for managing the day-to-day business of the digital commodity broker or digital commodity dealer, respectively.

''(2) DISCLOSURE OF GENERAL INFORMATION.—Each digital commodity broker and digital commodity dealer shall disclose to the Commission information concerning—

''(A) the terms and conditions of the transactions of the digital commodity broker or digital commodity dealer, respectively;

''(B) the trading operations, mechanisms, and practices of the digital commodity broker or digital commodity dealer, respectively;

''(C) financial integrity protections relating to the activities of the digital commodity broker or digital commodity dealer, respectively; and

''(D) other information relevant to trading in digital commodities by the digital commodity broker or digital commodity dealer, respectively.

''(3) ABILITY TO OBTAIN INFORMATION.—Each digital commodity broker and digital commodity dealer shall—

''(A) establish and enforce internal systems and procedures to obtain any necessary information to perform any of the functions described in this section; and

''(B) provide the information to the Commission, on request.

''(4) CONFLICTS OF INTEREST.—Each digital commodity broker and digital commodity dealer shall establish, maintain, and enforce written policies and procedures reasonably designed, taking into consideration the nature of the business of the person, to mitigate any conflicts of interest in transactions or arrangements with affiliates.

''(5) ANTITRUST CONSIDERATIONS.—Unless necessary or appropriate to achieve the purposes of this Act, a digital commodity broker or digital commodity dealer shall not—

''(A) adopt any process or take any action that results in any unreasonable restraint of trade; or

''(B) impose any material anticompetitive burden on trading or clearing.

''(i) DESIGNATION OF CHIEF COMPLIANCE OFFICER.—

''(1) IN GENERAL.—Each digital commodity broker and digital commodity dealer shall designate an individual to serve as a chief compliance officer.

''(2) DUTIES.—The chief compliance officer shall—

''(A) report directly to the board or to the senior officer of the registered digital commodity broker or registered digital commodity dealer;

''(B) review the compliance of the registered digital commodity broker or registered digital commodity dealer with respect to the registered digital commodity broker and registered digital commodity dealer requirements described in this section;

''(C) in consultation with the board of directors, a body performing a function similar to the board, or the senior officer of the organization, resolve any conflicts of interest that may arise;

''(D) be responsible for administering each policy and procedure that is required to be established pursuant to this section;

''(E) ensure compliance with this Act (including regulations), including each rule prescribed by the Commission under this section;

''(F) establish procedures for the remediation of noncompliance issues identified by the chief compliance officer through any—

''(i) compliance office review;

''(ii) look-back;

''(iii) internal or external audit finding;

''(iv) self-reported error; or

''(v) validated complaint; and

''(G) establish and follow appropriate procedures for the handling, management response, remediation, retesting, and closing of noncompliance issues.

''(3) ANNUAL REPORTS.—

''(A) IN GENERAL.—In accordance with rules prescribed by the Commission, the chief compliance officer shall annually prepare and sign a report that contains a description of—

''(i) the compliance of the registered digital commodity broker or registered digital commodity dealer with this Act (including regulations); and

''(ii) each policy and procedure of the registered digital commodity broker or registered digital commodity dealer followed by the chief compliance officer (including the code of ethics and conflict of interest policies).

''(B) REQUIREMENTS.—The chief compliance officer shall ensure that a compliance report under subparagraph (A)—

''(i) accompanies each appropriate financial report of the registered digital commodity broker or registered digital commodity dealer that is required to be furnished to the Commission pursuant to this section; and

''(ii) includes a certification that, under penalty of law, the compliance report is accurate and complete.

''(j) SEGREGATION OF DIGITAL COMMODITIES.—

''(1) HOLDING OF CUSTOMER ASSETS.—

''(A) IN GENERAL.—Each digital commodity broker and digital commodity dealer shall hold customer money, assets, and property in a manner to minimize the risk of loss to the customer or unreasonable delay in customer access to the money, assets, and property of the customer.

''(B) QUALIFIED DIGITAL ASSET CUSTODIAN.—Each digital commodity broker and digital commodity dealer shall hold in a qualified digital asset custodian each unit of a digital asset that is—

''(i) the property of a customer or counterparty of the digital commodity broker or digital commodity dealer, respectively;

''(ii) required to be held by the digital commodity broker or digital commodity dealer under subsection (e); or

''(iii) otherwise so required by the Commission to reasonably protect customers or promote the public interest.

''(2) SEGREGATION OF FUNDS.—

''(A) IN GENERAL.—Each digital commodity broker and digital commodity dealer shall treat and deal with all money, assets, and property that is received by the digital commodity broker or digital commodity dealer, or accrues to a customer as the result of trading in digital commodities, as belonging to the customer.

''(B) COMMINGLING PROHIBITED.—

''(i) IN GENERAL.—Except as provided in clause (ii), each digital commodity broker and digital commodity dealer shall separately account for money, assets, and property of a digital commodity customer, and shall not commingle any such money, assets, or property with the funds of the digital commodity broker or digital commodity dealer, respectively, or use any such money, assets, or property to margin, secure, or guarantee any trades or accounts of any customer or person other than the person for whom the money, assets, or property are held.

''(ii) EXCEPTIONS.—

''(I) USE OF FUNDS.—

''(aa) IN GENERAL.—A digital commodity broker or digital commodity dealer may, for convenience, commingle and deposit in the same account or accounts with any bank, trust company, derivatives clearing organization, or qualified digital asset custodian money, assets, and property of customers.

''(bb) WITHDRAWAL.—The share of the money, assets, and property described in item (aa) as in the normal course of business shall be necessary to margin, guarantee, secure, transfer, adjust, or settle a contract of sale of a digital commodity with a registered entity may be withdrawn and applied to such purposes, including the payment of commissions, brokerage, interest, taxes, storage, and other charges, lawfully accruing in connection with the contract.

''(II) COMMISSION ACTION.—In accordance with such terms and conditions as the Commission may prescribe by rule, regulation, or order, any money, assets, or property of the customers of a digital commodity broker or digital commodity dealer may be commingled and deposited in customer accounts with any other money, assets, or property received by the digital commodity broker or digital commodity dealer, respectively, and required by the Commission to be separately accounted for and treated and dealt with as belonging to the customer of the digital commodity broker or digital commodity dealer, respectively.

''(3) PERMITTED INVESTMENTS.—Money described in paragraph (2) may be invested in obligations of the United States, in general obligations of any State or of any political subdivision of a State, in obligations fully guaranteed as to principal and interest by the United States, or in any other investment that the Commission may by rule or regulation allow.

''(4) CUSTOMER PROTECTION DURING BANKRUPTCY.—

''(A) CUSTOMER PROPERTY.—All money, assets, or property described in paragraph (2) shall be considered customer property for purposes of section 761 of title 11, United States Code.

''(B) TRANSACTIONS.—A transaction involving a unit of a digital commodity occurring with a digital commodity broker or digital commodity dealer shall be considered a contract for the purchase or sale of a commodity for future delivery, on or subject to the rules of, a contract market or board of trade for purposes of the definition of a 'commodity contract' in section 761 of title 11, United States Code.

''(C) BROKERS AND DEALERS.—A digital commodity broker and a digital commodity dealer shall be considered a futures commission merchant for purposes of section 761 of title 11, United States Code.

''(D) ASSETS REMOVED FROM SEGREGATION.—Assets removed from segregation due to a customer election under paragraph (6) shall not be considered customer property for purposes of section 761 of title 11, United States Code.

''(5) MISUSE OF CUSTOMER PROPERTY.—

''(A) IN GENERAL.—It shall be unlawful—

''(i) for any digital commodity broker or digital commodity dealer that has received any customer money, assets, or property for custody to dispose of, or use any such money, assets, or property as belonging to the digital commodity broker or digital commodity dealer, respectively, or any person other than a customer of the digital commodity broker or digital commodity dealer, respectively; or

''(ii) for any other person, including any depository, digital commodity exchange, other digital commodity broker, other digital commodity dealer, or digital commodity custodian that has received any customer money, assets, or property for deposit, to hold, dispose of, or use any such money, assets, or property, as belonging to

the depositing digital commodity broker or digital commodity dealer or any person other than the customers of the digital commodity broker or digital commodity dealer, respectively.

''(B) USE FURTHER DEFINED.—For purposes of this section, 'use' of a digital commodity includes utilizing any unit of a digital asset to participate in a blockchain service defined in paragraph (6) or a decentralized governance system associated with the digital commodity or the blockchain system to which the digital commodity relates in any manner other than that expressly directed by the customer from whom the unit of a digital commodity was received.

''(6) PARTICIPATION IN BLOCKCHAIN SERVICES.—

''(A) USE OF FUNDS.—A digital commodity broker or digital commodity dealer (or a designee of a digital commodity broker or a digital commodity dealer) may use a unit of a digital commodity belonging to a customer to provide a blockchain service for a blockchain system to which the unit of the digital commodity relates if—

''(i) the customer expressly permits the use, in writing to the digital commodity broker or digital commodity dealer, as the case may be; and

''(ii) the digital commodity broker or the digital commodity dealer, as the case may be, complies with subparagraph (B).

''(B) LIMITATIONS.—

''(i) IN GENERAL.—The Commission shall, by rule, establish notice and disclosure requirements, and may, by rule, establish any other limitations and rules related to a permission provided under subparagraph (A) that are reasonably necessary to protect customers, including eligible contract participants, non-eligible contract participants, or any other class of customers.

''(ii) CUSTOMER CHOICE.—A digital commodity broker or digital commodity dealer may not require a customer to provide the permission referred to in subparagraph (A) as a condition of doing business with the broker or dealer.

''(C) REQUIREMENTS.—The Commission may, by rule, waive or modify the requirements of paragraph (2) or subsection (h), to facilitate the use of a unit of a digital commodity belonging to a customer to provide a blockchain service.

''(D) BLOCKCHAIN SERVICE DEFINED.—In this paragraph, the term 'blockchain service' means any activity relating to validating transactions on a blockchain system, providing security for a blockchain system, or other similar activity, including protocol consensus participation activities described in section 2(a)(30)(B) of the Securities Act of 1933, required for the ongoing operation of a blockchain system.

''(k) FEDERAL PREEMPTION.—Notwithstanding any other provision of law, the Commission shall have exclusive jurisdiction over any digital commodity broker or digital commodity dealer registered under this section with respect to activities subject to this Act.

''(l) EXEMPTIONS.—In order to promote responsible innovation and fair competition, or protect customers, the Commission may (on its own initiative or on application of the digital commodity broker or digital commodity dealer) exempt, unconditionally or on stated terms or conditions, or for stated periods, and retroactively or prospectively, or both, a digital commodity broker or digital commodity dealer from the requirements of this Act, if the Commission determines that—

''(1)(A) the exemption would be consistent with the public interest and the purposes of this Act; and

''(B) the exemption will not have a material adverse effect on the ability of the Commission to discharge regulatory duties under this Act; or

''(2) the digital commodity broker or digital commodity dealer is subject to comparable, comprehensive supervision and regulation by the appropriate government authorities in the home country of the digital commodity broker or digital commodity dealer, respectively.''.

SEC. 407. REGISTRATION OF ASSOCIATED PERSONS.

(a) IN GENERAL.—Section 4k of the Commodity Exchange Act (7 U.S.C. 6k) is amended—

(1) by redesignating subsections (4) through (6) as subsections (5) through (7), respectively;

(2) by inserting after subsection (3) the following:

''(4) It shall be unlawful for any person to act as an associated person of a digital commodity broker or an associated person of a digital commodity dealer unless the person is registered with the Commission under this Act and such registration shall not have expired, been suspended (and the period of suspension has not expired), or been revoked. It shall be unlawful for a digital commodity broker or a digital commodity dealer to permit such a person to become or remain associated with the digital commodity broker or digital commodity dealer if the digital commodity broker or digital commodity dealer knew or should have known that the person was not so registered or that the registration had expired, been suspended (and the period of suspension has not expired), or been revoked.''; and

(3) in subsection (5) (as so redesignated), by striking ''or of a commodity trading advisor'' and inserting ''of a commodity trading advisor, of a digital commodity broker, or of a digital commodity dealer''.

(b) CONFORMING AMENDMENTS.—The Commodity Exchange Act (7 U.S.C. 1a et seq.) is amended by striking ''section 4k(6)'' each place it appears and inserting ''section 4k(7)''.

SEC. 408. REGISTRATION OF COMMODITY POOL OPERATORS AND COMMODITY TRADING ADVISORS.

(a) IN GENERAL.—Section 4m(3) of the Commodity Exchange Act (7 U.S.C. 6m(3)) is amended—

(1) in subparagraph (A)—

(A) by striking ''any commodity trading advisor'' and inserting ''a commodity pool operator or commodity trading advisor''; and

(B) by striking ''acting as a commodity trading advisor'' and inserting ''acting as a commodity pool operator or commodity trading advisor''; and

(2) in subparagraph (C), by inserting ''digital commodities,'' after ''physical commodities,''.

(b) EXEMPTIVE AUTHORITY.—Section 4m of such Act (7 U.S.C. 6m) is amended by adding at the end the following:

''(4) EXEMPTIVE AUTHORITY.—The Commission shall promulgate rules to provide appropriate exemptions for commodity pool operators and commodity trading advisors, to provide relief from duplicative, conflicting, or unduly burdensome requirements or to promote responsible innovation, to the extent the exemptions foster the development of fair and orderly cash or spot digital commodity markets, are necessary or appropriate in the public interest, and are consistent with the protection of customers.''.

SEC. 409. EXCLUSION FOR DECENTRALIZED FINANCE ACTIVITIES.

The Commodity Exchange Act (7 U.S.C. 1 et seq.), as amended by the preceding provisions of this Act, is amended by inserting after section 4u the following:

''SEC. 4v. DECENTRALIZED FINANCE ACTIVITIES NOT SUBJECT TO THIS ACT.

''(a) IN GENERAL.—Notwithstanding any other provision of this Act, a person shall not be subject to this Act and the regulations promulgated under this Act based on the person directly or indirectly engaging in any of the following activities, whether singly or in combination, in relation to the operation of a blockchain system or in relation to decentralized finance trading protocol:

''(1) Compiling network transactions or relaying, searching, sequencing, validating, or acting in a similar capacity.

''(2) Providing computational work, operating a node or oracle service, or procuring, offering, or utilizing network bandwidth, or other similar incidental services.

''(3) Providing a user-interface that enables a user to read, and access data about a blockchain system.

''(4) Developing, publishing, or otherwise distributing a blockchain system or a decentralized finance messaging system.

''(5) Constituting, administering, or maintaining a decentralized finance messaging system or decentralized finance trading protocol, or operating or participating in a liquidity pool with respect thereto, for the purpose of executing a spot transaction for the purchase or sale of a digital commodity.

''(6) Developing, publishing, constituting, administering, maintaining, or otherwise distributing software or systems that create or deploy hardware or software, including wallets or other systems, facilitating an individual user's own personal ability to keep, safeguard, or custody the user's digital assets or related private keys.

''(b) EXCEPTIONS.—Subsection (a) shall not be interpreted to apply to the anti-fraud, anti-manipulation, or false reporting enforcement authorities of the Commission.''.

SEC. 410. RESOURCES FOR IMPLEMENTATION AND ENFORCEMENT.

(a) COLLECTION OF FEES.—

(1) IN GENERAL.—The Commodity Futures Trading Commission (in this section referred to as the ''Commission'') shall charge and collect a fee from each person in provisional status registered with the Commission pursuant to section 106, on—

(A) the filing of the initial application for registration; and

(B) an annual basis thereafter for maintaining provisional status.

(2) AMOUNT.—The fees authorized under paragraph (1) may be collected and available for obligation only in the amounts provided in advance in an appropriation Act.

(3) AUTHORITY TO ADJUST FEES.—Notwithstanding the preceding provisions of this subsection, to promote fair competition or innovation, the Commission, in its sole discretion, may reduce or eliminate any fee otherwise required to be paid by a small or medium filer under this subsection.

(b) FEE SCHEDULE.—

(1) IN GENERAL.—The Commission shall publish in the Federal Register a schedule of the fees to be charged and collected under this section.

(2) CONTENT.—The fee schedule for a fiscal year shall include a written analysis of the estimate of the Commission of the total costs of carrying out the functions of the Commission under this Act during the fiscal year.

(3) SUBMISSION TO CONGRESS.—Before publishing the fee schedule for a fiscal year, the Commission shall submit a copy of the fee schedule to the Committees on Agriculture and on Appropriations of the House of Representatives and the Committees on Agriculture, Nutrition, and Forestry and on Appropriations of the Senate.

(4) TIMING.—

(A) 1ST FISCAL YEAR.—The Commission shall publish the fee schedule for the fiscal year in which this Act is enacted, within 30 days after the date of the enactment of this Act.

(B) SUBSEQUENT FISCAL YEARS.—The Commission shall publish the fee schedule for each subsequent fiscal year, not less than 90 days before the due date prescribed by the Commission for payment of the annual fee for the fiscal year.

(c) LATE PAYMENT PENALTY.—

(1) IN GENERAL.—The Commission may impose a penalty against a person that fails to pay an annual fee charged under this section, within 30 days after the due date prescribed by the Commission for payment of the fee.

(2) AMOUNT.—The amount of the penalty shall be—

(A) 5 percent of the amount of the fee due, multiplied by

(B) the whole number of consecutive 30-day periods that have elapsed since the due date.

(d) REIMBURSEMENT OF EXCESS FEES.—To the extent that the total amount of fees collected under this section during a fiscal year that begins after the date of the enactment of this Act exceeds the amount provided under subsection (a)(2) with respect to the fiscal year, the Commission shall reimburse the excess amount to the persons who have timely paid their annual fees, on a pro-rata basis that excludes penalties, and shall do so within 60 days after the end of the fiscal year.

(e) DEPOSIT OF FEES INTO THE TREASURY.—All amounts collected under this section shall be credited to the currently applicable appropriation, account, or fund of the Commission as discretionary offsetting collections, and shall be available for the purposes authorized in subsection (f) only to the extent and in the amounts provided in advance in appropriations Acts.

(f) AUTHORIZATION OF APPROPRIATIONS.—In addition to amounts otherwise authorized to be appropriated to the Commission, there is authorized to be appropriated to the Commission amounts collected under this section to cover the costs of carrying out the functions of the Commission under this Act.

(g) EXPEDITED HIRING AUTHORITY.—

(1) APPOINTMENT AUTHORITY.—The Chairman, pursuant to section 6(a), may appoint individuals to a position described in paragraph (2) of this subsection—

(A) in accordance with the statutes, rules, and regulations governing appointments to positions in the excepted service (as defined in section 2103 of title 5, United States Code); and

(B) without regard to any statute, rule, or regulation governing appointments to positions in the competitive service (as defined in section 2102 of such title).

(2) POSITION DESCRIBED.—A position referred to in subparagraph (1) is a position at the Commission that—

(A) is in the competitive service (as defined in section 2102 of such title); and

(B) requires specialized knowledge of digital commodities markets, financial and capital market formation or regulation, financial market structures or surveillance, data collection or analysis, or information technology, cybersecurity, or system safeguards.

(3) RULE OF CONSTRUCTION.—The appointment of a candidate to a position under this subsection shall not be considered to cause the position to be converted from the competitive service to the excepted service.

(h) SUNSET.—The authorities provided by this section shall expire at the end of the 4th fiscal year that begins after the date of the enactment of this Act.

SEC. 411. REQUIREMENTS RELATED TO CONTROL PERSONS.

The Commodity Exchange Act (7 U.S.C. 1 et seq.), as amended the preceding provisions of this Act, is amended by inserting after section 4v the following:

"SEC. 4w. LIMITATION ON TRANSACTIONS BY BLOCKCHAIN CONTROL PERSONS.

''(a) LIMITATION.—It shall be unlawful for a blockchain control person with respect to a blockchain system certified as a mature blockchain system in accordance with section 42 of the Securities Exchange Act of 1934 to sell a unit of a digital commodity related to the blockchain system unless the person files notice with the Commission, in a form and manner determined by the Commission, that the person has or intends to obtain an authority described in subsection (b)(1) with respect to the blockchain system, and complies with rules adopted by the Commission that require—

''(1) disclosure of information to the Commission and the public about the material activities, as determined by the Commission, of the blockchain control person; and

''(2)(A) the use of a digital commodity broker to effect the sale; or

''(B) such other sales restrictions applicable to the blockchain control person, or any affiliated blockchain control person, to prevent manipulation and distortion of the value of the digital commodity and promote further maturity of the blockchain system to which the digital commodity relates.

''(b) DEFINITIONS.—In this section:

''(1) BLOCKCHAIN CONTROL PERSON.—The term 'blockchain control person' means, with respect to a blockchain system, any person or group of persons under common control, other than a decentralized governance system, who—

''(A) has the unilateral authority, directly or indirectly, through any contract, arrangement, understanding, relationship, or otherwise, to control or materially alter the functionality, operation, or rules of consensus or agreement of the blockchain system or its related digital commodity; or

''(B) has the unilateral authority to direct the voting, in the aggregate, of 20 percent or more of the outstanding voting power of the blockchain system by means of a related digital commodity, nodes or validators, a decentralized governance system, or otherwise, in a blockchain system which can be altered by a voting system.

''(2) AFFILIATED BLOCKCHAIN CONTROL PERSON.—The term 'affiliated blockchain control person' means any person directly or indirectly controlling, controlled by, or under common control with a blockchain control person, as the Commission by rule or regulation, may determine will effectuate the purposes of this section.''.

SEC. 412. OTHER TRADABLE ASSETS.

The Commodity Exchange Act (7 U.S.C. 1 et seq.), as amended by the preceding provisions of this Act, is amended—

(1) by inserting after section 4w the following:

"SEC. 4x. TRADING REQUIREMENTS FOR OTHER TRADABLE ASSETS.

''(a) LIMITATION.—A contract of sale of a tradable asset shall not be offered, solicited, traded, facilitated, executed, cleared, reported, or otherwise dealt in, on or subject to the rules of a registered entity, or by any other entity registered with the Commission, except in accordance with subsection (b).

''(b) REQUIREMENTS.—

''(1) TREATMENT OF TRADABLE ASSETS.—A contract of sale of a tradable asset that is offered, solicited, traded, facilitated, executed, cleared, reported, or otherwise dealt in on or subject to the rules of a registered entity, or by any other entity registered with the Commission, shall be treated as a digital commodity for purposes of this Act.

''(2) ADDITIONAL RULEMAKING AUTHORITY.—In addition to the other requirements of this Act, the Commission may, by rule or regulation, impose additional obligations on any person registered under this Act offering, soliciting, trading, facilitating, executing, clearing, reporting, or otherwise dealing in a contract of sale of a tradable asset, or class thereof, pursuant to paragraph (1) as are necessary for the protection of customers, the promotion of innovation, and the maintenance of fair, orderly, and efficient markets, including additional obligations related to—

''(A) disclosure;

''(B) recordkeeping;

''(C) capital;

''(D) reporting;

''(E) business conduct;

''(F) documentation;

''(G) supervision of employees; and

''(H) segregation.

''(c) TRADABLE ASSET DEFINED.—In this section, the term 'tradable asset' means a digital asset other than—

''(1) a digital commodity that is treated as such other than by reason of subsection (b)(1) of this section; or

''(2) a digital asset excluded from the definition of digital commodity pursuant to subclause (I) through (VII) of section 1a(16)(F)(iii).''; and

(2) by inserting after section 6d the following:

"SEC. 6e. PROHIBITION ON TRADING CERTAIN DIGITAL ASSETS.

''(a) IN GENERAL.—A contract of sale of a digital commodity or tradable asset (as defined in section 4x) shall not be offered, solicited, traded, facilitated, executed, cleared, reported, or otherwise dealt in on or subject to the rules of a registered entity, or by any other entity registered with the Commission, if the primary purpose of the digital commodity or tradable asset is to be used to—

''(1) commit fraud or market manipulation;

''(2) further a scheme found in a final action by a court of competent jurisdiction to be in violation of campaign finance or government ethics laws; or

''(3) engage in any other conduct that would result in abusive practices or be disruptive to market integrity.

''(b) GUIDANCE ON FRAUDULENT, MANIPULATIVE, OR DISRUPTIVE TRADABLE ASSETS.—The Commission may, after public notice and comment, issue guidance establishing criteria for determining if the primary purpose of a digital commodity or tradable asset (as so defined) is to be used to commit fraud or market manipulation, or engage in any other conduct that would result in abusive practices or be disruptive to market integrity.''.

SEC. 413. CONFLICT OF INTEREST RULEMAKING.

Not later than 360 days after the date of the enactment of this Act, the Commodity Futures Trading Commission shall issue rules establishing requirements for the identification, mitigation, and resolution of conflicts of interest among and across registered entities (within the meaning of the Commodity Exchange Act) and persons required to be registered with the Commission, including conflicts of interest related to vertically integrated market structures and their varying responsibilities.

SEC. 414. EFFECTIVE DATE.

Unless otherwise provided in this title, this title and the amendments made by this title shall take effect 270 days after the date of the enactment of this Act.

SEC. 415. SENSE OF CONGRESS.

It is the sense of Congress that nothing in this Act or any amendment made by this Act should be interpreted to authorize any entity to regulate any commodity, other than a digital commodity, on any spot market.

TITLE V—INNOVATION AND TECHNOLOGY IMPROVEMENTS

SEC. 501. FINDINGS; SENSE OF CONGRESS.

(a) FINDINGS.—Congress finds the following:

(1) Entrepreneurs and innovators are building and deploying this next generation of the internet.

(2) Digital commodity networks represent a new way for people to join together and cooperate with one another to undertake certain activities.

(3) Digital commodities have the potential to be the foundational building blocks of these systems, aligning the economic incentive for individuals to cooperate with one another to achieve a common purpose.

(4) The digital commodity ecosystem has the potential to grow our economy and improve everyday lives of Americans by facilitating collaboration through the use of technology to manage activities, allocate resources, and facilitate decision making.

(5) Blockchain systems and the digital commodities they empower provide control, enhance transparency, reduce transaction costs, and increase efficiency if proper protections are put in place for investors, consumers, our financial system, and our national security.

(6) Blockchain technology facilitates new types of network participation which businesses in the United States may utilize in innovative ways.

(7) Other digital commodity companies are setting up their operations outside of the United

States, where countries are establishing frameworks to embrace the potential of blockchain technology and digital commodities and provide safeguards for consumers.

(8) Digital commodities, despite the purported anonymity, provide law enforcement with an exceptional tracing tool to identify illicit activity and bring criminals to justice.

(9) The Financial Services Committee of the House of Representatives has held multiple hearings highlighting various risks that digital commodities can pose to the financial markets, consumers, and investors that must be addressed as we seek to harness the benefits of these innovations.

(b) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the United States should seek to prioritize understanding the potential opportunities of the next generation of the internet;

(2) the United States should seek to foster advances in technology that have robust evidence indicating they can improve our financial system and create more fair and equitable access to financial services for everyday Americans while protecting our financial system, investors, and consumers;

(3) the United States must support the responsible development of digital commodities and the underlying technology in the United States or risk the shifting of the development of such assets and technology outside of the United States, to less regulated countries;

(4) Congress should consult with public and private sector stakeholders to understand how to enact a functional framework tailored to the specific risks and unique benefits of different digital commodity-related activities, distributed ledger technology, distributed networks, and mature blockchain systems;

(5) Congress should enact a functional framework tailored to the specific risks of different digital commodity-related activities and unique benefits of distributed ledger technology, distributed networks, and mature blockchain systems; and

(6) consumers and market participants will benefit from a framework for digital commodities consistent with longstanding investor protections in securities and commodities markets, yet tailored to the unique benefits and risks of the digital commodity ecosystem.

SEC. 502. STRATEGIC HUB FOR INNOVATION AND FINANCIAL TECHNOLOGY.

Section 4 of the Securities Exchange Act of 1934 (15 U.S.C. 78d) is amended by adding at the end the following:

''(k) STRATEGIC HUB FOR INNOVATION AND FINANCIAL TECHNOLOGY.—

''(1) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this subsection, the Securities and Exchange Commission shall establish a committee to be known as the Strategic Hub for Innovation and Financial Technology (referred to in this subsection as the 'FinHub') to support engagement on emerging technologies in the financial sector.

''(2) MEMBERS.—The composition of FinHub shall be determined by the Commission, drawing from relevant divisions as appropriate, including the Division of Trading and Markets, Division of Corporate Finance, and Division of Investment Management.

''(3) RESPONSIBILITIES.—FinHub shall—

''(A) serve as a resource for the Commission on emerging financial technology advancements;

''(B) engage with market participants working on emerging financial technologies; and

''(C) facilitate communication between the Commission and businesses working in emerging financial technology fields with information on the Commission, its rules, and regulations.

''(4) REPORT TO THE COMMISSION.—

''(A) IN GENERAL.—Not later than October 31 of each year after 2025, FinHub shall provide an annual summary of its engagement activities to the Commission, which shall be included in the Commission's annual report to Congress.

''(B) CONFIDENTIALITY.—Each report submitted under this paragraph shall not contain confidential information.''.

SEC. 503. CODIFICATION OF LABCFTC.

(a) IN GENERAL.—Section 18 of the Commodity Exchange Act (7 U.S.C. 22) is amended by adding at the end the following:

''(c) LABCFTC.—

''(1) ESTABLISHMENT.—There is established in the Commission LabCFTC.

''(2) PURPOSE.—The purposes of LabCFTC are to—

''(A) promote responsible financial technology innovation and fair competition for the benefit of the American public;

''(B) serve as an information platform to inform the Commission about new financial technology innovation; and

''(C) provide outreach to financial technology innovators to discuss their innovations and the regulatory framework established by this Act and the regulations promulgated thereunder.

''(3) DIRECTOR.—LabCFTC shall have a Director, who shall be appointed by the Commission and serve at the pleasure of the Commission. Notwithstanding section 2(a)(6)(A), the Director shall report directly to the Commission and perform such functions and duties as the Commission may prescribe.

''(4) DUTIES.—LabCFTC shall—

''(A) advise the Commission with respect to rulemakings or other agency or staff action regarding financial technology;

''(B) provide internal education and training to the Commission regarding financial technology;

''(C) advise the Commission regarding financial technology that would bolster the Commission's oversight functions;

''(D) engage with academia, students, and professionals on financial technology issues, ideas, and technology relevant to activities under this Act;

''(E) provide persons working in emerging technology fields with information on the Commission, its rules and regulations, and the role of a registered futures association; and

''(F) encourage persons working in emerging technology fields to engage with the Commission and obtain feedback from the Commission on potential regulatory issues.

''(5) REPORT TO CONGRESS.—

''(A) IN GENERAL.—Not later than October 31 of each year after 2025, LabCFTC shall submit to the Committee on Agriculture of the House of Representatives and the Committee on Agriculture, Nutrition, and Forestry of the Senate a report on its activities.

''(B) CONTENTS.—Each report required under paragraph (1) shall include—

''(i) the total number of persons that met with LabCFTC;

''(ii) a summary of general issues discussed during meetings with the person;

''(iii) information on steps LabCFTC has taken to improve Commission services, including responsiveness to the concerns of persons;

''(iv) recommendations made to the Commission with respect to the regulations, guidance, and orders of the Commission and such legislative actions as may be appropriate; and

''(v) any other information determined appropriate by the Director of LabCFTC.

''(C) CONFIDENTIALITY.—A report under paragraph (A) shall abide by the confidentiality requirements in section 8.

''(6) RECORDS AND ENGAGEMENT.—The Commission shall—

''(A) maintain systems of records to track engagements with the public through LabCFTC;

''(B) store communications and materials received in connection with any such engagement in accordance with Commission policies and procedures on data retention and confidentiality; and

''(C) take reasonable steps to protect any confidential or proprietary information received through LabCFTC engagement.''.

(b) CONFORMING AMENDMENTS.—Section 2(a)(6)(A) of such Act (7 U.S.C. 2(a)(6)(A)) is amended—

(1) by striking ''paragraph and in'' and inserting ''paragraph,''; and

(2) by inserting ''and section 18(c)(3),'' before ''the executive''.

(c) EFFECTIVE DATE.—The Commodity Futures Trading Commission shall implement the amendments made by this section (including complying with section 18(c)(7) of the Commodity Exchange Act) within 180 days after the date of the enactment of this Act.

SEC. 504. STUDY ON DECENTRALIZED FINANCE.

(a) IN GENERAL.—The Commodity Futures Trading Commission, the Securities and Exchange Commission, and the Secretary of the Treasury shall jointly carry out a study on decentralized finance that analyzes—

(1) the nature, size, role, and use of decentralized finance blockchain applications;

(2) the operation of blockchain applications that comprise decentralized finance;

(3) the interoperability of blockchain applications and other blockchain systems;

(4) the interoperability of blockchain applications and software-based systems, including websites and wallets;

(5) the decentralized governance systems through which blockchain applications may be developed, published, constituted, administered, maintained, or otherwise distributed, including—

(A) whether the systems enhance or detract from—

(i) the decentralization of the decentralized finance; and

(ii) the inherent benefits and risks of the decentralized governance system; and

(B) any procedures, requirements, or best practices that would mitigate the risks identified in subparagraph (A)(ii);

(6) the benefits of decentralized finance, including—

(A) operational resilience and availability of blockchain systems;

(B) interoperability of blockchain systems;

(C) market competition and innovation;

(D) transaction efficiency;

(E) transparency and traceability of transactions; and

(F) disintermediation;

(7) the risks of decentralized finance, including—

(A) pseudonymity of users and transactions;

(B) disintermediation; and

(C) cybersecurity vulnerabilities;

(8) the extent to which decentralized finance has integrated with the traditional financial markets and any potential risks or improvements to the stability of the markets;

(9) how the levels of illicit activity in decentralized finance compare with the levels of illicit activity in traditional financial markets;

(10) methods for addressing illicit activity in decentralized finance and traditional markets that are tailored to the unique attributes of each;

(11) how decentralized finance may increase the accessibility of cross-border transactions; and

(12) the feasibility of embedding self-executing compliance and risk controls into decentralized finance.

(b) CONSULTATION.—In carrying out the study required under subsection (a), the Commodity Futures Trading Commission and the Securities and Exchange Commission shall consult with the Secretary of the Treasury on the factors described under paragraphs (7) through (10) of subsection (a).

(c) REPORT.—Not later than 1 year after the date of enactment of this Act, the Commodity Futures Trading Commission and the Securities and Exchange Commission shall jointly submit to the relevant congressional committees a report that includes the results of the study required by subsection (a).

(d) GAO STUDY.—The Comptroller General of the United States shall—

(1) carry out a study on decentralized finance that analyzes the information described under paragraphs (1) through (12) of subsection (a); and

(2) not later than 1 year after the date of enactment of this Act, submit to the relevant congressional committees a report that includes the results of the study required by paragraph (1).

(e) DEFINITIONS.—In this section:

(1) DECENTRALIZED FINANCE.—

(A) IN GENERAL.—The term ''decentralized finance'' means blockchain applications (including decentralized finance trading protocols and related decentralized finance messaging systems) that allow users to engage in financial transactions in a self-directed manner so that a third-party intermediary does not effectuate the transactions or take custody of digital commodities of a user during any part of the transactions.

(B) RELATIONSHIP TO EXCLUDED ACTIVITIES.—The term ''decentralized finance'' shall not be interpreted to limit or exclude any activity from the activities described in section 15I(a) of the Securities Exchange Act of 1934 or section 4v(a) of the Commodity Exchange Act.

(2) RELEVANT CONGRESSIONAL COMMITTEES.—The term ''relevant congressional committees'' means—

(A) the Committees on Financial Services and Agriculture of the House of Representatives; and

(B) the Committees on Banking, Housing, and Urban Affairs and Agriculture, Nutrition, and Forestry of the Senate.

SEC. 505. STUDY ON NON-FUNGIBLE TOKENS.

(a) IN GENERAL.—The Comptroller General of the United States shall carry out a study of non-fungible tokens that analyzes—

(1) the nature, size, role, purpose, and use of non-fungible tokens;

(2) the similarities and differences between non-fungible tokens and other digital commodities, including digital commodities and permitted payment stablecoins, and how the markets for those digital commodities intersect with each other;

(3) how non-fungible tokens are minted by issuers and subsequently administered to purchasers;

(4) how non-fungible tokens are stored after being purchased by a consumer;

(5) the interoperability of non-fungible tokens between different blockchain systems;

(6) the scalability of different non-fungible tokens marketplaces;

(7) the benefits of non-fungible tokens, including verifiable digital ownership;

(8) the risks of non-fungible tokens, including—

(A) intellectual property rights;

(B) cybersecurity risks; and

(C) market risks;

(9) whether and how non-fungible tokens have integrated with traditional marketplaces, including those for music, real estate, gaming, events, and travel;

(10) whether and how non-fungible tokens can be used to facilitate commerce or other activities through the representation of documents, identification, contracts, licenses, and other commercial, government, or personal records;

(11) any potential risks to traditional markets from such integration; and

(12) the levels and types of illicit activity in non-fungible tokens markets.

(b) REPORT.—Not later than 1 year after the date of the enactment of this Act, the Comptroller General, shall make publicly available a report that includes the results of the study required by subsection (a).

SEC. 506. STUDY ON EXPANDING FINANCIAL LITERACY AMONGST DIGITAL COMMODITY HOLDERS.

(a) IN GENERAL.—The Commodity Futures Trading Commission with the Securities and Exchange Commission shall jointly conduct a study to identify—

(1) the existing level of financial literacy among retail digital commodity holders, including subgroups of investors identified by the Commodity Futures Trading Commission with the Securities and Exchange Commission;

(2) methods to improve the timing, content, and format of financial literacy materials regarding digital commodities provided by the Commodity Futures Trading Commission and the Securities and Exchange Commission;

(3) methods to improve coordination between the Securities and Exchange Commission and the Commodity Futures Trading Commission with other agencies, including the Financial Literacy and Education Commission as well as nonprofit organizations and State and local jurisdictions, to better disseminate financial literacy materials;

(4) the efficacy of current financial literacy efforts with a focus on rural communities and communities with majority minority populations;

(5) the most useful and understandable relevant information, including clear disclosures, that retail digital commodity holders need to make informed financial decisions before engaging with or purchasing a digital commodity or service that is typically sold to retail investors of digital commodities;

(6) the most effective public-private partnerships in providing financial literacy regarding digital commodities to consumers;

(7) the most relevant metrics to measure successful improvement of the financial literacy of an individual after engaging with financial literacy efforts; and

(8) in consultation with the Financial Literacy and Education Commission, a strategy (including to the extent practicable, measurable goals and objectives) to increase financial literacy of investors regarding digital commodities.

(b) REPORT.—Not later than 1 year after the date of the enactment of this Act, the Commodity Futures Trading Commission and the Securities and Exchange Commission shall jointly submit a written report on the study required by subsection (a) to the Committees on Financial Services and on Agriculture of the House of Representatives and the Committees on Banking, Housing, and Urban Affairs and on Agriculture, Nutrition, and Forestry of the Senate.

SEC. 507. STUDY ON FINANCIAL MARKET INFRASTRUCTURE IMPROVEMENTS.

(a) IN GENERAL.—The Commodity Futures Trading Commission and the Securities and Exchange Commission shall jointly conduct a study to assess whether additional guidance or rules are necessary to facilitate the development of tokenized securities and derivatives products, and to the extent such guidance or rules would foster the development of fair and orderly financial markets, be necessary or appropriate in the public interest, and be consistent with the protection of investors and customers.

(b) REPORT.—

(1) TIME LIMIT.—Not later than 1 year after the date of enactment of this Act, the Commodity Futures Trading Commission and the Securities and Exchange Commission shall jointly submit to the relevant congressional committees a report that includes the results of the study required by subsection (a).

(2) RELEVANT CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''relevant congressional committees'' means—

(A) the Committees on Financial Services and on Agriculture of the House of Representatives; and

(B) the Committees on Banking, Housing, and Urban Affairs and on Agriculture, Nutrition, and Forestry of the Senate.

SEC. 508. STUDY ON BLOCKCHAIN IN PAYMENTS.

(a) STUDY REQUIRED.—The Secretary of the Treasury shall conduct a study on the potential use of blockchain technology by the domestic private sector to address—

(1) fraud in payments;

(2) transaction costs and transaction times;

(3) automated payments; and

(4) efficiency in commercial transactions.

(b) REPORT TO CONGRESS.—Not later than one year after the date of enactment of this Act, the Secretary shall submit a report to the Committee on Financial Services of the House of Representatives and the Committee on Banking, Housing, and Urban Affairs of the Senate that summarizes the findings of the study required under subsection (a).

(c) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to mandate the use of blockchain technology by any public or private entity.

SEC. 509. STUDY ON ILLICIT USE OF DIGITAL ASSETS.

(a) IN GENERAL.—One year after the date of the enactment of this Act, the Secretary of the Treasury, in consultation with the Securities and Exchange Commission and the Commodity Futures Trading Commission, shall conduct a comprehensive review of how Foreign Terrorist Organizations and Transnational Criminal Syndicates utilize digital assets in connection with illicit activities.

(b) REPORT.—Not later than 180 days after completing the review under subsection (a), the Secretary of the Treasury shall issue a report to the Committees on Agriculture and on Financial Services of the House of Representatives and the Committees on Agriculture, Nutrition, and Forestry and on Banking, Housing, and Urban Affairs of the Senate on the findings of the Secretary, including—

(1) an assessment of how Foreign Terrorist Organizations and Transnational Criminal Syndicates utilize digital assets in connection with illicit activities; and

(2) recommendations to assist the Securities and Exchange Commission and the Commodity Futures Trading Commission in strengthening compliance and enforcement of digital assets-related entities registered with their respective agencies.

SEC. 510. GAO STUDY ON CERTAIN CENTRALIZED INTERMEDIARIES THAT ARE PRIMARILY LOCATED IN FOREIGN JURISDICTIONS.

(a) IN GENERAL.—The Comptroller General of the United States, in consultation with the Secretary of the Treasury, shall conduct a study to—

(1) assess the risks posed by centralized intermediaries that are primarily located in foreign jurisdictions that provide services to U.S. persons without regulatory requirements that are substantially similar to the requirements of the Bank Secrecy Act; and

(2) provide any regulatory or legislative recommendations to address these risks under paragraph (1).

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Comptroller General shall issue a report to Congress containing all findings and determinations made in carrying out the study required under subsection (a).

SEC. 511. STUDIES ON FOREIGN ADVERSARY PARTICIPATION.

(a) IN GENERAL.—The Secretary of the Treasury, in consultation with the Commodity Futures Trading Commission and the Securities and Exchange Commission, shall, not later than 1 year after date of the enactment of this section, conduct a study and submit a report to the relevant congressional committees that—

(1) identifies any digital commodity registrants which are owned by governments of foreign adversaries;

(2) determines whether any governments of foreign adversaries are collecting trading data about United States persons in the digital commodity markets; and

(3) evaluates whether any proprietary intellectual property of digital commodity registrants is being misused or stolen by any governments of foreign adversaries.

(b) GAO STUDY AND REPORT.—

(1) IN GENERAL.—The Comptroller General shall, not later than 1 year after date of the enactment of this section, conduct a study and submit a report to the relevant congressional committees that—

(A) identifies any digital commodity registrants which are owned by governments of foreign adversaries;

(B) determines whether any governments of foreign adversaries are collecting trading data about United States persons in the digital commodity markets; and

(C) evaluates whether any proprietary intellectual property of digital commodity registrants is being misused or stolen by any governments of foreign adversaries.

(c) DEFINITIONS.—In this section:

(1) DIGITAL COMMODITY REGISTRANT.—The term ''digital commodity registrant'' means any person required to register as a digital commodity exchange, digital commodity broker, or digital commodity dealer under the Commodity Exchange Act.

(2) FOREIGN ADVERSARIES.—The term ''foreign adversaries'' means the foreign governments and foreign non-government persons determined by the Secretary of Commerce to be foreign adversaries under section 7.4(a) of title 15, Code of Federal Regulations.

(3) RELEVANT CONGRESSIONAL COMMITTEES.—The term ''relevant congressional committees'' means—

(A) the Committees on Financial Services and Agriculture of the House of Representatives; and

(B) the Committees on Banking, Housing, and Urban Affairs and Agriculture, Nutrition, and Forestry of the Senate.

SEC. 512. CONFORMING AMENDMENTS.

The GENIUS Act is amended—

(1) in section 2, by amending paragraph (7) to read as follows:

''(7) DIGITAL ASSET SERVICE PROVIDER.—The term 'digital asset service provider' means any entity registered or required to be registered with the Securities and Exchange Commission or the Commodity Futures Trading Commission.'';

(2) in section 4(a)—

(A) by amending paragraph (3) to read as follows:

''(3) MONTHLY CERTIFICATION; EXAMINATION OF REPORTS BY REGISTERED PUBLIC ACCOUNTING FIRM.—

''(A) IN GENERAL.—A permitted payment stablecoin issuer shall, each month, have the information disclosed in the previous month-end report required under paragraph (1)(C) examined by a registered public accounting firm and such examination shall be performed in accordance with standards for attestation engagements issued or adopted by the primary Federal payment stablecoin regulator or, in the case of a State qualified payment stablecoin issuer, the State payment stablecoin regulator.

''(B) CERTIFICATION.—Each month, the Chief Executive Officer and Chief Financial Officer of a permitted payment stablecoin issuer shall submit to, as applicable, the primary Federal payment stablecoin regulator or, in the case of a State qualified payment stablecoin issuer, the State payment stablecoin regulator, a certification that, based on such officers' knowledge, the previous monthly report required under paragraph (1)(C)—

''(i) does not contain any untrue statement of material fact or omit to state a material fact necessary in order to make the statements made, in light of the circumstances under which such statements were made, not misleading; and

''(ii) fairly presented in all material respects the information required under paragraph (1)(C) for the period presented in such report.

''(C) CRIMINAL PENALTY.—Any person who submits a certification required under subparagraph (B) knowing that such certification is false shall be subject to the same criminal penalties as those set forth under section 1350(c) of title 18, United States Code.

''(D) INTERNAL CONTROLS OVER PERMITTED PAYMENT STABLECOIN ISSUER'S REQUIREMENTS.—

''(i) IN GENERAL.—Management of a permitted payment stablecoin issuer shall establish and maintain an adequate internal control structure and procedures for the requirements under this paragraph and paragraphs (1) and (2) in accordance with a framework determined acceptable by the primary Federal payment stablecoin regulator or, in the case of a State qualified payment stablecoin issuer, the State payment stablecoin regulator.

''(ii) ATTESTATION REPORT.—A permitted payment stablecoin issuer shall obtain an annual attestation report by an independent registered public accounting firm attesting to management's assertions concerning the effectiveness of the internal control structure and procedures for compliance with the requirements described in this paragraph and paragraphs (1) and (2). Such attestation shall be made in accordance with standards for attestation engagements issued or adopted by the primary Federal payment stablecoin regulator or, in the case of a State qualified payment stablecoin issuer, the State payment stablecoin regulator.''; and

(B) by amending paragraph (12) to read as follows:

''(12) NON-FINANCIAL COMPANIES.—

''(A) PROHIBITION ON NON-FINANCIAL COMPANY OWNERSHIP.—It shall be unlawful for a company that derives a majority of its revenues from activities that are not financial activities to retain or acquire control of a nonbank entity that is—

''(i) a Federal qualified payment stablecoin issuer; or

''(ii) a State qualified payment stablecoin issuer.

''(B) FINANCIAL ACTIVITIES DEFINED.—

''(i) IN GENERAL.—In this paragraph, the term 'financial activities' means—

''(I) a financial activity, within the meaning of section 4(k) of the Bank Holding Company Act of 1956 (12 U.S.C. 1843(k));

''(II) issuing, redeeming, providing custodial or safekeeping services for, buying, selling, making a market in, or managing a reserve for payment stablecoins;

''(III) providing electronic wallet services for payment stablecoins; or

''(IV) an activity determined by the Board to be a financial activity pursuant to clause (ii).

''(ii) ESTABLISHING ADDITIONAL FINANCIAL ACTIVITIES.—Not later than 180 days after the date of enactment of the CLARITY Act of 2025, the Board, in consultation with the Secretary of the Treasury and the Comptroller, shall issue rules, consistent with the purposes of this Act, to establish—

''(I) a list of additional activities that are financial activities for purposes of clause (i), including applicable digital asset activities that are financial activities; and

''(II) a streamlined procedure for a nonbank entity to submit an activity to the Board for purposes of the Board determining whether such activity should be added to the list of additional activities that are financial activities for purposes of clause (i).''; and

(3) by adding at the end the following:

''SEC. 21. COMMODITY-BACKED PAYMENT STABLECOINS.

''(a) RULE OF CONSTRUCTION.—Nothing in this Act shall be construed to prohibit or limit a commodity-backed payment stablecoin issuer from issuing a commodity-backed payment stablecoin in accordance with regulations established by a State commodity-backed payment stablecoin regulator.

''(b) PRESERVATION OF FEDERAL AUTHORITY.—Nothing in this section shall be construed to alter or limit the jurisdiction of the Commodity Futures Trading Commission over any matter within the Commission's authority under applicable law.

''(c) DEFINITIONS.—For purposes of this section:

''(1) COMMODITY-BACKED PAYMENT STABLECOIN.—The term 'commodity-backed payment stablecoin' means a digital asset—

''(A) that is, or is designed to be, used as a means of payment or settlement;

''(B) that is denominated in a highly liquid, publicly traded physical commodity, such as gold;

''(C) the issuer of which is obligated to—

''(i) convert, redeem, or repurchase for a fixed amount of the denominated highly liquid, publicly traded physical commodity; and

''(ii) custody or cause to be custodied, for the benefit of the holders of the payment stablecoin, an amount of the physical commodity equal to or greater than the total amount of outstanding payment stablecoins, for the purpose of converting, redeeming, or repurchasing the digital asset; and

''(D) that is not—

''(i) a security issued by—

''(I) an investment company registered under section 8(a) of the Investment Company Act of 1940 (15 U.S.C. 80a–8(a)); or

''(II) a person that would be an investment company under the Investment Company Act of 1940 but for paragraphs (1) and (7) of section 3(c) of that Act (15 U.S.C. 80a-3(c));

''(ii) a deposit (as defined under section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813)), regardless of the technology used to record such deposit;

''(iii) an account (as defined in section 101 of the Federal Credit Union Act (12 U.S.C. 1752)), regardless of the technology used to record such account; or

''(iv) an interest or participation in a commodity pool (as defined in section 1a(10) of the Commodity Exchange Act (7 U.S.C. 1a)).

''(2) COMMODITY-BACKED PAYMENT STABLECOIN ISSUER.—The term 'commodity-backed payment stablecoin issuer' means—

''(A) an entity that issues a commodity-backed payment stablecoin; and

''(B) an entity that is approved to issue such commodity-backed payment stablecoins by a State commodity-backed payment stablecoin regulator.

''(3) PHYSICAL COMMODITY.—The term 'physical commodity' means any exempt commodity (as defined in section 1a(21) of the Commodity Exchange Act (7 U.S.C. 1a)) which can be physically delivered.

''(4) STATE COMMODITY-BACKED PAYMENT STABLECOIN REGULATOR.—The term 'State commodity-backed payment stablecoin regulator' means a State agency that has primary regulatory and supervisory authority over entities that issue commodity-backed payment stablecoins in such State.

''SEC. 22. PROTECTION OF SELF-CUSTODY.

''(a) IN GENERAL.—A United States individual shall retain the right to—

''(1) maintain a hardware wallet or software wallet for the purpose of facilitating the individual's own lawful custody of digital assets; and

''(2) engage in direct, peer-to-peer transactions in digital assets with another individual or entity for the individual's own lawful purposes using a hardware wallet or software wallet, if—

''(A) such other individual or entity is not a financial institution (as defined in section 5312 of title 31, United States Code); and

''(B) the transactions do not involve any property or interests in property that are blocked pursuant to, or are otherwise prohibited by, United States sanctions.

''(b) APPLICATION.—This section—

''(1) applies solely to personal use by individuals; and

''(2) does not apply to individuals acting in a custodial or fiduciary capacity for others.

''(c) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to limit the authority of the Secretary of the Treasury, the Securities and Exchange Commission, the Commodity Futures Trading Commission, or the primary Federal payment stablecoin regulators to carry out

any enforcement action or special measure authorized under applicable law, including—

''(1) the Bank Secrecy Act, section 9714 of the Combating Russian Money Laundering Act (31 U.S.C. 5318A note), and section 7213A of the Fentanyl Sanctions Act (21 U.S.C. 2313a); or

''(2) any other law relating to illicit finance, money laundering, terrorism financing, or United States sanctions.''.

The SPEAKER pro tempore. The bill shall be debatable for 1 hour, equally divided among and controlled by the chair and ranking minority member of the Committee on Agriculture or their respective designees, and the chair and ranking minority member of the Committee on Financial Services or their respective designees.

After 1 hour of debate, it shall be in order to consider the further amendment printed in part C of House Report 119–199, if offered by the Member designated in the report, which shall be considered read, shall be separately debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, and shall not be subject to a demand for a division of the question.

The gentleman from Pennsylvania (Mr. THOMPSON), the gentlewoman from Minnesota (Ms. CRAIG), the gentleman from Arkansas (Mr. HILL) and the gentlewoman from California (Ms. WATERS) each will control 15 minutes.

The Chair recognizes the gentleman from Arkansas.

GENERAL LEAVE

Mr. HILL of Arkansas. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on this bill in the RECORD.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arkansas?

There was no objection.

Mr. HILL of Arkansas. Mr. Speaker, I yield myself such time as I may consume.

I rise in strong support this morning of the CLARITY Act. We have been here before, Mr. Speaker. Just last year, we passed landmark legislation, FIT21, with an overwhelming bipartisan majority to apply strong Federal standards to digital asset markets.

For more than 5 years, our committee has heard from dozens and dozens of experts, held numerous roundtables and hearings with market participants of all sizes in all segments of the market to learn more about the emerging digital asset ecosystem.

We learned about the value proposition and relevant risks associated with digital assets and the use of blockchain technology. We have heard time and time again from market participants and regulators about the need for clear regulatory guardrails.

We have talked about the need to fill those regulatory gaps that have left millions participating in crypto markets vulnerable. In fact, Mr. Speaker, both President Biden in his Executive Order 14067, and President Trump in his Executive Order 14178, identified those market regulatory gaps, asking Congress to act to fill those gaps.

In 2022, we certainly witnessed consumer harm when the Financial Services Committee heard unprecedented testimony from an expert called in to clean up the failed digital asset crypto firm FTX and the mess it left behind. In his words, never had he seen such an utter failure in corporate controls.

In its wake, then-Chairwoman WATERS wisely stated: ''We need legislative action to ensure that digital assets entities cannot operate in the shadows outside of robust Federal oversight and clear rules of the road.''

If we needed actions then, we certainly need it now. We risk history repeating itself, and that is why we gather today on the House floor.

After years of bipartisan work and numerous iterations, this bill would apply rigorous rules to digital asset firms, prohibiting commingling of customer funds, and requiring capital recordkeeping and conflict of interest mitigation standards.

Importantly, the bill recognizes that decentralized finance, or DeFi, developers do not take custody of user assets nor do they control user assets. Therefore, we should not treat them in the same way that we treat centralized actors who do have custody and who do have control over assets.

It is important to note that in an Agriculture Committee hearing, the former general counsel of FTX USA himself testified: Had we the regulatory structure provided for in CLARITY applied to FTX, its story—and he goes on to say—would almost certainly have had a much different ending.

Let's ensure that we learn from the past, Mr. Speaker, the digital asset ecosystem is evolving at a remarkable pace, enabling real-time settlement of peer-to-peer transactions, initiating a renaissance in applied cryptography and laying the groundwork for the next generation of the internet.

The United States has long had the most innovative financial and technology sectors and the deepest and most liquid capital markets, but while other jurisdictions are building frameworks for the future of finance to be on-chain and digitally native, our great country, with those great characteristics, is lagging.

For too long our digital asset regime has been the worst of both worlds: regulation by enforcement, which has pushed good actors to leave the United States, and the regulatory gaps that I talked about identified in both President Biden and President Trump's executive orders that have left consumers unprotected from the bad actors.

Now, today, we have an opportunity to reverse course and reestablish the United States as the global hub for digital innovation. To do so, we must close the regulatory gaps with commonsense rules.

□ 0930

Mr. Speaker, the CLARITY Act does just that by leveraging the expertise of our two market regulators, the Securities and Exchange Commission and the Commodity Futures Trading Commission, to ensure wraparound oversight of digital asset markets, from initial sales, raising capital, to daily trading, it provides clarity for banks engaging in this ecosystem.

As we said in the last Congress, Mr. Speaker, these rules need to be fit for purpose for the digital ecosystem. All of us on this House floor know that the status quo is simply unacceptable. We all know American consumers and innovators deserve this clarity. They deserve better. They deserve rules of the road.

The choice before us is whether to lead in the financial markets of the future or watch the next FTX fail while we are left saying once again: Well, we have been here before.

Mr. Speaker, I urge all my colleagues to join me on both sides of the aisle and support the CLARITY Act. Let's fill these regulatory gaps with the proper Federal oversight. Let's create a competitive digital ecosystem. I support this bill, and I urge my colleagues to.

Mr. Speaker, I reserve the balance of my time.

Ms. WATERS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, crypto week has been going so well, hasn't it? Mr. Speaker, that is because bailing out billionaires is hard work.

I look at how hard Republicans worked to strip healthcare from 17 million Americans, shutter rural hospitals, and take food assistance from 12 million people just to hand the richest 1 percent of Americans a tax break they don't need. No one should be surprised that the Republicans' next order of business is a billion-dollar handout to the President himself.

In just 6 months, President Trump has enriched himself and his family to the tune of $1.2 billion, and that is just the beginning.

President Trump used to call crypto a scam. In 2021, Trump said: ''Bitcoin, it just seems like a scam . . . I don't like it because it is another currency competing against the dollar.''

Melania was actually the first to get involved in the crypto ecosystem. In January 2022, she announced an auction of her non-fungible token, or NFT, collection. Trump then followed suit in December 2022, launching his own NFT collection, ditching his concerns about crypto because he saw it as a way to pad his pockets.

During the campaign trail, Trump ramped up his crypto involvement. In September 2024, he and his family launched World Liberty Financial, a crypto trading platform. Days before the Inauguration, Trump launched his memecoin which he later used to offer access to the White House to the highest bidder, foreign or domestic.

His family's crypto empire hasn't stopped there. World Liberty Financial launched a stablecoin called USD1.

Shortly after that, the Abu Dhabi-backed investment firm, MGX, bought $2 billion worth of Trump's coin to make an investment in Binance. Trump's family has also launched a bitcoin mining operation and multiple crypto exchange-traded funds, or ETFs.

All of this comes at the same time that the Trump administration has taken away the independence of the financial regulators like the Securities and Exchange Commission.

He issued Executive Order 14255 which now requires all rules written by the financial regulators to be reviewed and approved by the White House budget office. This means this bill would hand over to the President the ability to write the rules he wants to advance his crypto operations.

Not only that, under the Trump administration, the SEC has said that memecoins, stablecoins, and bitcoin mining all do not fall under their oversight. Can my colleagues imagine that?

Do these assets sound familiar? Oh, yes, they do because these are all ventures that Trump and his family are pursuing now with no oversight by Wall Street's cop on the beat—that is the SEC.

Surely, each of my colleagues can see how this is a blatant conflict of interest. Democrats do. It is why I introduced the Stop Trump and Crypto Act to ban the President, Vice President, and all the Members of Congress from crypto corruption.

If we do not ban elected officials, including the President or Vice President, from this crypto corruption in H.R. 3633, each of us will be complicit. Yet, even if we included language to stop the crypto con, this bill, which should be called the calamity act, is bad public policy. That is plain and simple.

The bill would lead to increased investor harm, plant the seeds for the next financial crisis, and endanger our national security.

Just last week, the former chairman of the Commodity Futures Trading Commission warned that this bill would allow traditional companies, like Apple or Google, to evade securities laws. They could walk away from the disclosure, antifraud, liability, and corporate governance protections that investors have relied on for 90 years. The bill blocks our State regulators from protecting seniors against fraud in crypto.

Additionally, the calamity act does not address illicit finance and other crimes commonly seen in the crypto space. It does not provide nearly enough direction to agencies, which would be required to match the level of financial crimes and noncompliance seen in the industry. It also does not provide sufficient funds for Federal agencies to examine and enforce these laws.

Mr. Speaker, for all of these reasons, I strongly, strongly oppose this bill, and I reserve the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I include in the RECORD the CBO estimate for this bill.

ESTIMATED BUDGETARY EFFECTS OF H.R. 3633, THE CLARITY ACT OF 2025, AS POSTED ON THE WEBSITE OF THE HOUSE COMMITTEE ON RULES ON JULY 2, 2025

	By fiscal year, millions of dollars—												
	2025	2026	2027	2028	2029	2030	2031	2032	2033	2034	2035	2025–2030	2025–2035
INCREASES IN DIRECT SPENDING													
Estimated Budget Authority	*	2	2	1	1	1	1	1	1	1	1	7	12
Estimated Outlays	*	1	2	1	1	1	1	1	1	1	1	6	11
INCREASES OR DECREASES (−) IN REVENUES													
Estimated Revenues	*	*	*	*	1	−4	*	*	*	*	14	−3	11
NET INCREASE OR DECREASE (−) IN THE DEFICIT FROM CHANGES IN DIRECT SPENDING AND REVENUES													
Effect on the Deficit	*	1	2	1	*	5	1	1	1	1	−13	9	0

AA*= between −$500,000 and $500,000.
CBO has not completed an estimate of the effects of the bill on spending subject to appropriation.

Basis of estimate: For this estimate, CBO assumes that the legislation will be enacted in summer 2025.

Direct spending: The bill would require the Commodity Futures Trading Commission (CFTC) to share information that it collects from digital commodity exchanges with the Federal Deposit Insurance Corporation (FDIC), the Financial Stability Oversight Council (FSOC), the National Credit Union Administration (NCUA), and the Office of the Comptroller of the Currency (OCC), upon request. The bill also would require those agencies to regulate additional entities that are subject to federal anti-money-laundering rules and to issue regulations that set capital requirements for agreements that combine multiple financial transactions.

The expenditures of the FDIC, FSOC, NCUA, and OCC are classified in the budget as direct spending. Both the NCUA and the OCC collect fees from financial institutions to offset their operating costs; those fees are recorded in the budget as offsetting receipts (that is, as reductions in direct spending). After accounting for fees collected by the NCUA and OCC, CBO estimates that, on net, enacting H.R. 3633 would increase direct spending for those four agencies by $11 million over the 2025–2035 period.

Revenues: H.R. 3633 would require the CFTC to share information with the Federal Reserve upon request. The bill also would direct the Federal Reserve to regulate additional entities that are subject to federal anti-money-laundering regulations and to issue rules for the capital requirements described above. CBO estimates that those activities would cost the Federal Reserve $7 million over the 2025–2035 period. Costs incurred by the Federal Reserve reduce remittances, which are recorded in the budget as revenues. Changes in costs for the Federal Reserve banks have historically resulted in changes to remittances during the same year. However, since fiscal year 2023, the central bank has recorded a deferred asset to account for accrued net losses from expenses in excess of income. As a result, remittances largely have been suspended. In CBO's projections, remittances from the Federal Reserve will generally be suspended until 2030, and until they resume, most changes in costs incurred by the system will not be recorded as changes in remittances.

The FSOC is authorized to assess fees on bank holding companies and nonbank financial institutions; those fees are recorded in the budget as revenues. CBO estimates that under the bill the FSOC would collect $3 million in additional fees over the 2025–2035 period to cover operating costs.

Finally, section 315 would reduce the size of the Federal Reserve's surplus fund. CBO estimates that enacting that provision would increase remittances to the Treasury by $15 million in 2035.

CBO estimates that enacting H.R. 3633 would increase revenues by $11 million, on net, over the 2025–2035 period.

Spending subject to appropriation: In addition to effects on direct spending and revenues as noted in the table, the bill also contains provisions that would affect spending subject to appropriation. CBO has not estimated those effects.

Uncertainty: CBO did not estimate any budgetary effects arising from changes to the banking system or financial markets as a result of enacting H.R. 3633. Depending on their individual design and extent of adoption, virtual currencies could enhance the efficiency of the system, cause disruption, or reduce bank deposits. Those effects are uncertain and, given their potential range, CBO cannot currently estimate their direction or magnitude.

Increase in long-term net direct spending and deficits: CBO estimates that enacting H.R. 3633 would not increase net direct spending by more than $2.5 billion in any of the four consecutive 10-year periods beginning in 2036.

CBO estimates that enacting H.R. 3633 would not increase on-budget deficits by more than $5 billion in any of the four consecutive 10-year periods beginning in 2036.

Mandates: H.R. 3633 would impose private-sector and intergovernmental mandates as defined in the Unfunded Mandates Reform Act (UMRA). CBO estimates that the cost of the mandates would exceed the private- sector threshold but fall below the intergovernmental threshold established in UMRA ($206 million and $103 million in 2025, respectively, adjusted annually for inflation).

Private-Sector mandates: The bill would impose regulatory requirements on some entities involved in digital commodities and assets, such as large multinational businesses with market capitalizations in the hundreds of billions of dollars and with millions of U.S. consumers. Using publicly available information and information from industry sources, CBO estimates that the aggregate cost of the mandate would greatly exceed the private-sector threshold established in UMRA.

In addition, if federal financial regulators increase fees to offset the costs associated

with implementing the bill, H.R. 3633 would increase the cost of an existing mandate on private entities required to pay those assessments. CBO estimates that the annual cost of the mandate would be in the millions of dollars.

Intergovernmental mandates: The bill would expand existing preemptions of state laws governing the registration of digital assets as securities. Although it would limit the application of state laws, H.R. 3633 would impose no duty on states that would result in additional spending or loss of revenue.

PHILLIP L. SWAGEL,
Director, Congressional Budget Office.

Mr. HILL of Arkansas. Mr. Speaker, I yield 2 minutes to the gentleman from Wisconsin (Mr. STEIL).

Mr. Speaker, the gentleman is an essential leader in our committee and also the chairman of our Subcommittee on Digital Assets, Financial Technology, and Artificial Intelligence.

Mr. STEIL. Mr. Speaker, I thank Chairman HILL for all of his hard work on this.

Mr. Speaker, I rise in strong support of the CLARITY Act. I think two things are clear. First, the digital asset and blockchain technology are leading the next wave of financial innovation. We need to make sure that innovation is occurring here in the United States of America.

Second, under the previous administration, the United States failed to enact a regulatory framework that is aligned with the realities of the technology and adequately protects consumers.

Today, the House has an opportunity to meaningfully improve the status quo that for too long has been marred by uncertainty and regulatory enforcement. The CLARITY Act establishes a workable, forward-looking framework. The CLARITY Act provides and ensures that markets operate with transparency, accountability, and strong consumer protections.

Today, our laws leave digital asset developers guessing which regulator has jurisdiction and what compliance even looks like.

□ 0940

It is not only bad for business. It is bad for consumers and bad for U.S. competitiveness.

Without action, we will continue to see innovation move overseas to jurisdictions that are providing the legal clarity that we thus far in the United States have failed to deliver.

Mr. Speaker, what we want is innovation in developing, not occurring in boardrooms and law firms in the United States, but in basements and dorm rooms.

Ensuring the United States leads the Web3 revolution isn't a partisan issue. It is an American issue.

The CLARITY Act legislates in a thoughtful way in a rapidly evolving space. The CLARITY Act protects consumers and fosters innovation.

Today, we can lead not by accident but by design. Let's send a message that America intends to lead in the golden age of digital assets.

Mr. Speaker, I support the CLARITY Act, and I encourage my colleagues to vote ''yes.''

Ms. WATERS. Mr. Speaker, I yield 1 minute to the gentleman from Massachusetts (Mr. LYNCH), who is also the ranking member of the Subcommittee on Digital Assets, Financial Technology, and Artificial Intelligence.

Mr. LYNCH. Mr. Speaker, I thank the gentlewoman from California for her leadership on this issue.

I rise in strong opposition to H.R. 3633, the so-called CLARITY Act. I believe this misguided legislation will have devastating impacts on our financial stability, national security, and investor protection.

While my Republican friends claim that this bill will regulate crypto market structure, in reality, it eviscerates the longstanding history of investor protections that have made our markets the envy of the world.

Most importantly, this bill, this push for crypto, will not end well for the U.S. taxpayer. This bill will lead to the next financial crisis, and the largest crypto donors who wrote this bill will walk away unharmed because the worst aspect of this bill is that Republicans have repeatedly refused to include a single amendment preventing a Federal taxpayer bailout of the crypto industry.

That is what this bill does.

Additionally, this bill includes zero provisions to prevent the President, who has a $620-million conflict of interest, from continuing his ability to accept emoluments from foreign governments like Abu Dhabi.

Mr. Speaker, I urge my colleagues to vote ''no'' and protect the American taxpayer.

Mr. HILL of Arkansas. Mr. Speaker, I yield 2 minutes to the gentleman from Minnesota (Mr. EMMER), who is our majority whip and who has been an absolute, essential early focus policymaker in the digital asset space.

Mr. EMMER. Mr. Speaker, the United States stands at the forefront of the next digital renaissance, a transformative shift toward a decentralized peer-to-peer digital economy.

For many years, innovators and investors were forced to operate in a legal gray zone while agencies jostled for regulatory superiority over the digital asset ecosystem, leaving blockchain developers to pack up and move abroad.

The CLARITY Act fixes this by creating regulatory guardrails tailored to the unique attributes of blockchain technology while giving users and developers the confidence to engage and innovate in this ecosystem.

Gone are the days of arbitrary enforcement actions and regulatory turf wars that only hindered the development of this groundbreaking technology and drove capital overseas.

This bill gives market participants the confidence to build, invest, and grow right here in the United States of America.

We are proud to have the Securities Clarity Act included in this legislation. This provision provides market certainty for innovators and clear jurisdictional boundaries for regulators.

Subsequently, elements of the Blockchain Regulatory Certainty Act were included, clarifying, once and for all, that digital asset developers and service providers who do not custody consumer funds are not considered money transmitters.

Importantly, the CLARITY Act will help further decentralize our financial system so that Americans can forgo intermediaries and transact directly with each other.

Having this choice will fundamentally transform the digital economy and unlock new opportunities for innovators, investors, and consumers around the globe.

Mr. Speaker, I thank Chairman HILL and Chairman THOMPSON for their leadership and for working with us to include our two bills in the CLARITY Act.

The United States has the opportunity to lead and deliver on President Trump's promise to make America the crypto capital of the world. We cannot and will not fail.

Ms. WATERS. Mr. Speaker, I yield 1 minute to the gentleman from Illinois (Mr. CASTEN), who is also the vice ranking member of the Financial Services Committee.

Mr. CASTEN. Mr. Speaker, the only thing you need to know about the CLARITY Act is that it is designed to destroy U.S. capital markets.

U.S. capital markets are the envy of the world because investors like putting their money in them. They are the envy of the world because we provide robust investor protections when people put their money in them, because of the Securities and Exchange Commission. Yet, the CLARITY Act would allow companies to raise up to $200 million over 4 years without any disclosure and without any transparency, just by tokenizing their security.

Let's be clear. Putting a security on the blockchain doesn't make investors safe. It might make money for the crypto industry. Mr. Speaker, I know you all like that. It might make it possible for the companies to temporarily raise more money from dumb investors because they don't get that protection. If we stop protecting investors, then why would investors put their money in the stock market? They will abandon the U.S. to go to places with a better risk-reward.

I understand we have a lot of fraud and grift in the White House. I understand Republicans are big fans of fraud and grift in the White House, but we don't need any more.

Let's protect Americans' hard-earned savings. Let's protect markets and not just make crypto bros richer. I urge a resounding hell no.

Mr. HILL of Arkansas. Mr. Speaker, I yield 1 minute to the gentleman from Michigan (Mr. HUIZENGA), who is the

vice chairman of our full committee and who is a longtime advocate for reform in the digital markets.

Mr. HUIZENGA. Mr. Speaker, I appreciate those remarks from the chair.

The digital asset ecosystem currently operates in a fragmented regulatory environment that lends itself to significant challenges for both businesses and, more importantly, investors.

The ambiguity in classifying a digital asset, either as a security or a commodity, has led to confusion, legal uncertainty, and, ultimately, consumer harm.

American innovation is a critical element in job creation and economic opportunity here in the United States. Congress must look to preserve this competitive advantage and not let it leave our shores.

By passing a comprehensive market structure framework, responsible actors will now have greater certainty and consumers greater protection from bad actors.

This bill establishes a regulatory framework for digital assets that aligns with our existing financial markets while accounting for the unique characteristics of digital assets.

Mr. Speaker, our markets are the envy of the world. American innovation is a critical element of job creation and economic opportunity here in the United States. Congress must not cede its responsibility.

Mr. Speaker, I urge all of my colleagues to support this important legislation.

Ms. WATERS. Mr. Speaker, I yield 1¼ minutes to the gentleman from California (Mr. SHERMAN), who is also the ranking member of the Subcommittee on Capital Markets.

Mr. SHERMAN. Mr. Speaker, I submitted many amendments to Rules, as did other Democrats. They made only one in order. I will not be offering it because in the absence of the other amendments, it is really not useful.

This bill is an attack on working families, which is why the AFL–CIO says no, and they are scoring it.

This bill prohibits Congress Members from sponsoring cryptocurrencies because of the obvious corruption and conflict of interest, but it allows the President to create electronic Monopoly money.

Who is buying? Abu Dhabi is buying $2 billion of Trump stablecoin while the Chinese interests behind TikTok are buying $300 million worth of Trump coin, and that is just what we know about. There is a lot we don't know about because cryptocurrency literally means hidden money.

It allows for bailouts under section 13(3) of the Federal Reserve Act. Jay Powell won't do it, but the next guy will.

Congress won't stop him because crypto spends more in super-PAC than any other industry by far, five times more than the combination of Big Oil and Big Pharma.

It allows for the purchase of bitcoin and Trump coin, and Trump has announced that he is going to do just that with our tax dollars going into his crypto.

The SPEAKER pro tempore. The time of the gentleman has expired.

Ms. WATERS. Mr. Speaker, I yield an additional 15 seconds to the gentleman from California.

Mr. SHERMAN. Finally, this creates the perfect financial tool for drug dealers and for tax evaders because every time a billionaire cheats on his taxes, a member of the Freedom Caucus earns his wings.

Mr. HILL of Arkansas. Mr. Speaker, I yield 1 minute to the gentleman from Ohio (Mr. DAVIDSON), who is the chairman of our Subcommittee on National Security, Illicit Finance, and International Financial Institutions and a longtime policy advocate for reform in our digital markets.

□ 0950

Mr. DAVIDSON. Mr. Speaker, the ability to move payment or digital tokens that represent other assets person to person, without a third party or intermediary, across any space digitally at the speed of light is part of the reason this industry was created.

What do those tokens represent? Either securities, commodities or real world assets? We have needed a bright-line test since this market began to decide who regulates them.

I introduced the first piece of legislation on this back in 2018 called the Token Taxonomy Act. Think of the harm that could have been prevented if we had that bright-line test all this time.

The other essential component is self-custody, the ability to control your own assets. You can't go person to person if you have to go through an intermediary without a permission.

It does that. It does just what we need it to do, just like cash. We finally have market structure in place with this bill. I hope the Senate delivers the same structure soon, and we get the certainty the markets need.

Ms. WATERS. Mr. Speaker, I yield 1 minute to the gentlewoman from New York (Ms. VELÁZQUEZ), who is also the ranking member of the Small Business Committee.

Ms. VELÁZQUEZ. Mr. Speaker, I rise today in strong opposition to this bill. It is ironic we are debating a bill called the CLARITY Act when it offers no clarity on one of the biggest issues in crypto, the blatant conflicts of interest inside our own government.

Since returning to office, President Trump has turned the Presidency into a crypto cash machine. It is now estimated that crypto makes up the majority of Donald Trump's net worth.

Foreign investors, some under Federal investigation, are pouring millions into these ventures, buying access, influence, and favorable treatment.

So I ask: What are we doing here?

With this bill, not only are we continuing to allow President Trump to issue his cryptocurrency, but we are allowing him and his cronies to be in charge of the regulators overseeing that venture and compromising the stability of capital markets in our country.

Mr. Speaker, I urge my colleagues to vote ''no.''

Mr. HILL of Arkansas. Mr. Speaker, may I inquire as to the time remaining.

The SPEAKER pro tempore. The gentleman from Arkansas has 2½ minutes remaining.

Mr. HILL of Arkansas. Mr. Speaker, I yield 1 minute to the gentleman from Nebraska (Mr. FLOOD), the chair of our Subcommittee on Housing and Insurance.

Mr. FLOOD. Mr. Speaker, I will be brief. It has been a longer wait than expected, but I am excited that the CLARITY Act has finally made it to the House floor for debate.

The CLARITY Act is not just about digital assets like bitcoin. This bill will usher in a new age of blockchain innovation that will go well beyond the tokens that we know well today.

Chris Dixon's book titled: ''Read Write Own'' talks about a future where blockchain technology enables a new generation of the internet which he terms ''Web 3.0.''

Technologies like NFTs can be used as tickets to events, identity verification tools, and serve other real-world uses that will change our digital economy.

I urge my colleagues to see the bigger picture. The vote today is not just about cryptocurrency as we know it. It is about enabling the next generation of innovation enabled by blockchain.

This is a good, bipartisan product that builds on years of work from Chairman HILL, Subcommittee Chairman STEIL, the Financial Services Committee, and the Agriculture Committee.

Mr. Speaker, I urge my colleagues to support the bill.

Ms. WATERS. Mr. Speaker, I yield 1 minute to the gentleman from Illinois (Mr. FOSTER), who is also the ranking member of the Subcommittee on Financial Institutions.

Mr. FOSTER. Mr. Speaker, I rise in opposition to the CLARITY Act, which claims to bring digital assets under a regulatory umbrella but fails in two major areas.

First, it fails because it has no KYC—know your customer—requirements for self-hosted wallets. It allows anonymous trading on DeFi exchanges and the dark web, which means there is no way to prevent wash trading, front running, corruption, ransomware, extortion and kidnapping payoffs, and all the parade of horribles that unregulated crypto has unleashed upon the world.

This legislation simply applies a patina of regulation while codifying loopholes that leave large parts of the industry, including the President's own meme coin schemes, completely unregulated.

Secondly, the CLARITY Act also lacks the basic investor protections present in the securities laws. For example, firms are not required to serve the best interests of their investors or to separate critical market functions and many other basic protections.

Now, I am not ideologically opposed to crypto, and both of these flaws are fixable, but in CLARITY they have not been fixed.

Mr. Speaker, I oppose this bill, and I urge my colleagues to vote ''no.''

Mr. HILL of Arkansas. Mr. Speaker, I yield 1 minute to the gentleman from Wisconsin (Mr. FITZGERALD).

Mr. FITZGERALD. Mr. Speaker, I rise today in support of the bipartisan CLARITY Act, commonsense legislation that finally gives digital asset markets the regulatory certainty they need to grow responsibly right here in the United States.

For too long, innovators have been stuck in a regulatory gray zone caught between agencies and overlapping authority and subject to enforcement instead of clear rules.

The uncertainty has driven jobs, investment, and innovation offshore while leaving American consumers exposed.

The CLARITY Act fixes this. It establishes clear, functional rules for digital assets, drawing a bright line between the SEC and the CFTC and creating strong, enforceable protections for consumers.

It ensures the digital assets developers and consumer-facing firms play by the rules, disclosing who owns what, segregating customer funds, and avoiding conflicts of interest.

It is long overdue, and I commend the chairmen for bringing this bill to the floor today.

Ms. WATERS. Mr. Speaker, I yield 1 minute to the gentlewoman from Massachusetts (Ms. PRESSLEY), an unapologetic leader for justice.

Ms. PRESSLEY. Mr. Speaker, I rise in vigorous opposition to the CLARITY Act. This bill gives a green light to self-enriching crypto schemes where officials at the highest levels of power, including in the White House, have generated hundreds of billions of dollars in personal profit.

We need legislation that stops financial abuse, not encourages it, especially during a time when the SEC has dropped enforcement actions against major crypto firms and undermined investor safety.

Across our country, millions of working families are battling rising costs, our elders are targeted by financial scams, and investors are trying to recover from volatile markets. Republicans are ignoring all of that to prioritize the crypto industry's wish list.

To be clear, the people deserve crypto legislation that is fair, transparent, and accountable, not a bill that opens the floodgates to conflicts of interest and weakens investor protections.

The CLARITY Act fails that test. Republicans need some clarity all right: moral and legislative. I agree with Ranking Member WATERS that this is really the calamity act.

Mr. Speaker, I urge my colleagues to oppose this bill.

Mr. HILL of Arkansas. Mr. Speaker, I yield myself the balance of my time.

We are here today, Mr. Speaker, because of the exceptional work by the House Financial Services Committee over a 5-year period, including under the leadership of then-Chairwoman MAXINE WATERS and former Chairman Patrick McHenry, gathering feedback from experts, looking at market participants, analyzing the markets, and talking to regulators. That is how we got the CLARITY Act on the floor today. It is built on the backs of that hard work.

This Chamber passed a similar bill in the last Congress with exceedingly strong, bipartisan support. Since then, the CLARITY Act has only been further refined and strengthened in terms of legal certainty and consumer protection.

This bill, Mr. Speaker, as we have demonstrated over that period of time, would prevent consumer harm like FTX.

Mr. Speaker, I support the bill. I urge my colleagues to support the bill, and I yield back the balance of my time.

Ms. WATERS. Mr. Speaker, may I inquire as to the time remaining.

The SPEAKER pro tempore. The gentlewoman from California has 2 minutes remaining.

Ms. WATERS. Mr. Speaker, I yield 1 minute to the gentlewoman from California (Ms. KAMLAGER-DOVE).

□ 1000

Ms. KAMLAGER-DOVE. Mr. Speaker, I rise in opposition to the so-called CLARITY Act.

Let me be clear: I support the growth of digital assets, blockchain innovation, and the promise that crypto holds for expanding financial access and economic justice, but this bill is not clarity. It is confusion cloaked in legislation. It picks winners and losers, and the biggest winner is the President of the United States.

Why is that office exempt from all of the rules? It undermines the SEC's ability to protect consumers and fast-tracks deregulatory loopholes without addressing core issues like transparency, fraud prevention, or equity and access. The SEC doesn't even like this bill.

We need comprehensive, thoughtful regulation, not rushed frameworks driven by the people who will gain the most who ignore the voices of everyday investors, builders, and communities left behind.

Crypto deserves rules that are smart, fair, and future-facing. The CLARITY Act is none of these things because, if it was, Republicans would have had the votes much earlier.

Mr. Speaker, I urge my colleagues to vote ''no.''

Ms. WATERS. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, let me reiterate: A vote for H.R. 3633 is a vote to give Trump the pen to write the rules that would put more money into his family's pockets. A vote for H.R. 3633 is a vote for increased investor harm. A vote for H.R. 3633 is a vote to plant the seeds for the next financial crisis. A vote for H.R. 3633 is a vote to endanger our national security.

That is why I am voting ''no'' on H.R. 3633, the calamity act, and I urge all Members to not give a vote to Trump to own crypto and not to give a vote to the Vice President. They are the only two elected officials in this bill who can own crypto businesses.

I want to see all of the Cabinet, the President, the Vice President, and all Members of Congress unable to own crypto businesses.

Mr. Speaker, I urge all Members to vote no, no, no, on this bill, and I yield back the balance of my time.

The SPEAKER pro tempore. All time for Financial Services debate has expired.

The gentleman from Pennsylvania (Mr. THOMPSON) and the gentlewoman from Minnesota (Ms. CRAIG) each will control 15 minutes.

The Chair recognizes the gentleman from Pennsylvania.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am incredibly proud today to stand before you to share my support for the CLARITY Act. This is legislation that we have been working on in the Agriculture Committee for 7 years. This is an improvement over the legislation that fulfilled the very same purpose of what we are addressing today that passed last Congress with over 300 votes, including 71 Democrats, and it was a great bipartisan bill. This is an improvement on that bill.

The CLARITY Act is about three related ideas: certainty, protection, and innovation. I will talk about why each of these ideas is important.

First, the CLARITY Act provides regulatory certainty for all corners of the digital asset ecosystem, including issuers; exchanges; intermediaries; builders; software developers; and, most importantly, users of digital assets.

This regulatory certainty means that all parts of the ecosystem can engage with digital assets with confidence. It promotes healthy markets by establishing commonsense requirements to protect consumers. Those are all built on the existing requirements in the financial services markets.

Secondly, the CLARITY Act protects good actors from government overreach. By establishing clear rules, we limit the government's ability to subjectively enforce vague statutes. These protections are important to those entities like exchanges, brokers, and dealers, who we require to register. Yet, in many cases, they are more important to entities which Congress is not seeking to register.

Third, and most importantly, the CLARITY Act supports innovation across the economy, not just the crypto economy.

At the House Agriculture Committee, we heard testimony from numerous stakeholders about innovative ways in which developers and entrepreneurs are leveraging blockchain to build projects and services using blockchains and digital assets.

The certainty and protections provided through the CLARITY Act will lead to the development of a new generation of services, tools, and systems. I am excited for that future to happen here in the United States of America.

Mr. Speaker, Congress has a historic opportunity here today to act. With the CLARITY Act, we can pass legislation that protects consumers and ensures that the United States remains at the forefront of technological innovation. These are not mutually exclusive goals. They are mutually reinforcing goals.

By supporting the CLARITY Act, we can create a safer, more transparent, and more accessible environment for digital assets.

Mr. Speaker, I urge all of my colleagues to support this bill, and I reserve the balance of my time.

Ms. CRAIG. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today on behalf of nearly 44 million American consumers who have invested in, traded, or used digital assets. That is one in five Americans. The public interest in these markets is already here, and it is not going away.

Under the status quo, there is a gap in regulation for the digital commodity asset market. Our work here today could begin to provide the protections that American investors are accustomed to in traditional financial markets that are regulated by the CFTC.

Regardless of whether Congress acts, these markets will continue to grow. The only question is whether we will begin the hard work of developing regulation or refuse to begin.

The CLARITY Act would put consumer protections in place for the first time for this industry. Consumers will finally be protected by the same sort of guardrails that protect investors in other sectors of the economy: segregation of customer deposits, consumer disclosures, mandatory recordkeeping, and examination by regulators. We do not want another FTX.

The 2022 collapse of the world's third largest cryptocurrency exchange wiped out an estimated $8 billion to $10 billion in value, leaving American consumers holding the bag. The CLARITY Act would have largely mitigated or avoided this crisis entirely.

Former Biden administration CFTC Chairman Russ Behnam testified yesterday before the Senate Agriculture Committee:

'' . . . inaction will only result in greater risk to our financial markets and investors, through lack of market transparency, fraud, market manipulation, corruption, and conflicts of interest.''

That is lack of action.

Mr. Speaker, let me address the elephant in the room: the First Family's involvement with digital assets and personally profiting from them.

It has rightfully raised questions of impropriety and alarmed government ethics watchdogs. The First Family's personal financial involvement in other sectors, such as telecoms, should ring alarm bells, as well, loud and clear as it comes to ethics in our country.

There is a time and place for holding the powerful accountable, and that must happen. We should address executive branch corruption independently, and it should apply to all sectors.

Today, we must focus on regulation and protections for consumers because, today, one in five Americans, and growing, lack those protections and lack any guardrails. It is our job to start putting them in place.

Is this bill perfect? No. Can it be improved upon? Absolutely, and I encourage my Senate colleagues to keep working on those outstanding issues.

This bill deserves our support, and I urge my colleagues to vote ''yes.''

Mr. Speaker, I reserve the balance of my time.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I was remiss with my opening comments not to thank my Agriculture Committee partner, Ranking Member ANGIE CRAIG, for her leadership and for working together with me on this issue, but also our Financial Services Committee Chair FRENCH HILL; my good friend, DON DAVIS; WHIP EMMER; BRYAN STEIL, and so many more. There was just such a strong bipartisan leadership partner team.

Mr. Speaker, I yield 1½ minutes to the gentleman from Iowa (Mr. FEENSTRA), a member of the House Agriculture Committee.

Mr. FEENSTRA. Mr. Speaker, I thank Chairman THOMPSON for bringing this bill forward. It is an amazing bill.

Mr. Speaker, I rise today in strong support of the CLARITY Act. The increasing adoption of digital assets and the use of blockchain technologies can grow our economy and provide American families with a new opportunity to grow wealth.

□ 1010

However, under President Biden, digital assets were attacked, which crushed innovation and created uncertainty for businesses.

Fortunately, President Trump is working to make America the crypto capital of the world. We want digital asset innovation to happen in America and crypto jobs to be created in America without ceding ground to foreign countries.

That is why we must pass the CLARITY Act, to spur innovation and support economic growth by providing clear rules of the road for digital assets in the United States.

This bill establishes clear roles for the SEC and CFTC, which prevents agencies from overreach and confusion. It provides consumer protections through greater transparency and accountability in the marketplace. It fosters innovation by providing a pathway for digital asset firms to operate legally and with confidence, encouraging digital asset innovation to remain in the U.S. The CLARITY Act unlocks economic growth, global competitiveness, and financial opportunity for all.

Mr. Speaker, I urge my colleagues to support this bill and put America first in the race to lead the global digital asset marketplace for our country.

Ms. CRAIG. Mr. Speaker, I yield 3 minutes to the gentleman from North Carolina (Mr. DAVIS), my distinguished colleague and the ranking member of the House Agriculture Subcommittee on Commodity Markets, Digital Assets, and Rural Development.

Mr. DAVIS of North Carolina. Mr. Speaker, I rise in support of H.R. 3633, known as the CLARITY Act.

I am honored to serve as a co-lead on this legislation, alongside Chairman THOMPSON, Chairman HILL, Ranking Member CRAIG, Subcommittee Chair JOHNSON, and so many others who came to the table in good faith to get this done.

Let me also take a moment to thank the staff, both the majority and the minority staff. They put in so many hours working on this. I know I was up late one night. It was probably midnight. I really commend the team. They helped work on a very complex issue here that is before us and to help shape a bipartisan product that reflects the seriousness of the moment.

This bill reflects compromise, collaboration, and months of work to craft the regulatory framework that meets the moment, because the truth is, we can't afford to fall behind.

Right now we are at a crossroad. The digital asset industry is growing, evolving, changing the way people around the world engage with financial markets and emerging technologies. Without a clear regulatory structure in place, we are seeing innovation move overseas not because our talent isn't here, but because the rules aren't here.

The CLARITY Act provides us with an opportunity then to change that, to lead, to establish thoughtful and balanced guardrails that support innovation, protect consumers, and foster confidence in our markets.

You see disclosures and reports dealing with so many provisions, antifraud, manipulation. You can't commingle funds.

But let me be clear: The bill isn't perfect. I have been vocal about that, too.

I remain concerned about the absence of meaningful conflict-of-interest provisions dealing with the executive branch. It doesn't matter who occupies the White House. The bottom line is,

whoever is in the White House, we need clear standards that ensure public trust is never compromised.

I also remain concerned about adequate resources for the CFTC. Yes, I acknowledge this bill provides more flexibility to deal with hiring, but we also need to see more resources because we are asking the CFTC to take on a major role here.

The Speaker pro tempore. The time of the gentleman has expired.

Ms. CRAIG. Mr. Speaker, I yield an additional 30 seconds to the gentleman from North Carolina.

Mr. DAVIS of North Carolina. In the 118th Congress, we passed FIT21 with overwhelming bipartisan support. The CLARITY Act builds on this work. Let's pass the CLARITY Act and send a strong message to the American people and the world that the United States will lead in building a forward-looking digital economy.

Mr. Speaker, I urge my colleagues to support this legislation.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I yield 1 minute to the gentleman from Iowa (Mr. NUNN), a member of the Commodity Markets, Digital Assets, and Rural Development Subcommittee.

Mr. NUNN of Iowa. Mr. Speaker, I thank Chairman THOMPSON, as well as Ranking Member CRAIG for leading a truly bipartisan opportunity to help America deliver as a crypto capital for the entire planet.

As a member of both the Agriculture Committee and the Financial Services Committee, I have been able to see this issue on both sides: commodities versus securities, CFTC versus the SEC.

In my home State of rural Iowa, we know commodities: corn, soybeans, hogs. The CFTC does this very well. In downtown Des Moines and on the Main Streets of hometowns across Iowa, our banks handle stocks and bonds, securities, those handled by the SEC.

That level of clarity works, but when it comes to digital assets, the lines become blurred, confused, and overly burdensome. That regulatory uncertainty doesn't just cost dollars. It costs jobs, innovation, and America's global leadership.

The CLARITY Act is exactly what America needs now to drive toward the future to ensure the next generation of financial internet technology and blockchain success is built in America, that our innovators come from the U.S., and that we have a future going forward. Mr. Speaker, I endorse the CLARITY Act.

Ms. CRAIG. Mr. Speaker, I yield 2 minutes to the gentlewoman from Michigan (Ms. MCDONALD RIVET), my distinguished colleague who serves on the House Agriculture Subcommittee on Commodity Markets, Digital Assets, and Rural Development.

Ms. MCDONALD RIVET. Mr. Speaker, I rise today to voice support for the CLARITY Act. While there is still work to be done, it is an important step in providing crucial and clear regulatory framework to the crypto industry.

Let's break it down. Today, one in six U.S. adults, 17 percent of the population, are invested in or use cryptocurrency. That is 55 million Americans. There is more than $3 trillion invested in the industry. It is dangerous and irresponsible that a market of this size and scope is currently operating without a clear regulatory framework. For consumers, innovators, and the stability of our Nation's economy, the CLARITY Act is an important first step forward.

It protects consumers and equips assigned agencies with the appropriate authority to provide efficient and thorough oversight over digital asset markets. It also provides desperately needed certainty so that businesses can grow and evolve.

I will be clear: If the CLARITY Act had been in place, the FTX market crash that caused their customers to lose $8 billion would not have happened.

This bill strengthens our national security by giving regulators the tools they need to track cross-border transactions and stop digital assets from being used to evade sanctions or fund our adversaries.

The bill is not perfect, and it does not resolve every issue. Like many of my colleagues, I am deeply concerned about the Trump family's potential conflicts of interest in using crypto to profit from the Office of the Presidency. That is why I voted for amendments to impose guardrails to stop elected officials from improperly profiting off trades, and I will continue to push strongly for solutions to this problem.

However, we cannot let the perfect be the enemy of the good. We stand at a critical moment where market structure is critical for our consumers, economy, and security, and the CLARITY Act moves us meaningfully forward.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I will expand for a minute on the important protections included in the CLARITY Act. The CLARITY Act includes strong protections for the developers of software. Sections 309 and 409 make it clear that neither the CFTC nor the SEC have the authority to require a person to register just because that person is developing, publishing, or distributing software. This is a critical protection, rooted in our First Amendment, that should be read expansively by the commissions.

□ 1020

The creation of new decentralized finance protocols is also an important development that the CLARITY Act seeks to protect. Both the CFTC and the SEC must carefully examine and understand DeFi, which is why we are requiring both Commissions to undertake a robust study on the unique benefits and risks of DeFi.

Through the CLARITY Act, Congress is making an unambiguous statement that DeFi is different, and it should be treated differently from the centralized custodial intermediaries. Protecting this emerging technology is an essential purpose of the CLARITY Act.

Now, Mr. Speaker, I yield 1 minute to the gentleman from Indiana (Mr. MESSMER), a member of the Committee on Agriculture and a member of the Commodity Markets, Digital Assets, and Rural Development Subcommittee.

Mr. MESSMER. Mr. Speaker, I rise today in support of the CLARITY Act.

America's innovative ecosystem has made our Nation an investment magnet and development hub, but thus far, our regulatory system has failed the digital assets industry. Under the current framework, fraudsters go unpunished, consumers remain unprotected, and the best and brightest minds in the industry have picked up and left for other countries.

The CLARITY Act finally establishes distinct jurisdictional boundaries between the Securities and Exchange Commission and the Commodity Futures Trading Commission, while also creating guardrails to incentivize and safeguard investment.

The bill not only expands opportunities for Wall Street and Silicon Valley, but it also provides great opportunities for Hoosier farmers by opening a new frontier for rural innovators and expanding access to capital in agricultural communities.

The digital asset markets are in dire need of regulation, and the CLARITY Act is the solution. I look forward to witnessing a new era of economic prosperity and technological advancement that this bill will bring to America.

Ms. CRAIG. Mr. Speaker, I yield 2 minutes to the gentleman from Alabama (Mr. FIGURES), my distinguished colleague.

Mr. FIGURES. Mr. Speaker, I have listened to many of my colleagues' views on the issues before us today. I respect them all, and I respect their views. I don't disagree with many of the points that my colleagues who are in opposition are making, especially as it relates to executive conflict of interest concerns.

Here is what I know. I know that the United States is lagging behind the rest of the world in regulating this industry. I know that the regulations in the CLARITY Act are better than none at all in this industry. I know that consumers will be better protected the day after this goes into effect than they were the day before.

Now, is there more work to be done? Absolutely. We should do that. We cannot allow subjective ideas of perfection to override what are objectively steps in the right direction.

The CLARITY Act is one act that I support, and this is an important first step. As we move forward, however, we must continue to make the necessary investments so that everyone can participate. Those are investments in technical training and education so that people have the knowledge and

skills to actually understand and participate in a digital economy.

This is also a time to commit ourselves to ensuring that we do not leave underserved and rural communities behind. I represent a district that is geographically predominantly rural. We still struggle with issues like not having access to the internet in many counties that I represent.

You cannot participate in or leverage the benefits of a digital economy if you can't get on the internet. That is a fact. We must stand up for these communities and bring broadband and internet expansion resources to every community that we possibly can.

Let's keep moving forward. Let's keep making sure that we are bringing everyone along with us.

Mr. Speaker, I urge my colleagues to support this bill.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I thank the gentleman who just spoke for his remarks concerning the need for high-speed broadband. My pledge, as the chairman of the Committee on Agriculture, is that when we are back in September, we will have farm bill 2.0, which includes rural economic development and rural broadband. We have to get that done.

I yield to the gentleman from Georgia (Mr. CARTER), a cosponsor of the CLARITY Act, for 1 minute.

Mr. CARTER of Georgia. Mr. Speaker, I rise today to voice my support for the CLARITY Act.

The CLARITY Act is a bill that will make clear laws to help better regulate digital assets and blockchain technology. This bill will ensure that future innovations in the financial world will happen here in the United States and not in foreign countries.

We cannot allow our adversaries, such as China, to control the digital economy. The CLARITY Act will help modernize financial laws to make innovation possible and clear up many opaque and sometimes contradictory laws.

This bill delivers on President Trump's commitment to make the United States the crypto capital of the world, and I am proud that we are paving the path toward American dominance in the digital future.

Today, I again would like to give my support for the CLARITY Act, as it cements America as a hub for the world's financial innovation.

Ms. CRAIG. Mr. Speaker, I yield 2 minutes to the gentleman from New Jersey (Mr. GOTTHEIMER), my distinguished colleague who serves on the House Financial Services Committee.

Mr. GOTTHEIMER. Mr. Speaker, I thank Chairwoman CRAIG for her excellent leadership.

Mr. Speaker, I rise in support of the bipartisan CLARITY Act. This bill was made possible through a bipartisan effort that I was very proud to help lead with Chairman HILL and Congressman STEIL. It is an important one because one-fifth of Americans own crypto. My State, New Jersey, proportionally ranks second nationwide in ownership of cryptocurrency.

While cryptocurrency has tremendous economic potential, we desperately need rules of the road to protect consumers, ensure the success of American entrepreneurs, and ensure that America leads the way, not other nations around the world, but that America leads the way in this growing space.

The CLARITY Act takes commonsense steps to make crypto work for everyday users, including measures to stop snake oil salesmen, fraudsters, and hucksters, and puts the Trump family's coins under regulation.

This legislation supports American-led innovation by encouraging developers and entrepreneurs to build, invest, and create jobs in our country.

Finally, this bill gives clarity to the SEC's and CFTC's roles in crypto to work together efficiently and to crack down on scammers and criminal activity. After years of uncertainty, it finally says who should oversee what, so that people in this space understand the direction it is going in and understand who is going to oversee what, so that consumers can be protected. I can't say that enough.

Do we want this to continue to be the Wild West with uncertainty, or do we want to have clear rules of the road to protect consumers? Do we want to do something or nothing? Is it perfect? As you have heard today, no, it is not perfect. Few pieces of legislation we bring here are.

The questions are: Will it do good? Will it make sure that we look after people who are involved in this space? Will it ensure that America succeeds and grows? Those are the questions.

To do nothing means that we will ensure that Trump's coin has no oversight. Why would we want that? We will ensure that no consumer is protected if we do nothing. We want to protect American consumers. That is our job. This legislation does that.

Mr. Speaker, I urge my colleagues to support this critical commonsense, bipartisan legislation.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, may I ask how much time is remaining.

The SPEAKER pro tempore (Mr. MURPHY). The gentleman from Pennsylvania has 5½ minutes remaining. The gentlewoman from Minnesota has 2½ minutes remaining.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I yield 1 minute to the gentleman from Tennessee (Mr. ROSE), the vice chair of the Commodity Markets, Digital Assets, and Rural Development Subcommittee and also a member of the House Financial Services Committee. He is a very busy man.

Mr. ROSE. Mr. Speaker, I rise in support of the CLARITY Act, which provides long-overdue updates aimed at protecting the future of digital assets, encouraging growth, and protecting American consumers.

The days of stifling this emerging industry through litigation and rogue rulemaking must end. The Securities and Exchange Commission under former Chair Gary Gensler went far outside the agency's statutory mandate in many ways, especially with cryptocurrencies.

The CLARITY Act will strengthen transparency and accountability for consumers. It will require developers to provide accurate disclosures with details about the asset project's operation, ownership, and structure. It requires brokers and dealers to disclose important information to investors, to hold their own funds separate from their customers' funds, and to report any conflicts of interest.

This bill ensures Americans know where they are putting their money, and it gets government out of the way of growth and innovation.

Let's pass the CLARITY Act for the good of this country.

□ 1030

Ms. CRAIG. Mr. Speaker, I have no other speakers at the moment. I continue to reserve the balance of my time.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I yield 3 minutes to the gentleman from South Dakota (Mr. JOHNSON), the chairman of the Commodity Markets, Digital Assets, and Rural Development Subcommittee.

Mr. JOHNSON of South Dakota. Mr. Speaker, it has been such an honor to work with G.T., FRENCH, ANGIE, DON, BRIAN, and so many others on something that is real.

It is sometimes hard to separate the real from the fake in this town. That is certainly true for digital assets, NFTs, and memecoins. These generate tremendous attention, and they can pull our gaze away from what really matters.

Here is what matters: Blockchain technology, Web3, will transform every single industry in the same way that the internet has transformed every single industry over the last 30 years. That transformation will happen much faster than people realize if we can keep government from continuing to screw this up.

This is not about buying bubble gum with bitcoin. This is about blockchain innovation happening here rather than overseas, about more liquid capital markets, about small businesses creating new services and products, about removing friction from transactions for every single American, and about protecting consumers so the debacles like the FTX meltdown never happen again.

We tend to overstate the impact of what we do in this town. Everything is historic, even when it is not. However, this is different. This is huge.

Before I came to Congress, I was in the broadband industry, and the Telecommunications Act of 1996 provided the regulatory certainty needed to launch the internet era. That was a watershed victory for this country. Mr. Speaker, we are here again.

The regulatory certainty provided by this incredible bipartisan work product will launch a golden age of innovation and the golden age of digital assets. Today, now, this moment, this is a watershed victory for this country. Today we do something real.

Ms. CRAIG. Mr. Speaker, I am prepared to close, and I reserve the balance of my time.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I yield myself the balance of my time for the purpose of closing.

Mr. Speaker, I thank the gentleman from South Dakota for his remarks and, quite frankly, I couldn't agree more. I also thank, again, my Agriculture partner, Ranking Member ANGIE CRAIG with the Agriculture Committee, and DON DAVIS and our leadership and all those who have the foresight to see that this is about the future. Well, it is about today because, you know, companies are struggling with this, but more importantly, it is about the future of both the financial sector and the technological sector.

A vote for the CLARITY Act is a vote for America's future and America's leadership. I urge all my colleagues to vote ''yes'' on the CLARITY Act. I yield back the balance of my time.

Ms. CRAIG. Mr. Speaker, I yield myself the balance of my time to close.

Mr. Speaker, I, too, would like to thank the gentleman from Pennsylvania, Chairman G.T. THOMPSON, and his team for working on this consumer protection legislation in a bipartisan manner.

I believe bipartisan legislation is always preferable to partisan legislation. It is stronger. It is harder to undo when it has broad support and leadership changes overnight.

I heard my chairman talk about the farm bill. I regret that it wasn't a bipartisan path through reconciliation for farm bill provisions, but I am optimistic that we can work together in many other areas.

While I wait to see what the gentleman has in store for us for farm programs left behind, I, too, agree that rural development is incredibly important, Mr. Speaker. I hope that the bipartisanship shown through the CLARITY Act process can act as a reminder that we accomplish more and we go further when we work together.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate on the bill has expired.

The Chair understands that amendment No. 1 will not be offered.

The SPEAKER pro tempore. Pursuant to the rule, the previous question is ordered on the bill, as amended.

The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. CRAIG. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

GUIDING AND ESTABLISHING NATIONAL INNOVATION FOR U.S. STABLECOINS ACT

Mr. HILL of Arkansas. Mr. Speaker, pursuant to House Resolution 580, I call up the bill (S. 1582) to provide for the regulation of payment stablecoins, and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Pursuant to House Resolution 580, the bill is considered read.

The text of the bill is as follows:

S. 1582

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Guiding and Establishing National Innovation for U.S. Stablecoins Act'' or the ''GENIUS Act''.

SEC. 2. DEFINITIONS.

In this Act:

(1) APPROPRIATE FEDERAL BANKING AGENCY.—The term ''appropriate Federal banking agency'' has the meaning given that term in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813).

(2) BANK SECRECY ACT.—The term ''Bank Secrecy Act'' means—

(A) section 21 of the Federal Deposit Insurance Act (12 U.S.C. 1829b);

(B) chapter 2 of title I of Public Law 91–508 (12 U.S.C. 1951 et seq.); and

(C) subchapter II of chapter 53 of title 31, United States Code.

(3) BOARD.—The term ''Board'' means the Board of Governors of the Federal Reserve System.

(4) COMPTROLLER.—The term ''Comptroller'' means the Office of the Comptroller of the Currency.

(5) CORPORATION.—The term ''Corporation'' means the Federal Deposit Insurance Corporation.

(6) DIGITAL ASSET.—The term ''digital asset'' means any digital representation of value that is recorded on a cryptographically secured distributed ledger.

(7) DIGITAL ASSET SERVICE PROVIDER.—The term ''digital asset service provider''—

(A) means a person that, for compensation or profit, engages in the business in the United States (including on behalf of customers or users in the United States) of—

(i) exchanging digital assets for monetary value;

(ii) exchanging digital assets for other digital assets;

(iii) transferring digital assets to a third party;

(iv) acting as a digital asset custodian; or

(v) participating in financial services relating to digital asset issuance; and

(B) does not include—

(i) a distributed ledger protocol;

(ii) developing, operating, or engaging in the business of developing distributed ledger protocols or self-custodial software interfaces;

(iii) an immutable and self-custodial software interface;

(iv) developing, operating, or engaging in the business of validating transactions or operating a distributed ledger; or

(v) participating in a liquidity pool or other similar mechanism for the provisioning of liquidity for peer-to-peer transactions.

(8) DISTRIBUTED LEDGER.—The term ''distributed ledger'' means technology in which data is shared across a network that creates a public digital ledger of verified transactions or information among network participants and cryptography is used to link the data to maintain the integrity of the public ledger and execute other functions.

(9) DISTRIBUTED LEDGER PROTOCOL.—The term ''distributed ledger protocol'' means publicly available and accessible executable software deployed to a distributed ledger, including smart contracts or networks of smart contracts.

(10) FEDERAL BRANCH.—The term ''Federal branch'' has the meaning given that term in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813).

(11) FEDERAL QUALIFIED PAYMENT STABLECOIN ISSUER.—The term ''Federal qualified payment stablecoin issuer'' means—

(A) a nonbank entity, other than a State qualified payment stablecoin issuer, approved by the Comptroller, pursuant to section 5, to issue payment stablecoins;

(B) an uninsured national bank—

(i) that is chartered by the Comptroller, pursuant to title LXII of the Revised Statutes; and

(ii) that is approved by the Comptroller, pursuant to section 5, to issue payment stablecoins; and

(C) a Federal branch that is approved by the Comptroller, pursuant to section 5, to issue payment stablecoins.

(12) FOREIGN PAYMENT STABLECOIN ISSUER.—The term ''foreign payment stablecoin issuer'' means an issuer of a payment stablecoin that is—

(A) organized under the laws of or domiciled in a foreign country, a territory of the United States, Puerto Rico, Guam, American Samoa, or the Virgin Islands; and

(B) not a permitted payment stablecoin issuer.

(13) INSTITUTION-AFFILIATED PARTY.—With respect to a permitted payment stablecoin issuer, the term ''institution-affiliated party'' means any director, officer, employee, or controlling stockholder of the permitted payment stablecoin issuer.

(14) INSURED CREDIT UNION.—The term ''insured credit union'' has the meaning given that term in section 101 of the Federal Credit Union Act (12 U.S.C. 1752).

(15) INSURED DEPOSITORY INSTITUTION.—The term ''insured depository institution'' means—

(A) an insured depository institution, as defined in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813); and

(B) an insured credit union.

(16) LAWFUL ORDER.—The term ''lawful order'' means any final and valid writ, process, order, rule, decree, command, or other requirement issued or promulgated under Federal law, issued by a court of competent jurisdiction or by an authorized Federal agency pursuant to its statutory authority, that—

(A) requires a person to seize, freeze, burn, or prevent the transfer of payment stablecoins issued by the person;

(B) specifies the payment stablecoins or accounts subject to blocking with reasonable particularity; and

(C) is subject to judicial or administrative review or appeal as provided by law.

(17) MONETARY VALUE.—The term ''monetary value'' means a national currency or deposit (as defined in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813)) denominated in a national currency.

(18) MONEY.—The term ''money''—

(A) means a medium of exchange currently authorized or adopted by a domestic or foreign government; and

(B) includes a monetary unit of account established by an intergovernmental organization or by agreement between 2 or more countries.

(19) NATIONAL CURRENCY.—The term ''national currency'' means each of the following:

(A) A Federal Reserve note (as the term is used in the first undesignated paragraph of section 16 of the Federal Reserve Act (12 U.S.C. 411)).

(B) Money standing to the credit of an account with a Federal Reserve Bank.

(C) Money issued by a foreign central bank.

(D) Money issued by an intergovernmental organization pursuant to an agreement by 2 or more governments.

(20) NONBANK ENTITY.—The term ''nonbank entity'' means a person that is not a depository institution or subsidiary of a depository institution.

(21) OFFER.—The term ''offer'' means to make available for purchase, sale, or exchange.

(22) PAYMENT STABLECOIN.—The term ''payment stablecoin''—

(A) means a digital asset—

(i) that is, or is designed to be, used as a means of payment or settlement; and

(ii) the issuer of which—

(I) is obligated to convert, redeem, or repurchase for a fixed amount of monetary value, not including a digital asset denominated in a fixed amount of monetary value; and

(II) represents that such issuer will maintain, or create the reasonable expectation that it will maintain, a stable value relative to the value of a fixed amount of monetary value; and

(B) does not include a digital asset that—

(i) is a national currency;

(ii) is a deposit (as defined in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813)), including a deposit recorded using distributed ledger technology; or

(iii) is a security, as defined in section 2 of the Securities Act of 1933 (15 U.S.C. 77b), section 3 of the Securities Exchange Act of 1934 (15 U.S.C. 78c), or section 2 of the Investment Company Act of 1940 (15 U.S.C. 80a–2), except that, for the avoidance of doubt, no bond, note, evidence of indebtedness, or investment contract that was issued by a permitted payment stablecoin issuer shall qualify as a security solely by virtue of its satisfying the conditions described in subparagraph (A), consistent with section 17 of this Act.

(23) PERMITTED PAYMENT STABLECOIN ISSUER.—The term ''permitted payment stablecoin issuer'' means a person formed in the United States that is—

(A) a subsidiary of an insured depository institution that has been approved to issue payment stablecoins under section 5;

(B) a Federal qualified payment stablecoin issuer; or

(C) a State qualified payment stablecoin issuer.

(24) PERSON.—The term ''person'' means an individual, partnership, company, corporation, association, trust, estate, cooperative organization, or other business entity, incorporated or unincorporated.

(25) PRIMARY FEDERAL PAYMENT STABLECOIN REGULATOR.—The term ''primary Federal payment stablecoin regulator'' means—

(A) with respect to a subsidiary of an insured depository institution (other than an insured credit union), the appropriate Federal banking agency of such insured depository institution;

(B) with respect to an insured credit union or a subsidiary of an insured credit union, the National Credit Union Administration;

(C) with respect to a State chartered depository institution not specified under subparagraph (A), the Corporation, the Comptroller, or the Board; and

(D) with respect to a Federal qualified payment stablecoin issuer, the Comptroller.

(26) REGISTERED PUBLIC ACCOUNTING FIRM.—The term ''registered public accounting firm'' has the meaning given that term under section 2 of the Sarbanes-Oxley Act of 2002 (15 U.S.C. 7201).

(27) STABLECOIN CERTIFICATION REVIEW COMMITTEE.—The term ''Stablecoin Certification Review Committee'' means the committee of that name and having the functions as provided in this Act—

(A) of which—

(i) the Secretary of the Treasury shall serve as Chair; and

(ii) the Chair of the Board (or the Vice Chair for Supervision, as delegated by the Chair of the Board), and the Chair of the Corporation shall serve as members; and

(B) which, unless otherwise specified in this Act, shall act by ⅔ vote of its members at any meeting called by the Chair or by unanimous written consent.

(28) STATE.—The term ''State'' means each of the several States of the United States, the District of Columbia, and each territory of the United States.

(29) STATE CHARTERED DEPOSITORY INSTITUTION.—The term ''State chartered depository institution'' has the meaning given the term ''State depository institution'' in section 3(c) of the Federal Deposit Insurance Act (12 U.S.C. 1813(c)).

(30) STATE PAYMENT STABLECOIN REGULATOR.—The term ''State payment stablecoin regulator'' means a State agency that has primary regulatory and supervisory authority in such State over entities that issue payment stablecoins.

(31) STATE QUALIFIED PAYMENT STABLECOIN ISSUER.—The term ''State qualified payment stablecoin issuer'' means an entity that—

(A) is legally established under the laws of a State and approved to issue payment stablecoins by a State payment stablecoin regulator; and

(B) is not an uninsured national bank chartered by the Comptroller pursuant to title LXII of the Revised Statutes, a Federal branch, an insured depository institution, or a subsidiary of such national bank, Federal branch, or insured depository institution.

(32) SUBSIDIARY.—The term ''subsidiary'' has the meaning given that term in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813).

(33) SUBSIDIARY OF AN INSURED CREDIT UNION.—With respect to an insured credit union, the term ''subsidiary of an insured credit union'' means—

(A) an organization providing services to the insured credit union that are associated with the routine operations of credit unions, as described in section 107(7)(I) of the Federal Credit Union Act (12 U.S.C. 1757(7)(I));

(B) a credit union service organization, as such term is used under part 712 of title 12, Code of Federal Regulations, with respect to which the insured credit union has an ownership interest or to which the insured credit union has extended a loan; and

(C) a subsidiary of a State chartered insured credit union authorized under State law.

SEC. 3. ISSUANCE AND TREATMENT OF PAYMENT STABLECOINS.

(a) LIMITATION ON ISSUERS.—It shall be unlawful for any person other than a permitted payment stablecoin issuer to issue a payment stablecoin in the United States.

(b) PROHIBITION ON OFFERS OR SALES.—

(1) IN GENERAL.—Except as provided in subsection (c) and section 18, beginning on the date that is 3 years after the date of enactment of this Act, it shall be unlawful for a digital asset service provider to offer or sell a payment stablecoin to a person in the United States, unless the payment stablecoin is issued by a permitted payment stablecoin issuer.

(2) FOREIGN PAYMENT STABLECOIN ISSUERS.—It shall be unlawful for any digital asset service provider to offer, sell, or otherwise make available in the United States a payment stablecoin issued by a foreign payment stablecoin issuer unless the foreign payment stablecoin issuer has the technological capability to comply, and will comply, with the terms of any lawful order and any reciprocal arrangement pursuant to section 18.

(c) LIMITED SAFE HARBORS.—

(1) IN GENERAL.—The Secretary of the Treasury may issue regulations providing safe harbors from subsection (a) that are—

(A) consistent with the purposes of the Act;

(B) limited in scope; and

(C) apply to a de minimis volume of transactions, as determined by the Secretary of the Treasury.

(2) UNUSUAL AND EXIGENT CIRCUMSTANCES.—

(A) IN GENERAL.—If the Secretary of the Treasury determines that unusual and exigent circumstances exist, the Secretary may provide limited safe harbors from subsection (a).

(B) JUSTIFICATION.—Prior to issuing a limited safe harbor under this paragraph, the Secretary of the Treasury shall submit to the chairs and ranking members of the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives a justification for the determination of the unusual and exigent circumstances, which may be contained in a classified annex, as applicable.

(d) RULEMAKING.—Consistent with section 13, the Secretary of the Treasury shall issue regulations to implement this section, including regulations to define terms.

(e) EXTRATERRITORIAL EFFECT.—This section is intended to have extraterritorial effect if conduct involves the offer or sale of a payment stablecoin to a person located in the United States.

(f) PENALTY FOR VIOLATION.—

(1) IN GENERAL.—Whoever knowingly participates in a violation of subsection (a) shall be fined not more than $1,000,000 for each such violation, imprisoned for not more than 5 years, or both.

(2) REFERRAL TO ATTORNEY GENERAL.—If a primary Federal payment stablecoin regulator has reason to believe that any person has knowingly violated subsection (a), the primary Federal payment stablecoin regulator may refer the matter to the Attorney General.

(g) TREATMENT.—A payment stablecoin that is not issued by a permitted payment stablecoin issuer shall not be—

(1) treated as cash or as a cash equivalent for accounting purposes;

(2) eligible as cash or as a cash equivalent margin and collateral for futures commission merchants, derivative clearing organizations, broker-dealers, registered clearing agencies, and swap dealers; or

(3) acceptable as a settlement asset to facilitate wholesale payments between banking organizations or by a payment infrastructure to facilitate exchange and settlement among banking organizations.

(h) RULES OF CONSTRUCTION.—

(1) EXEMPT TRANSACTIONS.—This section shall not apply to—

(A) the direct transfer of digital assets between 2 individuals acting on their own behalf and for their own lawful purposes, without the involvement of an intermediary;

(B) to any transaction involving the receipt of digital assets by an individual between an account owned by the individual in the United States and an account owned by the individual abroad that are offered by the same parent company; or

(C) to any transaction by means of a software or hardware wallet that facilitates an individual's own custody of digital assets.

(2) TREASURY AUTHORITY.—Nothing in this Act shall alter the existing authority of the Secretary of the Treasury to block, restrict, or limit transactions involving payment stablecoins that reference or are denominated in United States dollars that are subject to the jurisdiction of the United States.

SEC. 4. REQUIREMENTS FOR ISSUING PAYMENT STABLECOINS.

(a) STANDARDS FOR THE ISSUANCE OF PAYMENT STABLECOINS.—

(1) IN GENERAL.—A permitted payment stablecoin issuer shall—

(A) maintain identifiable reserves backing the outstanding payment stablecoins of the permitted payment stablecoin issuer on an at least 1 to 1 basis, with reserves comprising—

(i) United States coins and currency (including Federal Reserve notes) or money standing to the credit of an account with a Federal Reserve Bank;

(ii) funds held as demand deposits (or other deposits that may be withdrawn upon request at any time) or insured shares at an insured depository institution (including any foreign branches or agents, including correspondent banks, of an insured depository institution), subject to limitations established by the Corporation and the National Credit Union Administration, as applicable, to address safety and soundness risks of such insured depository institution;

(iii) Treasury bills, notes, or bonds—

(I) with a remaining maturity of 93 days or less; or

(II) issued with a maturity of 93 days or less;

(iv) money received under repurchase agreements, with the permitted payment stablecoin issuer acting as a seller of securities and with an overnight maturity, that are backed by Treasury bills with a maturity of 93 days or less;

(v) reverse repurchase agreements, with the permitted payment stablecoin issuer acting as a purchaser of securities and with an overnight maturity, that are collateralized by Treasury notes, bills, or bonds on an overnight basis, subject to overcollateralization in line with standard market terms, that are—

(I) tri-party;

(II) centrally cleared through a clearing agency registered with the Securities and Exchange Commission; or

(III) bilateral with a counterparty that the issuer has determined to be adequately creditworthy even in the event of severe market stress;

(vi) securities issued by an investment company registered under section 8(a) of the Investment Company Act of 1940 (15 U.S.C. 80a–8(a)), or other registered Government money market fund, and that are invested solely in underlying assets described in clauses (i) through (v);

(vii) any other similarly liquid Federal Government-issued asset approved by the primary Federal payment stablecoin regulator, in consultation with the State payment stablecoin regulator, if applicable, of the permitted payment stablecoin issuer; or

(viii) any reserve described in clause (i) through (iii) or clause (vi) through (vii) in tokenized form, provided that such reserves comply with all applicable laws and regulations;

(B) publicly disclose the issuer's redemption policy, which shall—

(i) establish clear and conspicuous procedures for timely redemption of outstanding payment stablecoins, provided that any discretionary limitations on timely redemptions can only be imposed by a State qualified payment stablecoin regulator, the Corporation, the Comptroller, or the Board, consistent with section 7; and

(ii) publicly, clearly, and conspicuously disclose in plain language all fees associated with purchasing or redeeming the payment stablecoins, provided that such fees can only be changed upon not less than 7 days' prior notice to consumers; and

(C) publish the monthly composition of the issuer's reserves on the website of the issuer, containing—

(i) the total number of outstanding payment stablecoins issued by the issuer; and

(ii) the amount and composition of the reserves described in subparagraph (A), including the average tenor and geographic location of custody of each category of reserve instruments.

(2) PROHIBITION ON REHYPOTHECATION.—Reserves required under paragraph (1)(A) may not be pledged, rehypothecated, or reused by the permitted payment stablecoin issuer, either directly or indirectly, except for the purpose of—

(A) satisfying margin obligations in connection with investments in permitted reserves under clauses (iv) and (v) of paragraph (1)(A);

(B) satisfying obligations associated with the use, receipt, or provision of standard custodial services; or

(C) creating liquidity to meet reasonable expectations of requests to redeem payment stablecoins, such that reserves in the form of Treasury bills may be sold as purchased securities for repurchase agreements with a maturity of 93 days or less, provided that either—

(i) the repurchase agreements are cleared by a clearing agency registered with the Securities and Exchange Commission; or

(ii) the permitted payment stablecoin issuer receives the prior approval of its primary Federal payment stablecoin regulator or State payment stablecoin regulator, as applicable.

(3) MONTHLY CERTIFICATION; EXAMINATION OF REPORTS BY REGISTERED PUBLIC ACCOUNTING FIRM.—

(A) IN GENERAL.—A permitted payment stablecoin issuer shall, each month, have the information disclosed in the previous month-end report required under paragraph (1)(D) examined by a registered public accounting firm.

(B) CERTIFICATION.—Each month, the Chief Executive Officer and Chief Financial Officer of a permitted payment stablecoin issuer shall submit a certification as to the accuracy of the monthly report to, as applicable—

(i) the primary Federal payment stablecoin regulator of the permitted payment stablecoin issuer; or

(ii) the State payment stablecoin regulator of the permitted payment stablecoin issuer.

(C) CRIMINAL PENALTY.—Any person who submits a certification required under subparagraph (B) knowing that such certification is false shall be subject to the same criminal penalties as those set forth under section 1350(c) of title 18, United States Code.

(4) CAPITAL, LIQUIDITY, AND RISK MANAGEMENT REQUIREMENTS.—

(A) IN GENERAL.—The primary Federal payment stablecoin regulators shall, or in the case of a State qualified payment stablecoin issuer, the State payment stablecoin regulator shall, consistent with section 13, issue regulations implementing—

(i) capital requirements applicable to permitted payment stablecoin issuers that—

(I) are tailored to the business model and risk profile of permitted payment stablecoin issuers;

(II) do not exceed requirements that are sufficient to ensure the ongoing operations of permitted payment stablecoin issuers; and

(III) in the case of the primary Federal payment stablecoin regulators, if the primary Federal payment stablecoin regulators determine that a capital buffer is necessary to ensure the ongoing operations of permitted payment stablecoin issuers, may include capital buffers that are tailored to the business model and risk profile of permitted payment stablecoin issuers;

(ii) the liquidity standard under paragraph (1)(A);

(iii) reserve asset diversification, including deposit concentration at banking institutions, and interest rate risk management standards applicable to permitted payment stablecoin issuers that—

(I) are tailored to the business model and risk profile of permitted payment stablecoin issuers; and

(II) do not exceed standards that are sufficient to ensure the ongoing operations of permitted payment stablecoin issuers; and

(iv) appropriate operational, compliance, and information technology risk management principles-based requirements and standards, including Bank Secrecy Act and sanctions compliance standards, that—

(I) are tailored to the business model and risk profile of permitted payment stablecoin issuers; and

(II) are consistent with applicable law.

(B) RULE OF CONSTRUCTION.—Nothing in this paragraph shall be construed to limit—

(i) the authority of the primary Federal payment stablecoin regulators, in prescribing standards under this paragraph, to tailor or differentiate among issuers on an individual basis or by category, taking into consideration the capital structure, business model risk profile, complexity, financial activities (including financial activities of subsidiaries), size, and any other risk-related factors of permitted payment stablecoin issuers that a primary Federal payment stablecoin regulator determines appropriate, provided that such tailoring or differentiation occurs without respect to whether a permitted payment stablecoin issuer is regulated by a State payment stablecoin regulator; or

(ii) any supervisory, regulatory, or enforcement authority of a primary Federal payment stablecoin regulator to further the safe and sound operation of an institution for which the primary Federal payment stablecoin regulator is the appropriate regulator.

(C) APPLICABILITY OF EXISTING CAPITAL STANDARDS.—

(i) DEFINITION.—In this subparagraph, the term ''depository institution holding company'' has the meaning given that term under section 171(a)(3) of the Financial Stability Act of 2010 (12 U.S.C. 5371(a)(3)).

(ii) APPLICABILITY OF FINANCIAL STABILITY ACT.—With respect to the promulgation of rules under subparagraph (A) and clauses (iii) and (iv) of this subparagraph, section 171 of the Financial Stability Act of 2010 (12 U.S.C. 5371) shall not apply.

(iii) RULES RELATING TO LEVERAGE CAPITAL REQUIREMENTS OR RISK-BASED CAPITAL REQUIREMENTS.—Any rule issued by an appropriate Federal banking agency that imposes, on a consolidated basis, a leverage capital requirement or risk-based capital requirement with respect to an insured depository

institution or depository institution holding company shall provide that, for purposes of such leverage capital requirement or risk-based capital requirement, any insured depository institution or depository institution holding company that includes, on a consolidated basis, a permitted payment stablecoin issuer, shall not be required to hold, with respect to such permitted payment stablecoin issuer and its assets and operations, any amount of regulatory capital in excess of the capital that such permitted payment stablecoin issuer must maintain under the capital requirements issued pursuant to subparagraph (A)(i).

(iv) MODIFICATIONS.—Not later than the earlier of the rulemaking deadline under section 13 or the date on which the Federal payment stablecoin regulators issue regulations to carry out this section, each appropriate Federal banking agency shall amend or otherwise modify any regulation of the appropriate Federal banking agency described in clause (iii) so that such regulation, as amended or otherwise modified, complies with clause (iii) of this subparagraph.

(5) TREATMENT UNDER THE BANK SECRECY ACT AND SANCTIONS LAWS.—

(A) IN GENERAL.—A permitted payment stablecoin issuer shall be treated as a financial institution for purposes of the Bank Secrecy Act, and as such, shall be subject to all Federal laws applicable to a financial institution located in the United States relating to economic sanctions, prevention of money laundering, customer identification, and due diligence, including—

(i) maintenance of an effective anti-money laundering program, which shall include appropriate risk assessments and designation of an officer to supervise the program;

(ii) retention of appropriate records;

(iii) monitoring and reporting of any suspicious transaction relevant to a possible violation of law or regulation;

(iv) technical capabilities, policies, and procedures to block, freeze, and reject specific or impermissible transactions that violate Federal or State laws, rules, or regulations;

(v) maintenance of an effective customer identification program, including identification and verification of account holders with the permitted payment stablecoin issuer, high-value transactions, and appropriate enhanced due diligence; and

(vi) maintenance of an effective economic sanctions compliance program, including verification of sanctions lists, consistent with Federal law.

(B) RULEMAKING.—The Secretary of the Treasury shall adopt rules, tailored to the size and complexity of permitted payment stablecoin issuers, to implement subparagraph (A).

(C) RESERVATION OF AUTHORITY.—Nothing in this Act shall restrict the authority of the Secretary of the Treasury to implement, administer, and enforce the provisions of subchapter II of chapter 53 of title 31, United States Code.

(6) COORDINATION WITH PERMITTED PAYMENT STABLECOIN ISSUERS WITH RESPECT TO BLOCKING OF PROPERTY AND TECHNOLOGICAL CAPABILITIES TO COMPLY WITH LAWFUL ORDERS.—

(A) IN GENERAL.—The Secretary of the Treasury—

(i) shall, to the best of the Secretary's ability, coordinate with a permitted payment stablecoin issuer before taking any action to block and prohibit transactions in property and interests in property of a foreign person to ensure that the permitted payment stablecoin issuer is able to effectively block a payment stablecoin of the foreign person upon issuance of the payment stablecoin; and

(ii) is not required to notify any permitted payment stablecoin issuer of any intended action described in clause (i) prior to taking such action.

(B) COMPLIANCE WITH LAWFUL ORDERS.—A permitted payment stablecoin issuer may issue payment stablecoins only if the issuer has the technological capability to comply, and will comply, with the terms of any lawful order.

(C) REPORT REQUIRED.—Not later than 1 year after the date of enactment of this Act, the Attorney General and the Secretary of the Treasury shall submit to the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives a report, which may include a classified annex if applicable, on the coordination with permitted payment stablecoin issuers required under subparagraph (A).

(D) RULE OF CONSTRUCTION.—Nothing in this paragraph shall be construed to alter or affect the authority of State payment stablecoin regulators with respect to the offer of foreign-issued digital assets that are issued within a foreign jurisdiction.

(7) LIMITATION ON PAYMENT STABLECOIN ACTIVITIES.—

(A) IN GENERAL.—A permitted payment stablecoin issuer may only—

(i) issue payment stablecoins;

(ii) redeem payment stablecoins;

(iii) manage related reserves, including purchasing, selling, and holding reserve assets or providing custodial services for reserve assets, consistent with State and Federal law;

(iv) provide custodial or safekeeping services for payment stablecoins, required reserves, or private keys of payment stablecoins, consistent with this Act; and

(v) undertake other activities that directly support any of the activities described in clauses (i) through (iv).

(B) RULE OF CONSTRUCTION.—Nothing in subparagraph (A) shall limit a permitted payment stablecoin issuer from engaging in payment stablecoin activities or digital asset service provider activities specified by this Act, and activities incidental thereto, that are authorized by the primary Federal payment stablecoin regulator or the State payment stablecoin regulator, as applicable, consistent with all other Federal and State laws, provided that the claims of payment stablecoin holders rank senior to any potential claims of non-stablecoin creditors with respect to the reserve assets, consistent with section 11.

(8) PROHIBITION ON TYING.—

(A) IN GENERAL.—A permitted payment stablecoin issuer may not provide services to a customer on the condition that the customer obtain an additional paid product or service from the permitted payment stablecoin issuer, or any of its subsidiaries, or agree to not obtain an additional product or service from a competitor.

(B) REGULATIONS.—The Board may issue such regulations as are necessary to carry out this paragraph, and, in consultation with other relevant primary Federal payment stablecoin regulators, may by regulation or order, permit such exceptions to subparagraph (A) as the Board considers will not be contrary to the purpose of this Act.

(9) PROHIBITION ON THE USE OF DECEPTIVE NAMES.—

(A) IN GENERAL.—A permitted payment stablecoin issuer may not—

(i) use any combination of terms relating to the United States Government, including ''United States'', ''United States Government'', and ''USG'' in the name of a payment stablecoin; or

(ii) market a payment stablecoin in such a way that a reasonable person would perceive the payment stablecoin to be—

(I) legal tender, as described in section 5103 of title 31, United States Code;

(II) issued by the United States; or

(III) guaranteed or approved by the Government of the United States.

(B) PEGGED STABLECOINS.—Abbreviations directly relating to the currency to which a payment stablecoin is pegged, such as ''USD'', are not subject to the prohibitions in subparagraph (A).

(10) AUDITS AND REPORTS.—

(A) ANNUAL FINANCIAL STATEMENT.—

(i) IN GENERAL.—A permitted payment stablecoin issuer with more than $50,000,000,000 in consolidated total outstanding issuance, that is not subject to the reporting requirements under section 13(a) or 15(d) of the Securities and Exchange Act of 1934 (15 U.S.C. 78m, 78o(d)), shall prepare, in accordance with generally accepted accounting principles, an annual financial statement, which shall include the disclosure of any related party transactions, as defined by such generally accepted accounting principles.

(ii) AUDITOR.—A registered public accounting firm shall perform an audit of the annual financial statements described in clause (i).

(iii) STANDARDS.—An audit described in clause (ii) shall be conducted in accordance with all applicable auditing standards established by the Public Company Accounting Oversight Board, including those relating to auditor independence, internal controls, and related party transactions.

(iv) RULE OF CONSTRUCTION.—Nothing in this subparagraph shall be construed to limit, alter, or expand the jurisdiction of the Public Company Accounting Oversight Board over permitted payment stablecoin issuers or registered public accounting firms.

(B) PUBLIC DISCLOSURE AND SUBMISSION TO FEDERAL REGULATORS.—Each permitted payment stablecoin issuer required to prepare an audited annual financial statement under subparagraph (A) shall—

(i) make such audited financial statements publicly available on the website of the permitted payment stablecoin issuer; and

(ii) submit such audited financial statements annually to their primary Federal payment stablecoin regulator.

(C) CONSULTATION.—The primary Federal payment stablecoin regulators may consult with the Public Company Accounting Oversight Board to determine best practices for determining audit oversight and to detect fraud, material misstatements, and other financial misrepresentations that could mislead permitted payment stablecoin holders.

(11) PROHIBITION ON INTEREST.—No permitted payment stablecoin issuer or foreign payment stablecoin issuer shall pay the holder of any payment stablecoin any form of interest or yield (whether in cash, tokens, or other consideration) solely in connection with the holding, use, or retention of such payment stablecoin.

(12) NON-FINANCIAL SERVICES PUBLIC COMPANIES.—

(A) DEFINITIONS.—In this paragraph:

(i) FINANCIAL ACTIVITIES.—The term ''financial activities''—

(I) has the meaning given that term in section 4(k) of the Bank Holding Company Act of 1956 (12 U.S.C. 1843(k)); and

(II) for the avoidance of doubt, includes those activities described in subparagraphs (A) and (B) of section 2(7) and section 4(a)(7)(A) of this Act.

(ii) PUBLIC COMPANY.—The term ''public company'' means an issuer that is required to file reports under section 13(a) or 15(d) of the Securities Exchange Act of 1934 (15 U.S.C. 78m(a), 78o(d)).

(B) PROHIBITION.—

(i) IN GENERAL.—A public company that is not predominantly engaged in 1 or more financial activities, and its wholly or majority owned subsidiaries or affiliates, may not issue a payment stablecoin unless the public company obtains a unanimous vote of the Stablecoin Certification Review Committee finding that—

(I) it will not pose a material risk to the safety and soundness of the United States banking system, the financial stability of the United States, or the Deposit Insurance Fund;

(II) the public company will comply with data use limitations providing that, unless the public company receives consent from the consumer, nonpublic personal information obtained from stablecoin transaction data may not be—

(aa) used to target, personalize, or rank advertising or other content;

(bb) sold to any third party; or

(cc) shared with non-affiliates; and

(III) the public company and the affiliates of the public company will comply with the tying prohibitions under paragraph (8).

(ii) EXCEPTION.—The prohibition under clause (i) against the sharing of consumer information shall not apply to sharing of such information—

(I) to comply with Federal, State, or local laws, rules, and other applicable legal requirements;

(II) to comply with a properly authorized civil, criminal, or regulatory investigation, subpoena, or summons by a Federal, State, or local authority; or

(III) to respond to judicial process or a government regulatory authority having jurisdiction over the public company.

(C) EXTENSION OF PROHIBITION.—

(i) IN GENERAL.—Any company not domiciled in the United States or its Territories that is not predominantly engaged in 1 or more financial activities, may not issue a payment stablecoin unless the public company obtains a unanimous vote of the Stablecoin Certification Review Committee finding that—

(I) it will not pose a material risk to the safety and soundness of the United States banking system, the financial stability of the United States, or the Deposit Insurance Fund;

(II) the public company will comply with data use limitations providing that, unless the public company receives consent from the consumer, nonpublic personal information obtained from stablecoin transaction data may not be—

(aa) used to target, personalize, or rank advertising or other content;

(bb) sold to any third party; or

(cc) shared with non-affiliates; except

(III) the public company and the affiliates of the public company will comply with the tying prohibitions under paragraph (8).

(ii) EXCEPTION.—The prohibition under clause (i) against the sharing of consumer information shall not apply to sharing of such information—

(I) to comply with Federal, State, or local laws, rules, and other applicable legal requirements;

(II) to comply with a properly authorized civil, criminal, or regulatory investigation, subpoena, or summons by a Federal, State, or local authority; or

(III) to respond to judicial process or a government regulatory authority having jurisdiction over the public company.

(D) RULEMAKING.—Not later than 1 year after the date of enactment of this Act, the Stablecoin Certification Review Committee shall issue an interpretive rule clarifying the application of this paragraph.

(13) ELIGIBILITY.—Nothing in this Act shall be construed as expanding or contracting legal eligibility to receive services available from a Federal Reserve bank or to make deposits with a Federal Reserve bank, in each case pursuant to the Federal Reserve Act.

(14) RULE OF CONSTRUCTION.—Compliance with this section does not alter or affect any additional requirement of a State payment stablecoin regulator that may apply relating to the offering of payment stablecoins.

(b) REGULATION BY THE COMPTROLLER.—

(1) IN GENERAL.—Notwithstanding section 5136C of the Revised Statutes (12 U.S.C. 25b), section 6 of the Home Owners' Loan Act (12 U.S.C. 1465), or any applicable State law relating to licensing and supervision, a Federal qualified payment stablecoin issuer approved by the Comptroller pursuant to section 5 of this Act shall be licensed, regulated, examined, and supervised exclusively by the Comptroller, which shall have authority, in coordination with other relevant primary Federal payment stablecoin regulators and State payment stablecoin regulators, to issue such regulations and orders as necessary to ensure financial stability and implement subsection (a).

(2) CONFORMING AMENDMENT.—Section 324(b) of the Revised Statutes (12 U.S.C. 1(b)) is amended by adding at the end the following:

''(3) REGULATION OF FEDERAL QUALIFIED PAYMENT STABLECOIN ISSUERS.—The Comptroller of the Currency shall, in coordination with other relevant regulators and consistent with section 13 of the GENIUS Act, issue such regulations and orders as necessary to ensure financial stability and implement section 4(a) of that Act.''.

(c) STATE-LEVEL REGULATORY REGIMES.—

(1) OPTION FOR STATE-LEVEL REGULATORY REGIME.—Notwithstanding the Federal regulatory framework established under this Act, a State qualified payment stablecoin issuer with a consolidated total outstanding issuance of not more than $10,000,000,000 may opt for regulation under a State-level regulatory regime, provided that the State-level regulatory regime is substantially similar to the Federal regulatory framework under this Act.

(2) PRINCIPLES.—The Secretary of the Treasury shall, through notice and comment rulemaking, establish broad-based principles for determining whether a State-level regulatory regime is substantially similar to the Federal regulatory framework under this Act.

(3) REVIEW.—State payment stablecoin regulators shall review State-level regulatory regimes according to the principles established by the Secretary of the Treasury under paragraph (2) and for the purposes of establishing any necessary cooperative agreements to implement section 7(f).

(4) CERTIFICATION.—

(A) INITIAL CERTIFICATION.—Subject to subparagraph (B), not later than 1 year after the effective date of this Act, a State payment stablecoin regulator shall submit to the Stablecoin Certification Review Committee an initial certification that the State-level regulatory regime meets the criteria for substantial similarity established pursuant to paragraph (2).

(B) FORM OF CERTIFICATION.—The initial certification required under subparagraph (A) shall contain, in a form prescribed by the Stablecoin Certification Review Committee, an attestation that the State-level regulatory regime meets the criteria for substantial similarity established pursuant to paragraph (2).

(C) ANNUAL RECERTIFICATION.—Not later than a date to be determined by the Secretary of the Treasury each year, a State payment stablecoin regulator shall submit to the Stablecoin Certification Review Committee an additional certification that confirms the accuracy of the initial certification submitted under subparagraph (A).

(5) CERTIFICATION REVIEW.—

(A) IN GENERAL.—Not later than 30 days after the date on which a State payment stablecoin regulator submits an initial certification or a recertification under paragraph (4), the Stablecoin Certification Review Committee shall—

(i) approve such certification if the Committee unanimously determines that the State-level regulatory regime meets or exceeds the standards and requirements described in subsection (a); or

(ii) deny such certification and provide the State payment stablecoin regulator with a written explanation of the denial, describing the reasoned basis for the denial with sufficient detail to enable the State payment stablecoin regulator and State-level regulatory regime to make any changes necessary to meet or exceed the standards and requirements described in subsection (a).

(B) RECERTIFICATIONS.—With respect to any recertification certification submitted by a State payment stablecoin regulator under paragraph (4), the Stablecoin Certification Review Committee shall only deny the recertification if—

(i) the State-level regulatory regime has materially changed from the prior certification or there has been a significant change in circumstances; and

(ii) the material change in the regime or significant change in circumstances described in clause (i) is such that the State-level regulatory regime will not promote the safe and sound operation of State qualified payment stablecoin issuers under its supervision.

(C) OPPORTUNITY TO CURE.—

(i) IN GENERAL.—With respect to a denial described under subparagraph (A) or (B), the Stablecoin Certification Review Committee shall provide the State payment stablecoin regulator with not less than 180 days from the date on which the State payment stablecoin regulator is notified of such denial to—

(I) make such changes as may be necessary to ensure the State-level regulatory regime meets or exceeds the standards described in subsection (a); and

(II) resubmit the initial certification or recertification.

(ii) DENIAL.—If, after a State payment stablecoin regulator resubmits an initial certification or recertification under clause (i), the Stablecoin Certification Review Committee again determines that the initial certification or recertification shall result in a denial, the Stablecoin Certification Review Committee shall, not later than 30 days after such determination, provide the State payment stablecoin regulator with a written explanation for the determination.

(D) APPEAL OF DENIAL.—A State payment stablecoin regulator in receipt of a denial under subparagraph (C)(ii) may appeal the denial to the United States Court of Appeals for the District of Columbia Circuit.

(E) RIGHT TO RESUBMIT.—A State payment stablecoin regulator in receipt of a denial under this paragraph shall not be prohibited from resubmitting a new certification under paragraph (4).

(6) LIST.—The Secretary of the Treasury shall publish and maintain in the Federal Register and on the website of the Department of the Treasury a list of States that have submitted initial certifications and recertifications under paragraph (4).

(7) EXPEDITED CERTIFICATIONS OF EXISTING REGULATORY REGIMES.—The Stablecoin Certification Review Committee shall take all

necessary steps to endeavor that, with respect to a State that, within 180 days of the date of enactment of this Act, has in effect a prudential regulatory regime (including regulations and guidance) for the supervision of digital assets or payment stablecoins, the certification process under this paragraph with respect to that regime occurs on an expedited timeline after the effective date of this Act.

(d) TRANSITION TO FEDERAL OVERSIGHT.—

(1) DEPOSITORY INSTITUTION.—A State chartered depository institution that is a State qualified payment stablecoin issuer with a payment stablecoin with a consolidated total outstanding issuance of more than $10,000,000,000 shall—

(A) not later than 360 days after the payment stablecoin reaches such threshold, transition to the Federal regulatory framework of the primary Federal payment stablecoin regulator of the State chartered depository institution, which shall be administered by the State payment stablecoin regulator of the State chartered depository institution and the primary Federal payment stablecoin regulator acting jointly; or

(B) beginning on the date the payment stablecoin reaches such threshold, cease issuing new payment stablecoins until the payment stablecoin is under the $10,000,000,000 consolidated total outstanding issuance threshold.

(2) OTHER INSTITUTIONS.—A State qualified payment stablecoin issuer not described in paragraph (1) with a payment stablecoin with a consolidated total outstanding issuance of more than $10,000,000,000 shall—

(A) not later than 360 days after the payment stablecoin reaches such threshold, transition to the Federal regulatory framework under subsection (a) administered by the relevant State payment stablecoin regulator and the Comptroller, acting in coordination; or

(B) beginning on the date the payment stablecoin reaches such threshold, cease issuing new payment stablecoins until the payment stablecoin is under the $10,000,000,000 consolidated total outstanding issuance threshold.

(3) WAIVER.—

(A) IN GENERAL.—Notwithstanding paragraphs (1) and (2), the applicable primary Federal payment stablecoin regulator may permit a State qualified payment stablecoin issuer with a payment stablecoin with a consolidated total outstanding issuance of more than $10,000,000,000 to remain solely supervised by a State payment stablecoin regulator.

(B) CRITERIA FOR WAIVER.—The primary Federal payment stablecoin regulator shall consider the following exclusive criteria in determining whether to issue a waiver under this paragraph:

(i) The capital maintained by the State qualified payment stablecoin issuer.

(ii) The past operations and examination history of the State qualified payment stablecoin issuer.

(iii) The experience of the State payment stablecoin regulator in supervising payment stablecoin and digital asset activities.

(iv) The supervisory framework, including regulations and guidance, of the State qualified payment stablecoin issuer with respect to payment stablecoins and digital assets.

(C) RULE OF CONSTRUCTION.—

(i) FEDERAL OVERSIGHT.—A State qualified payment stablecoin issuer subject to Federal oversight under paragraph (1) or (2) of this subsection that does not receive a waiver under this paragraph shall continue to be supervised by the State payment stablecoin regulator of the State qualified payment stablecoin issuer jointly with the primary Federal payment stablecoin regulator. Nothing in this subsection shall require the State qualified payment stablecoin issuer to convert to a Federal charter.

(ii) STATE OVERSIGHT.—A State qualified payment stablecoin issuer supervised by a State payment stablecoin regulator that has established a prudential regulatory regime (including regulations and guidance) for the supervision of digital assets or payment stablecoins before the 90-day period ending on the date of enactment of this Act that has been certified pursuant to subsection (c) and has approved 1 or more issuers to issue payment stablecoins under the supervision of such State payment stablecoin regulator, shall be presumptively approved for a waiver under this paragraph, unless the Federal payment stablecoin regulator finds, by clear and convincing evidence, that the requirements of subparagraph (B) are not substantially met with respect to that issuer or that the issuer poses significant safety and soundness risks to the financial system of the United States.

(e) MISREPRESENTATION OF INSURED STATUS.—

(1) IN GENERAL.—Payment stablecoins shall not be backed by the full faith and credit of the United States, guaranteed by the United States Government, subject to deposit insurance by the Federal Deposit Insurance Corporation, or subject to share insurance by the National Credit Union Administration.

(2) MISREPRESENTATION OF INSURED STATUS.—

(A) IN GENERAL.—It shall be unlawful to represent that payment stablecoins are backed by the full faith and credit of the United States, guaranteed by the United States Government, or subject to Federal deposit insurance or Federal share insurance.

(B) PENALTY.—A violation of subparagraph (A) shall be considered a violation of section 18(a)(4) of the Federal Deposit Insurance Act (12 U.S.C. 1828(a)(4)) or section 709 of title 18, United States Code, as applicable.

(3) MARKETING.—

(A) IN GENERAL.—It shall be unlawful to market a product in the United States as a payment stablecoin unless the product is issued pursuant to this Act.

(B) PENALTY.—Whoever knowingly and willfully participates in a violation of subparagraph (A) shall be fined by the Department of the Treasury not more than $500,000 for each such violation.

(C) DETERMINATION OF THE NUMBER OF VIOLATIONS.—For purposes of determining the number of violations for which to impose penalties under subparagraph (B), separate acts of noncompliance are a single violation when the acts are the result of—

(i) a common or substantially overlapping originating cause; or

(ii) the same statement or publication.

(D) REFERRAL TO SECRETARY OF THE TREASURY.—If a Federal payment stablecoin regulator has reason to believe that any person has knowingly and willfully violated subparagraph (A), the Federal payment stablecoin regulator shall refer the matter to the Secretary of the Treasury.

(f) OFFICERS OR DIRECTORS CONVICTED OF CERTAIN FELONIES.—

(1) IN GENERAL.—No individual who has been convicted of a felony offense involving insider trading, embezzlement, cybercrime, money laundering, financing of terrorism, or financial fraud may serve as—

(A) an officer of a payment stablecoin issuer; or

(B) a director of a payment stablecoin issuer.

(2) PENALTY.—

(A) IN GENERAL.—Whoever knowingly participates in a violation of paragraph (1) shall be fined not more than $1,000,000 for each such violation, imprisoned for not more than 5 years, or both.

(B) REFERRAL TO ATTORNEY GENERAL.—If a Federal payment stablecoin regulator has reason to believe that any person has knowingly violated paragraph (1), the Federal payment stablecoin regulator shall refer the matter to the Attorney General.

(g) CLARIFICATION RELATING TO FEDERAL SAVINGS ASSOCIATION RESERVES.—A Federal savings association established under the Home Owners' Loan Act (12 U.S.C. 1461 et seq.) that holds a reserve that satisfies the requirements of section 4(a)(1) shall not be required to satisfy the qualified thrift lender test under section 10(m) of the Home Owners' Loan Act (12 U.S.C. 1467a(m)) with respect to such reserve assets.

(h) RULEMAKING.—

(1) IN GENERAL.—Consistent with section 13, the primary Federal payment stablecoin regulators shall, and State payment stablecoin regulators may, issue such regulations relating to permitted payment stablecoin issuers as may be necessary to establish a payment stablecoin regulatory framework necessary to administer and carry out the requirements of this section, including to establish conditions, and to prevent evasion thereof.

(2) COORDINATED ISSUANCE OF REGULATIONS.—All regulations issued to carry out this section shall be issued in coordination by the primary Federal payment stablecoin regulators, if not issued by a State payment stablecoin regulator.

(i) RULES OF CONSTRUCTION.—Nothing in this Act shall be construed—

(1) as expanding the authority of the Board with respect to the services the Board can make directly available to the public; or

(2) to limit or prevent the continued application of applicable ethics statutes and regulations administered by the Office of Government Ethics, or the ethics rules of the Senate and the House of Representatives, including section 208 of title 18, United States Code, and sections 2635.702 and 2635.802 of title 5, Code of Federal Regulations. For the avoidance of doubt, existing Office of Government Ethics laws and the ethics rules of the Senate and the House of Representatives prohibit any member of Congress or senior executive branch official from issuing a payment stablecoin during their time in public service. For the purposes of this paragraph, an employee described in section 202 of title 18, United States Code, shall be deemed an executive branch employee for purposes of complying with section 208 of that title.

SEC. 5. APPROVAL OF SUBSIDIARIES OF INSURED DEPOSITORY INSTITUTIONS AND FEDERAL QUALIFIED PAYMENT STABLECOIN ISSUERS.

(a) APPLICATION.—

(1) IN GENERAL.—Each primary Federal payment stablecoin regulator shall—

(A) receive, review, and consider for approval applications from any insured depository institution that seeks to issue payment stablecoins through a subsidiary and any nonbank entity, Federal branch, or uninsured national bank that is chartered by the Comptroller pursuant to title LXII of the Revised Statutes, and that seeks to issue payment stablecoins as a Federal qualified payment stablecoin issuer; and

(B) establish a process and framework for the licensing, regulation, examination, and supervision of such entities that prioritizes the safety and soundness of such entities.

(2) AUTHORITY TO ISSUE REGULATIONS AND PROCESS APPLICATIONS.—The primary Federal payment stablecoin regulators shall, before the date described in section 13—

(A) issue regulations consistent with that section to carry out this section; and

(B) pursuant to the regulations described in subparagraph (A), accept and process applications described in paragraph (1).

(3) MANDATORY APPROVAL PROCESS.—A primary Federal payment stablecoin regulator shall, upon receipt of a substantially complete application received under paragraph (1), evaluate and make a determination on each application based on the criteria established under this Act.

(b) EVALUATION OF APPLICATIONS.—A substantially complete application received under subsection (a) shall be evaluated by the primary Federal payment stablecoin regulator using the factors described in subsection (c).

(c) FACTORS TO BE CONSIDERED.—The factors described in this subsection are the following:

(1) The ability of the applicant (or, in the case of an applicant that is an insured depository institution, the subsidiary of the applicant), based on financial condition and resources, to meet the requirements set forth under section 4.

(2) Whether an individual who has been convicted of a felony offense involving insider trading, embezzlement, cybercrime, money laundering, financing of terrorism, or financial fraud is serving as an officer or director of the applicant.

(3) The competence, experience, and integrity of the officers, directors, and principal shareholders of the applicant, its subsidiaries, and parent company, including—

(A) the record of those officers, directors, and principal shareholders of compliance with laws and regulations; and

(B) the ability of those officers, directors, and principal shareholders to fulfill any commitments to, and any conditions imposed by, their primary Federal payment stablecoin regulator in connection with the application at issue and any prior applications.

(4) Whether the redemption policy of the applicant meets the standards under section 4(a)(1)(B).

(5) Any other factors established by the primary Federal payment stablecoin regulator that are necessary to ensure the safety and soundness of the permitted payment stablecoin issuer.

(d) TIMING FOR DECISION; GROUNDS FOR DENIAL.—

(1) TIMING FOR DECISIONS ON APPLICATIONS.—

(A) IN GENERAL.—Not later than 120 days after receiving a substantially complete application under subsection (a), a primary Federal payment stablecoin regulator shall render a decision on the application.

(B) SUBSTANTIALLY COMPLETE.—

(i) IN GENERAL.—For purposes of subparagraph (A), an application shall be considered substantially complete if the application contains sufficient information for the primary Federal payment stablecoin regulator to render a decision on whether the applicant satisfies the factors described in subsection (c).

(ii) NOTIFICATION.—Not later than 30 days after receiving an application under subsection (a), a primary Federal payment stablecoin regulator shall notify the applicant as to whether the primary Federal payment stablecoin regulator considers the application to be substantially complete and, if the application is not substantially complete, the additional information the applicant shall provide in order for the application to be considered substantially complete.

(iii) MATERIAL CHANGE IN CIRCUMSTANCES.—An application considered substantially complete under this subparagraph remains substantially complete unless there is a material change in circumstances that requires the primary Federal payment stablecoin regulator to treat the application as a new application.

(2) DENIAL OF APPLICATION.—

(A) GROUNDS FOR DENIAL.—

(i) IN GENERAL.—A primary Federal payment stablecoin regulator shall only deny a substantially complete application received under subsection (a) if the regulator determines that the activities of the applicant would be unsafe or unsound based on the factors described in subsection (c).

(ii) ISSUANCE ON OPEN, PUBLIC, OR DECENTRALIZED NETWORK NOT GROUND FOR DENIAL.—The issuance of a payment stablecoin on an open, public, or decentralized network shall not be a valid ground for denial of an application received under subsection (a).

(B) EXPLANATION REQUIRED.—If a primary Federal payment stablecoin regulator denies a complete application received under subsection (a), not later than 30 days after the date of such denial, the regulator shall provide the applicant with written notice explaining the denial with specificity, including all findings made by the regulator with respect to all identified material shortcomings in the application, including actionable recommendations on how the applicant could address the identified material shortcomings.

(C) OPPORTUNITY FOR HEARING; FINAL DETERMINATION.—

(i) IN GENERAL.—Not later than 30 days after the date of receipt of any notice of the denial of an application under this section, the applicant may request, in writing, an opportunity for a written or oral hearing before the primary Federal payment stablecoin regulator to appeal the denial.

(ii) TIMING.—Upon receipt of a timely request under clause (i), the primary Federal payment stablecoin regulator shall notice a time (not later than 30 days after the date of receipt of the request) and place at which the applicant may appear, personally or through counsel, to submit written materials or provide oral testimony and oral argument.

(iii) FINAL DETERMINATION.—Not later than 60 days after the date of a hearing under this subparagraph, the applicable primary Federal payment stablecoin regulator shall notify the applicant of a final determination, which shall contain a statement of the basis for that determination, with specific findings.

(iv) NOTICE IF NO HEARING.—If an applicant does not make a timely request for a hearing under this subparagraph, the primary Federal payment stablecoin regulator shall notify the applicant, not later than 10 days after the date by which the applicant may request a hearing under this subparagraph, in writing, that the denial of the application is a final determination of the primary Federal payment stablecoin regulator.

(3) FAILURE TO RENDER A DECISION.—If a primary Federal payment stablecoin regulator fails to render a decision on a complete application within the time period specified in paragraph (1), the application shall be deemed approved.

(4) RIGHT TO REAPPLY.—The denial of an application under this section shall not prohibit the applicant from filing a subsequent application.

(e) REPORTS ON PENDING APPLICATIONS.—Each primary Federal payment stablecoin regulator shall—

(1) notify Congress upon beginning to process applications under this Act; and

(2) annually report to Congress on the applications that have been pending for 180 days or more since the date the initial application was filed and for which the applicant has been informed that the application remains incomplete, including documentation on the status of such applications and why such applications have not yet been approved.

(f) SAFE HARBOR FOR PENDING APPLICATIONS.—The primary Federal payment stablecoin regulators may waive the application of the requirements of this Act for a period not to exceed 12 months beginning on the effective date of this Act, with respect to—

(1) a subsidiary of an insured depository institution, if the insured depository institution has an application pending for the subsidiary to become a permitted payment stablecoin issuer on that effective date; or

(2) a Federal qualified payment stablecoin issuer with a pending application on that effective date.

(g) RULEMAKING.—Consistent with section 13, the primary Federal payment stablecoin regulators shall issue rules necessary for the regulation of the issuance of payment stablecoins, but may not impose requirements in addition to the requirements specified under section 4.

(h) RELATION TO OTHER LICENSING REQUIREMENTS.—The provisions of this section supersede and preempt any State requirement for a charter, license, or other authorization to do business with respect to a Federal qualified payment stablecoin issuer or subsidiary of an insured depository institution or credit union that is approved under this section to be a permitted payment stablecoin issuer. Nothing in this subsection shall preempt or supersede the authority of a State to charter, license, supervise, or regulate an insured depository institution or credit union chartered in such State or to supervise a subsidiary of such insured depository institution or credit union that is approved under this section to be a permitted payment stablecoin issuer.

(i) CERTIFICATION REQUIRED.—

(1) IN GENERAL.—Not later than 180 days after the approval of an application, and on an annual basis thereafter, each permitted payment stablecoin issuer shall submit to its primary Federal payment stablecoin regulator, or in the case of a State qualified payment stablecoin issuer its State payment stablecoin regulator, a certification that the issuer has implemented anti-money laundering and economic sanctions compliance programs that are reasonably designed to prevent the permitted payment stablecoin issuer from facilitating money laundering, in particular, facilitating money laundering for cartels and organizations designated as foreign terrorist organizations under section 219 of the Immigration and Nationality Act (8 U.S.C. 1189) and the financing of terrorist activities, consistent with the requirements of this Act.

(2) AVAILABILITY OF CERTIFICATIONS.—Federal payment stablecoin regulators and State payment stablecoin regulators shall make certifications described in paragraph (1) available to the Secretary of Treasury upon request.

(3) PENALTIES.—

(A) APPROVAL REVOCATION.—The primary Federal payment stablecoin regulator or State payment stablecoin regulator of a permitted payment stablecoin issuer that does not submit a certification pursuant to paragraph (1) may revoke the approval of the payment stablecoin issuer under this section.

(B) CRIMINAL PENALTY.—

(i) IN GENERAL.—Any person that knowingly submits a certification pursuant to paragraph (1) that is false shall be subject to the criminal penalties set forth under section 1001 of title 18, United States Code.

(ii) REFERRAL TO ATTORNEY GENERAL.—If a Federal payment stablecoin regulator or State payment stablecoin regulator has reason to believe that any person has knowingly

violated paragraph (1), the applicable regulator may refer the matter to the Attorney General or to the attorney general of the payment stablecoin issuer's host State.

SEC. 6. SUPERVISION AND ENFORCEMENT WITH RESPECT TO FEDERAL QUALIFIED PAYMENT STABLECOIN ISSUERS AND SUBSIDIARIES OF INSURED DEPOSITORY INSTITUTIONS.

(a) SUPERVISION.—

(1) IN GENERAL.—Each permitted payment stablecoin issuer that is not a State qualified payment stablecoin issuer with a payment stablecoin with a consolidated total outstanding issuance of less than $10,000,000,000 shall be subject to supervision by the appropriate primary Federal payment stablecoin regulator.

(2) SUBMISSION OF REPORTS.—Each permitted payment stablecoin issuer described in paragraph (1) shall, upon request, submit to the appropriate primary Federal payment stablecoin regulator a report on—

(A) the financial condition of the permitted payment stablecoin issuer;

(B) the systems of the permitted payment stablecoin issuer for monitoring and controlling financial and operating risks;

(C) compliance by the permitted payment stablecoin issuer (and any subsidiary thereof) with this Act; and

(D) the compliance of the Federal qualified nonbank payment stablecoin issuer with the requirements of the Bank Secrecy Act and with laws authorizing the imposition of sanctions and implemented by the Secretary of the Treasury.

(3) EXAMINATIONS.—The appropriate primary Federal payment stablecoin regulator shall examine a permitted payment stablecoin issuer described in paragraph (1) in order to assess—

(A) the nature of the operations and financial condition of the permitted payment stablecoin issuer;

(B) the financial, operational, technological, and other risks associated within the permitted payment stablecoin issuer that may pose a threat to—

(i) the safety and soundness of the permitted payment stablecoin issuer; or

(ii) the stability of the financial system of the United States; and

(C) the systems of the permitted payment stablecoin issuer for monitoring and controlling the risks described in subparagraph (B).

(4) REQUIREMENTS FOR EFFICIENCY.—

(A) USE OF EXISTING REPORTS.—In supervising and examining a permitted payment stablecoin issuer under this subsection, a primary Federal payment stablecoin regulator shall, to the fullest extent possible, use existing reports and other supervisory information.

(B) AVOIDANCE OF DUPLICATION.—A primary Federal payment stablecoin regulator shall, to the fullest extent possible, avoid duplication of examination activities, reporting requirements, and requests for information in carrying out this subsection with respect to a permitted payment stablecoin issuer.

(C) CONSIDERATION OF BURDEN.—A primary Federal payment stablecoin regulator shall, with respect to any examination or request for the submission of a report under this subsection, only request examinations and reports at a cadence and in a format that is similar to that required for similarly situated entities regulated by the primary Federal payment stablecoin regulator.

(b) ENFORCEMENT.—

(1) SUSPENSION OR REVOCATION OF REGISTRATION.—The primary Federal payment stablecoin regulator of a permitted payment stablecoin issuer that is not a State qualified payment stablecoin issuer with a payment stablecoin with a consolidated total outstanding issuance of less than $10,000,000,000 may prohibit the permitted payment stablecoin issuer from issuing payment stablecoins, if the primary Federal payment stablecoin regulator determines that such permitted payment stablecoin issuer, or an institution-affiliated party of the permitted payment stablecoin issuer is willfully or recklessly violating or has willfully or recklessly violated—

(A) this Act or any regulation or order issued under this Act; or

(B) any condition imposed in writing by the primary Federal payment stablecoin regulator in connection with a written agreement entered into between the permitted payment stablecoin issuer and the primary Federal payment stablecoin regulator.

(2) CEASE-AND-DESIST PROCEEDINGS.—If the primary Federal payment stablecoin regulator of a permitted payment stablecoin issuer that is not a State qualified payment stablecoin issuer with a payment stablecoin with a consolidated total outstanding issuance of less than $10,000,000,000 has reasonable cause to believe that the permitted payment stablecoin issuer or any institution-affiliated party of the permitted payment stablecoin issuer is violating, has violated, or is attempting to violate this Act, any regulation or order issued under this Act, or any written agreement entered into with the primary Federal payment stablecoin regulator or condition imposed in writing by the primary Federal payment stablecoin regulator in connection with any application or other request, the primary Federal payment stablecoin regulator may, by provisions that are mandatory or otherwise, order the permitted payment stablecoin issuer or institution-affiliated party of the permitted payment stablecoin issuer to—

(A) cease and desist from such violation or practice; or

(B) take affirmative action to correct the conditions resulting from any such violation or practice.

(3) REMOVAL AND PROHIBITION AUTHORITY.—The primary Federal payment stablecoin regulator of a permitted payment stablecoin issuer that is not a State qualified payment stablecoin issuer may remove an institution-affiliated party of the permitted payment stablecoin issuer from the position or office of that institution-affiliated party or prohibit further participation in the affairs of the permitted payment stablecoin issuer or of all such permitted payment stablecoin issuers by that institution-affiliated party, if the primary Federal payment stablecoin regulator determines that—

(A) the institution-affiliated party has knowingly committed a violation or attempted violation of this Act or any regulation or order issued under this Act; or

(B) the institution-affiliated party has knowingly committed a violation of any provision of subchapter II of chapter 53 of title 31, United States Code.

(4) PROCEDURES.—

(A) IN GENERAL.—If a primary Federal payment stablecoin regulator identifies a violation or attempted violation of this Act or makes a determination under paragraph (1), (2), or (3), the primary Federal payment stablecoin regulator shall comply with the procedures set forth in subsections (b) and (e) of section 8 of the Federal Deposit Insurance Act (12 U.S.C. 1818) or subsections (e) and (g) of section 206 the Federal Credit Union Act (12 U.S.C. 1786(e) and (g)), as applicable.

(B) JUDICIAL REVIEW.—A person aggrieved by a final action under this subsection may obtain judicial review of such action exclusively as provided in section 8(h) of the Federal Deposit Insurance Act (12 U.S.C. 1818(h)) or section 206(j) of the Federal Credit Union Act (12 U.S.C. 1786(j)), as applicable.

(C) INJUNCTION.—A primary Federal payment stablecoin regulator may, at the discretion of the regulator, follow the procedures provided in section 8(i)(1) of the Federal Deposit Insurance Act (12 U.S.C. 1818(i)(1)) or section 206(k)(1) of the Federal Credit Union Act (12 U.S.C. 1786(k)(1)), as applicable, for judicial enforcement of any effective and outstanding notice or order issued under this subsection.

(D) TEMPORARY CEASE-AND-DESIST PROCEEDINGS.—If a primary Federal payment stablecoin regulator determines that a violation or attempted violation of this Act or an action with respect to which a determination was made under paragraph (1), (2), or (3), or the continuation thereof, is likely to cause insolvency or significant dissipation of assets or earnings of a permitted payment stablecoin issuer, or is likely to weaken the condition of the permitted payment stablecoin issuer or otherwise prejudice the interests of the customers of the permitted payment stablecoin issuer prior to the completion of the proceedings conducted under this paragraph, the primary Federal payment stablecoin regulator may follow the procedures provided in section 8(c) of the Federal Deposit Insurance Act (12 U.S.C. 1818(c)) or section 206(f) of the Federal Credit Union Act (12 U.S.C. 1786(f)), as applicable, to issue a temporary cease and desist order.

(5) CIVIL MONEY PENALTIES.—Unless otherwise specified in this Act, the civil money penalties for violations of this Act consist of the following:

(A) FAILURE TO BE APPROVED.—Any person that issues a United States dollar-denominated payment stablecoin in violation of section 3, and any institution-affiliated party of such a person who knowingly participates in issuing such a payment stablecoin, shall be liable for a civil penalty of not more than $100,000 for each day during which such payment stablecoins are issued.

(B) FIRST TIER.—Except as provided in subparagraph (A), a permitted payment stablecoin issuer or institution-affiliated party of such permitted payment stablecoin issuer that materially violates this Act or any regulation or order issued under this Act, or that materially violates any condition imposed in writing by the appropriate primary Federal payment stablecoin regulator in connection with a written agreement entered into between the permitted payment stablecoin issuer and that primary Federal payment stablecoin regulator, shall be liable for a civil penalty of not more than $100,000 for each day during which the violation continues.

(C) SECOND TIER.—Except as provided in subparagraph (A), and in addition to the penalties described in subparagraph (B), a permitted payment stablecoin issuer or institution-affiliated party of such permitted payment stablecoin issuer who knowingly participates in a violation of any provision of this Act, or any regulation or order issued under this Act, shall be liable for a civil penalty of not more than an additional $100,000 for each day during which the violation continues.

(D) PROCEDURE.—Any penalty imposed under this paragraph may be assessed and collected by the appropriate primary Federal payment stablecoin regulator pursuant to the procedures set forth in section 8(i)(2) of the Federal Deposit Insurance Act (12 U.S.C. 1818(i)(2)) or section 206(k)(2) of the Federal Credit Union Act (12 U.S.C. 1786(k)(2)), as applicable.

(E) NOTICE AND ORDERS AFTER SEPARATION FROM SERVICE.—The resignation, termination

of employment or participation, or separation of an institution-affiliated party (including a separation caused by the closing of a permitted payment stablecoin issuer) shall not affect the jurisdiction and authority of a primary Federal payment stablecoin regulator to issue any notice or order and proceed under this subsection against any such party, if such notice or order is served before the end of the 6-year period beginning on the date on which such party ceased to be an institution-affiliated party with respect to such permitted payment stablecoin issuer.

(6) NON-APPLICABILITY TO A STATE QUALIFIED PAYMENT STABLECOIN ISSUER.—Notwithstanding anything in this subsection to the contrary, this subsection shall not apply to a State qualified payment stablecoin issuer.

(c) RULE OF CONSTRUCTION.—Nothing in this Act may be construed to modify or otherwise affect any right or remedy under any Federal consumer financial law, including 12 U.S.C. 5515 and 15 U.S.C. 41 et seq.

SEC. 7. STATE QUALIFIED PAYMENT STABLECOIN ISSUERS.

(a) IN GENERAL.—A State payment stablecoin regulator shall have supervisory, examination, and enforcement authority over all State qualified payment stablecoin issuers of such State.

(b) AUTHORITY TO ENTER INTO AGREEMENTS WITH THE BOARD.—A State payment stablecoin regulator may enter into a memorandum of understanding with the Board, by mutual agreement, under which the Board may participate in the supervision, examination, and enforcement of this Act with respect to the State qualified payment stablecoin issuers of such State.

(c) SHARING OF INFORMATION.—A State payment stablecoin regulator and the Board shall share information on an ongoing basis with respect to a State qualified payment stablecoin issuer of such State, including a copy of the initial application and any accompanying documents.

(d) RULEMAKING.—A State payment stablecoin regulator may issue orders and rules under section 4 applicable to State qualified payment stablecoin issuers to the same extent as the primary Federal payment stablecoin regulators issue orders and rules under section 4 applicable to permitted payment stablecoin issuers that are not State qualified payment stablecoin issuers.

(e) ENFORCEMENT AUTHORITY IN UNUSUAL AND EXIGENT CIRCUMSTANCES.—

(1) BOARD.—

(A) IN GENERAL.—Subject to subparagraph (C), under unusual and exigent circumstances that the Board determines to exist, the Board may, after not less than 48 hours' prior written notice to the applicable State payment stablecoin regulator, take an enforcement action against a State qualified payment stablecoin issuer or an institution-affiliated party of such issuer for violations of this Act during such unusual and exigent circumstances.

(B) RULEMAKING.—Consistent with section 13, the Board shall issue rules to set forth the unusual and exigent circumstances in which the Board may act under this paragraph.

(C) LIMITATIONS.—If, after unusual and exigent circumstances are determined to exist pursuant to subparagraph (A), the Board determines that there is reasonable cause to believe that the continuation by a State qualified payment stablecoin issuer of any activity constitutes a serious risk to the financial safety, soundness, or stability of the State qualified payment stablecoin issuer, the Board may impose such restrictions as the Board determines to be necessary to address such risk during such unusual and exigent circumstances, which may include limitations on redemptions of payment stablecoins, and which shall be issued in the form of a directive, with the effect of a cease and desist order that has become final, to the State qualified payment stablecoin issuer and any of its affiliates, limiting—

(i) transactions between the State qualified payment stablecoin issuer, a holding company, and the subsidiaries or affiliates of either the State qualified payment stablecoin issuer or the holding company; and

(ii) any activities of the State qualified payment stablecoin issuer that might create a serious risk that the liabilities of a holding company and the affiliates of the holding company may be imposed on the State qualified payment stablecoin issuer.

(D) REVIEW OF DIRECTIVE.—

(i) ADMINISTRATIVE REVIEW.—

(I) IN GENERAL.—After a directive described in subparagraph (C) is issued, the applicable State qualified payment stablecoin issuer, or any institution-affiliated party of the State qualified payment stablecoin issuer subject to the directive, may object and present to the Board, in writing, the reasons why the directive should be modified or rescinded.

(II) AUTOMATIC LAPSE OF DIRECTIVE.—If, after 10 days after the receipt of a response described in subclause (I), the Board does not affirm, modify, or rescind the directive, the directive shall automatically lapse.

(ii) JUDICIAL REVIEW.—

(I) IN GENERAL.—If the Board affirms or modifies a directive pursuant to clause (i), any affected party may immediately thereafter petition the United States district court for the district in which the main office of the affected party is located, or in the United States District Court for the District of Columbia, to stay, modify, terminate, or set aside the directive.

(II) RELIEF FOR EXTRAORDINARY CAUSE.—Upon a showing of extraordinary cause, an affected party may petition for relief under subclause (I) without first pursuing or exhausting the administrative remedies under clause (i).

(2) COMPTROLLER.—

(A) IN GENERAL.—Subject to subparagraph (C), under unusual and exigent circumstances determined to exist by the Comptroller, the Comptroller shall, after not less than 48 hours' prior written notice to the applicable State payment stablecoin regulator, take an enforcement action against a State qualified payment stablecoin issuer that is a nonbank entity for violations of this Act.

(B) RULEMAKING.—Consistent with section 13, the Comptroller shall issue rules to set forth the unusual and exigent circumstances in which the Comptroller may act under this paragraph.

(C) LIMITATIONS.—If, after unusual and exigent circumstances are determined to exist under subparagraph (A), the Comptroller determines that there is reasonable cause to believe that the continuation of any activity by a State qualified payment stablecoin issuer that is a nonbank entity constitutes a serious risk to the financial safety, soundness, or stability of the State qualified payment stablecoin issuer that is a nonbank entity, the Comptroller shall impose such restrictions as the Comptroller determines to be necessary to address such risk during such unusual and exigent circumstances, which may include limitations on redemption of payment stablecoins, and which shall be issued in the form of a directive, with the effect of a cease and desist order that has become final, to the State qualified payment stablecoin issuer that is a nonbank entity and any of its affiliates, limiting—

(i) transactions between the State qualified payment stablecoin issuer, a holding company, and the subsidiaries or affiliates of either the State qualified payment stablecoin issuer or the holding company; and

(ii) any activities of the State qualified payment stablecoin issuer that might create a serious risk that the liabilities of a holding company and the affiliates of the holding company may be imposed on the State qualified payment stablecoin issuer.

(D) REVIEW OF DIRECTIVE.—

(i) ADMINISTRATIVE REVIEW.—

(I) IN GENERAL.—After a directive described in subparagraph (C) is issued, the applicable Federal qualified payment stablecoin issuer, or any institution-affiliated party of the Federal qualified payment stablecoin issuer subject to the directive, may object and present to the Comptroller, in writing, the reasons that the directive should be modified or rescinded.

(II) AUTOMATIC LAPSE OF DIRECTIVE.—If, after 10 days after the receipt of a response described in subclause (I), the Comptroller does not affirm, modify, or rescind the directive, the directive shall automatically lapse.

(ii) JUDICIAL REVIEW.—

(I) IN GENERAL.—If the Comptroller affirms or modifies a directive pursuant to clause (i), any affected party may immediately thereafter petition the United States district court for the district in which the main office of the affected party is located, or in the United States District Court for the District of Columbia, to stay, modify, terminate, or set aside the directive.

(II) RELIEF FOR EXTRAORDINARY CAUSE.—Upon a showing of extraordinary cause, an affected party may petition for relief under subclause (I) without first pursuing or exhausting the administrative remedies under clause (i).

(f) EFFECT ON STATE LAW.—

(1) HOST STATE LAW.—Notwithstanding any other provision of law, the laws of a host State, including laws relating to consumer protection, shall only apply to the activities conducted in the host State by an out-of-State State qualified payment stablecoin issuer to the same extent as such laws apply to the activities conducted in the host State by an out-of-State Federal qualified payment stablecoin issuer.

(2) HOME STATE LAW.—If any host State law is determined not to apply under paragraph (1), the laws of the home State of the State qualified payment stablecoin issuer shall govern the activities of the permitted payment stablecoin issuer conducted in the host State.

(3) APPLICABILITY.—

(A) IN GENERAL.—This subsection shall only apply to an out-of-State State qualified payment stablecoin issuer chartered, licensed, or otherwise authorized to do business by a State that has a certification in place pursuant to section 4(c) of this Act.

(B) EXCLUSION.—The laws applicable to an out-of-State qualified payment stablecoin issuer under paragraph (1) exclude host State laws governing the chartering, licensure, or other authorization to do business in the host State as a permitted payment stablecoin issuer pursuant to this Act.

(4) RULE OF CONSTRUCTION.—Except for State laws relating to the chartering, licensure, or other authorization to do business as a permitted payment stablecoin issuer, nothing in this Act shall preempt State consumer protection laws, including common law, and the remedies available thereunder.

SEC. 8. ANTI-MONEY LAUNDERING PROTECTIONS.

(a) PAYMENT STABLECOINS ISSUED BY A FOREIGN PAYMENT STABLECOIN ISSUER.—

(1) IN GENERAL.—A payment stablecoin that is issued by a foreign payment stablecoin issuer may not be publicly offered, sold, or otherwise made available for

trading in the United States by a digital asset service provider unless the foreign payment stablecoin issuer has the technological capability to comply and complies with the terms of any lawful order.

(2) ENFORCEMENT.—

(A) AUTHORITY.—The Secretary of the Treasury shall have the authority to designate any foreign issuer that publicly offers, sells, or otherwise makes available a payment stablecoin in violation of paragraph (1) as noncompliant.

(B) DESIGNATION AS NONCOMPLIANT.—Not later than 30 days after the Department of the Treasury has identified a foreign payment stablecoin issuer of any payment stablecoin trading in the United States that is in violation of paragraph (1), the Secretary of the Treasury, in coordination with relevant Federal agencies, may, pursuant to the authority under subparagraph (A), designate the foreign payment stablecoin issuer as noncompliant and notify the foreign payment stablecoin issuer in writing of the designation.

(3) APPEAL.—A determination of noncompliance under this subsection is subject to judicial review in the United States Court of Appeals for the District of Columbia Circuit.

(b) PUBLICATION OF DESIGNATION; PROHIBITION ON SECONDARY TRADING.—

(1) IN GENERAL.—If a foreign payment stablecoin issuer does not come into compliance with the lawful order within 30 days from the date of issuance of the written notice described in subsection (a), except as provided in subsection (c), the Secretary of the Treasury shall—

(A) publish the determination of noncompliance in the Federal Register, including a statement on the failure of the foreign payment stablecoin issuer to comply with the lawful order after the written notice; and

(B) issue a notification in the Federal Register prohibiting digital asset service providers from facilitating secondary trading of payment stablecoins issued by the foreign payment stablecoin issuer in the United States.

(2) EFFECTIVE DATE OF PROHIBITION.—The prohibition on facilitation of secondary trading described in paragraph (1) shall become effective on the date that is 30 days after the date of issue of notification of the prohibition in the Federal Register.

(3) EXPIRATION OF PROHIBITION.—

(A) IN GENERAL.—The prohibition on facilitation of secondary trading described in paragraph (1)(B) shall expire upon the Secretary of the Treasury's determination that the foreign payment stablecoin issuer is no longer noncompliant.

(B) RULEMAKING.—Consistent with section 13, the Secretary of the Treasury shall specify the criteria that a noncompliant foreign issuer must meet for the Secretary of the Treasury to determine that the foreign payment stablecoin issuer is no longer noncompliant.

(C) PUBLICATION.—Upon a determination under subparagraph (A), the Secretary of the Treasury shall publish the determination in the Federal Register, including a statement detailing how the foreign payment stablecoin issuer has met the criteria described in subparagraph (B).

(4) CIVIL MONETARY PENALTIES.—The Secretary of the Treasury may impose a civil monetary penalty as follows:

(A) DIGITAL ASSET SERVICE PROVIDERS.—Any digital asset service provider that knowingly violates a prohibition under paragraph (1)(B) shall be subject to a civil monetary penalty of not more than $100,000 per violation per day.

(B) FOREIGN PAYMENT STABLECOIN ISSUERS.—Any foreign payment stablecoin issuer that knowingly continues to publicly offer a payment stablecoin in the United States after publication of the determination of noncompliance under paragraph (1)(A) shall be subject to a civil monetary penalty of not more than $1,000,000 per violation per day, and the Secretary of the Treasury may seek an injunction in a district court of the United States to bar the foreign payment stablecoin issuer from engaging in financial transactions in the United States or with United States persons.

(C) DETERMINATION OF THE NUMBER OF VIOLATIONS.—For purposes of determining the number of violations for which to impose a penalty under subparagraph (A) or (B), separate acts of noncompliance are a single violation when the acts are the result of a common or substantially overlapping originating cause. Notwithstanding the foregoing, the Secretary of Treasury may determine that multiple acts of noncompliance constitute separate violations if such acts were the result of gross negligence, a reckless disregard for, or a pattern of indifference to, money laundering, financing of terrorism, or sanctions evasion requirements.

(D) COMMENCEMENT OF CIVIL ACTIONS.—The Secretary of the Treasury may commence a civil action against a foreign payment stablecoin issuer in a district court of the United States to—

(i) recover a civil monetary penalty assessed under subparagraph (A) or (B);

(ii) seek an injunction to bar the foreign payment stablecoin issuer from engaging in financial transactions in the United States or with United States persons; or

(iii) seek an injunction to stop a digital asset service provider from offering on the platform of the digital asset service provider payment stablecoins issued by the foreign payment stablecoin issuer.

(c) WAIVER AND LICENSING AUTHORITY EXEMPTIONS.—

(1) IN GENERAL.—The Secretary of the Treasury may offer a waiver, general license, or specific license to any United States person engaging in secondary trading described in subsection (b)(1)(B) on a case-by-case basis if the Secretary determines that—

(A) prohibiting secondary trading would adversely affect the financial system of the United States; or

(B) the foreign payment stablecoin issuer is taking tangible steps to remedy the failure to comply with the lawful order that resulted in the noncompliance determination under subsection (a).

(2) NATIONAL SECURITY WAIVER.—The Secretary of the Treasury, in consultation with the Director of National Intelligence and the Secretary of State, may waive the application of the secondary trading restrictions under subsection (b)(1)(B) if the Secretary of the Treasury determines that the waiver is in the national security interest of the United States.

(3) WAIVER FOR INTELLIGENCE AND LAW ENFORCEMENT ACTIVITIES.—The head of a department or agency may waive the application of this section with respect to—

(A) activities subject to the reporting requirements under title V of the National Security Act of 1947 (50 U.S.C. 3091 et seq.), or any authorized intelligence activities of the United States; or

(B) activities necessary to carry out or assist law enforcement activity of the United States.

(4) REPORT REQUIRED.—Not later than 7 days after issuing a waiver or a license under paragraph (1), (2), or (3), the Secretary of the Treasury shall submit to the chairs and ranking members of the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives, a report, which may include a classified annex, if applicable, including the text of the waiver or license, as well as the facts and circumstances justifying the waiver determination, and provide a briefing on the report.

(d) RULE OF CONSTRUCTION.—Nothing in this Act shall be construed as altering the existing authority of the Secretary of the Treasury to block, restrict, or limit transactions involving payment stablecoins that reference or are denominated in United States dollars that are subject to the jurisdiction of the United States.

SEC. 9. ANTI-MONEY LAUNDERING INNOVATION.

(a) PUBLIC COMMENT.—Beginning on the date that is 30 days after the date of enactment of this Act, and for a period of 60 days thereafter, the Secretary of the Treasury shall seek public comment to identify innovative or novel methods, techniques, or strategies that regulated financial institutions use, or have the potential to use, to detect illicit activity, such as money laundering, involving digital assets, including comments with respect to—

(1) application program interfaces;

(2) artificial intelligence;

(3) digital identify verification; and

(4) use of blockchain technology and monitoring.

(b) TREASURY RESEARCH.—

(1) IN GENERAL.—Upon completion of the public comment period described in subsection (a), the Secretary of the Treasury shall conduct research on the innovative or novel methods, techniques, or strategies that regulated financial institutions use, or have the potential to use, to detect illicit activity, such as money laundering, involving digital assets that were identified in such public comment period.

(2) RESEARCH FACTORS.—With respect to each innovative or novel method, technique, or strategy described in paragraph (1), the Financial Crimes Enforcement Network shall evaluate and consider the following factors against existing methods, techniques, or strategies:

(A) Improvements in the ability of financial institutions to detect illicit activity involving digital assets.

(B) Costs to regulated financial institutions.

(C) The amount and sensitivity of information that is collected or reviewed.

(D) Privacy risks associated with the information that is collected or reviewed.

(E) Operational challenges and efficiency considerations.

(F) Cybersecurity risks.

(G) Effectiveness of methods, techniques, or strategies at mitigating illicit finance.

(c) TREASURY RISK ASSESSMENT.—As part of the national strategy for combating terrorist and other illicit financing required under sections 261 and 262 of the Countering America's Adversaries Through Sanctions Act (Public Law 115–44; 131 Stat. 934), the Secretary of the Treasury shall consider—

(1) the source of illicit activity, such as money laundering and sanctions evasion involving digital assets;

(2) the effectiveness of and gaps in existing methods, techniques, and strategies used by regulated financial institutions in detecting illicit activity, such as money laundering, involving digital assets;

(3) the impact of existing regulatory frameworks on the use and development of innovative methods, techniques, or strategies by regulated financial institutions; and

(4) any foreign jurisdictions that pose a high risk of facilitating illicit activity through the use of digital assets to obtain fiat currency.

(d) FINCEN GUIDANCE OR RULEMAKING.—Not later than 3 years after the date of enactment of this Act, the Financial Crimes

Enforcement Network shall issue public guidance and notice and comment rulemaking, based on the results of the research and risk assessments required under this section, relating to the following:

(1) The implementation of innovative or novel methods, techniques, or strategies by regulated financial institutions to detect illicit activity involving digital assets.

(2) Standards for payment stablecoin issuers to identify and report illicit activity involving the payment stablecoin of a permitted payment stablecoin issuer, including, fraud, cybercrime, money laundering, financing of terrorism, sanctions evasion, or insider trading.

(3) Standards for payment stablecoin issuers' systems and practices to monitor transactions on blockchains, digital asset mixing services, tumblers, or other similar services that mix payment stablecoins in such a way as to make such transaction or the identity of the transaction parties less identifiable.

(4) Tailored risk management standards for financial institutions interacting with decentralized finance protocols.

(e) RECOMMENDATIONS AND REPORT TO CONGRESS.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Secretary of the Treasury shall submit to the chairs and ranking members of the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives a report on—

(A) legislative and regulatory proposals to allow regulated financial institutions to develop and implement novel and innovative methods, techniques, or strategies to detect illicit activity, such as money laundering and sanctions evasion, involving digital assets;

(B) the results of the research and risk assessments conducted pursuant to this section;

(C) efforts to support the ability of financial institutions to implement novel and innovative methods, techniques, or strategies to detect illicit activity, such as money laundering and sanctions evasion, involving digital assets;

(D) the extent to which transactions on distributed ledgers, digital asset mixing services, tumblers, or other similar services that mix payment stablecoins in such a way as to make such transaction or the identity of the transaction parties less identifiable may facilitate illicit activity; and

(E) legislative recommendations relating to the scope of the term ''digital asset service provider'' and the application of that term to decentralized finance.

(2) CLASSIFIED ANNEX.—A report under this section may include a classified annex, if applicable.

(f) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to limit the existing authority of the Secretary of the Treasury or the primary Federal payment stablecoin regulators to, prior to the submission of a report required under this section, use existing exemptive authorities, the no-action letter process, or rulemaking authorities in a manner that encourages regulated financial institutions to adopt novel or innovative methods, techniques, or strategies to detect illicit activity, such as money laundering, involving digital assets.

SEC. 10. CUSTODY OF PAYMENT STABLECOIN RESERVE AND COLLATERAL.

(a) IN GENERAL.—A person may only engage in the business of providing custodial or safekeeping services for the payment stablecoin reserve, the payment stablecoins used as collateral, or the private keys used to issue permitted payment stablecoins if the person—

(1) is subject to—

(A) supervision or regulation by a primary Federal payment stablecoin regulator or a primary financial regulatory agency described under subparagraph (B) or (C) of section 2(12) of the Dodd-Frank Wall Street Reform and Consumer Protection Act (12 U.S.C. 5301(12)); or

(B) supervision by a State bank supervisor, as defined under section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813), or a State credit union supervisor, as defined under section 6003 of the Anti-Money Laundering Act of 2020 (31 U.S.C. 5311 note), and such State bank supervisor or State credit union supervisor makes available to the Board such information as the Board determines necessary and relevant to the categories of information under subsection (d); and

(2) complies with the requirements under subsection (b), unless such person holds such property in accordance with similar requirements as required by a primary Federal payment stablecoin regulator, the Securities and Exchange Commission, or the Commodity Futures Trading Commission.

(b) CUSTOMER PROPERTY REQUIREMENT.—A person described in subsection (a) shall, with respect to other property described in that subsection—

(1) treat and deal with the payment stablecoins, private keys, cash, and other property of a person for whom or on whose behalf the person described in that subsection receives, acquires, or holds payment stablecoins, private keys, cash, and other property (hereinafter referred to in this section as the ''customer'') as belonging to such customer and not as the property of such person; and

(2) take such steps as are appropriate to protect the payment stablecoins, private keys, cash, and other property of a customer from the claims of creditors of the person.

(c) COMMINGLING PROHIBITED.—

(1) IN GENERAL.—Payment stablecoin reserves, payment stablecoins, cash, and other property of a permitted payment stablecoin issuer or customer shall be separately accounted for by a person described in subsection (a) and shall be segregated from and not be commingled with the assets of the person.

(2) EXCEPTIONS.—Notwithstanding paragraph (1) or subsection (b)—

(A) the payment stablecoin reserves, payment stablecoins, cash, and other property of a permitted payment stablecoin issuer or customer may, for convenience, be commingled and deposited in an omnibus account holding the payment stablecoin reserves, payment stablecoins, cash, and other property of more than 1 permitted payment stablecoin issuer or customer at a State chartered depository institution, an insured depository institution, national bank, or trust company, and any payment stablecoin reserves in the form of cash held in the form of a deposit liability at a depository institution shall not be subject to any requirement relating to the separation of such cash from the property of the applicable depository institution;

(B) such share of the payment stablecoin reserves, payment stablecoins, cash, and other property of the permitted payment stablecoin issuer or customer that shall be necessary to transfer, adjust, or settle a transaction or transfer of assets may be withdrawn and applied to such purposes, including the payment of commissions, taxes, storage, and other charges lawfully accruing in connection with the provision of services by a person described in subsection (a);

(C) in accordance with such terms and conditions as a primary Federal payment stablecoin regulator may prescribe by rule, regulation, or order, any payment stablecoin reserves, payment stablecoins, cash, and other property described in this subsection may be commingled and deposited in permitted payment stablecoin issuer or customer accounts with payment stablecoin reserves, payment stablecoins, cash, and other property received by the person and required by the primary Federal payment stablecoin regulator to be separately accounted for, treated as, and dealt with as belonging to such permitted payment stablecoin issuers or customers; or

(D) an insured depository institution that provides custodial or safekeeping services for payment stablecoin reserves shall be permitted to hold payment stablecoin reserves in the form of cash on deposit provided such treatment is consistent with Federal law.

(3) CUSTOMER PRIORITY.—With respect to payment stablecoins held by a person described in subsection (a) for a customer, with or without the segregation required under paragraph (1), the claims of the customer against such person with respect to such payment stablecoins shall have priority over the claims of any person other than the claims of another customer with respect to payment stablecoins held by such person described in subsection (a), unless the customer expressly consents to the priority of such other claim.

(d) REGULATORY INFORMATION.—A person described under subsection (a) shall submit to the applicable primary Federal payment stablecoin regulator information concerning the person's business operations and processes to protect customer assets, in such form and manner as the primary regulator shall determine.

(e) EXCLUSION.—The requirements of this section shall not apply to any person solely on the basis that such person engages in the business of providing hardware or software to facilitate a customer's own custody or safekeeping of the customer's payment stablecoins or private keys.

SEC. 11. TREATMENT OF PAYMENT STABLECOIN ISSUERS IN INSOLVENCY PROCEEDINGS.

(a) IN GENERAL.—Subject to section 507(e) of title 11, United States Code, as added by subsection (d), in any insolvency proceeding of a permitted payment stablecoin issuer under Federal or State law, including any proceeding under that title and any insolvency proceeding administered by a State payment stablecoin regulator with respect to a permitted payment stablecoin issuer—

(1) the claim of a person holding payment stablecoins issued by the permitted payment stablecoin issuer shall have priority, on a ratable basis with the claims of other persons holding such payment stablecoins, over the claims of the permitted payment stablecoin issuer and any other holder of claims against the permitted payment stablecoin issuer, with respect to required payment stablecoin reserves;

(2) notwithstanding any other provision of law, including the definition of ''claim'' under section 101(5) of title 11, United States Code, any person holding a payment stablecoin issued by the permitted payment stablecoin issuer shall be deemed to hold a claim; and

(3) the priority under paragraph (1) shall not apply to claims other than those arising directly from the holding of payment stablecoins.

(b) DEFINITIONS.—Section 101 of title 11, United States Code, is amended by adding after paragraph (40B) the following:

''(40C) The terms 'payment stablecoin' and 'permitted payment stablecoin issuer' have

the meanings given those terms in section 2 of the GENIUS Act.''.

(c) AUTOMATIC STAY.—Section 362 of title 11, United States Code, is amended—

(1) in subsection (a)—

(A) in paragraph (7), by striking ''and'';

(B) in paragraph (8), by striking the period and inserting ''; and''; and

(C) by adding at the end the following:

''(9) the redemption of payment stablecoins issued by the permitted payment stablecoin issuer, from payment stablecoin reserves required to be maintained under section 4 of the GENIUS Act.''; and

(2) in subsection (d)—

(A) in paragraph (3)(B)(ii), by striking ''or'' at the end;

(B) in paragraph (4)(B), by striking the period at the end and inserting ''; or''; and

(C) by inserting after paragraph (4) the following:

''(5) with respect to the redemption of payment stablecoins held by a person, if the court finds, subject to the motion and attestation of the permitted payment stablecoin issuer, which shall be filed on the petition date or as soon as practicable thereafter, there are payment stablecoin reserves available for distribution on a ratable basis to similarly situated payment stablecoin holders, provided that the court shall use best efforts to enter a final order to begin distributions under this paragraph not later than 14 days after the date of the required hearing.''.

(d) PRIORITY IN BANKRUPTCY PROCEEDINGS.—Section 507 of title 11, United States Code, is amended—

(1) in subsection (a), in the matter preceding paragraph (1), by striking ''The following'' and inserting ''Subject to subsection (e), the following''; and

(2) by adding at the end the following:

''(e) Notwithstanding subsection (a), if a payment stablecoin holder is not able to redeem all outstanding payment stablecoin claims from required payment stablecoin reserves maintained by the permitted payment stablecoin issuer, any such remaining claim arising from a person's holding of a payment stablecoin issued by the permitted payment stablecoin issuer shall be a claim against the estate and shall have first priority over any other claim, including over any expenses and claims that have priority under that subsection, to the extent compliance with section 4 of the GENIUS Act would have required additional reserves to be maintained by the permitted payment stablecoin issuer for payment stablecoin holders.''.

(e) PAYMENT STABLECOIN RESERVES.—Section 541(b) of title 11, United States Code, is amended—

(1) in paragraph (9), in the matter following subparagraph (B), by striking ''or'' at the end;

(2) in paragraph (10)(C), by striking the period and inserting ''; or''; and

(3) by inserting after paragraph (10) the following:

''(11) required payment stablecoin reserves under section 4 of the GENIUS Act, provided that notwithstanding the exclusion of such reserves from the property of the estate, section 362 of this title shall apply to such reserves.''.

(f) INTERVENTION.—Section 1109 of title 11, United States Code, is amended by adding at the end the following:

''(c) The Comptroller of the Currency or State payment stablecoin regulator (as defined in section 2 of the GENIUS Act) shall raise, and shall appear and be heard on, any issue, including the protection of customers, in a case under this chapter in which the debtor is a permitted payment stablecoin issuer.''.

(g) APPLICATION OF EXISTING INSOLVENCY LAW.—In accordance with otherwise applicable law, an insolvency proceeding with respect to a permitted payment stablecoin issuer shall occur as follows:

(1) A depository institution (as defined in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813)) shall be resolved by the Federal Deposit Insurance Corporation, National Credit Union Administration, or State payment stablecoin regulator, as applicable.

(2) A subsidiary of a depository institution (as defined in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813)) or a nonbank entity may be considered a debtor under title 11, United States Code.

(h) STUDY BY PRIMARY FEDERAL PAYMENT STABLECOIN REGULATORS.—

(1) STUDY REQUIRED.—The primary Federal payment stablecoin regulators shall perform a study of the potential insolvency proceedings of permitted payment stablecoin issuers, including an examination of—

(A) existing gaps in the bankruptcy laws and rules for permitted payment stablecoin issuers;

(B) the ability of payment stablecoin holders to be paid out in full in the event a permitted payment stablecoin issuer is insolvent; and

(C) the utility of orderly insolvency administration regimes and whether any additional authorities are needed to implement such regimes.

(2) REPORT.—Not later than 3 years after the date of enactment of this Act, the primary Federal payment stablecoin regulators shall submit to the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives a report that contains all findings of the study under paragraph (1), including any legislative recommendations.

SEC. 12. INTEROPERABILITY STANDARDS.

The primary Federal payment stablecoin regulators, in consultation with the National Institute of Standards and Technology, other relevant standard-setting organizations, and State bank and credit union regulators, shall assess and, if necessary, may, pursuant to section 553 of title 5, United States Code, and in a manner consistent with the National Technology Transfer and Advancement Act of 1995 (Public Law 104–113), prescribe standards for permitted payment stablecoin issuers to promote compatibility and interoperability with—

(1) other permitted payment stablecoin issuers; and

(2) the broader digital finance ecosystem, including accepted communications protocols and blockchains, permissioned or public.

SEC. 13. RULEMAKING.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, each primary Federal payment stablecoin regulator, the Secretary of the Treasury, and each State payment stablecoin regulator shall promulgate regulations to carry out this Act through appropriate notice and comment rulemaking.

(b) COORDINATION.—Federal payment stablecoin regulators, the Secretary of the Treasury, and State payment stablecoin regulators should coordinate, as appropriate, on the issuance of any regulations to implement this Act.

(c) REPORT REQUIRED.—Not later than 180 days after the effective date of this Act, each Federal banking agency shall submit to the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives a report that confirms and describes the regulations promulgated to carry out this Act.

SEC. 14. STUDY ON NON-PAYMENT STABLECOINS.

(a) STUDY BY TREASURY.—

(1) STUDY.—The Secretary of the Treasury, in consultation with the Board, the Comptroller, the Corporation, the Securities and Exchange Commission, and the Commodity Futures Trading Commission shall carry out a study of non-payment stablecoins, including endogenously collateralized payment stablecoins.

(2) REPORT.—Not later than 365 days after the date of the enactment of this Act, the Secretary of the Treasury shall provide to the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives a report that contains all findings made in carrying out the study under paragraph (1), including an analysis of—

(A) the categories of non-payment stablecoins, including the benefits and risks of technological design features;

(B) the participants in non-payment stablecoin arrangements;

(C) utilization and potential utilization of non-payment stablecoins;

(D) the nature of reserve compositions;

(E) types of algorithms being employed;

(F) governance structure, including aspects of decentralization;

(G) the nature of public promotion and advertising; and

(H) the clarity and availability of consumer notices disclosures.

(3) CLASSIFIED ANNEX.—A report under this section may include a classified annex, if applicable.

(b) ENDOGENOUSLY COLLATERALIZED PAYMENT STABLECOIN DEFINED.—In this section, the term ''endogenously collateralized payment stablecoin'' means any digital asset—

(1) the originator of which has represented will be converted, redeemed, or repurchased for a fixed amount of monetary value; and

(2) that relies solely on the value of another digital asset created or maintained by the same originator to maintain the fixed price.

SEC. 15. REPORTS.

(a) ANNUAL REPORTING REQUIREMENT.—Beginning on the date that is 1 year after the date of enactment of this Act, and annually thereafter, the primary Federal payment stablecoin regulators, in consultation with State payment stablecoin regulators, as necessary, shall submit to the Committee on Banking, Housing, and Urban Affairs of the Senate, the Committee on Financial Services of the House of Representatives, and the Director of the Office of Financial Research a report, which may include a classified annex, if applicable, on the status of the payment stablecoin industry, including—

(1) a summary of trends in payment stablecoin activities;

(2) a summary of the number of applications for approval as a permitted payment stablecoin issuer under section 5, including aggregate approvals and rejections of applications; and

(3) a description of the potential financial stability risks posed to the safety and soundness of the broader financial system by payment stablecoin activities.

(b) FSOC REPORT.—The Financial Stability Oversight Council shall incorporate the findings in the report under subsection (a) into the annual report of the Council required under section 112(a)(2)(N) of the Financial Stability Act of 2010 (12 U.S.C. 5322(a)(2)(N)).

SEC. 16. AUTHORITY OF BANKING INSTITUTIONS.

(a) RULE OF CONSTRUCTION.—Nothing in this Act may be construed to limit the authority of a depository institution, Federal credit union, State credit union, national bank, or trust company to engage in activities permissible pursuant to applicable State and Federal law, including—

(1) accepting or receiving deposits or shares (in the case of a credit union), and issuing digital assets that represent those deposits or shares;

(2) utilizing a distributed ledger for the books and records of the entity and to effect intrabank transfers; and

(3) providing custodial services for payment stablecoins, private keys of payment stablecoins, or reserves backing payment stablecoins.

(b) REGULATORY REVIEW.—Entities regulated by the primary Federal payment stablecoin regulators are authorized to engage in the payment stablecoin activities and investments contemplated by this Act, including acting as a principal or agent with respect to any payment stablecoin and payment of fees to facilitate customer transactions. The primary Federal payment stablecoin regulators shall review all existing guidance and regulations, and if necessary, amend or promulgate new regulations and guidance, to clarify that regulated entities are authorized to engage in such activities and investments.

(c) TREATMENT OF CUSTODY ACTIVITIES.—The appropriate Federal banking agency, the National Credit Union Administration (in the case of a credit union), and the Securities and Exchange Commission may not require a depository institution, national bank, Federal credit union, State credit union, or trust company, or any affiliate thereof—

(1) to include digital assets held in custody that are not owned by the entity as a liability on the financial statement or balance sheet of the entity, including payment stablecoin custody or safekeeping activities; or

(2) to hold in custody or safekeeping regulatory capital against digital assets and reserves backing such assets described in section 4(a)(1)(A), except as necessary to mitigate against operational risks inherent in custody or safekeeping services, as determined by—

(A) the appropriate Federal banking agency;

(B) the National Credit Union Administration (in the case of a credit union);

(C) a State bank supervisor; or

(D) a State credit union supervisor.

(d) STATE-CHARTERED DEPOSITORY INSTITUTIONS.—

(1) IN GENERAL.—A depository institution chartered under the banking laws of a State, that has a subsidiary that is a permitted payment stablecoin issuer, may engage in the business of money transmission or provide custodial services through the permitted payment stablecoin issuer in any State if such State-chartered depository institution is—

(A) required by the laws or regulations of the home State to establish and maintain adequate liquidity, and such liquidity is regularly reassessed by the home State banking supervisor to take into account any changes in the financial condition and risk profile of the institution, including any uninsured deposits maintained by such institution; and

(B) required by the laws or regulations of the home State to establish and maintain adequate capital, and such capital is regularly reassessed by the home State banking supervisor to take into account any changes in the financial condition and risk profile of the institution, including any uninsured deposits maintained by such institution.

(2) RULE OF CONSTRUCTION.—Nothing in this section shall limit, or be construed to limit, the authority of a host State bank regulator, to perform examinations of a depository institution's subsidiary permitted payment stablecoin issuer or activities conducted through the permitted payment stablecoin issuer to ensure compliance with host State consumer protection laws that the host State bank regulator has specific jurisdiction to enforce, which shall apply to such institution consistent with section 7(f).

(e) DEFINITIONS.—In this section:

(1) HOME STATE.—The term ''home State'' means the State by which the depository institution is chartered.

(2) HOST STATE.—The term ''host State'' means a State in which a depository institution establishes a branch, solicits customers, or otherwise engages in business activities, other than the home State.

SEC. 17. AMENDMENTS TO CLARIFY THAT PAYMENT STABLECOINS ARE NOT SECURITIES OR COMMODITIES AND PERMITTED PAYMENT STABLECOIN ISSUERS ARE NOT INVESTMENT COMPANIES.

(a) INVESTMENT ADVISERS ACT OF 1940.—Section 202(a)(18) of the Investment Advisers Act of 1940 (15 U.S.C. 80b–2(a)(18)) is amended by adding at the end the following: ''The term 'security' does not include a payment stablecoin issued by a permitted payment stablecoin issuer, as such terms are defined in section 2 of the GENIUS Act.''.

(b) INVESTMENT COMPANY ACT OF 1940.—The Investment Company Act of 1940 (15 U.S.C. 80a–1 et seq.) is amended

(1) in section 2(a)(36) of the Act (15 U.S.C. 80a–2(a)(36)), by adding at the end the following: ''The term 'security' does not include a payment stablecoin issued by a permitted payment stablecoin issuer, as such terms are defined in section 2 of the GENIUS Act.''; and

(2) in section 3(c)(3) of the Act (15 U.S.C. 80a–3(c)(3)), by inserting ''any permitted payment stablecoin issuer, as such term is defined in section 2 of the GENIUS Act;'' after ''therefor;''.

(c) SECURITIES ACT OF 1933.—Section 2(a)(1) of the Securities Act of 1933 (15 U.S.C. 77b(a)(1)) is amended by adding at the end the following: ''The term 'security' does not include a payment stablecoin issued by a permitted payment stablecoin issuer, as such terms are defined in section 2 of the GENIUS Act.''.

(d) SECURITIES EXCHANGE ACT OF 1934.—Section 3(a)(10) of the Securities Exchange Act of 1934 (15 U.S.C. 78c(a)(10)) is amended by adding at the end the following: ''The term 'security' does not include a payment stablecoin issued by a permitted payment stablecoin issuer, as such terms are defined in section 2 of the GENIUS Act.''.

(e) SECURITIES INVESTOR PROTECTION ACT OF 1970.—Section 16(14) of the Securities Investor Protection Act of 1970 (15 U.S.C. 78lll(14)) is amended by adding at the end the following: ''The term 'security' does not include a payment stablecoin issued by a permitted payment stablecoin issuer, as such terms are defined in section 2 of the GENIUS Act.''.

(f) COMMODITY EXCHANGE ACT.—Section 1a(9) of the Commodity Exchange Act (7 U.S.C. 1a(9)) is amended by adding at the end the following: ''The term 'commodity' does not include a payment stablecoin issued by a permitted payment stablecoin issuer, as such terms are defined in section 2 of the GENIUS Act.''.

SEC. 18. EXCEPTION FOR FOREIGN PAYMENT STABLECOIN ISSUERS AND RECIPROCITY FOR PAYMENT STABLECOINS ISSUED IN OVERSEAS JURISDICTIONS.

(a) IN GENERAL.—The prohibitions under section 3 shall not apply to a foreign payment stablecoin issuer if all of the following apply:

(1) The foreign payment stablecoin issuer is subject to regulation and supervision by a foreign payment stablecoin regulator of a foreign country, a territory of the United States, Puerto Rico, Guam, American Samoa, or the Virgin Islands that has a regulatory and supervisory regime with respect to payment stablecoins that the Secretary of the Treasury determines, pursuant to subsection (b), is comparable to the regulatory and supervisory regime established under this Act, including, in particular, the requirements under section 4(a).

(2) The foreign payment stablecoin issuer is registered with the Comptroller pursuant to subsection (c).

(3) The foreign payment stablecoin issuer holds reserves in a United States financial institution sufficient to meet liquidity demands of United States customers, unless otherwise permitted under a reciprocal arrangement established pursuant to subsection (d).

(4) The foreign country in which the foreign payment stablecoin issuer is domiciled and regulated is not subject to comprehensive economic sanctions by the United States or in a jurisdiction that the Secretary of the Treasury has determined to be a jurisdiction of primary money laundering concern.

(b) TREASURY DETERMINATION.—

(1) IN GENERAL.—The Secretary of the Treasury may make a determination as to whether a foreign country has a regulatory and supervisory regime that is comparable to the requirements established under this Act, including the requirements under section 4(a). The Secretary of the Treasury may make such a determination only upon a recommendation from each other member of the Stablecoin Certification Review Committee. Prior to such determination taking effect, the Secretary of the Treasury shall publish in the Federal Register a justification for such determination, including how the foreign country's regulatory and supervisory regime is comparable to the requirements established under this Act, including the requirements under section 4(a).

(2) REQUEST.—A foreign payment stablecoin issuer or a foreign payment stablecoin regulator may request from the Secretary of the Treasury a determination under paragraph (1).

(3) TIMING FOR DETERMINATION.—If a foreign payment stablecoin issuer or foreign payment stablecoin regulator requests a determination under paragraph (2), the Secretary of the Treasury shall render a decision on the determination not later than 210 days after the receipt of a substantially complete determination request.

(4) RESCISSION OF DETERMINATION.—

(A) IN GENERAL.—The Secretary of the Treasury may, in consultation with the Federal payment stablecoin regulators, rescind a determination made under paragraph (1), if the Secretary determines that the regulatory regime of such foreign country is no longer comparable to the requirements established under this Act. Prior to such rescission taking effect, the Secretary of the Treasury shall publish in the Federal Register a justification for the rescission.

(B) LIMITED SAFE HARBOR.—If the Secretary of the Treasury rescinds a determination pursuant to subparagraph (A), a digital asset service provider shall have 90 days before the offer or sale of a payment stablecoin issued by the foreign payment stablecoin issuer that is the subject of the rescinded determination shall be in violation of section 3.

(5) PUBLIC NOTICE.—The Secretary of the Treasury shall keep and make publicly available a current list of foreign countries for which a determination under paragraph (1) has been made.

(6) RULEMAKING.—Not later than 1 year after the date of enactment of this Act, the Secretary of the Treasury shall issue such

rules as may be required to carry out this section.

(c) REGISTRATION AND ONGOING MONITORING.—

(1) REGISTRATION.—

(A) IN GENERAL.—A foreign payment stablecoin issuer may offer or sell payment stablecoins using a digital asset service provider if the foreign payment stablecoin issuer is registered with the Comptroller.

(B) REGISTRATION APPROVAL.—A registration of a foreign payment stablecoin issuer filed in accordance with this section shall be deemed approved on the date that is 30 days after the date the Comptroller receives the registration, unless the Comptroller notifies the foreign payment stablecoin issuer in writing that such registration has been rejected.

(C) STANDARDS FOR REJECTION.—In determining whether to reject a foreign payment stablecoin issuer's registration, the Comptroller shall consider

(i) the final determination of the Secretary of the Treasury under this section;

(ii) the financial and managerial resources of the United States operations of the foreign payment stablecoin issuer;

(iii) whether the foreign payment stablecoin issuer will provide adequate information to the Comptroller as the Comptroller determines is necessary to determine compliance with this Act;

(iv) whether the foreign payment stablecoin presents a risk to the financial stability of the United States; and

(v) whether the foreign payment stablecoin issuer presents illicit finance risks to the United States.

(D) PROCEDURE FOR APPEAL.—If the Comptroller rejects a registration, not later than 30 days after the date of receipt of such rejection, the foreign payment stablecoin issuer may appeal the rejection by notifying the Comptroller of the request to appeal.

(E) RULEMAKING.—Pursuant to section 13 of this Act, the Comptroller shall issue rules relating to the standards for approval of registration requests and the process for appealing denials of such registration requests.

(F) PUBLIC NOTICE.—The Comptroller shall keep and make publicly available a current list of foreign payment stablecoin issuer registrations that have been approved.

(2) ONGOING MONITORING.—A foreign payment stablecoin issuer shall

(A) be subject to reporting, supervision, and examination requirements as determined by the Comptroller; and

(B) consent to United States jurisdiction relating to the enforcement of this Act.

(3) LACK OF COMPLIANCE.—

(A) COMPTROLLER ACTION.—The Comptroller may, in consultation with the Secretary of the Treasury, rescind approval of a registration of a foreign payment stablecoin issuer under this subsection if the Comptroller determines that the foreign payment stablecoin issuer is not in compliance with the requirements of this Act, including for maintaining insufficient reserves or posing an illicit finance risk or financial stability risk. Prior to such rescission taking effect, the Comptroller shall publish in the Federal Register a justification for the rescission.

(B) SECRETARY ACTION.—The Secretary of the Treasury, in consultation with the Comptroller, may revoke a registration of a foreign payment stablecoin issuer under this subsection if the Secretary determines that reasonable grounds exist for concluding that the foreign payment stablecoin issuer presents economic sanctions evasion, money laundering, or other illicit finance risks, or, as applicable, violations, or facilitation thereof.

(d) RECIPROCITY.—

(1) IN GENERAL.—The Secretary of the Treasury may create and implement reciprocal arrangements or other bilateral agreements between the United States and jurisdictions with payment stablecoin regulatory regimes that are comparable to the requirements established under this Act. The Secretary of the Treasury shall consider whether the jurisdiction's requirements for payment stablecoin issuers include

(A) similar requirements to those under section 4(a);

(B) adequate anti-money laundering and counter-financing of terrorism program and sanction compliance standards; and

(C) adequate supervisory and enforcement capacity to facilitate international transactions and interoperability with United States dollar-denominated payment stablecoins issued overseas.

(2) PUBLICATION.—Not later than 90 days prior to the entry into force of any arrangement or agreement under paragraph (1), the Secretary of the Treasury shall publish the arrangement or agreement in the Federal Register.

(3) COMPLETION.—The Secretary of the Treasury should complete the arrangements under this subsection not later than the date that is 2 years after the date of enactment of this Act.

SEC. 19. DISCLOSURE RELATING TO PAYMENT STABLECOINS.

Section 13104(a)(3) of title 5, United States Code, is amended, in the first sentence, by striking '', or any deposits'' and inserting '', any payment stablecoins issued by a permitted payment stablecoin issuer aggregating $5,000 or less held, or any deposits''.

SEC. 20. EFFECTIVE DATE.

This Act, and the amendments made by this Act, shall take effect on the earlier of

(1) the date that is 18 months after the date of enactment of this Act; or

(2) the date that is 120 days after the date on which the primary Federal payment stablecoin regulators issue any final regulations implementing this Act.

The SPEAKER pro tempore. The bill shall be debatable for 1 hour, equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services or their respective designees.

The gentleman from Arkansas (Mr. HILL) and the gentlewoman from California (Ms. WATERS) each will control 30 minutes.

The Chair recognizes the gentleman from Arkansas.

GENERAL LEAVE

Mr. HILL of Arkansas. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arkansas?

There was no objection.

Mr. HILL of Arkansas. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in strong support of the Senate GENIUS Act, and I thank my colleague and longtime friend, Senator BILL HAGERTY of Tennessee, for his leadership in ushering this bipartisan bill through the United States Senate.

Around the world, payment systems are undergoing an evolution. New technologies are modernizing legacy infrastructure and unlocking innovative solutions to improve efficiency, reduce costs, and expand access to financial services.

Members of the House Financial Services Committee have long recognized the promise of payment stablecoins and have worked since 2022 to establish a legislative framework.

Last Congress, under the leadership of former Chairman Patrick McHenry of North Carolina, the committee passed the Clarity for Payment Stablecoins Act of 2023. This bill provided for bank and nonbank pathways for issuers to obtain regulatory approval, preserve State-level oversight, and set standards for reserve composition, audits, and sound risk management.

When the 119th Congress started in January, we picked up this effort. In close coordination with the Senate Banking Committee and our base legislation, our legislative work over the past 2 years has laid that foundation for the progress made in both the House and the Senate.

Today, we have an opportunity to send stablecoin legislation to President Trump's desk. This is a multi-Congress priority item, and it ensures American competitiveness and strong guardrails for our consumers. We should not, Mr. Speaker, squander that opportunity.

This priority has been agreed to by both President Biden, with his executive order, and President Trump in his Executive Order 14178.

□ 1040

Mr. Speaker, through multiple versions of stablecoin legislation, the House and Senate have shared ideas and crafted workable approaches. Our joint efforts before us helped enhance the legislation on the floor this morning.

I recognize the hard work of my friends in the Senate to get the core fundamentals of what payment stablecoin legislation demands.

I also recognize the diligence and thoughtful work of my colleagues here in the House, including the chairman of our Subcommittee on Digital Assets, Financial Technology, and Artificial Intelligence, BRYAN STEIL, who championed and worked through our committee through markup in successfully designing, writing, and passing in committee the STABLE Act.

I thank my House colleagues for their principled approach to key policies that guided and distinguished our efforts particularly around State regime oversight, the reserve composition, the anti-money laundering, and territorial integrity issues around stablecoins, and, finally, the corporate structure of issuers.

Furthermore, it is my firmly held belief that only by enacting payment stablecoin legislation and, Mr. Speaker, I repeat, and comprehensive market structure reform in this Congress, like we just debated a few minutes ago, the

CLARITY Act, only by passing both will this Congress fully usher in the era of digital finance and ensure that consumers are protected whenever they engage with digital assets.

Mr. Speaker, I urge all my colleagues to join me in supporting this bill and sending it forward to 1600 Pennsylvania Avenue for President Trump to sign into law.

Mr. Speaker, I reserve the balance of my time.

Ms. WATERS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, 2 weeks ago Republicans boasted about how they would provide billionaires with tax cuts they don't need by stripping healthcare from 17 million Americans, shuttering hospitals across the country, and starving 12 million families, including millions of children.

These billionaires are the same individuals who proudly gave millions of dollars to President Trump's campaign. They literally bought votes during the last election and even sponsored Stalinist military parades to celebrate the President's birthday.

No one should be surprised that these same Republicans' next order of business is to validate, legitimize, and endorse the Trump family's corruption and efforts to sell the White House to the highest bidder.

S. 1582, the so-called GENIUS Act, establishes a woefully deficient Federal framework for dollar-denominated payment stablecoins in the United States. Stablecoins are a form of digitized private money. Unlike other types of crypto, these coins claim to always maintain their value, often one coin for $1.

Nevertheless, that promise of stability is precisely what causes stablecoins to be subject to bank-like runs where the public rushes to sell their stablecoins at the first whiff of instability, making a bit of bad news into a full-blown financial crisis.

It was for this reason that when I was chairwoman of the committee, I sought to create a Federal framework to oversee these stablecoins and ensure that consumers are protected. I worked with the Biden administration and former Republican Chairman Patrick Henry to craft legislation.

We achieved that goal, and I posted that legislation earlier this year. We wanted to create a strong Federal system to oversee this type of crypto market that protected consumers, our national security, and financial stability.

Unfortunately, the election of Donald Trump ended those bipartisan efforts and brought a significant new challenge to stablecoins. That challenge was the Trump family's brazen corruption using crypto to sell access in exchange for official acts.

It just so happens that those stablecoins are one of the main vehicles Trump is using to make his corrupt crypto billions. The Trump family's crypto company, World Liberty Financial, launched a stablecoin called USD1 in April.

Shortly after that, the Abu Dhabi-backed investment from MGX bought $2 billion of Trump's coins to make an investment in Binance, a company that had been under investigation for numerous legal violations. Trump and his family will make tens of millions of dollars just on that transaction from the interest earnings alone. That is Abu Dhabi's money.

More concerning, by passing this bill, Congress will be telling the world that Congress is okay with corruption, okay with foreign companies buying influence, and okay with criminals buying Trump coins to seek pardons and beneficial treatment.

Each of my colleagues surely can see how this is a blatant conflict of interest. Democrats and the rest of America do, as well. It is why I introduced the Stop TRUMP in Crypto Act, to ban the President, Vice President, and Members of Congress from crypto corruption. If we do not ban elected officials in S. 1582, including the President or Vice President, from crypto corruption, each of us will be complicit.

Let me be clear on this point because there has been a lot of misinformation. This bill has a policy statement that elected officials like Members of Congress and Senators, as well as government officials, cannot issue their own stablecoin.

Are my colleagues aware who Republicans did not ban? Get this straight. The President and the Vice President are the only elected officials that can have a crypto business. Why are the Republicans protecting the President so he can make billions and billions more?

Don't just take my word for it. Earlier this week, Chairman HILL confirmed this much in the Rules Committee. Anyone who says the bill stops the President's company from issuing stablecoins is not telling the truth.

Yet, even if we adopted such a ban, the GENIUS Act, sent over by the Senate and apparently unable to be amended, is still bad public policy. S. 1582 creates the appearance of a Federal framework for stablecoins, but it does not provide the Federal Government with the full authority it needs to ensure that all stablecoin issuers comply with the law.

The bill also creates risks for consumers who will be stuck in a lengthy bankruptcy process if a stablecoin ever fails.

Additionally, it leaves the door open for foreign firms that present a major national security threat, including targets of sanctions, all to appease those in the Trump family's inner circle which has ties to those shady entities.

Yes, I am talking about Tether, the foreign stablecoin issuer everyone knows has been used in terrorist financing, organized crime schemes, and other horrible acts but which the Secretary of Commerce has close ties with.

Let me give one more example of why this bill is just bad for America. The very heart of this bill is that stablecoins will, in fact, be stable because they will be backed one to one with solid, safe assets. I invite anyone to read the bill.

While some of the reserves are cash and short-term Treasury securities, this bill allows for uninsured deposits. We already know how dangerous these deposits are. When Silicon Valley Bank failed, Circle, the largest stablecoin today, had $3 billion locked up in uninsured deposits and needed the Federal Government to rescue it. That isn't all.

A stablecoin issuer is also permitted to hold bitcoin as reserves. That is because someone added language in this bill late in the night that added new definitions and language to the bill.

The language allows for a stablecoin issuer to use any money received under repurchase agreements that are a means of exchange currently authorized or adopted by a foreign government.

Do my colleagues know what Trump's favorite strongman, the dictator of El Salvador, adopted as a legal currency? He adopted bitcoin.

□ 1050

This highly volatile cryptocurrency will now be eligible to be a reserve backing your stablecoins. It is truly absurd and dangerous and will lead to consumers losing their money and the taxpayers being called on to bail out the financial system.

It is for all of these reasons that I submitted several amendments to this bill, none of which were made in order by Republicans, because the President has rejected any conflict of interest language that binds him.

One interesting point is that even Chairman HILL himself inserted language at the end of the so-called CLARITY Act that the House is separately considering this week that actually amends the GENIUS Act.

Mr. Speaker, you heard me right. Rather than amend the GENIUS Act, which our own chairman saw had problems, he put his changes at the end of the CLARITY Act.

Mr. Speaker, you may be asking why he would do that. He could just offer his amendments to the GENIUS Act. The reason is that House Republican leadership has given up our power as the United States House of Representatives to work the will of our Members on behalf of our constituents and make changes to any legislation that the Senate sends us. Instead, we are simply taking the language directly from the Senate with no amendments, even when the chairman and other House Members know that this bill is flawed.

Unfortunately, because President Trump demanded the bill be passed without any changes, that is what the Republican Congress will do.

One of Chairman HILL's changes to the GENIUS Act addresses a key concern I have had from the beginning, which is that Facebook and any other Big Tech company should not be allowed to issue their own stablecoin.

That would violate a longstanding separation of banking and commerce in financial regulation, and our chairman's amended language would help close this loophole.

Unfortunately, the GENIUS Act allows Elon Musk's X to issue its own stablecoin and creates a pathway for Facebook to do the same.

For these reasons and many more, I strongly oppose this bill.

Mr. Speaker, I reserve the balance of my time.

The SPEAKER pro tempore (Mr. PATRONIS). Members are reminded to refrain from engaging in personalities toward the President.

Mr. HILL of Arkansas. Mr. Speaker, I yield myself such time as I may consume. I would like to address a few of those points.

One, I am so delighted to hear that it sounds as if my friend, the ranking member from California, in fact, will now vote for the CLARITY Act this afternoon on the House floor since she highlights some of my suggested changes to the GENIUS Act. I appreciate her remarks on that.

Here is the big picture, Mr. Speaker. These bills, the CLARITY and GENIUS Acts, are about protecting American consumers, protecting investments, bringing capital back to the United States, and making the U.S. a fintech leader in payments and digital assets.

Consumers are protected. The rules are straightforward. All issuers of a payment stablecoin are treated the same, with high standards and high regulatory oversight. I want to make sure that those at home following on C–SPAN get the record straight.

Mr. Speaker, I yield 1 minute to the gentleman from Pennsylvania (Mr. THOMPSON), who is the chair of the House Agriculture Committee and who, for years, has been a partner in crafting a digital asset approach that will make America more competitive.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I am proud to stand before Chairman HILL and support the GENIUS Act. It actually garnered 68 bipartisan votes in the Senate. I appreciate those Senators. They demonstrated an awareness of the needs of a modern financial sector here in the United States. I congratulate Chairman HILL and Chairman STEIL and thank them for their work on the stablecoin legislation.

The GENIUS Act represents an important step for this Congress in establishing the United States as a leader in the digital asset space.

This legislation, together with the market structure bill that we previously considered, which I have had the honor of cosponsoring with my colleagues on the Financial Services Committee, will provide important safeguards around the utility of vital digital assets in the next generation of global finance.

Furthermore, Mr. Speaker, I intend to submit additional remarks for the RECORD to clarify congressional intent on the effect the bill may have on the ability to list certain derivative products.

Mr. THOMPSON. Mr. Speaker, additionally, I would further state the following understanding with respect to the ability to offer listed derivatives products on payment stablecoins.

By excluding ''payment stablecoins'' from the definition of ''commodity'' in § 1a(9) of the Commodity Exchange Act (7 U.S.C. 1a et seq.) Congressional intent was not to extend Commodity Futures Trading Commission's (''CFTC'') jurisdiction over ''payment stablecoins'' and leaving this jurisdictional reach only for appropriate State and Federal payment stablecoin regulators. However, in the event that a derivative market on payment stablecoins develops, such exclusion of ''payment stablecoins'' from ''commodity'' would not affect the regulatory status under the CEA of certain derivative instruments based on ''payment stablecoins'' issued under the GENIUS Act, such as ''swaps'' as defined in § 1a(47) of the CEA. For example, registered designated contract markets (''DCMs''), i.e., commodity exchanges, and swap execution facilities (''SEFs'') could list for trading swaps on payment stablecoins and make them available for retail and professional participants to allow them to hedge and mitigate their commercial risks and exposure to potential market price fluctuations of ''payment stablecoins.''

Because ''swaps'' are qualified as ''commodity interests'' under § 1.3 of CFTC regulations (17 C.F.R. 1, et seq.), CFTC will have jurisdiction to police fraud, manipulation, insider trading and other market violations and to otherwise ensure customer protection of retail participants if a derivative market in payment stablecoin swaps develops in the U.S. or overseas and becomes available to U.S. persons.

Ms. WATERS. Mr. Speaker, I yield 3 minutes to the gentleman from Massachusetts (Mr. LYNCH), who is also the ranking member of the Subcommittee on Digital Assets, Financial Technology, and Artificial Intelligence.

Mr. LYNCH. Mr. Speaker, I thank the gentlewoman for yielding.

Mr. Speaker, I rise in strong opposition to the so-called GENIUS Act.

Mr. Speaker, this bill has never even been considered or debated by the House Financial Services Committee or the Agriculture Committee, the committees of jurisdiction, which is the usual practice in this body. I guess this is what passes for genius these days.

Republican leadership has, once again, caved in to President Trump's demands to quickly push crypto legislation.

President Trump just yesterday posted to pass the GENIUS Act ASAP. There is no need to debate it, read it, or amend it. Just pass it.

Mr. Speaker, you might think that Republicans might be cautious about taking financial policy directions from someone who has a side hustle selling baseball hats and Bibles and who has filed bankruptcy six times in the past 20 years. Sadly, Mr. Speaker, you would be mistaken.

This bill significantly weakens the U.S. dollar, which is the global U.S. reserve currency and provides a huge competitive advantage for our country.

This bill allows a complete takeover of our financial system by Big Tech companies by allowing these massive companies to issue their own cryptocurrencies.

For example, Google has 3.5 billion daily users, and META has over 2 billion active daily users, not to mention Amazon, X, or Walmart. Several of these companies have already indicated they are planning to launch crypto stablecoins if this bill becomes law. These companies can easily compel or incentivize users to move away from the dollar, away from traditional banks, and into these so-called stablecoins.

President Trump's own stablecoin is set to become one of the top 10 stablecoins after Abu Dhabi announced a $2 billion investment in World Liberty Financial, which is a joint venture between the Trump family, his sons, and Steve Witkoff and his family. You may recall, Mr. Speaker, that Steve Witkoff is Trump's Special Envoy to the Middle East, where Abu Dhabi is located.

Nothing in this bill prevents the clear conflicts of interest and violations of ethics laws by President Trump.

The worst aspect of this bill is the danger and risk that it puts on the backs of U.S. taxpayers because this will not end well, and nothing in this bill prevents a taxpayer bailout of crypto. If we really wanted to protect the taxpayer, we could require the crypto companies that are pushing these bills to absorb the losses if they fail. That would seem fair. Despite several attempts to have amendments included in this bill that would protect the taxpayer from paying for crypto bailouts, my Republican colleagues repeatedly refused.

We have seen in the past, in 2008, when the last version of financial innovation blew up, the collateralized debt obligations and other complex derivatives. It was the taxpayer who had to clean up that mess to the tune of $700 billion, while the bankers who created the mess got bonuses.

We should not let that happen again.

Mr. Speaker, I urge my friends on the other side and my colleagues on our side to defend the U.S. taxpayer and vote ''no'' on this bill.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President.

Mr. HILL of Arkansas. Mr. Speaker, I really have to say that I believe the GENIUS Act is an important component for preserving and enhancing the United States dollar as the reserve currency around the world.

Mr. Speaker, I yield 3 minutes to the gentleman from Minnesota (Mr. EMMER), who is our majority whip and who has been instrumental in our success in crafting digital asset legislation.

Mr. EMMER. Mr. Speaker, in November, the American people elected the most pro-innovation and pro-crypto Congress and President in American history. Following his historic victory, President Trump gave Congress a mandate to pass landmark legislation to create rules of the road for the digital asset ecosystem. The GENIUS Act is the first step in fulfilling that promise.

□ 1100

I applaud my Senate colleagues Chairman SCOTT and Senators HAGERTY, LUMMIS, and GILLIBRAND for energizing an often calcified Senate and sending over the GENIUS Act. Furthermore, I thank my colleagues, Speaker JOHNSON and Leader SCALISE, along with Chairman HILL and Chairman THOMPSON, for putting this bill on the House floor today for a vote.

Fundamentally, any stablecoin bill is about national security. It is about preserving and extending the dollar's dominance as the world's reserve currency. People want to transact in dollars because we have the strongest and most reliable economy and government in the world. It is the currency the world counts on to do business, and the United States' global position relies on that status.

The United States cannot afford to sit on the sidelines. If we fail to lead in this space, we risk leaving the door open for authoritarian regimes like China to advance its state-controlled digital currencies.

This bill is a globally competitive, regulatory framework for dollar-backed stablecoins, one that encourages domestic innovation and brings transaction volume back into the United States' visibility and under our control.

As we saw over the last 4 years under the Biden administration, regulation by enforcement not only created uncertainty but also pushed companies offshore. A clear and defined stablecoin framework, like that in the GENIUS Act, keeps these innovators here at home and brings back all those who left.

This is not a perfect bill, but it is a perfect bill for this moment. Congress must keep its eyes on the finish line and send the GENIUS Act to President Trump's desk this week.

Bottom line: The GENIUS Act is a proinnovation, profreedom, and progrowth piece of legislation. It is a bipartisan solution to a global challenge, empowering U.S. markets to lead, not follow.

Let's pass this bill and secure American financial leadership in the global digital economy. I encourage all my friends in this body to unequivocally vote ''yes'' on this bill.

Ms. WATERS. Mr. Speaker, I yield 3 minutes to the gentleman from California (Mr. SHERMAN), who is also the ranking member of the Subcommittee on Capital Markets.

Mr. SHERMAN. Mr. Speaker, it is customary, when we consider major legislation, to give credit to those who created the bill. The ghost of Sam Bankman-Fried looms above this auditorium. He is the genius behind this GENIUS Act, and one can only hope that he is able to watch C–SPAN on a black-and-white television set in his prison cell.

You don't have to be a genius to know that this bill is an attack on working families. That is why the AFL–CIO says no, and they are scoring it.

They call it stablecoin. It is not stable. It is not a coin. It is a money market account that, under this law, must pay zero percent interest. Who wants to forgo a 4 percent rate of return and get a zero percent return in stablecoin? Those who are desperate for what cryptocurrency offers.

Cryptocurrency literally means hidden money, and these stablecoins are exempt from the anti-money laundering provisions. Thus, it meets the needs perfectly of drug dealers, human traffickers, sanctions evaders, those who are hiding assets from their former spouses, and tax evaders.

Just to be clear, the Republicans rejected unanimously in committee a provision to prevent mixers. Mixers are devices whose sole purpose is to defeat even top law enforcement efforts pursuant to a warrant, and under this bill mixers will be used to defeat law enforcement.

Republicans claim to be against crime in the streets, but they are creating a device whose sole purpose is to facilitate crime in the suites.

Page 43 of this bill contains a provision maintaining the eligibility of stablecoins for bailouts under a facility created under section 13(3) of the Federal Reserve Act. Now, Jerome Powell won't bail out stablecoin, but the next guy will.

Stablecoin marketers are going to tell investors that if they ever have a problem they are going to get bailed out. After all, crypto has all the power in Congress because it is the number one source of super-PAC independent expenditures. Last year, crypto did more super-PAC expenditures than Big Oil and Big Pharma times five.

This bill is designed to enrich President Donald Trump. Even Richard Nixon never thought of printing up baskets of Monopoly money and selling them for cash. Trump thought of it, and he is doing it electronically.

Abu Dhabi has announced they are investing $2 billion in Trump stablecoin, $2 billion in Trump's hands where he has to pay nothing, zero percent, on the loan. He invests the money, makes $2 million a week, up until Abu Dhabi demands its money back, which they are never going to do as long as our foreign policy meets the needs of Abu Dhabi.

Republicans rejected unanimously an amendment to prevent taxpayer money from being used to buy crypto. If you are voting for this bill, you are voting for taxpayer money to go into buying Trump coin.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President.

Mr. HILL of Arkansas. Mr. Speaker, I recognize the chair of our Subcommittee on Digital Assets, Financial Technology, and Artificial Intelligence, who crafted the STABLE Act, which is the base text that led to this joint, good work between the House and Senate.

I yield 3 minutes to the gentleman from Wisconsin (Mr. STEIL).

Mr. STEIL. Mr. Speaker, I rise in support of the GENIUS Act. The legislation brings clarity, consumer protections, and American leadership to the evolving world of payment stablecoins.

Stablecoin legislation has been in the works for over 4 years and has been called for by Democratic and Republican administrations. The status quo fails to protect consumers from fraud. That is an untenable situation in a market growing by the billions.

For too long, the United States has operated without a clear Federal framework for dollar-backed payment stablecoins, leaving consumers vulnerable to fraud, innovators in limbo, and our global competitiveness at risk.

That is why I am proud to have introduced stablecoin legislation in the House and worked alongside my colleagues in the Senate to make the legislation reaching the President's desk as strong as possible. That is why I am urging a ''yes'' vote on the GENIUS Act.

The bipartisan, bicameral legislation creates a robust framework for payment stablecoin issuance in the United States. It encourages the innovation and development of Web3 businesses here in the United States. It establishes clear rules to ensure that consumers are protected and businesses have clear regulations to responsibly participate in the digital asset ecosystem.

By requiring issuers to maintain a one-to-one reserve in cash and high-quality liquid assets like U.S. Treasuries, consumers know what they are getting and are protected.

GENIUS has strong anti-money laundering, operational risk, and governance standards in place to prevent abuse, reinforce market integrity, and create an even playing field with other financial institutions.

By passing the GENIUS Act in the House and sending it to the President's desk, Congress will be sending a clear message: The United States will dominate the future of financial innovation. We will protect consumers, support innovation, and defend the central role of the U.S. dollar in global commerce.

With this bill, we are not just responding to a moment. We are building a foundation for the future of finance in the Web3 world.

Payment stablecoin legislation is critical to this foundation. If we want to become the digital asset hub of the world, we must enact a comprehensive

framework for the digital asset ecosystem.

I urge my colleagues to support both the GENIUS Act and the CLARITY Act and send a message that America leads in financial innovation and does so with integrity, strength, and a firm commitment to protecting the people we serve.

Ms. WATERS. Mr. Speaker, I yield 2 minutes to the gentleman from Illinois (Mr. CASTEN), who is also the vice ranking member of the Financial Services Committee.

Mr. CASTEN. Mr. Speaker, if I were to describe Jeffrey Epstein as a nice family man who works in finance, you might question why I am saying that. If someone says that something that is neither a coin nor stable is a stablecoin, you might question why they are saying that because they aren't stable.

Terra, which was a stablecoin, collapsed at 30 cents and wiped out $40 billion in investor value. That was an algorithmic stablecoin. More recently, as the ranking member has noted, USDC, a so-called stablecoin, fell to 88 cents and only exists today because taxpayers bailed them out.

These are some of the reasons why central bankers last week issued a warning that stablecoins threaten global financial stability and need a much more restrictive regime compared to traditional finance.

□ 1110

The GENIUS Act ignores all of those experts and, instead, ties stablecoins into our financial system but without the safeguards that are required by banks and investment companies.

As the ranking member noted, this allows Big Tech companies to issue stablecoins and amass consumer data at the same time we are gutting the Consumer Financial Protection Bureau, which protects consumers.

It allows issuers to cherry-pick the lightest-touch regulator between the Federal Government and any of the 50 States.

Rather than fixing the problems created when Silicon Valley Bank collapsed, it makes them worse by saying that you can have uninsured deposits. Yet, if there is a run on a future Silicon Valley Bank, the stablecoin issuers have a superior claim over every single person in this room who has a legitimate deposit in that bank.

My colleagues have said that this has a one-to-one requirement, except that it is not audited. There is only an audit requirement for companies over $50 billion in assets, which is only two stablecoins. Donald Trump's stablecoin just has to say that they attest that there was value in there on the 30th day of the month, and we don't have an auditor. That isn't one-to-one certification.

Finally, the GENIUS Act is a missed opportunity to limit foreign influence. We know that, recently, a convicted money launderer wrote the code so that the United Arab Emirates could buy $2 billion of Trump's stablecoin, which allowed President Trump to earn $30 million on the transaction.

Now, this convicted felon—

The SPEAKER pro tempore. The time of the gentleman has expired.

Ms. WATERS. Mr. Speaker, I yield an additional 15 seconds to the gentleman from Illinois.

Mr. CASTEN. Mr. Speaker, I should clarify that the convicted felon I am referring to is the guy who ends up trading—

The SPEAKER pro tempore. The time of the gentleman has again expired.

Ms. WATERS. Mr. Speaker, I yield an additional 15 seconds to the gentleman from Illinois.

Mr. CASTEN. Mr. Speaker, the convicted felon I am referring to is the guy who ran Binance and not the President, but he is seeking a Presidential pardon.

Mr. Speaker, the GENIUS Act sets the stage for an exponential crisis and allows the President to continue cheapening the office for his own financial gain, and I urge a strong ''no.''

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President.

Mr. HILL of Arkansas. Mr. Speaker, I yield 1 minute to the gentleman from Michigan (Mr. HUIZENGA), the vice chairman of our full committee.

Mr. HUIZENGA. Mr. Speaker, I thank the chairman for yielding me time.

Mr. Speaker, today is a good day for innovation. It is a good day for free markets, entrepreneurs, and consumer choice. It is a good day for American digital leadership.

Mr. Speaker, after years of debate and, frankly, as I was chair of the Capital Markets Subcommittee in 2017 and 2018 and held hearings on cryptoassets, Congress has finally recognized the unique nature of stablecoin products.

Under this bill, we established a regulatory framework that targets the activity, not the technology. After years of indecision, Americans finally have an administration that is ready to embrace those products. The time to reassert American leadership in the digital asset space is now.

The GENIUS Act acknowledges that stablecoins can address inefficiencies in the U.S. payment system. It acknowledges that maintaining the U.S. dollar as the world's reserve currency should always be at the forefront of any decision that we have. It acknowledges that the private sector must lead the way, fostering innovation and competition.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. HILL of Arkansas. Mr. Speaker, I yield an additional 15 seconds to the gentleman from Michigan.

Mr. HUIZENGA. Mr. Speaker, I thank the chairman for yielding me additional time.

Mr. Speaker, obviously, at the end of this, finally, it acknowledges that a clear regulatory framework led by the United States is needed to usher in this modern technology.

Mr. Speaker, we are at an inflection point. When it comes to digital assets, I urge my colleagues to seize this moment by supporting this important legislation.

Ms. WATERS. Mr. Speaker, I yield 2 minutes to the gentlewoman from New York (Ms. VELÁZQUEZ), who is also the ranking member of the Committee on Small Business.

Ms. VELÁZQUEZ. Mr. Speaker, I thank the gentlewoman for yielding.

Mr. Speaker, I rise today in opposition to the GENIUS Act.

From the beginning, I have said that Congress needs to tackle stablecoin legislation, but we cannot pretend that this is happening in a vacuum. We are creating a framework for stablecoins while the President, his family, and members of his administration are personally invested in this market and directly profiting from it.

Mr. Speaker, 3 days before taking office, President Trump launched his own memecoin. When the coin's value collapsed, his insiders cashed out. Everyday investors were left holding the bag. It is estimated that they lost over $2 billion while the Trump circle walked away with more than $350 million.

Now, his family firm, World Liberty Financial, has launched its own stablecoin, once again netting the President's family tens of millions of dollars.

The administration is rolling back enforcement and reshaping policy to give these business interests a leg up.

These are such clear-cut conflicts of interest, yet this bill does nothing to address them. It doesn't bar the President or Cabinet officials from holding financial stakes in stablecoin issuers. It doesn't address the foreign investors piling into these ventures. It doesn't even try to draw a line between public office and private banks.

This isn't a framework for innovation. It is a framework for more corruption.

If we are serious about protecting consumers and about protecting our markets, we have to start with ethics. This bill fails that basic test.

Mr. Speaker, I urge my colleagues to vote ''no.''

Mr. HILL of Arkansas. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, this bill, the GENIUS Act, and the bill we debated a few minutes ago, the CLARITY Act, are all about consumer protection. There are no rules federally across the board in the digital asset space at all now. That is why we have seen consumers hurt by the lack of a regulatory framework. I have to say, Mr. Speaker, in total contrast to my friends on the other side of the aisle, that is what we are all here for today.

Mr. Speaker, I appreciate your continuing reminder to the Members in the Chamber to refrain from engaging

in personalities. Yet it has routinely become a part of our morning, so I have to inquire as to how long we are going to let this go on, Mr. Speaker. I want to make sure all the Members in the Chamber adhere to rule XVII.

Mr. Speaker, I yield 4 minutes to the gentleman from Kentucky (Mr. BARR), our distinguished chairman who leads our Subcommittee on Financial Institutions.

Mr. BARR. Mr. Speaker, I thank the chairman for yielding me time.

Mr. Speaker, I rise today in strong support of the passage of the GENIUS Act, and I thank Chairman HILL for his extraordinary leadership, not just in this Congress, but for a long time advocating for this moment. He deserves a tremendous amount of credit for persevering and working and marshaling bipartisan, bicameral support. I thank him for his tremendous leadership.

I thank the gentleman from Wisconsin (Mr. STEIL) for being a subject-matter expert and working in a bipartisan way to build a bipartisan coalition for this moment.

There has been a lot of talk, Mr. Speaker, made in this term of Congress about the One Big Beautiful Bill Act. It is a historic piece of legislation, no doubt. It is going to supercharge our economy. It is jet fuel for our economy. They are the biggest tax cuts we have ever seen in this country's history. Yet, I would argue, with all respect, that, arguably, the most important and most transformational pieces of legislation in this Congress are these bills that we are talking about here today, the GENIUS Act and the CLARITY Act.

It is paramount that we send this historic piece of legislation, the GENIUS Act, to the President's desk because this bill is the first of its kind in creating a regulatory framework for the future of stablecoin issuance in the United States to revolutionize finance and payments in this country and around the globe.

Not only will this cement us, the United States, for decades to come as leaders and innovators in the digital asset space, but it will, importantly, protect the U.S. dollar's dominance and increase demand in our Treasury market.

In the GENIUS Act, stablecoins become pegged to the U.S. dollar and backed by high-quality liquid assets.

Mr. Speaker, in stark contrast to what my friend, the gentleman from Illinois (Mr. CASTEN), was arguing, this actually prevents these other so-called stablecoins from actually thriving in the marketplace.

You are going to have stablecoins that actually are stable. That is why we need the bill. The gentleman from Illinois (Mr. CASTEN) is actually making the argument for us. He is making the argument for why he should support the GENIUS Act. It is because of unstable stablecoins that are out there. Those products will lose ground in the marketplace after we pass the GENIUS Act.

□ 1120

It will ensure that consumers are protected while reaping the benefits of blockchain technology. The GENIUS Act will allow for scalability to occur in the stablecoin marketplace, ensuring American consumers and businesses have access to this innovative product.

Both banks and nonbanks can issue stablecoins under the GENIUS Act, bringing together the best actors in both the traditional finance space and the new era of digital finance.

The GENIUS Act provides that all appropriately regulated banks, including the U.S. operations of foreign banking organizations, which are supervised by the Federal Reserve, are treated equally to their U.S. peers.

This is particularly important with respect to the issuance, reserve and custody services, and bank capital requirements irrespective of whether they are deposit insured since the act prohibits stablecoins from being covered by FDI insurance.

A robust, well-regulated stablecoin market eliminates any justification for a government controlled Central Bank Digital Currency, or CBDC, which jeopardizes Americans' access to freedom, privacy, and apolitical private capital.

This is an important point for all of my colleagues on my side of the aisle who share my concern and opposition to a CBDC. If you want to put a dagger in the heart of this crazy surveillance state idea of a Central Bank Digital Currency, pass this bill. I urge all Members to vote for this bill, vote for the GENIUS Act, which will eliminate all arguments for a CBDC.

With the GENIUS Act, we will increase the speed and decrease the cost of payments. We will decrease and eliminate friction from our payment system. If all Americans see housing their deposits via a CBDC at the Federal Reserve as a risk-free proposition, they would be incentivized to pull their money out of private-sector banks.

The Speaker pro tempore. The time of the gentleman has expired.

Mr. HILL of Arkansas. Mr. Speaker, I yield an additional 15 seconds to the gentleman from Kentucky.

Mr. BARR. Just to conclude, we want to avoid eroding the deposit base and starving the private sector of conventional bank financing. The GENIUS Act will not erode the deposit base. It will allow banks to issue and custody stablecoins and participate in this emerging crypto economy cementing the dollar as the world's reserve currency, protecting consumers and the deposit base, and supercharging the Treasury market.

Ms. WATERS. Mr. Speaker, I yield 2 minutes to the gentleman from Ohio (Mr. DAVIDSON) who is the Republican chairman of the National Security Subcommittee.

Mr. DAVIDSON. Mr. Speaker, I thank the ranking member for yielding.

Mr. Speaker, I have not seen a perfect bill since I have been in Congress, but this is a pretty good bill. It is an important bill. Regulating stablecoins is long overdue at the Federal level, but make no mistake, stablecoins aren't new.

The New York Department of Financial Services has regulated stablecoins in the State of New York since 2018. They are time-tested and proven, and they have been stable.

It is long overdue for us to provide Federal legal clarity here, so why am I speaking in opposition to it? My Republican colleagues are exactly right about the stablecoins and the need for regulation. That is why we passed the STABLE Act, but my Democratic colleagues are right this time to recognize that the legislative process is broken and, frankly, we all know that. Everyone in the House does.

We have seen it broken on lots of things, but here, today, we have got a defective product that our legislative process prevented us from fixing.

On the product, the GENIUS Act, we agree we have five amendments that we want to do to the GENIUS Act that we are doing in the CLARITY Act, and they are important. Frankly, while the GENIUS Act does address retail CBDC, and it is an important concession because Democrats want a surveillance state Central Bank Digital Currency.

Mr. Speaker, you are going to see that when we vote later on TOM EMMER's bill. They want that. Republicans are thankfully united in opposing Central Bank Digital Currency, but we should deal with that fully here.

On March 8, 2023, in a dialogue with Chairman HILL, Federal Reserve Chairman Jerome Powell said that they would need congressional approval for a retail CBDC, but he went on to explain that you could have a layered CBDC. They are building just that at the Federal Reserve.

We should completely turn that off, and that is why we need to pass Representative EMMER's bill. I will talk about that later, but we also need to protect self-custody, which is the ability for you to move your money directly person to person without an intermediary. You won't have direct access to your own money unless you protect it because government agencies continue to try to ban it. We need to protect it. We do in the CLARITY Act, and that is why I oppose the bill.

Mr. HILL of Arkansas. Mr. Speaker, I yield 1 minute to the gentleman from Pennsylvania (Mr. MEUSER), the chairman of our Oversight and Investigations Subcommittee.

Mr. MEUSER. Mr. Speaker, I rise today in strong support of S. 1582, the GENIUS Act. I thank the chairman of our full Financial Services Committee, Chairman HILL, for his leadership; Chairman STEIL for his great work; Whip EMMER, and so many in our committee and our colleagues in the Senate for their work on this legislation.

I also recognize President Trump's administration, crypto czar David Sacks, and SEC Chair Paul Atkins for

their efforts to reverse the Biden-era irrational opposition and misguided regulations that we lived with for 4 years toward innovation and now we are setting America back on a progrowth America First course.

Mr. Speaker, the Senate's legislation built on 2 years of groundwork by the House, crafting a framework for stablecoins that protects consumers, the dollar, and unleashes private-sector innovation. This bill achieves three goals. It supports the dollar's role as the world's reserve currency. It provides a private-sector alternative to a government-run digital dollar which is very important, and it modernizes payments to reduce costs and expand access. This is smart, forward-looking policy.

Mr. Speaker, I urge my colleagues to support it.

Ms. WATERS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, since assuming office, President Trump has been making himself richer and richer, while working-class Americans are struggling just to stay afloat.

President Trump has earned $1.2 billion since he entered office. The Trump family has been using the Office of the Presidency, and the way that they are doing this is extremely alarming to me and my fellow Democrats.

Now, let me go through this timeline once more.

In September 2024, on the campaign trail, the Trump family launched World Liberty Financial, which they have described as a decentralized finance, or DeFi company.

On January 17, 2 days before the Presidential inauguration, President Donald Trump launched his Trump memecoin. Days later, Melania Trump launched her memecoin.

On March 25, 2025, World Liberty Financial launched a dollar-pegged stablecoin just 1 week before the House Financial Services Committee marked up stablecoin legislation and 2 weeks after Senate colleagues held their markup.

On March 31, Eric Trump and Donald Trump, Jr.'s, American data centers merged with American bitcoin, a bitcoin mining operation.

On July 8, Trump Media and Technology Group, the company that operates the Truth Social media platform, announced that it had filed paperwork with the SEC to approach to launch the crypto blue chip ETF later this year.

Now, let's add all of this up.

Since January of this year, President Trump and his family have launched or are planning to launch six different crypto ventures. Congressional Republicans and the crypto industry will state that these conflicts of interest take away from the discussion on other parts of the bill. They claim that this bill is good for consumers and investors.

Well, let me tell you, it is not. It is good for Trump's family and wealthy crypto investors that can afford to see themselves through an FTX-type collapse. No one, not a Republican or a Democrat, should be using their office to make themselves richer while everyday Americans are struggling to buy groceries and pay for their healthcare.

Everyday Americans are simply trying to survive, thanks to Republican policies, while President Trump and his billionaire boys' club thrive in the economy.

It is simple. People want to know why Members of Congress can't simply exclude the President and the Vice President. Why do they keep them in both of the bills as owners of crypto? Why did they avoid my amendment that would take them out?

I don't believe that the President, the Vice President, his Cabinet, his family, or any Members of Congress should be owners of crypto. I certainly don't believe that the Office of the Presidency should be used by anybody, any President, now or in the future, to be the owners of crypto.

Mr. Speaker, I reserve the balance of my time.

□ 1130

Mr. HILL of Arkansas. Mr. Speaker, I yield 2 minutes to the gentleman from Nebraska (Mr. FLOOD), who chairs our Subcommittee on Housing and Insurance.

Mr. FLOOD. Mr. Speaker, I have been working on this since I was in the Nebraska Legislature. Back in 2021, I passed the Nebraska Financial Innovation Act, making our State the second State to allow State-chartered banks to custody digital assets, stablecoins.

These stablecoins have the ability to greatly increase not only the speed of payments and settlements, but also make our economic system even more efficient. Stablecoins will also support the advancement of the U.S. dollar around the globe.

We may often take it for granted, but most of the transactions around the globe rely on a currency backed by the U.S. dollar. That could change if we don't adopt laws like this.

Who steps in? Adversaries like China.

We want to have a presence on the Continent of Africa. That is the next frontier. This assures us of that.

In the early days, caution was certainly prudent. Stablecoins are a novel technology with significant questions regarding how to protect consumers, like what happens in the event of bankruptcy and how to ensure that the issuers live up to the technology's namesake by providing a truly stable asset, the dollar.

That is why we have been working on this issue in our committee for the last several years. Similarly, the Senate has been running through their process.

Let me be clear, this bill is not perfect. With my experience in Nebraska, I have been a strident supporter of a strong, robust State pathway for issuers. This bill has a State pathway, but it is capped at a $10 billion asset threshold.

I personally much prefer Congressman BRYAN STEIL's STABLE Act to this Senate product. However, despite my personal preferences, this bill absolutely provides a comprehensive and safe Federal framework for stablecoin regulation.

In order to usher in a new era of blockchain innovation, we need to pass the GENIUS Act so our regulators can get to work implementing a comprehensive stablecoin framework.

Ms. WATERS. Mr. Speaker, I include in the RECORD the following letters from organizations that oppose this terrible bill: a letter from the AFL–CIO, which is scoring this vote, and a letter from Public Citizen.

AFL–CIO,
LEGISLATIVE ALERT,
July 14, 2025.

DEAR REPRESENTATIVE: On behalf of the AFL–CIO, I am writing to urge you to oppose two bills on crypto currency that may soon be up on the House floor for a vote this week. The GENIUS Act, (S. 1582) and the CLARITY Act (HR 3633) pose risks to both retirement funds and to the overall financial stability of the U.S. economy. Instead of regulating crypto currency, these bills will enable the crypto industry to operate without effective oversight, and this will endanger the financial health of working people.

POORLY REGULATED CRYPTO ASSETS ARE DANGEROUS TO PENSIONS

Unions strongly support workers having retirement benefits and regularly negotiate for pension plans in employment contracts. But retirement plans are only solvent if their assets are protected from fraud and unethical practices. Neither of these bills provide a regulatory structure for crypto assets or stablecoin that is similar to that of other assets in pensions. While currently most pensions do not carry crypto assets because of the risks associated with them, the bills provide the facade of regulation that may make these assets more mainstream in portfolios. Passing this legislation will allow the proliferation of assets that investors will wrongly perceive as safe.

But the problem with these bills is more significant than they do not provide strong regulations for pensions; if they are passed they will reduce the safety of many assets and create problems across retirement investments. We are particularly concerned that a loophole in the CLARITY Act (HR 3633) would allow non-crypto companies to put their stock on the blockchain and evade the entire securities regulatory framework that currently exists. This would reduce reporting requirements, disclosures and other obligations. These changes would put pensions and 401k plans in jeopardy of having unsafe assets even if they were invested in traditional securities.

Because we believe in strong, safe pensions that are there for workers in their retirement, we oppose these bills and ask that you do the same.

FINANCIAL INSTABILITY WOULD INCREASE

The AFL–CIO has always supported measures that properly regulate financial markets so that working people are not cheated of their hard earned wages. In the aftermath of the 2008 financial crisis which had its genesis in unregulated derivatives markets and widespread fraudulent banking activities, we supported legislation that created the Consumer Financial Protection Bureau (CFPB) and strengthened financial regulations through the Dodd-Frank Act.

The GENIUS and CLARITY Acts do not protect consumers, workers or the financial system and instead they expose all to more risk. The GENIUS Act would allow tech companies to become de facto banks or issuers of a corporate currency, without requiring them to adhere to equivalent bank regulatory oversight. Stablecoins are not inherently stable and the assets that are permitted to back the value of stablecoins in the bill are not sufficiently strong. Thus, a situation similar to the failure of Silicon Valley Bank (SVB), which was brought about by the failure of the stablecoin peg, looms large. The bills also do little to curb the fraud, illegal activity and corruption that continues to be prevalent in anonymous crypto markets. As such, these bills provide the perfect environment for the next financial crisis to germinate.

OPPOSE THESE BILLS

For all the reasons above and more, the AFL–CIO strongly urges you to vote no on the GENIUS Act, (S. 1582) and no on the CLARITY Act (HR 3633). Working people need policies that effectively regulate financial markets and ensure that hard earned retirement benefits are not endangered by risky assets. We need to make sure that the financial system is stable instead of creating a casino for crypto billionaires to make more profits.

Sincerely,

JODY CALEMINE,
Director, Government Affairs.

PUBLICCITIZEN,
Washington, DC, July 14, 2025.

Honorable Members,
House of Representatives,
Washington, DC.

DEAR REPRESENTATIVE: On behalf of more than 500,000 members and supporters of Public Citizen across the country, we ask you to please vote NO on three cryptocurrency bills slated for full House consideration this week. These include the GENIUS Act (recently approved by the Senate); the CLARITY Act; and the CBDC Anti-Surveillance Act. These dangerous bills legitimize the cryptocurrency Ponzi scheme that will undoubtedly leave more Americans scammed and will enable criminal behavior.

TRUMP'S MASSIVE CRYPTO GRIFT

Regardless of a Member's position on whether the many risks of harm posed by, cryptocurrency outweigh its supporters' inflated promises of innovation through blockchain-based payment systems, no responsible lawmaker can support these measures because they ratify the greatest corruption in presidential history: Donald Trump's crypto ventures, which astound in the scope of the grift and flagrancy of commitment. Leading ethicists agree, including the White House ethics ''czars'' for each president since Clinton (except for Trump's).

Trump once dismissed bitcoin, the most popular crypto, as ''based on thin air.'' It is a ''scam.'' It can facilitate unlawful behavior, including drug trade and other illegal activity.'' Now, he's the self-proclaimed crypto president.

In May, the Trump family announced an agreement with a fund backed by Abu Dhabi that ''would be making a $2 billion business deal using the Trump firm's digital coins,'' according to the New York Times. That deal involved a stablecoin. The Constitution (Article 1, Section 9) forbids accepting money (specifically a ''present'' or ''emolument'') or anything of value from any ''king, prince, or foreign state.''

Previously, Trump hosted a presidential dinner for the largest new buyers of his crypto ''meme,'' called ''$Trump.'' Federal law strictly regulates payments to government officials, including gifts. Although the president may receive gifts, he or she may not ''solicit'' gifts. These prohibitions begin with the Constitution's Emoluments Clause and are reiterated in the U.S.'s anti-bribery statute, 18 U.S.C. §201, and federal regulations, 5 C.F.R. §2635. Although section 2635.205 lists several exemptions from the prohibition, none exempts soliciting purchases for personal gain.

As to why the public might be interested in sending money, the website explains: ''This Trump Meme celebrates a leader who doesn't back down, no matter the odds.'' Under the Trump meme website's question, ''What is a meme?'' the website explains: ''Merriam-Webster's meme noun: 1: an idea, behavior, style, or usage that spreads from person to person within a culture.''

The website states that ''Trump Memes . . . are not intended to be, or to be the subject of, an investment opportunity, investment contract, or security of any type.'' Additionally, the Securities and Exchange Commission (SEC) stated that meme coins have ''no use.'' Other cryptocurrency observers deride memes generally as without value. Former aide Anthony Scaramucci said Trump's effort demeans broader cryptocurrency efforts, calling it ''ldi Amin level corruption.'' Another commenter said that the Trump meme ''is effectively a 'for sale' sign on the White House.'' Some, including an author in the Washington Post, characterized this token as a ''sh—coin.''

In short, it appears Trump is not soliciting money in exchange for an investment or tangible product (such as a Bible, sports shoes, or a guitar), but soliciting money in exchange for nothing—that is, asking for a gift that will benefit him personally.

Already, Trump has profited millions from the meme and other ventures. His initial sale generated nearly $100 million. The latest salvo in April brought in roughly $100 million more. Some new buyers come through the Binance exchange, legally barred for US investors, meaning that Trump may well be violating the emoluments clause with this venture as well.

The dangers inherent in the Trump meme portend ominously. Should the president be allowed to enrich himself in this way, other politician might follow this path, rendering the prohibition on solicitation in 18 U.S.C. §201 and the prohibitions on receipt of gifts by officials other than the president meaningless.

Paradoxically, while this Trump meme is worthless (by his own estimation) Trump managed to create an earlier crypto that is worth less. In October, 2024, he became the ''chief crypto advocate'' for World Liberty Financial, a nascent cryptocurrency firm. The World Liberty Trump crypto is worse because it cannot be resold. This Trump crypto buys only ''governance,'' but only a minority share. Trump controls the majority of the governance tokens.

Now, the House considers a trio of bills regarding cryptocurrencies. At the very least, Congress must bar the president along with all elected officials and their families from owning, buying or otherwise trafficking in stablecoins. Americans must be assured that policy won't be fashioned by those profiting from the shape of the legislation.

Further, Congress should approve an amendment that restates conflict laws that already apply to the president. Namely, he may not solicit gifts; he may not accept gifts from a foreign sovereign; he may not sell political favors.

Pro-crypto lawmakers apologize that Trump corruption will persist whether or not Congress approves crypto legislation. We reject this defeatist position. Congress must not abdicate any powers to hold Trump accountable. Without conflict-of-interest guardrails, approving these bills effectively endorses Trump's conflicts. The bills will integrate crypto into mainstream banking, serving to fatten his grift.

At the same time, we believe each bill fails to protect investors while facilitating the funding of illicit activities, which we explain in detail below.

H.R. 3633, THE DIGITAL ASSET MARKET CLARITY ACT OF 2025

This measure succeeds the ''Fit 21 Act'' of the last Congress, approved with bipartisan support, a result we believe reflects profligate political spending by the crypto sector in 2024. Now that the crypto political spenders brazenly threaten to recycle even more of their ill-gotten gains into future elections, Congress is speeding through more pro-crypto bills.

The CLARITY Act falls so short of necessary investor protections as to invite mockery. Putting a sign on the keg at a frat party that says ''Over 21 only'' would achieve better results at tamping down harmful behavior. Fundamentally, the CLARITY Act accords the imprimatur of federal government approval for crypto by awarding official SEC-approved status for qualified firms.

To qualify for approved status, a firm might actually register. Exemptions, however, abound. Sections 309 and 409 of the legislation would exempt firms if they relate to ''the operation of a blockchain system.'' Crypto projects may win exemption for contracts that trade and settle on a blockchain. The bill exempts tokens with ''value, utility or significance,'' a designation that the sponsor itself can claim. And all existing tokens enjoy a grandfather protection, legal amnesty for any reporting requirements.

In effect, the bill claims to establish a speed limit and then provides what amount to exceptions for drivers with red cars, fast cars, or if they're in a hurry.

Further, the bill offers a means for non-crypto companies to bypass securities law and use the blockchain to raise funds. This threatens to upend a near century of securities law- and rule-making that established American markets as the envied, disciplined, safe, and largest in the world. Once the crypto craze dissolves and/or crashes, this element of the bill, if it becomes law, will constitute one of the greatest deteriorations of sound securities law ever. The Securities Industry and Financial Markets Association, the lobby that represents firms that underwrite and help investors trade stocks, shares this concern. Recently the association wrote to the Securities and Exchange Commission with a warning about the *potential pitfalls* of allowing firms to put stocks on the same blockchain technology that underpins digital assets without following the same rules that apply to the equities market. Doing so, SIFMA said, raises questions about whether investors would be getting the best prices when trading such tokenized stocks and if that trading could hamper capital formation in the U.S.

The CLARITY Act fails to provide adequate compliance requirements to deter money laundering. Drug, arms and human traffickers use crypto to avoid detection. If crypto promoters simply required every participant to register—just as a driver secures a driver's license—much of this problem would abate. That the bill sponsors resist this simple policy speaks grimly about whom they are serving with this legislation.

Finally, bill sponsors claim they promote this bill to keep crypto innovation American and provide long needed regulation. But not all ''innovation'' advances an economy. Crafty cyberthieves deserve no trophy, nor do romance scammers, but both varieties of

scammers frequently use crypto to bilk their marks. Moreover, current securities law provides a rubric for crypto. The Biden administration asked crypto to register and comply; some did. Most, however, prefer to grift outside any barriers. Congress must not plant the US flag on this rogue industry through this bill.

THE GENIUS ACT

The GENIUS Act focuses on essentially one element of what's necessary to govern stablecoins: namely the integrity of their reserves. It requires that the sponsor buy safe securities, such as U.S. treasuries.

Even here, however, the GENIUS Act falls short because it also allows a coin's sponsor to include uninsured demand deposits. While cash might seem safe, if held in a bank, accounts beyond $250,000 would not enjoy FDIC coverage. The episode of Silicon Valley Bank's failure demonstrated this vulnerability. Further, the bill relies on sponsor certification (or attestation) as to the components of the reserve. Instead, responsible legislation should require an audit by a firm overseen by the Public Company Accounting Oversight Board (PCAOB). (Some stablecoins have sought audits from firms outside this recognized regime.)

Generally, the GENIUS Act includes several foundational flaws. First, it invites major commercial firms such as Amazon, Walmart, Twitter/X and/or Facebook/Meta to enter the banking sector because it lacks provisions under the Banking Holding Company Act that otherwise prohibit non-financial firms from entering the banking business. The nation's centuries old policy separating banking and commerce stems from concerns about concentration in power. Creditors should not face the moral hazard of competing with the borrower. Viability of a credit facility should not hinge on the viability of a commercial venture. For example, an automobile manufacturer that also sponsored a stablecoin might raid the reserve should car sales begin to falter. Or a major online aggregating retailer might disfavor a subcontractor if it failed to use the aggregator's stablecoin. History illustrates that when banks have entered commerce, such as financiers did in the late 19th century during the construction of railroads, manipulations led to frequent economic shocks. Any stablecoin legislation should obligate issuers to abide by robust Bank Holding Company Act provisions that guard against these harms by restricting sponsorship to existing banks.

Second, the GENIUS Act provides a dual oversight structure, permitting stablecoins under a certain value ($10 billion) to register under individual states. This allows a race to the bottom, where unscrupulous sponsors would seek the state with the most convenient rules. The bill calls on the states to establish safety standards, but these will inevitably be worked out between industry and lawmakers with little consumer protection given the scant interest by average Americans in this sector. Further, a bad actor could game the $10 billion limit by organizing multiple funds, beginning a new one once the last one reaches this figure.

The bill also fails to establish clear safeguards for those stablecoins that seek federal oversight, with the same vague injunctions to regulators. As implementation of the 2010 Dodd-Frank Wall Street Reform and Consumer Protection Act demonstrates, regulators were slow to implement rules, and those rules reflected intense Wall Street lobbying. With the U.S. Supreme Court decision eliminating *Chevron deference*, rules that industry finds inconvenient now may perish at the whim of cherry-picked courts.

Third, the bill fails to provide speedy resolution for customers in case of failure of a stablecoin. Bankruptcy does not suit a firm that custodies savings that should be available within days of a failure, as is the case with banks that are resolved by the Federal Deposit Insurance Corp. Section 9 of the GENIUS Act references sections of Chapter 11 of the Bankruptcy Code, affording holders of payment stablecoins ''priority.'' But bankruptcy triggers an automatic stay on payments that could take years before the relief of funds, according to *Georgetown Prof. Arthur Wilmarth*, which renders ''priority'' little relief in actuality. Related to this, the bill includes inadequate custodial rules. The GENIUS Act declares that stablecoins are property of the investor and must be segregated from sponsor funds. But this *doesn't direct the bankruptcy* court to pay the investor immediately.

Lastly, the bill lacks a fair redemption regime. It simply requires the stablecoin sponsor to establish a policy. It fails to prohibit a firm from establishing exorbitant fees, or setting an unreasonable time to honor a redemption, or favoring some customers over others. A sponsor could establish long waiting periods; a sponsor could even change policies, such as advertising a low fee one month, then raising it the next, and setting different fees for different customers. In a money market mutual fund, all customers receive the same prevailing interest rate and enjoy equal redemption rules.

CENTRAL BANK DIGITAL CURRENCY

The *CBDC Anti-Surveillance State Act* oddly places its specious talking point in the bill's title. The bill would bar the government from establishing a central bank digital currency on the argument that it would invade personal financial privacy.

In reality, the sponsors of this bill serve the interests of private sector cryptocurrency promoters that we believe do not want to be displaced by a better, government-sponsored digital currency. It is revealing that so-called innovators in the free market fear they might be outdone by federal technocrats. Public Citizen believes these self-described crypto innovators are craven fraudsters looting the vulnerable with a Ponzi scheme.

Public Citizen does support exploration of a Central Bank Digital Currency (CBDC). This federal digital coin, in one form dubbed a FedAccount, holds the promise to address some of the problems with the payment system.

Conceived by *Lev Menand* of Columbia Law School in June 2018, the CBDC would be a Federal Reserve account. It would be available to ''any U.S. resident or business in digital wallets operated by the Federal Reserve, the Post Office, or one of the country's several thousand community banks,'' he explains. ''The digital wallets would charge no fees and have no minimum balances. They would come with debit cards, direct deposit, and bill pay. They would have customer service, privacy safeguards, and fraud protection—if, for example, one lost their password. And these accounts would earn interest at the same rate that the Fed pays to banks.''

Lack of profitability for the banks represents one of the reasons that banks fail to service roughly six percent of the population. The FedAccount would be available to those whom banks have failed to serve regardless of their balance. They would be streamlined to provide access with immediate payment clearing. There would be no fees charged. With such an account, delivery of federal payments would be immediate

We believe the Menand idea deserves attention. Searching for a talking point, the bill's sponsors claim the idea would lead to a surveillance state. They seem unaware that credit card firms, major banks, and other financial institutions already own personal financial data. By the bill's logic, they should be banned as well.

For questions, please contact Bartlett Naylor.

Sincerely,

PUBLIC CITIZEN.

Ms. WATERS. Mr. Speaker, I reserve the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I yield 1 minute to the gentleman from New Jersey (Mr. GOTTHEIMER), who is a distinguished member of the House Financial Services Committee.

Mr. GOTTHEIMER. Mr. Speaker, I rise in support of the bipartisan GENIUS Act. This legislation builds on the bicameral negotiations that Chairman HILL, former Chairman MCHENRY, Chairman STEIL, and I, and so many others, have worked so hard on for the past years.

The GENIUS Act is smart bipartisan legislation that backs stablecoins through the U.S. dollar on a 1-to-1 basis and allows States to make future safeguards to further protect consumers.

The GENIUS Act, as I said, protects consumers and gives clear rules of the road to allow America to lead the way in a space that is key to our economy. It cracks down on illicit finance, helps counter bad actors, and reinforces the global strength of the dollar, all while lowering the cost of payments and making transactions happen in just seconds.

The bill has already passed the Senate in a strong bipartisan way. Now, it is time for us to clarify rules for stablecoins, protect consumers, and promote American innovation.

As I said before, when we were talking about the CLARITY Act, the question is: Do we want some rules of the road or no rules of the road? To vote against this bill and to vote against the CLARITY Act is irresponsible if you want to make sure that the Trump coin has oversight and that consumers are protected.

The SPEAKER pro tempore. The gentleman from New Jersey's time has expired.

Mr. HILL of Arkansas. Mr. Speaker, I yield an additional 15 seconds to the gentleman from New Jersey.

Mr. GOTTHEIMER. Mr. Speaker, to not pass this legislation is deeply irresponsible. It will allow the Wild West to continue.

This will protect consumers and ensure that the Trump coin and others are overseen, with protection and oversight from the CFTC. It is critically important for protecting consumers and protecting our country.

Ms. WATERS. Mr. Speaker, let me reiterate that it is irresponsible to turn this bill over to the President of the United States, and I continue to reserve the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I yield 2 minutes to the gentleman from Georgia (Mr. CARTER).

Mr. CARTER of Georgia. Mr. Speaker, I rise today to voice my support for

S. 1582, the GENIUS Act of 2025, which will provide a clear regulatory framework for the issuance of stablecoins in the U.S.

This bipartisan, industry-supported bill will finally give the stablecoin asset class clear rules of the road for the issuance and use of digital assets. The GENIUS Act will establish standards so that issuers are credible and stablecoins are quality assets in a rapidly innovating digital market.

I thank the Senate for passing this bill and getting it to the House so quickly. I encourage all of my colleagues to vote in support of the GENIUS Act. It is a vital step in keeping America at the pinnacle of financial innovation.

Mr. Speaker, let's make the U.S. the crypto capital of the world.

Ms. WATERS. Mr. Speaker, I continue to reserve the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I yield 1 minute to the gentleman from Virginia (Mr. VINDMAN).

Mr. VINDMAN. Mr. Speaker, as the vice ranking member of the Commodity Markets, Digital Assets, and Rural Development Subcommittee of the House Committee on Agriculture, I rise today in support of both the CLARITY and GENIUS Acts.

These bills aren't perfect, but digital innovation is critical to our economy, and I support a regulatory framework that protects consumers in the financial system.

However, I am concerned about the ability of certain officials to use these assets for self-enrichment at the highest levels of our government. These bills ensure Members of Congress and many other government officials must abide by ethics rules that we expect from government officials, allowing the industry to innovate as it should. Two individuals are exempted, the President and Vice President.

This is incredibly dangerous, and it undermines confidence in this important industry. It also further degrades the public trust in our government, especially at a time when that trust is already eroded by the President's refusal to release the Epstein files.

We need to take important steps to establish a regulatory framework for digital assets to thrive and to restore public trust. We need action now, and I hope we can close these loopholes.

Ms. WATERS. Mr. Speaker, I continue to reserve the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I yield 1 minute to the gentleman from Florida (Mr. HARIDOPOLOS), our majority whip of the House Financial Services Committee.

Mr. HARIDOPOLOS. Mr. Speaker, once again, we are showing that we can lead here in Washington, D.C., getting things done with the leadership of our President and our leadership here in the House, working together with the United States Senate.

It shows that we are offering that certainty and stability once again for our economy to make America first. We are going to make the dollar dominant once again, and we are going to lead on digital currency payments.

It will increase, of course, the demand for U.S. Treasuries and move us toward that dominant position we need to have in the financial markets.

I applaud our chairman. As a new member of this committee, it has been wonderful to watch a person in action who is attempting to work with the other side, pushing through bipartisan legislation, and, once again, proving that Washington can work if we have leadership at the helm.

Ms. WATERS. Mr. Speaker, I have no further speakers, and I am prepared to close if the gentleman from Arkansas has no further speakers. I reserve the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I am prepared to close, and I reserve the balance of my time.

Ms. WATERS. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, let me again reiterate that a vote for S. 1582 is a vote to give Trump the pen to write the rules that would put more money in his family's pockets. A vote for S. 1582 is a vote for consumer harm. A vote for S. 1582 is a vote to plant the seeds for the next financial crisis. A vote for S. 1582 is a vote to endanger our national security.

That is why I will be voting ''no'' on S. 1582, the GENIUS Act, and I urge all other Members to also vote ''no''.

Mr. Speaker, I yield back the balance of my time.

□ 1140

Mr. HILL of Arkansas. Mr. Speaker, I yield myself the balance of my time for closing.

Mr. Speaker, let me start by saying that we are here on the floor, where we have heard a vigorous debate about dollar-backed payment stablecoins. Our committee has worked under both Democratic leadership with Ms. WATERS and Republican leadership to research this, talk about it, think about it, and have hearings about it for over 5 years now. We come to the House floor today with a bill before us that, while not perfect, is a good bill, as has been evidenced by our speakers on the floor.

S. 1582, the GENIUS Act, is a simple, bipartisan bill that is long overdue and is based on that bipartisan work in both Chambers. Wow, we are actually legislating. We are seeing bills passed in both Chambers. It is exciting for me to see the good work of my friend, Chairman TIM SCOTT of the Banking Committee, in leading a policy-driven effort to put America's financial leadership first. S. 1582, as written by BILL HAGERTY, does exactly that.

Mr. Speaker, 68 Senators voted for this bill in the United States Senate. A cloture-proof margin is only 60, but here 68 Senators came together, including 18 Democrats. They vigorously debated this bill, worked on it, improved it, modified it, and sent it to us in the House.

Likewise, Chairman STEIL here in the House worked with those Senators on both sides of the aisle all along the way to take the ideas that we had here in the House in our markup and our STABLE Act and improve the GENIUS Act.

With this legislation today, on a bipartisan basis, we are modernizing our financial infrastructure, streamlining transactions, lowering costs, and expanding financial tools for everyday Americans. This is about putting American innovation first. It is about creating a future where innovation is met with clarity, not confusion; where American ingenuity is empowered, not stifled, by an outdated, not-fit-for-purpose regulatory regime.

The GENIUS Act will help maintain U.S. global leadership in financial technology, digital innovation, and the power of the reserve currency—the United States dollar—while reinforcing important consumer protections and critical regulatory oversight where it is needed most.

This is commonsense, forward-looking legislation that reminds me of the earliest days of this House Chamber agreeing in 1996 not to tax or regulate the internet, but to tax and regulate how people use the internet. This is a keen example of that principles-based legislation.

Mr. Speaker, I urge all my colleagues on both sides of the aisle to support the GENIUS Act, and I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 580, the previous question is ordered on the bill.

The question is on the third reading of the bill.

The bill was ordered to be read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. WATERS. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

ANTI-CBDC SURVEILLANCE STATE ACT

Mr. HILL of Arkansas. Mr. Speaker, pursuant to House Resolution 580, I call up the bill (H.R. 1919) to amend the Federal Reserve Act to prohibit the Federal reserve banks from offering certain products or services directly to an individual, to prohibit the use of central bank digital currency for monetary policy, and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Pursuant to House Resolution 580, the

amendment in the nature of a substitute recommended by the Committee on Financial Services, printed in the bill, is adopted, and the bill, as amended, is considered read.

The text of the bill, as amended, is as follows:

H.R. 1919

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Anti-CBDC Surveillance State Act''.

SEC. 2. PROHIBITION ON FEDERAL RESERVE BANKS RELATING TO CERTAIN PRODUCTS OR SERVICES FOR INDIVIDUALS AND PROHIBITION ON DIRECTLY ISSUING A CENTRAL BANK DIGITAL CURRENCY.

Section 16 of the Federal Reserve Act (12 U.S.C. 411 et seq.) is amended by adding at the end the following new paragraph:

''(18)(A) A Federal reserve bank may not—

''(i) offer financial products or services directly to an individual;

''(ii) maintain an account on behalf of an individual; or

''(iii) issue a central bank digital currency, or any digital asset that is substantially similar under any other name or label.

''(B) In this paragraph, the term 'central bank digital currency' has the meaning given that term under section 10(11)(D).''.

SEC. 3. PROHIBITION ON FEDERAL RESERVE BANKS INDIRECTLY ISSUING A CENTRAL BANK DIGITAL CURRENCY.

Section 16 of the Federal Reserve Act (12 U.S.C. 411 et seq.), as amended by section 2, is further amended by adding at the end the following paragraph:

''(19)(A) A Federal reserve bank may not offer a central bank digital currency, or any digital asset that is substantially similar under any other name or label, indirectly to an individual through a financial institution or other intermediary.

''(B) In this paragraph, the term 'central bank digital currency' has the meaning given that term under section 10(11)(D).''.

SEC. 4. PROHIBITION WITH RESPECT TO CENTRAL BANK DIGITAL CURRENCY.

Section 10 of the Federal Reserve Act (12 U.S.C. 241 et seq.) is amended by inserting before paragraph (12) the following:

''(11) PROHIBITION WITH RESPECT TO CENTRAL BANK DIGITAL CURRENCY.—

''(A) IN GENERAL.—The Board of Governors of the Federal Reserve System may not test, study, develop, create, or implement a central bank digital currency, or any digital asset that is substantially similar under any other name or label.

''(B) MONETARY POLICY.—The Board of Governors of the Federal Reserve System and the Federal Open Market Committee may not use a central bank digital currency to implement monetary policy, or any digital asset that is substantially similar under any other name or label.

''(C) EXCEPTION.—Subparagraph (A) and sections 16(18)(A)(iii) and 16(19)(A) may not be construed to prohibit any dollar-denominated currency that is open, permissionless, and private, and fully preserves the privacy protections of United States coins and physical currency.

''(D) CENTRAL BANK DIGITAL CURRENCY DEFINED.—In this paragraph, the term 'central bank digital currency' means a form of digital money or monetary value that is—

''(i) denominated in the national unit of account;

''(ii) a direct liability of the Federal Reserve System; and

''(iii) widely available to the general public.''.

SEC. 5. SENSE OF CONGRESS.

It is the sense of Congress that the Board of Governors of the Federal Reserve System currently does not have the authority to issue a central bank digital currency, or any digital asset that is substantially similar under any other name or label, and will not have such authority unless Congress grants it under Congress's Article 1 Section 8 powers.

The SPEAKER pro tempore. The bill, as amended, shall be debatable for 1 hour, equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services or their respective designees.

The gentleman from Arkansas (Mr. HILL) and the gentlewoman from California (Ms. WATERS) each will control 30 minutes.

The Chair recognizes the gentleman from Arkansas (Mr. HILL).

GENERAL LEAVE

Mr. HILL of Arkansas. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arkansas?

There was no objection.

Mr. HILL of Arkansas. Mr. Speaker, I yield myself such time as I may consume in support of H.R. 1919.

This bill has been before us in this House Chamber. We debated it in the last Congress. It has had the outstanding leadership support and advocacy by our majority whip here in the House, Mr. TOM EMMER of Minnesota. I rise in strong support.

At stake is a fundamental choice about the future of money in America, a choice between freedom or government control. Central bank digital currencies, or CBDCs, put the government at the center of every financial transaction: monitoring, controlling, and possibly restricting how Americans could use their own hard-earned money. An American Government-controlled digital dollar threatens to open the door to government overreach here at home.

It would threaten individual privacy and stifle innovation by undermining progress that we have seen from private-sector solutions like we just talked about on the House floor, privately issued U.S. dollar-backed payment stablecoins.

That is a continuation of the evolution of the private-sector guiding the expanse of our money, how we use our money to make payments, formerly starting out with cash. We wrote checks. We use debit cards and ATM cards at the point of sale. We use credit cards. We can send money by wire transfer or by an electronic check. The private sector has innovated all along that continuum of financial technology, and that is why today we don't want the Fed to drive that, to potentially control it, to issue it, for individuals to bank at the Fed and be subject to these risks to privacy or surveillance. Let's stick with the approach of private-sector solutions.

We have already seen small glimpses of this possibility under the prior administration. The chair of the House Financial Services Subcommittee for Oversight and Investigations, DAN MEUSER of Pennsylvania, has been having a robust discussion about the debanking policies of the prior administration for politically disfavored industries.

The capability for the government then to follow on and directly freeze or delete Americans' funds on a whim is not compatible with our values, our cherished freedoms, our way of life, or even the past approach to the evolution of payments in our country.

Moreover, a government-run digital dollar would put the Federal Reserve potentially in direct competition with the private sector. Further, a CBDC would create unnecessary risks by consolidating financial power within the Federal Government, limiting choice and threatening the very innovation that made American financial markets the strongest in the world.

For all these reasons, I am thankful that consistently my friend, our colleague, Majority Whip TOM EMMER, has been leading the charge to prohibit the implementation of a U.S. central bank digital currency. I thank him for the work he has done to elevate this issue in the Congress and bring this bill before us once again for a vote on this House floor.

I hope all my colleagues can recognize that Article I determines how we issue money and how we value it, that that is a power of the Congress, and that we are not delegating it to the executive. We control that in Article I. This bill says that you can't issue a CBDC without that specific explicit authority and direction from the Congress.

Mr. Speaker, I urge all my colleagues to join me in supporting Mr. EMMER's bill, and I reserve the balance of my time.

□ 1150

Ms. WATERS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, over the last hours we heard arguments from the other side of the aisle that the United States must prioritize innovation. The Republican crypto bills we considered will create giant loopholes in our Federal financial laws that put consumers and investors at risk in the name of innovation.

These bills would increase the chance of another costly financial crisis like the one in 2008 that led to trillions of dollars of wealth being wiped out in the name of innovation.

It comes as a surprise to me that the last bill we will debate would block any research, pilots, or consideration about how to digitize the U.S. dollar, it is the reason that I call H.R. 1919 the anti-innovation act.

We have been discussing a lot about cryptocurrency. We have talked about two different acts, which are the CLARITY Act and the GENIUS Act. We have talked about a lot of intricacies of crypto. The general public does not understand all of this because the big

issuers, the big boys, literally kind of own all of the information. They are the issuers, et cetera, et cetera.

It is time for the United States Government to take charge, and our central bank must be involved in the study and the research so that we don't have issuers with crypto or anything else without the Federal Government knowing about it and being in control.

H.R. 1919 would immediately halt and prohibit the United States from any research and exploration of the benefits of a central bank digital currency, or CBDC. A central bank digital currency is essentially a digital version of the dollar, issued by the Federal Government, that uses crypto technology known as blockchain to record everything and everybody who owns tokens. Open it up. Let us know who the big issuers are.

There are two types of CBDCs, and this bill bans both of them. A retail CBDC is made available directly to consumers from the Federal Reserve, from a bank, or other Federal institutions. A wholesale CBDC is not available to the public but only to the banks and other financial institutions. This bill would ban both of these kinds of CBDCs.

Mr. Speaker, when Republicans raise concerns about CBDCs, they are talking about retail CBDCs, but because they are so averse to knowledge and averse to studying things, they have no idea that their bill blocks research into other forms of digitizing the dollar that would truly cut costs for people.

For example, J.P. Morgan Chase has estimated that $100 billion could be saved in cross-border transactions every year if a wholesale CBDC is adopted. Earlier this week in the Rules Committee, we heard Republicans claim that we need to weaken oversight of private crypto because doing so will help cross-border payments.

I ask my colleagues across the aisle: Why should we abandon any research into making the greenback ready for the future? If this bill passes, the United States would be the only country in the world to ban any research in the world on CBDC. What are my colleagues afraid of? Why do they not want the knowledge explained?

Mr. Speaker, 137 countries are racing ahead. Some are studying, and others are issuing their own CBDC. The foreign currency markets are evolving, but Republicans want to stick their heads in the stand. Those 137 countries and currency unions represent 98 percent of the global GDP, and China is one of the frontrunners in the global race to implement a viable CBDC.

Do my friends across the aisle know why China is quickly rolling out its digital currency? It desperately wants to create an alternative to the U.S. dollar to determine the dominance of our currency.

Mr. Speaker, America reaps great riches because our currency, the dollar, is the premium currency used around the world for all sorts of trade. It is used from sales of oil to commodities to financial contracts.

One of those benefits is that when we take out a loan to buy a car or use our credit cards, our interest rates are much lower than in other countries. Another benefit is that the United States can pressure bad actors from Iran to Russia to China by cutting off access to our financial system and the dollar using sanctions.

Those same countries would love to replace the dollar with their currency or something else. One way China hopes to do this is to show that the dollar is an antiquated currency, whereas the Chinese currency is the future.

It is so shortsighted to not even study how the dollar could be digitized, especially during the same week that Republicans want to let private companies create their own currency.

It is very important for all of us to understand that if we want to be innovative and if we want innovation, we will study and we will understand so we then will be able to explain. If we really want to protect the American dollar, we will not put our heads in the sand. We will allow this research to go on to make sure that the American dollar stays strong even in digital.

Mr. Speaker, I reserve the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I include in the RECORD the Congressional Budget Office estimate for this bill.

H.R. 1919, ANTI-CBDC SURVEILLANCE STATE ACT, AS REPORTED BY THE HOUSE COMMITTEE ON FINANCIAL SERVICES ON MAY 6, 2025

	By fiscal year, millions of dollars—		
	2025	2025–2030	2025–2035
Direct Spending (Outlays)	0	0	0
Revenues	*	*	*
Increase or Decrease (−) in the Deficit	*	*	*
Spending Subject to Appropriation (Outlays)	0	0	0

* = between −$500,000 and $500,000.

Increases net direct spending in any of the four consecutive 10-year periods beginning in 2036? No.

Increases on-budget deficits in any of the four consecutive 10-year No periods beginning in 2036? No.

Statutory pay-as-you-go procedures apply? Yes.

Mandate Effects:

Contains intergovernmental mandate? No.

Contains private-sector mandate? No.

H.R. 1919 would prohibit the Federal Reserve banks from providing products or services directly to individual consumers and from maintaining such accounts on their behalf. The bill also would prohibit testing, studying, developing, creating, or implementing a central bank digital currency and bar the banks from using such a currency to implement monetary policy.

The bill's prohibition on the Federal Reserve studying the use of digital currency would result in administrative cost savings. Such savings increase remittances from the Federal Reserve to the Treasury, which are recorded in the budget as revenues. CBO estimates that enacting the bill would increase revenues by an insignificant amount over the 2025–2035 period.

The CBO staff contact for this estimate is Nathaniel Frentz. The estimate was reviewed by H. Samuel Papenfuss, Deputy Director of Budget Analysis.

PHILLIP L. SWAGEL,
Director, Congressional Budget Office.

Mr. HILL of Arkansas. Mr. Speaker, I yield 2½ minutes to the gentleman from Wisconsin (Mr. STEIL), our distinguished chair of the Subcommittee on Digital Assets, Financial Technology, and Artificial Intelligence.

Mr. STEIL. Mr. Speaker, I thank the gentleman from Arkansas (Mr. HILL) for yielding time.

Mr. Speaker, I rise in strong support of the Anti-CBDC Surveillance Act. I thank Whip Emmer for his leadership on this issue. He was actually one of the first in Congress to raise the alarm. Since then, the case has only grown stronger about the risks posed by U.S. CBDC.

Mr. Speaker, the global economy is at a crossroads when it comes to digital payments. Jurisdictions around the world are upgrading their payment systems to be faster, to be cheaper, and cross-border. The private sector is leading the way, including payment stablecoins to enhance the payment rails.

As the United States grapples with modernizing our own payment systems, we are confronted with a choice. Do we empower free-market solutions that protect privacy and protect individual liberty, or do we centralize control over payments in the hands of the Federal Government?

Mr. Speaker, the choice is clear to me. Federal Reserve Governor Christopher Waller has repeatedly warned that a CBDC is ''a solution in search of a problem.'' Nonetheless, Mr. Speaker, in 2022, in his executive order on Responsible Development of Digital Assets, President Biden sought to explore a U.S. central bank digital currency placing ''the highest urgency on research and development efforts into the potential design and development options of a United States CBDC.''

President Trump understands a CBDC's threat to our American freedoms.

□ 1200

In his January 2025 executive order, President Trump explicitly prohibited any Federal agency from issuing or advancing a CBDC without direct congressional authorization.

In a free society, Mr. Speaker, financial privacy and private property rights must be protected. The American economy thrives on choice, competition, and liberty, not on coercion and control.

Mr. Speaker, I urge all Members to support this bill, preserving liberty, protecting privacy, and ensuring the United States of America is a global leader in financial innovation.

Ms. WATERS. Mr. Speaker, I yield 3 minutes to the gentleman from Massachusetts (Mr. LYNCH), who is also the ranking member of the Subcommittee

on Digital Assets, Financial Technology, and Artificial Intelligence. He knows more about digital assets than anybody on the opposite side of the aisle.

Mr. LYNCH. Mr. Speaker, I thank the gentlewoman for her confidence and for yielding time.

Mr. Speaker, I rise in strong opposition to H.R. 1919, the so-called Anti-CBDC Surveillance State Act. At the expense of U.S. global economic leadership, this misguided legislation would prevent the Federal Reserve from issuing a central bank digital currency, also known as a CBDC.

Unfortunately, the facts surrounding the development of CBDC have been obscured by disinformation, conspiracy theories, and extreme political ideology. Republicans and the crypto industry have made unfounded claims that a CBDC will be used as a surveillance tool by the Federal Government.

Let's be clear about what a CBDC is. It is a publicly issued digital dollar that would be regulated by the Federal Reserve, an independent Federal Reserve, that would have the full faith and backing of the U.S. Government. A CBDC could serve as an alternative to existing forms of payments, and it will have benefits, including instant payment settlement, providing a medium for cross-border transactions, and fostering greater financial inclusion. Additionally, Congress could require that the architecture of a central bank digital currency not have surveillance capability.

More than 130 countries are or have been studying or have launched their own government-backed digital currencies, including every major world power. Meanwhile, the U.S. remains far behind amid increasing and blatant misinformation about the features of digital currency.

Let's talk about the EU. It is widely acknowledged that the EU has one of the most stringent data protection regimes and protection laws on the planet. They have strict data protections, number one, on the GDPR, so EU citizens have access to control of their personal data. They have the right to be forgotten, which would prevent data surveillance and surveillance of citizens, and they have strict penalties for companies that violate their personal data rights.

The United States could have the same in a U.S. digital currency. There is a widening gap between the U.S. and its G7 peers, all of whom have far more advanced CBDC projects than the U.S.

I will go back to the EU. The EU is in the final stages of a pilot retail CBDC program already. They are so far ahead of us. They are going to capture the future if we adopt this bill.

The U.S. Government has always led the way in harnessing technology to promote innovation. DARPA and NASA space programs are clear examples of what happens when the U.S. invests in research and development.

While concerns about data privacy could be real, we have the ability to protect that data in any architecture that we adopt. It is counterintuitive that my colleagues would be raising concerns about data privacy while thousands of private companies are scooping up data every single day.

Mr. Speaker, vote ''no'' on this bill.

Mr. HILL of Arkansas. Mr. Speaker, I yield 4 minutes to the gentleman from Kentucky (Mr. BARR), who is the chair of our House Financial Institutions Subcommittee.

Mr. BARR. Mr. Speaker, I rise in strong support of my friend from Minnesota, Whip EMMER's bill, the Anti-CBDC Surveillance State Act, a bill I am proud to cosponsor. This bill would prohibit the Federal Reserve from issuing a central bank digital currency, or a CBDC, to anyone.

I don't think the Federal Reserve has the authority to do this. In fact, a cursory, simple review of the Federal Reserve Act shows that the Federal Reserve does not have the legal authority to issue a CBDC to individuals absent explicit authorizing legislation from Congress. The Supreme Court has also recognized Congress' power to coin money and regulate the value thereof, implicitly denying to the executive branch or to the Fed the ability to do this without congressional authority.

That said, I think it is prudent to explicitly deprive the Fed of the authority to do this for a variety of reasons.

As has been said, Americans' financial privacy is at stake here, and we should not try to compete with China by becoming more like China. The argument for a CBDC that Beijing is doing this, so we should do it, too, why on Earth would we want to imitate, emulate, or copy Beijing's surveillance-state authoritarianism?

To my friend on the other side of the aisle who just made the argument that we are behind and the European Central Bank is doing this, when have we in this country, the United States of America, wanted to emulate Europe?

This is America. We do it the American way, not the European way, not the Chinese way, and not the Communist, socialist way. We do it the free enterprise way. We do it the limited government way. We do it the way to honor Americans' privacy through the GENIUS Act and through private stablecoins. That is the way we should do it. That is the way we should lead in innovation.

Yes, personal privacy is at stake. Surveillance of Americans' individual financial transactions through a CBDC does raise serious privacy concerns and concerns about government control and politicization of loans, online payments, credit scores, tax compliance, Federal contracts, monetary policy, and the like.

In addition to these privacy concerns, a central bank digital currency would centralize Americans' finances, eroding the banking deposit base. That would decrease competition and choice.

This is a big concern that I have, that a CBDC would substantially decrease the availability of credit and increase the cost of financial services and products for consumers, destroying our conventional, traditional banking system.

Our banking system, in contrast to Europe and China, is the envy of the world due to its free market principles, dynamism, and diversity. Banks of all different sizes serve customers, communities, and businesses with all different needs. Capitalism promotes market demands, which incentivize banks to offer products that fit the needs of their consumers at the best price possible.

We don't want to eliminate that. We don't want to erode the deposit base with a CBDC.

I ask, Mr. Speaker, would we truly want to lose the benefits of a diverse banking system that makes the U.S. the global leader in the financial system? Do we want to take actions to be more like China or Europe and decrease Americans' right to privacy?

I went to the European Central Bank. I heard them lecture us about a CBDC, and it made me more convinced than ever that we don't want to be like Europe.

The answer is that we do not want to be like Europe and that we do not want to be like the Communists in Beijing. We must disintermediate our banking system and allow for the creation of a CBDC. We must not threaten Americans' access to privacy.

That is why I support this legislation, and I urge all of my colleagues to do so, as well.

If my Republican colleagues really don't like a CBDC, then vote for the GENIUS Act, which takes away all the arguments for it.

Ms. WATERS. Mr. Speaker, I yield 3 minutes to the gentleman from Connecticut (Mr. HIMES), who is also the ranking member of the Permanent Select Committee on Intelligence.

Mr. HIMES. Mr. Speaker, I thank the gentlewoman from California for this opportunity to speak because this is one of the most ignorant things I have seen this House produce in a very long time.

It stuns me, frankly, that my good friends, Congressmen HILL, STEIL, and BARR, are associating themselves with this bill.

Let's be super clear about this. Nobody knows whether a CBDC is a good idea. A couple of years ago, I wrote a white paper on CBDC, and I concluded that it is not clear. The arguments for and against are being mooted today.

Yes, it could be abused by an overwhelming executive if we had a President, for example, who showed disdain for the Constitution, who was comfortable acting illegally, and who wasn't comfortable with judicial rulings. It is hard for us to imagine that President, but this could be abused.

It could be used for monetary policy, a bad idea. It could be used for taxation, a bad idea. It could also, by the way, be a trusted electronic currency

for an unbanked population. It could be a way of supporting the primacy of the American dollar. I don't know.

The truth is that nobody on that side of the aisle or this side of the aisle knows either, but we are going to forbid any inquiry around this to figure out whether it is a good idea or a bad idea. We are going to say we can't even research it.

This is a stunning definition of ignorance. Imagine if 100 years ago we had said that electricity is scary. It can kill you and is produced by burning coal, which is dangerous, so we are not going to research electricity or atomic power or the automobile. Tens of thousands of Americans die every year because of the automobile.

We don't know, and the majority says let's not learn because they have some ideological fixation that, frankly, I don't understand.

□ 1210

Two hundred years ago, the private sector, which my friends on the other side of the aisle hold up, had issued currency. It was called scrip. Companies and banks issued their own currency, and this country learned that this was a terrible idea and that, in fact, the central bank should issue currency, which is one of the reasons we are who we are today. You might give the CBDC at least some benefit of the doubt instead of being ignorant about whether we want to know the truth.

We need to stop this. We held this institution up for 2 days over a bizarre MAGA obsession which is rooted in insanity and ignorance. Don't even find out the answer. The ranking member said that this is like a boy who is hiding from the truth. I have another metaphor. This is like a young 5-year-old who is angry and covers his eyes and ears and believes he is invisible.

Just imagine my good friend ANDY BARR saying we are not like China, we are not like—what if there is a sterling or—

The SPEAKER pro tempore (Mr. KNOTT). The time of the gentleman has expired.

Ms. WATERS. Mr. Speaker, I yield an additional 1 minute to the gentleman from Connecticut.

Mr. HIMES. Mr. Speaker, for all the rah-rah patriotism, think about this. Again, I will acknowledge that we don't know if this is a good idea or a bad idea, and we ought to find out.

Let's imagine that the European Union, which Mr. BARR wants to dissociate himself with, puts out a CBDC that picks up real usage. Now all of a sudden, we have a threat to the dollar because we are still handing around pieces of paper because the Republican majority said we shouldn't even research something that may or may not be a good part of a modern, 21st century economy.

Don't go with ignorance. You are too smart for that. Don't risk putting us behind on something that could be really important to the future of the American dollar. Vote ''no'' on this ignorant bill.

Mr. HILL of Arkansas. Mr. Speaker, I yield 3 minutes to the gentleman from Ohio (Mr. DAVIDSON), who is the chair of our Subcommittee on National Security, Illicit Finance, and International Financial Institutions.

Mr. DAVIDSON. Mr. Speaker, central bank digital currency poses an existential threat to western civilization. It is essentially, at its heart, communist banking.

ELIZABETH WARREN, Sherrod Brown, and Democrats in the Senate didn't walk around Omarova to be confirmed as a bank regulator because they were opposed to communist banking. They want it. That is what central bank digital currency is.

Our colleagues on the other side of this debate act like we need to study communism a little harder to figure out whether it works or not. We have got plenty of evidence it doesn't work. Central bank digital currency inserts government between you and your money.

Another word for central bank digital currency is programmable money. Who does the programming? The central bank. They can condition your access to your own money with whatever parameters they put in place. They can filter transactions. They can even set them to expire. Monetary policy wonks in the communist banking world think this is a feature, not a flaw. They think if they can set your access to your money to expire, then it would be a better future.

Every dystopian fiction that I have found—''Brave New World,'' ''1984''—says this is the future of money, that it is corrupted into a tool for surveillance, coercion, and control.

Frankly, our own current banking system has crept too close to that. We need to turn the other direction. The market is telling us that. That is why cryptocurrency was invented, frankly. That is why it is so popular and is a growing asset class. We need to say no to this, and we need to protect what the market is telling us consumers want.

We tested this under the Biden administration. They decided that they were going to spy on your bank accounts if you had $600 in your bank. The public said: Whoa, what? Why are you spying on my bank account?

In a communist world, they say: Well, if you have nothing to hide, then why should you have anything to fear.

But that is not our way of life in this country. The Fourth Amendment doesn't say that. It says if you have probable cause, and only then, then you get a warrant. Here, you build the surveillance into the program.

I get it. If all men were angels, this would never be abused, but we know they are not. We have seen massive abuse in our own country. In Canada we saw Trudeau, a fellow traveler on the communist long march, want to ban people's access to their own bank accounts because they were protesting his COVID policies at trucker rallies.

This is very easy to do when you have programmable money. We need to say no to this. It is an existential threat to our way of life, and ideally, we would do it at every opportunity.

Mr. Speaker, I urge all our colleagues to vote for Mr. EMMER's bill and stop this threat to our way of life.

Ms. WATERS. Mr. Speaker, I yield 3 minutes to the gentleman from California (Mr. SHERMAN), who is also the ranking member of the Subcommittee on Capital Markets.

Mr. SHERMAN. Mr. Speaker, I worked hard in school, but the grade I am proudest of is to be the first Member of this House to get an ''F'' from the crypto industry.

Article I, Section 8, of the U.S. Constitution says that it is the Federal Government and Congress who should coin money and determine the value thereof. However, our Republican friends tell us that that means that the Federal Government should be stuck with 1776 technology while the competitors of the dollar race forward in the 21st century.

The largest super-PAC expenditures in history occurred last year. The crypto industry spent more on independent expenditures—look at this. If you combine all of the expenditures from Big Oil plus Big Pharma, put them together, and multiply by five, you still don't have what the crypto industry did last year.

It is not surprising that we hear words like ''freedom,'' ''innovation,'' ''choice,'' and ''competitiveness'' used to justify making money for the crypto bros, and now we have a bill designed to prevent freedom, innovation, choice, and competitiveness when it poses a risk to their profits.

This bill not only prevents us from ever having a digital dollar; it prevents us from even studying a digital dollar.

Now, I think Americans will always have banks, credit cards, debit cards, Zelle, Venmo, cash, money market funds, and pursuant to the bill that it looks like we are going to pass today, they will have stablecoin, a privacy device specifically designed for criminals and tax evaders. Then they will have mixers to make it impossible for even the most advanced law enforcement, even with a warrant, to find out what is happening.

They have all of those choices.

What is the one choice you are not allowed to have?

You are not allowed to have the currency provided for in the U.S. Constitution. You are not allowed to have a digital dollar or even a study of a digital dollar. If you don't want to carry a lot of paper around, you can't have the full faith and credit of the United States.

Now, we have talked about the role of the U.S. dollar, the critical role that it plays in international transactions, and why that is a major economic benefit to the United States.

The crypto bros occasionally tell you out loud what they are thinking. That

is they want to minimize and destroy the role of the U.S. dollar internationally. What do they do to hobble the dollar? They say the Chinese Communist Party can have a digital yuan, the bitcoin bros can have a digital currency, but America is limited to 1776 technology.

Our banking system is the envy of the world because we innovate. This bill says no innovation.

The SPEAKER pro tempore. The time of the gentleman has expired.

Ms. WATERS. Mr. Speaker, I yield an additional 1 minute to the gentleman from California.

□ 1220

Mr. SHERMAN. Mr. Speaker, you might think it is hypocritical that they tell us that we have to have crypto because, otherwise, China will do it. Then they say: We can't have a digital dollar because China is doing it.

That is not inconsistent. They are consistent. Their consistent rule is that you must do what makes profit for the crypto bros, including Donald Trump, and you must prevent them from facing any competition, even the competition called for by the U.S. Constitution.

Today's bills in whole, all three of them, will create a payment system designed for tax evaders and criminals. It will provide for taxpayer bailouts, and it will allow the crypto industry to say that we have all this power in Congress. Crypto bailouts are not only allowed, but they are guaranteed.

It will provide an avenue for foreign interests to provide hidden money—''cryptocurrency'' literally means hidden money—into Trump's personal pocket, and it is designed to allow taxpayer money to be used to buy bitcoin and Trump coin.

Finally, it takes our freedom. It says that you can have freedom to have a digital currency only if you do it in a way that it enriches the crypto bros. There would be no choice for Americans who want a digital dollar.

Mr. HILL of Arkansas. Mr. Speaker, I have the pleasure to introduce the author of this important legislation, and I yield 4½ minutes to the gentleman from Minnesota (Mr. EMMER), the majority whip of the U.S. House of Representatives.

Mr. EMMER. Mr. Speaker, after much debate, we can now codify President Trump's effort to prevent the development of a central bank digital currency, or CBDC, and ensure that the United States' digital currency policy remains in the hands of the American people and not the administrative state.

I am proud to have my legislation, the Anti-CBDC Surveillance State Act, being considered on the House floor for a vote today.

This bill is straightforward. It prevents unelected Washington bureaucrats from creating a financial surveillance tool that, if not done correctly, will fundamentally alter the lives of every American.

Unlike decentralized digital assets, a CBDC is a digital form of sovereign currency that is designed, issued, and monitored by the Federal Government. It is government-controlled, programmable money that, if designed without the privacy protections of cash, could give the Federal Government the ability to surveil and restrict Americans' transactions and monitor every aspect of our daily lives.

In other words, every dollar you spend, where you spend it, and who you spend it with would all be visible to and tracked by the watchful eyes of Washington. There would be no cash, no anonymity, and no space for private financial decisionmaking.

This isn't an inconceivable concept. We have already seen examples of governments developing these types of tools and using them to weaponize their financial systems against their citizens. The Chinese Communist Party employs a CBDC that is being used to monitor and restrict its citizens' spending. The data is being used to develop a social credit system that rewards or punishes individuals based on their spending behavior.

In Canada, the former Trudeau administration demonstrated the power of Federal financial surveillance and control when it froze the bank accounts of hundreds of truckers protesting the COVID vaccine mandate in 2022.

Surely, this totalitarian surveillance tool would never take root in the United States. However, that assumption would be wrong. This is not a theoretical risk. It is a very real and very dangerous precedent.

Under the Biden administration, financial surveillance was a core tenet of President Biden's policy agenda. In 2022, President Biden issued an executive order placing urgency on CBDC research and development.

Moreover, the agency reports created under that executive order made it clear that the previous administration was eager to create a CBDC and was willing to trade Americans' right to financial privacy for a CCP-style surveillance tool.

Our bill, the Anti-CBDC Surveillance State Act, prevents future administrations from weaponizing this technology against the American people while ensuring that any development of digital money reflects our American values of privacy, individual sovereignty, and free market competitiveness.

If not designed to be open, permissionless, and private—''private'' with a capital p—resembling cash, a government-issued CBDC is nothing more than an Orwellian surveillance tool that will be used to erode the American way of life.

The Federal Government has no business monitoring Americans' daily financial lives. We don't need or want a state-run digital dollar with Chinese Communist Party characteristics. We need to protect the core principles that make this country exceptional: liberty, limited government, and the right to privacy.

We are on the verge of the next game-changing technological evolution, and we must embrace this push for a more developed digital economy. In doing so, we cannot jeopardize who we are as Americans, and this bill is designed to ensure just that.

Mr. Speaker, I thank Chairman HILL and Chairman STEIL for their tireless work and advocacy on this issue, in addition to the 135 Members of Congress who have joined as cosponsors of our legislation. I urge all of my colleagues to support this bill.

Ms. WATERS. Mr. Speaker, I reserve the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I yield 2 minutes to the gentleman from Pennsylvania (Mr. MEUSER), chairman of our Subcommittee on Oversight and Investigations.

Mr. MEUSER. Mr. Speaker, I thank the chairman of our full committee, Chairman HILL, for his leadership.

Mr. Speaker, I rise in support of H.R. 1919, the Anti-CBDC Surveillance State Act, led by Whip EMMER.

This bill is about defending our Constitution and protecting the privacy of the American people. The Constitution is unambiguous in Article I, Section 8, which grants only Congress exclusive authority to coin money, regulate the value thereof, and of foreign coin.

This is a clear provision of the United States Constitution. It is a foundational element of our constitutional Republic designed to keep such important authority over our Nation's currency issuance within the hands of the people's Representatives.

A central bank digital currency would centralize unprecedented power in the Federal Government and could open the door to real-time surveillance of every financial transaction in America.

Existing banking practices safeguard Americans' privacy. A CBDC could undo that protection overnight, creating a tool ripe for abuse. Even though the Constitution is clear, this bill restrains the Fed from even considering a central bank digital currency, reinforces Congress' constitutional authority over currency, and ensures that any digital dollar reflects our founding principles.

Mr. Speaker, I commend Whip EMMER for his leadership, and I urge support for this very important legislation.

Ms. WATERS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, Democrats are not the only ones who want to study CBDC. In 2021, my dear friend, Chairman HILL, worked with Representative FOSTER to introduce the Central Bank Digital Currency Study Act.

Chairman HILL also wrote a letter to the Fed asking for information. After the Fed agreed to do a study, he issued a statement saying:

The Fed is finally taking actionable steps to do what we have been asking them to do

for 2 years, and we are pleased to see Chairman Powell announce steps toward making a digital dollar a reality.

I ask the gentleman: What changed?

We need more research. We need to learn more, so we need to vote ''no'' on this bill. It goes in the opposite direction from what the gentleman wants and has been asking for.

Finally, we have a chance to vote, and certainly I am asking for a ''no'' vote, and I hope that the gentleman would, too.

Mr. Speaker, I reserve the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I yield 2 minutes to the gentleman from Tennessee (Mr. ROSE).

Mr. ROSE. Mr. Speaker, I thank the chairman for yielding me time.

Mr. Speaker, I rise today in support of H.R. 1919, the Anti-CBDC Surveillance State Act.

Among the many rights that we enjoy as Americans, privacy is among the most fundamental. Establishing a central bank digital currency would not only usurp consumers' privacy and individual freedoms, but it would also hinder free market innovation.

Digital assets are here to stay. I agree strongly with President Trump that the United States should be a leader in this space. However, the last administration held a very different view. They wasted no time exploring ways to set up a surveillance state digital currency managed and micromanaged by the Federal Government.

President Trump understands the dangers of more government and more surveillance. It is why he issued an executive order prohibiting a CBDC. The vote before the House would make that ban permanent, and I urge my colleagues to support this bill.

□ 1230

Mr. Speaker, today the House will vote on the GENIUS Act, short for the Guiding and Establishing National Innovation for U.S. Stablecoins Act. The bill, which was introduced in the Senate by my friend and fellow Tennessean, Senator BILL HAGERTY, provides a clear regulatory framework for the issuance of payment stablecoins.

Today, this payment product is offered with little, if any, Federal oversight. By establishing this regulatory clarity, this bill will drive significant demand for stablecoins. This bill will ensure issuers back stablecoins with high-quality liquid assets, a major win for the American consumer.

The GENIUS Act includes consumer protections and enables innovators to do what they do best. It also happens to strengthen the U.S. dollar's reserve currency status. This will result in the ability to make near-instant payments anywhere in the world, which is good for consumers, companies, and Americans.

Ms. WATERS. Mr. Speaker, yet, again, my colleague confuses retail and wholesale CBDC. Banning wholesale CBDC is nonsensical. It has nothing to do with surveillance and everything to do with modernizing how American financial institutions and our central bank engage in intrabank cross-border transactions.

This suggestion of Big Brother and monitoring is just a fabrication, a bogeyman. We must support financial innovation and not hide from the future.

Mr. Speaker, I reserve the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I yield 2 minutes to the gentleman from Indiana (Mr. STUTZMAN), a returning member of the House Financial Services Committee.

Mr. STUTZMAN. Mr. Speaker, I thank our Financial Services chairman for his leadership on a really important issue that is going to affect many generations ahead of us.

Mr. Speaker, I rise today in strong support of the anti-CBDC Surveillance State Act.

Our Founding Fathers were clear that Congress, not the executive branch, has the power to coin money and regulate its value.

Yet, in 2022, the Biden administration issued an executive order that placed the highest urgency on the research and development of a central bank digital currency, a so-called digital dollar.

Under the wrong circumstances, this technology could allow the Federal Government unfettered access into the wallets of every American, putting privacy and freedom at risk.

Unfortunately, Americans know all too well how far some administrations are willing to go to intrude into our lives. We all saw how the Biden administration ruthlessly pressured social media platforms to silence the voices of Americans who criticized their disastrous COVID–19 policies.

We saw this same ideology taken to the extreme when Canadian Prime Minister Justin Trudeau froze the bank accounts of Canadians who dared to protest his government during the pandemic.

Now, imagine if the Federal Government could see where we spend our hard-earned paychecks, track our charitable donations, or even cut off access to our own money if it disapproves of our beliefs.

Any digital dollar must reflect our values of privacy and our First Amendment rights. This bill ensures our digital assets policy is in the hands of the American people, not the administrative state. It protects our values of privacy, individual freedom, and free market innovation by prohibiting a CBDC surveillance tool that could be wielded against the American way of life.

I am proud to be a cosponsor of this important legislation, and I thank Whip EMMER and Chairman HILL for their outstanding leadership on this important issue.

Mr. Speaker, I urge my colleagues to support this legislation.

Ms. WATERS. Mr. Speaker, I reserve the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. KILEY), who represents the prettiest district outside Arkansas.

Mr. KILEY of California. Mr. Speaker, the Biden administration started us down the road of adopting a Central Bank Digital Currency issued by the Federal Reserve without the consent of the American people or their Representatives here in Congress.

Today, we are saying no. We are not the Chinese Communist Party. We are not going to turn the central bank of the United States into a giant panopticon, capable of tracking and surveilling every American citizen, while keeping a watchful eye on each and every one of your financial transactions, crediting or discrediting, or punishing you based on your personal behavior, and restricting that behavior with the tap of a button. Nothing could be more inimical to the liberty and privacy on which American greatness depends.

Mr. Speaker, I am proud to be a sponsor of this critical legislation and look forward to its passage on the House floor today.

Ms. WATERS. Mr. Speaker, I reserve the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I yield 1 minute to the gentleman from North Carolina (Mr. MCDOWELL), our new Member.

Mr. MCDOWELL. Mr. Speaker, I thank the chairman for yielding.

Mr. Speaker, America is not a surveillance state, and under Republican leadership, it never will be. Today, this Congress has the opportunity to lay the foundation for a digital future that protects freedom and financial privacy.

At the center of that effort is the Anti-CBDC Surveillance State Act. This bill ensures that no central bank digital currency will be created under the Federal Reserve. We have seen what that looks like in Communist China where the CCP uses it to track, monitor, and control their people, but not here, Mr. Speaker. Not in the land of the free because together with the CLARITY Act and the GENIUS Act, we will protect Americans' financial liberty and make the United States the crypto capital of the world.

Mr. Speaker, I urge my colleagues to support this legislation.

Mr. HILL of Arkansas. Mr. Speaker, I am prepared to close, and I reserve the balance of my time.

Ms. WATERS. Mr. Speaker, I yield myself the balance of my time.

Earlier my colleagues praised our wonderful private sector, and we know now my friends do not like studies, but I would encourage them to read the study from our biggest bank, JPMorgan Chase, explaining how CBDC's can save $120 billion in cross-border payments. Please read the study. Even if you don't like studies, read it anyway.

Mr. Speaker, the bottom line is that we fall further and further behind the global economic stage with congressional Republicans' policies. We are already seeing inflation rise on consumer

goods as Trump's tariffs take place. Now, Republicans want to raise the cost of auto loans, credit card fees, and mortgages for Americans by forcing the dollar to become a relic of the past. That is why I will vote ''no.''

Further, Mr. Speaker, Mr. HIMES made a great argument and a great point about ignorance. He believes that this is an ignorant bill, and it just does not speak well for the Members of Congress not wanting to do research and study to determine what is in the best interest of the dollar and our country.

Mr. Speaker, I yield back the balance of my time.

Mr. HILL of Arkansas. Mr. Speaker, I yield myself the remainder of my time.

Mr. Speaker, first, I will thank the members of the House Financial Services Committee and the members of the House Agriculture Committee for all the work that they have put in on both sides of the aisle. It was significant hours for multiple years, basically the last three Congresses, in thinking through what is the future of digital assets, how are they best regulated, what is the role of United States Government in oversight, what is the future of money in terms of the use of a blockchain.

Members in these committees have worked extensively. Likewise over in the Energy and Commerce Committee, the idea of blockchain technology at large outside financial institutions has garnered a tremendous amount of bipartisan work.

□ 1240

This House wants to make sure that we prepare this country for a prosperous, free, open Web3 technology as we go into seeing the benefits of writing applications on a blockchain. We will see competition in blockchains, just as we saw competition in operating systems in computing. I think that breeds a lot of excitement.

No one can actually do that if we don't have clear rules of the road. We have spent this morning debating those rules of the road.

The CLARITY Act that we debated on this House floor provides that market framework for the use of digital assets, custodying digital assets, investing in digital assets, or dealing or raising capital around them. It clearly defines what should be treated as a commodity versus what should be treated as a security.

We talked about that important payment device on a blockchain for use in that marketplace that is outlined in the CLARITY Act. That is a dollar-backed stablecoin.

We want the U.S. to dominate in financial technology and payments, just as we do for the vast majority of payments around the world in dollars. That is delivered by the bipartisan work in the Senate on the GENIUS Act.

I want to start by thanking those Members. I also recognize the incredibly hardworking staff members on the House Committee on Agriculture and the House Committee on Financial Services who have worked together unbelievably, capably, cooperatively, and effectively over these last two Congresses, as they did at the height of the cleanup from the financial crisis in 2008 when House Financial Services and the Agriculture Committee came together to write rules about the swap market.

I particularly thank Nick, Jack Jackson, Lindsey, and Paul on the staff at the House Agriculture Committee. They did great. I thank Nick, Allison, and our team at House Financial Services for their staff leadership.

Mr. Speaker, this bill we are debating today is essential. The ranking member seems to think that I am interested in the subject of a central bank digital currency, and I am. I have spent the better part of the last 5 years studying central bank digital currencies outside the United States and talking to officials inside the United States about whether that is a good idea or a bad idea.

Over those years, it is not out of ignorance that I have come to the conclusion that it is a bad idea. One of the contributing factors to my determining that I don't believe it is an idea whose time has come, to supplement private-sector innovation in this Nation, is actually Congressman JIM HIMES' white paper that he shared with me years ago. I thought it was well-written, and it was another indication that this was not the direction to go in.

Since that time, I have visited with other central banks around the world, in Europe and other places, that make me even more certain that we should rely on private-sector innovation that, in turn, can create the tokenized money, which we have talked about all morning, but doesn't do it in a way that can surveil your work, take over your life, have outcomes that you heard from Congressman DAVIDSON and Congressman EMMER, about the examples of debanking that we witnessed in Canada or the policy debanking we witnessed in the Obama administration and, to a degree, the Biden administration.

Americans have made it clear: We don't want the Federal Government controlling how we spend, save, or send our money in our personal lives. We have witnessed firsthand the dangers when government wields that power unchecked, and you heard examples of that this morning.

Americans want and deserve control over their own money, and we have tried to institutionalize that in all the work we have done in both of these committees in this digital assets innovation and reform space.

We believe in self-custody. I have self-custody in the analog world of cash and investments. Why can't I have that custody, that self-control, in my digital financial space? I don't understand why one can't recognize the authorities that we have on our person—constitutionally guaranteed, guaranteed by law—in an analog context? Why can't we demand the same?

Mr. Speaker, I urge my colleagues to join me in supporting this bill, and I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 580, the previous question is ordered on the bill, as amended.

The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. WATERS. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

□ 1250

DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2026

The SPEAKER pro tempore (Mr. GOSAR). Pursuant to House Resolution 580 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the further consideration of the bill, H.R. 4016.

Will the gentleman from North Carolina (Mr. KNOTT) kindly take the chair.

□ 1251

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the further consideration of the bill (H.R. 4016) making appropriations for the Department of Defense for the fiscal year ending September 30, 2026, and for other purposes, with Mr. KNOTT (Acting Chair) in the chair.

The Clerk read the title of the bill.

The Acting CHAIR. When the Committee of the Whole rose earlier today, amendments en bloc No. 7, printed in part A of House Report 119–199, offered by the gentleman from California (Mr. CALVERT) had been disposed of.

The Chair understands that amendment No. 48 will not be offered.

Ms. MCCOLLUM. Mr. Chair, I rise as the designee of the gentlewoman from Connecticut (Ms. DELAURO), and I move to strike the last word.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chair, I yield to the gentlewoman from Ohio (Ms. KAPTUR), the distinguished ranking member of the Subcommittee on Energy and Water Development and Related Agencies.

Ms. KAPTUR. Mr. Chair, as the senior member on the Defense Appropriations Subcommittee, I am deeply concerned and disappointed by this legislation. This bill was written before the

Department of Defense submitted its budgetary needs for fiscal year 2026. Shamefully, the Department still has not provided Congress with a complete request.

Thus, we have been brought to the floor to vote on an incomplete bill, with no complete executive branch submission. This is not only out of order, it is dangerous. Their procrastination yields uncertainty for those who risk their lives in defense of this Nation.

America deserves better than uncertainty and a Defense Department that is missing in action. Our troops can't train on promises. Our allies can't fight with doubt. Our factories can't build American strength without steady support. This bill fails liberty on all counts.

This bill misses crucial opportunities to strengthen America's defense industrial base. Shipbuilding is backed up over 2 years. The Great Lakes region, a cornerstone of American industrial manufacturing, can play a major role in relieving that backup, but all of America is put on hold due to the DOD's damaging budget delays.

We must prioritize investments that rebuild our domestic manufacturing capabilities. Our military should never have to fight with or depend on foreign sources for materials, critical minerals, or key military components. Furthermore, by cutting all funding for Ukraine, this bill dangerously ignores history at our own peril.

At our founding, Patrick Henry heroically proclaimed: ''Give me liberty or give me death.'' He knew liberty's cost and our new Nation's responsibility to uphold the values that our European forebears bequeathed to us, ones that focused on representative government.

Thomas Jefferson knew America does not exist alone on the globe when he wrote the words: ''Our laws, language, religion, politics, and manners are so deeply laid in [European] foundations, that we shall never cease to consider their history as a part of ours.''

More recently, on January 20, 1961, President John F. Kennedy, in his inaugural address, recognized America's fierce dedication to liberty when he said: ''We shall pay any price, bear any burden, meet any hardship, support any friend, oppose any foe to assure the survival and the success of liberty.'' Then he warned that those who ride the back of the tiger would end up inside it. He warned against that, and I hope our Nation never goes down that lonely, dark path.

In a contemporary era on June 6, 1984, President Ronald Reagan stood in Normandy, France, commemorating the day in history '' . . . when the Allied armies joined in battle to reclaim this continent to liberty. . . . Here the Allies stood and fought against tyranny in a giant undertaking unparalleled in human history,'' and they did it together.

Mr. Chair, these quotes and sacrificial deeds of our forebears explain why I rise to express my deep opposition to this bill's irresponsible and shortsighted exclusion of any funding for the Ukraine Security Assistance Initiative.

Throughout generations, the fundamental purpose of our Nation is to guarantee liberty, to develop the kinds of relationships with our democratic allies who stand with us against tyranny in any form, and to fill our constitutional duty to provide for our Nation's common defense. Common defense, the Constitution says.

Ensuring that the Ukraine Security Assistance Initiative is properly funded is essential to fulfilling our charge in defense of liberty on our watch. If you haven't noticed Ukraine's struggle against the spiderweb of tyranny fostered by Russia, China, Iran, Belarus, and North Korea, it is real, and it is lethal.

Ukraine is in a historic fight now, not of her own choosing but for her very survival. The poorest nation in Europe has fought back mightily against the third largest military in the world after Putin's murderous aggression that began in 2014.

Russia and its spiderweb of tyranny are a threat to liberty everywhere, and Ukraine stands on the front line. If support for Ukraine is withdrawn, Russia and its allies' assault on fundamental freedoms will spread.

May no one in this generation become swallowed by the tiger. Those who do not know and study history are doomed to repeat it.

Proper funding in this bill will boost our domestic defense industrial base and affirm critical security and mineral alliances. It supports our NATO partners. It is our privilege and, yes, duty to support our allies and the brave people of Ukraine by appropriating funds for the Ukraine Security Assistance Initiative.

My amendment would reinstate funding for the Ukraine Security Assistance Initiative. I include in the RECORD the text of this amendment.

Ms. Kaptur moves to recommit the bill H.R. 4016 to the Committee on Appropriations with the following amendment:

At the appropriate place, insert the following:

SEC. ___. Of the amounts appropriated in this Act under the heading ''Operation and Maintenance, Defense-Wide'', for the Defense Security Cooperation Agency, $300,000,000, to remain available until September 30, 2027, shall be for the Ukraine Security Assistance Initiative: *Provided*, That such funds shall be available to the Secretary of Defense, with the concurrence of the Secretary of State, to provide assistance, including training; equipment; lethal assistance; logistics support, supplies and services; salaries and stipends; sustainment; and intelligence support to the military and national security forces of Ukraine, and to other forces or groups recognized by and under the authority of the Government of Ukraine, including governmental entities within Ukraine, engaged in resisting Russian aggression against Ukraine for replacement of any weapons or articles provided to the Government of Ukraine from the inventory of the United States, and to recover or dispose of equipment procured using funds made available in this section in this or prior Acts: *Provided further*, That the Secretary of Defense shall, not less than 15 days prior to obligating funds made available in this section, notify the congressional defense committees in writing of the details of any such obligation: *Provided further*, That the Secretary of Defense shall, not more than 60 days after such notification is made, inform such committees if such funds have not been obligated and the reasons therefor: *Provided further*, That the Secretary of Defense shall consult with such committees in advance of the provision of support provided to other forces or groups recognized by and under the authority of the Government of Ukraine: *Provided further*, That the United States may accept equipment procured using funds made available in this section in this or prior Acts transferred to the security forces of Ukraine and returned by such forces to the United States: *Provided further*, That equipment procured using funds made available in this section in this or prior Acts, and not yet transferred to the military or national security forces of Ukraine or to other assisted entities, or returned by such forces or other assisted entities to the United States, may be treated as stocks of the Department of Defense upon written notification to the confessional defense committees: *Provided further*, That any notification of funds made available in this section shall specify an estimated timeline for the delivery of defense articles and defense services provided and shall identify if any equipment provided requires enhanced end-use monitoring: *Provided further*, That the Secretary of Defense may accept and retain contributions, including money, personal property, and services, from foreign governments and other entities, to carry out assistance authorized for the Ukraine Security Assistance Initiative in this section: *Provided further*, That the Secretary of Defense shall notify the congressional defense committees in writing upon the receipt and upon the obligation of any contribution, delineating the sources and amounts of the funds received and the specific use of such contributions: *Provided further*, That contributions of money for the purposes provided herein from any foreign government or other entity may be credited to this account, to remain available until September 30, 2027, and used for such purposes: *Provided further*, That the Secretary of Defense shall provide quarterly reports to the congressional defense committees on the use and status of funds made available in this section.

The Acting CHAIR. It is now in order to consider amendment No. 49, printed in part A of House Report 119–199.

AMENDMENT NO. 57 OFFERED BY MR. DAVIDSON

The Acting CHAIR. It is now in order to consider amendment No. 57 printed in part A of House Report 119–199.

Mr. DAVIDSON. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Strike section 8072.

The Acting CHAIR. Pursuant to House Resolution 580, the gentleman from Ohio (Mr. DAVIDSON) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Ohio.

Mr. DAVIDSON. Mr. Chair, I rise today to urge you and all of our colleagues to support amendment No. 57 to the FY 2026 Department of Defense appropriations bill.

This amendment strikes section 8072, a misguided rider that prohibits the Navy from decommissioning littoral class combat ships.

The state of shipbuilding in the United States is nothing we would hope to have. It is broken. This program maybe represents the pinnacle of its brokenness. The ship doesn't accomplish what it was designed for. I am encouraged when I speak to the chairman to know that it is being put to use elsewhere, but it is not accomplishing the mission that the Navy needs it for.

This provision ties the Navy's hands, forcing it to retain a deeply flawed, costly, and ineffective class of ships that undermines our national security, endangers our sailors, and wastes taxpayer dollars, when we could move forward and build a ship that could accomplish the mission.

President Trump is trying to take leadership over this and fix it, and this ties his hands in a way that prevents options. We should leave the Commander in Chief that decision.

The littoral combat ship program, costing over $30 billion, with each ship priced at roughly $500 million, is a textbook example of Pentagon inefficiency and contractor-driven bloat. Designed as a light, fast, customizable vessel for near-shore warfare, the LCS has instead become a symbol of our flawed procurement system.

□ 1300

Mr. Chair, since its inception, the program has been plagued by persistent propulsion system failures, weapons system integration issues, hull problems, and rampant cost overruns.

A 2022 GAO report exposed the LCS's shortcomings. It has not demonstrated the operational capabilities needed for its Navy mission.

Operational testing revealed significant challenges including the ship's inability to defend itself, if attacked, and frequent failures of mission-essential equipment on the ships. Deployments have been marred by breakdowns and setbacks, rendering these ships unreliable at best.

Mr. Chair, forcing the Navy to maintain a fleet of broken and expensive ships is simply irresponsible. I think it is wrong to take our Commander in Chief's hands. Our sailors deserve the best and most reliable vessels to defend our Nation. Every dollar spent on the LCS is a dollar diverted from building a stronger, more capable fleet. Retaining these ships compromises readiness, squanders limited resources, and puts lives at risk.

My amendment restores the Navy's authority to make strategic decisions about its fleet and frees up resources for platforms that actually enhance our national security.

Mr. Chair, I urge our colleagues to put the safety of our sailors and the strength of our Navy first, and I ask my colleagues to vote ''yes'' on amendment 57.

Mr. Chair, I yield back the balance of my time.

Mr. RUTHERFORD. Mr. Chair, I rise in opposition to the Davidson amendment.

The Acting CHAIR (Mr. MEUSER). The gentleman from Florida is recognized for 5 minutes.

Mr. RUTHERFORD. Today, our Nation is facing growing and real threats from adversaries around the world. There is China, who continues to rapidly grow their naval capacity at an alarming rate.

Iran, and its terrorist proxy groups, are threatening our allies and disrupting free trade in the Red Sea.

Finally, South American cartels and drug smugglers are harming the health and well-being of American citizens.

To face these growing threats, our Navy must rise to the occasion. That means projecting strength throughout the world, while bolstering our naval fleet. The LCS supports America's maritime security, sea control, and deterrence, and, importantly, President Trump's agenda.

Just this past April, the USS *Minneapolis-Saint Paul* helped the U.S. Coast Guard stop two alleged drug smuggling operations in the Caribbean Sea. These ships assist in stopping narcotics, protecting the homeland from illicit maritime drug trafficking, and securing our border.

Also, sea mines are actually responsible for more damage to U.S. naval warships than any other weapon since World War II. Although it is 10 years after originally planned, the LCS platform is now providing support for detecting, localizing, and neutralizing surface, near-surface, moored, and bottom mines, helping our sailors stay safe around the world.

The Navy has emphasized the need for a mixed naval fleet in the past, consisting of both blue water and littoral combat ships that act as fast-moving surface warfare vessels.

They continue to undergo upgrades to improve their lethality and survivability in littoral waters so they can intercept drug and human traffickers in the Caribbean and sweep for deadly mines. Most importantly, they support U.S. naval efforts to end Houthi attacks on commercial vessels in the Red Sea.

Our littoral combat ships have risen to the occasion to defend our homeland. They have provided the necessary backup needed to protect Americans at home and abroad.

Mr. Chair, if we want our military to continue to be the best in the world, we cannot throw away a dime to save a nickel, especially when an LCS vessel has only reached half of its life cycle. That is exactly what this amendment does.

The decommissioning of the Navy's mixed fleet strategy, the LCS vessels, is not the answer to our budget constraints. That is why I stand in opposition to this amendment, and I ask my colleagues to vote ''no'' on the Davidson amendment.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Ohio (Mr. DAVIDSON).

The amendment was rejected.

Ms. MCCOLLUM. Mr. Chair, as the designee of Ms. DELAURO, I move to strike the last word.

The Acting CHAIR. The gentlewoman is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chair, I yield to the gentlewoman from New Mexico (Ms. STANSBURY).

Ms. STANSBURY. Mr. Chair, I rise in the strongest opposition to this defense spending bill because, once again, in the dark of night, the GOP is passing bills, stripping the American people of their safety, security, and support.

Last night at 3 a.m., the Senate shoved through a dangerous rescissions package that guts foreign aid and public broadcasting.

Just this morning, the OMB Director suggested that he was just getting started and didn't care whether or not the appropriations process proceeded as our Founding Fathers and the Constitution imagined it. He said it should be more partisan and that he would continue to send rescissions packages like the one that they passed on the Senate floor last night.

Let us be clear. The White House and an unelected bureaucrat are trying to steal the power of the purse and to steal the power of the people.

To my colleagues across the aisle, it is happening under their watch. They are allowing it, enabling it, and giving away our constitutional authority to a corrupt and chaotic administration, while trying to pass fake bills like the one they have on this floor right now.

It will weaken our military readiness, abandon our allies, and strip servicemembers of tools, training, and pay. It will undermine our national security and abandon our troops and, yes, make the world less safe.

Mr. Chair, I ask my colleagues across the aisle what they are doing. How can they abandon the American people, the Constitution, our troops, and our national security? It is time to stand up and grow a backbone and vote ''no.''

Ms. MCCOLLUM. Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The Chair understands that amendment No. 58 will not be offered.

The Chair understands that amendment No. 91 will not be offered.

AMENDMENT NO. 106 OFFERED BY MR. GOSAR

The Acting CHAIR. It is now in order to consider amendment No. 106 printed in part A of House Report 119–199.

Mr. GOSAR. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used for the Bioindustrial Manufacturing and Design Ecosystem.

The Acting CHAIR. Pursuant to House Resolution 580, the gentleman

from Arizona (Mr. GOSAR) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arizona.

Mr. GOSAR. Mr. Chair, my amendment No. 106 prohibits funds for the DOD's bioindustrial manufacturing and design ecosystem, or BioMADE, that funds lab-grown meat and protein products for the military from feeding our men and women. How disgusting does that sound?

With a national debt of over $37 trillion, we can't afford to litter sensible appropriation bills with wasteful spending.

An October 20 press release revealed BioMADE received $87 million in Federal dollars under the Biden-Harris administration to produce lab-grown meat to reduce carbon emissions on military bases. In March 2023, BioMADE received an additional $450 million for the ManTech program.

Let me name a few of these projects that taxpayer dollars benefited.

One is called the ''Potential Benefit of Superbrewed Food's Sustainable Postbiotic Protein on Warfighter Health.'' That one produces lab-grown protein to shorten recovery time and improve the concentration of servicemembers. Another is the ''Development of a Sustainable, Low-Cost, Oil Process for Heart-Healthy DOD Rations,'' or producing oil from microalgae for servicemembers. The ''Alternative Protein Bars,'' is a lab-grown protein derived from a microbiological agent similar to fungus.

Yummy.

□ 1310

This is the food that built America? I think not.

Why do marines, sailors, guardsmen, and coasties need lab-grown meat when the U.S. is full of delicious beef?

In fiscal year 2022 alone, the DOD awarded more than $369 million in U.S. contracts for beef, $2.3 million of which was supplied by Phoenix, Arizona.

Serving lab-grown meat over domestic beef or poultry rewards the government-funded bioindustry and punishes the American cattle ranchers who have a far smaller so-called carbon footprint than these big corporations.

In 2024, Florida and Alabama banned lab-grown meat to protect farmers and the cattle industry. This year, Mississippi, Montana, and Indiana all followed suit.

Mr. Chair, I ask my colleagues to end this experiment on our Armed Forces and support my amendment No. 106.

Mr. CALVERT. Mr. Chair, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chair, I think there may be a misunderstanding about bioindustrial manufacturing, what it is and what it is not. Bioindustrial manufacturing is not cultivating meat. However, bioindustrial manufacturing is critical to energetics, such as hypersonic fuels, critical chemicals for munitions and missiles, and materials that literally increase the bang for the buck.

In the 1980s, the United States developed what we called CL–20, one of the most powerful nonnuclear explosive chemicals ever created, but we did not produce it at scale. China, unfortunately, found our research and then scaled production. Now, the Chinese and Russian arsenals have this very powerful ingredient.

We cannot allow China to be the world innovation leader in any field, including bioindustrial manufacturing. We must continue tried and true practices to adopt new technologies to fortify the American defense industrial base.

American lethality is degraded without bioindustrial manufacturing. Meanwhile, China and Russia benefit from American research. That has to stop.

I am going to make a point here. BioMADE is a product. It is not a manufacturer and does not manufacture lab-grown meat. BioMADE has never funded research projects for lab-grown meat, has no current research projects on lab-grown meat, and has no plans to fund projects on lab-grown meat in the future.

I think we have a misunderstanding. We need this technology for our energetics, which we use in our explosion devices very effectively.

Mr. Chair, I yield 2½ minutes to the gentlewoman from Minnesota (Ms. MCCOLLUM), who is the ranking member.

Ms. MCCOLLUM. Mr. Chair, I rise in strong opposition to this amendment.

Let me be as clear as the chairman was. BioMADE has never funded any efforts to develop or produce lab-grown meat for any purpose.

The Rules Committee should not have made this amendment in order because it is just not germane to this bill.

Mr. Chair, let me tell you a little bit more about why it is important that this amendment be defeated. By preventing funding for the Bioindustrial Manufacturing and Design Ecosystem partnership, or BioMADE, this amendment would hand a clear win to China.

The bipartisan National Security Commission on Emerging Biotechnology recently completed its comprehensive review on biotechnology's impact on national security. It concluded that China recognizes the immense military and commercial potential of biotechnology and biomanufacturing. They have made it a strategic priority and are quickly starting to ascend to dominance.

To preserve our lead, we must take swift action to commercialize and scale biomanufacturing here at home. These new technologies use the power of biological cells and systems to perform complete chemistry—complex issues.

They will enable us to onshore the production of critical chemicals, including those used in munitions and high-performance aviation fuel, as the chair mentioned; to develop new medical cures and treatments and produce them on-demand near the front lines; to engineer biological sensors that can detect pathogens and chemical threats on the battlefield in real time; and to better extract critical minerals from domestic mining deposits, reducing our dependence on China for rare earth mining.

That, again, Mr. Chair, is why the National Security Commission on Emerging Biotechnology report recommended that Congress support a network of manufacturing facilities to scale up bioindustrial production, including for defense needs.

BioMADE is a private-public partnership with nearly 300 members across 37 States. Its mission is to partner with industry to enable innovators to pilot new bioindustrial production in facilities across the country that are linked to regional supply chains and agricultural feedstocks and to train the future workers in this industry.

To be clear, we should be accelerating BioMADE's efforts, not senselessly blocking them.

Last year, the Chinese Government invested over $4 billion in biomanufacturing. We must take action now. We must not cede the lead to China. We must win the biotech competition.

It is for that reason, Mr. Chair, I urge my colleagues on both sides of the aisle to join me in strongly opposing this amendment, and I yield back the balance of my time.

Mr. CALVERT. Mr. Chair, may I inquire as to the time remaining.

The Acting CHAIR. The gentleman from California has 30 seconds remaining.

Mr. CALVERT. Mr. Chair, I reserve the balance of my time.

Mr. GOSAR. Mr. Chair, I am a little bit confused here, so I want to ask the question: If we do good faith advertising to the American people, because that is what our job is, tell me why we would actually say the ''Potential Benefit of Superbrewed Food's Sustainable Postbiotic Protein on Warfighter Health.'' That is obviously not what the gentleman is talking about.

Then, we are talking about the ''Sustainable, Low-Cost, Oil Process for Heart-Healthy DOD Rations.''

The other side's mantra is to do low carbon, getting rid of cows, but now they wonder why the cattle industry has problems understanding why they are doing this.

I accept what the gentleman said in regard to what BioMADE is, but their truth in advertising fails. It fails dismally for the American public because that is what it says here.

Mr. CALVERT. Mr. Chair, our interests are energetics that go into explosion devices. A big part of that is the BioMADE industry.

Mr. GOSAR. Mr. Chair, I would love to see our money go to that aspect, but not to the substitutes for meat.

Mr. CALVERT. I am not interested in the substitutes.

Mr. GOSAR. I am interested in the substitutes because I don't think our warfighters should have to have that, and I would like people to make that distinction, even if it costs the amendment.

Mr. Chair, I yield back the balance of my time.

Mr. CALVERT. Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arizona (Mr. GOSAR).

The amendment was rejected.

The Acting CHAIR. The Chair understands that amendment No. 110 will not be offered.

AMENDMENT NO. 111 OFFERED BY MS. GREENE OF GEORGIA

The Acting CHAIR. It is now in order to consider amendment No. 111 printed in part A of House Report 119–199.

Ms. GREENE of Georgia. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 24, strike lines 8 through 14.

The Acting CHAIR. Pursuant to House Resolution 580, the gentlewoman from Georgia (Ms. GREENE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Georgia.

Ms. GREENE of Georgia. Mr. Chair, we support our great men and women in our military, and we want to fund them to have the best equipment, be afforded the best housing and best pay, and be treated the best in the world.

I have an amendment today that would strike $118 million of funding to overseas humanitarian disaster and civic aid programs of the Department of Defense. These accounts fund programs for humanitarian assistance in foreign countries, in other nations, for foreign peoples—humanitarian mine action programs, foreign disaster relief for foreign countries and foreign peoples—that the American public is having to pay for.

I want to remind everybody that the American people are $37 trillion in debt because of this institution and the way Congress has spent their money. Think about our own national disasters and problems that the American taxpayer faces here at home: Hurricane Helene, Hurricane Milton, the Lahaina wildfires, the L.A. wildfires, the Texas flooding where there are still over 100 missing people, the opioid epidemic, and the fentanyl epidemic. All over the country, people are suffering.

□ 1320

The American people voted to put America first. Mr. Chair, the American people are still being put last.

Right now, the average health insurance premium for a family has risen by 22 percent since 2018. Fentanyl still kills hundreds of people every single day in America. More than 32,000 veterans, people who served in our military, were homeless in 2024, and there were 6,407 suicides among American veterans in 2022. This is unacceptable.

In our Department of Defense appropriations funding, we should be funding our military and not paying for funding for humanitarian aid and crises in foreign countries. America simply cannot afford it anymore.

Mr. Chair, I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chair, I rise in opposition to this amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chair, this program is designed to assure that our allies and partners of the U.S. are supported in times of trouble. This funding provides basic humanitarian aid and essential services to the populations in need.

Let's talk about what it does for America's national security. This program is an important tool for our combatant commanders who use this to assist our allies, and it builds and cements our relationships.

Let me just give you a few examples. When we help our allies improve their capacity to prepare and to respond to a crisis that will take place, when we help implement the Humanitarian Mine Action Program, this provides significant training, readiness, and enhanced benefits even to our United States military. It contributes to alleviating the worldwide problem of explosive remnants of war, which includes landmines, unexploded ordnance, and small arms munitions. The program allows our military to hone their critical wartime, civil-military, language, cultural, and foreign internal defense skills.

Finally, through the Foreign Disaster Relief Program, a program executed by our combatant commanders, we provide unique assistance during natural and manmade disasters when interagency support is requested.

DOD's ability to respond rapidly with extensive manpower, transportation, and communication capabilities is critically important in a time of crisis.

When we assist in filling in these capability gaps with our partners, we help contain the crises and limit threats to regional stability by providing relief aid within hours or even within days of a disaster.

Each of these programs are vital to the success of our combatant commanders' relationships with their counterparts.

Cutting these funds would lessen the ability of our Armed Forces to execute their missions. For these reasons, I oppose this amendment, and I ask my colleagues to do the same.

Mr. Chair, I yield 30 seconds to the gentleman from California (Mr. CALVERT), the chairman of the committee.

Mr. CALVERT. Mr. Chair, this amendment strikes all funding for the Overseas Humanitarian, Disaster, and Civic Aid account. The funding is used by DOD to assist during humanitarian disasters. The funding is also used when specialized DOD experience is needed, such as detection and clearance of landmines, unexploded ordnance, and other explosive remnants of war. Even to this day, we are cleaning up World War II remnants.

President Trump's budget request includes just over $100 million for this account. I urge a ''no'' vote on this amendment.

Ms. MCCOLLUM. Mr. Chair, I reserve the balance of my time.

Ms. GREENE of Georgia. Mr. Chair, the American people are $37 trillion in debt. The Department of Defense's mission statement is to deter war and ensure our Nation's security. That is their mission, and that is exactly what their funding should be for.

I would like to ask: What foreign country showed up to help Americans in our time of distress, in our humanitarian crises?

Which foreign country has come to clean up the hundreds of people who die every single day on the streets from fentanyl?

Which foreign country showed up to defend our border as we were invaded by millions of people for the past 4 years?

Which foreign country said: Here, America, here are millions and billions of dollars to help you?

I am going to tell you, zero. Zero foreign countries showed up.

Here we are again. The American people are enslaved by $37 trillion in debt, a debt we can never climb out of, but yet a debt that continues to rise because here in Congress we go by this belief that we have to fund every foreign country all around the world.

I say: Enough. The American people say: Enough.

Right now, Americans can't afford their rent. Young people cannot afford to buy a home. Ask any 20-year-old or 30-year-old if they believe they will ever be a homeowner. Their answer overwhelmingly is no.

Americans can't afford their bills. They can't afford car insurance, health insurance, and homeowner's insurance. Life does not look good in the future.

Do you want to know why inflation is high?

Do you want to know why life continues to be unaffordable?

Because Congress cannot rein in its America last spending. It cannot stop. It refuses to stop. It continues to say yes to the lobbyists for the military industrial complex. It continues to say yes to every lobbyist who walks in this institution, as Congressmen and Congresswomen take donations into their campaign accounts.

Americans are the most generous in the world. Americans can donate through charities to foreign countries to help foreign issues and foreign people. But the American people should not be forced to write the check, and

the Department of Defense should be able to focus on their mission to deter war and ensure our Nation's security.

Mr. Chair, I ask my colleagues to support this amendment, and I yield back the balance of my time.

Ms. MCCOLLUM. Mr. Chair, I would like to point out, again, that when we do these projects together with our allied nations, it provides significant training, access, and readiness enhancement benefits to the United States military.

Mr. Chair, the question was asked on this House floor who came to our aid, who stood for the United States.

I was here on September 11 serving in Washington, D.C., my first term in Congress. NATO, the world, came to our aid. The world came and helped us when we fought against the Taliban.

Mr. Chair, I thank those nations for standing with us, and I look forward to working with them in the future in this type of partnership.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Georgia (Ms. GREENE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. GREENE of Georgia. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Georgia will be postponed.

AMENDMENT NO. 112 OFFERED BY MS. GREENE OF GEORGIA

The Acting CHAIR. It is now in order to consider amendment No. 112 printed in part A of House Report 119–199.

Ms. GREENE of Georgia. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 112, beginning line 23, strike section 8105.

The Acting CHAIR. Pursuant to House Resolution 580, the gentlewoman from Georgia (Ms. GREENE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Georgia.

Ms. GREENE of Georgia. Mr. Chair, as the House considers funding $831 billion to the Department of Defense for the funding of our great men and women in our military to defend our Nation and our Nation's interests, it is important to talk about the foreign aid that we are funding to foreign countries.

The American people are $37 trillion in debt. The debt keeps rising, and the interest on our debt is at $1 trillion now per year.

□ 1330

My amendment would strike $500 million of military assistance to Taiwan. This is an increase of $100 million from fiscal year 2025 and will be used to provide a wide variety of assistance, including planes, drones, missile defense, munitions, and more.

Mr. Chair, listen to this. As we are giving an extra $100 million, making it $500 million in this Department of Defense appropriations bill, the entire defense budget of Taiwan is less than $20 billion. Our defense budget is $831 billion.

It wouldn't be so high if we weren't giving foreign aid. We have given Taiwan over $2 billion in funding and munitions over the past 2 years. We have already given them $2 billion, but now we are giving them another $500 million.

Increasing foreign aid to Taiwan will only increase their reliance on the United States, and the United States should be serving the American people and stop enslaving the American people in massive debt that drives the inflation that is causing Americans to suffer and is causing Americans to not be able to afford everyday life.

The United States is $37 trillion in debt, and we can hardly afford our own massive military budget, let alone funding the significant portions of other countries, of foreign countries and foreign nations and foreign people that do not pay taxes here in America.

We have so many of our own domestic problems here at home and should not be funding foreign countries, foreign aid, and, quite frankly, instigating world war III with China.

Before we start worrying about Taiwan's borders or Ukraine's borders or any other country's borders, we should be focusing on the continued security of our own border and deporting the criminals and terrorists and millions of people who invaded our country and are somewhere within our country after they invaded our own borders.

Mr. Chair, I reserve the balance of my time.

Mr. CALVERT. Mr. Chair, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chair, I greatly admire the gentlewoman from Georgia's passion for ensuring support for our overseas allies are a wise use of taxpayers' dollars, but support for Taiwan must be part of that equation.

Just yesterday, the Trump administration released a statement of administration policy for the Defense appropriations bill. I was very supportive of the bill we produced. One of the very few areas the administration expressed any slight disagreement with our bill was wanting more money for Taiwan. The administration has proposed including $1 billion while this bill provides $500 million.

Mr. Chair, had OMB delivered budget materials to us in time for consideration, we would have certainly taken a look at providing what they requested, but that wasn't the case.

Supporting Taiwan in the face of unrelenting Chinese aggression is absolutely in the vital interests of the United States. I point out that Taiwan makes 90 percent of the world's chips and close to 100 percent of the highly needed chips for artificial intelligence and high technical devices.

The funding will go a long way to making sure that Taiwan has the resources necessary to help prevent a Chinese invasion. That is the position of the Trump administration, and that is the position of this bill.

Mr. Chair, I urge a ''no'' vote on the amendment, and I yield 2 minutes to the gentlewoman from Minnesota (Ms. MCCOLLUM).

Ms. MCCOLLUM. Mr. Chairman, I am very, very proud of my vote to vote against the President's big tax package, which added $3.4 trillion of debt to our national debt over the next 10 years. Yet, right now, I am rising in opposition to this amendment.

America's strength around the world does not only stem from our military power but our network of alliances in Europe and the Pacific that allow us to project power. Our allies support us, and we support them.

That means, when our allies are threatened, the United States needs to be with them. That is exactly what we are doing in Ukraine: helping a sovereign nation defend its democracy from Russian aggression. A similar situation could easily occur in the Pacific, where Taiwan is threatened by the People's Republic of China.

China has a recent history of seizing territory. Look at the invasion of Tibet in the 1950s. They have suppressed democracy in Hong Kong. When the Chinese President speaks of reunification of Taiwan, we should believe that he will attempt it. We cannot allow that to happen.

China may not stop with Taiwan. If Taiwan falls, other Pacific Island nations, like the Philippines, would be threatened. America is not alone in these concerns. Japan, South Korea, Australia, and New Zealand are deeply concerned about the future of Taiwan's democracy. That is why they are working with us to deter China and to prevent an invasion of Taiwan from happening.

Mr. Chair, the $500 million from this bill will assist Taiwan in preparing their military and increasing their readiness and their deterrence capabilities.

Mr. Chair, I support the inclusion of the funds in this bill, and I strongly oppose this amendment. I ask my colleagues to do the same.

Ms. GREENE of Georgia. Mr. Chairman, the best way to compete with China is to have a strong American economy. We shouldn't be funding the protection of a foreign country that is producing over 90 percent of our chips when we should be producing those chips right here at home.

Currently, many of our rare earth minerals are tied up on Federal lands, and this is a problem that is tying up the production of chips here in America.

Mr. Chairman, America should be building our strength and resilience. Instead of, let's say, an additional $500 million being given to Taiwan for their defense budget, we should be investing that $500 million into America's ability to produce chips so that we don't have to be the world's police that defends all these other foreign countries from China's aggression.

The best way to beat China is with a strong America, but decades of America-last policies, where our manufacturing jobs were sent overseas and sent to China, is what made China strong. America created that problem, and America is continuing to create that problem by dependence on foreign countries for our own manufacturing. This is why rural America has been crumbling for decades because of the economic loss of their own small towns.

In America today, the cost of college tuition has increased by over 180 percent. That means it is unaffordable for many students, and they are laden with student loan debt.

According to American Compass, in 1985, 40 weeks of a typical worker's income could provide the middle-class essentials for a family of four. Yet, today, this requires over 62 weeks of income, exceeding the 52 weeks in a year.

Life is unaffordable for Americans, Mr. Chairman. We are $37 trillion in debt. I urge my colleagues to vote for my amendment, and I yield back the balance of my time.

Mr. CALVERT. Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Georgia (Ms. GREENE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. GREENE of Georgia. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Georgia will be postponed.

AMENDMENT NO. 113 OFFERED BY MS. GREENE OF GEORGIA

The Acting CHAIR. It is now in order to consider amendment No. 113 printed in part A of House Report 119–199.

Ms. GREENE of Georgia. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 42, line 16, after the dollar amount, insert ''(reduced by $15,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 580, the gentlewoman from Georgia (Ms. GREENE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Georgia.

Ms. GREENE of Georgia. Mr. Chairman, as we are debating today the $831 billion Defense appropriations bill, it is important to talk about the foreign aid that is in this bill and why it must be stopped. The American people are $37 trillion in debt, and this institution is to blame for it.

Mr. Chairman, it is Congress and the men and women who serve in Congress who can never say ''no'' to every single lobbyist and every single foreign country that walks into their office.

My amendment today would strike the funding for HIV prevention education activities in foreign countries. This bill provides at least $15 million for HIV prevention educational activities undertaken in connection with the United States military training exercises and humanitarian assistance activities conducted primarily in African nations.

My amendment would strike this provision to ensure that taxpayer dollars are not being wasted by teaching African soldiers about how to have safe sex. This is an issue that should be resolved by now.

□ 1340

The U.S. already spends a massive amount of money on HIV-AIDS primarily through PEPFAR, the President's Emergency Plan for AIDS Relief. To date, U.S. funding for PEPFAR has totaled over $120 billion. That is $120 billion that the American people do not have and never helped them solve any of their problems.

This has grown from $1.9 billion in fiscal year 2024 to $6.5 billion in fiscal year 2025. Additionally, the National Security Department of State and related programs appropriations bill released this week would provide $5.8 billion to prevent and treat HIV-AIDS globally. When the American people are $37 trillion in debt, their credit cards are maxed out.

Young people in America have no hope for the future. Why are we continually paying for HIV prevention activities in education in Africa and other foreign countries? How does this provide for the defense of our Nation? It doesn't.

Again, the American people are some of the most generous people in the world. They donate to charities, causes, and all types of organizations and foundations to help people. This should be a private donation out of the generousness of their heart. It shouldn't be part of our Defense appropriations bill that is already $831 billion.

When do we ever look at the balance sheet? When do the American people's empty pockets ever matter to Congress, Mr. Chair?

Mr. Chair, I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Speaker, I rise in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chair, the Department of Defense works with partner militaries around the world to advance regional stability and mutual security. These foreign military forces must be healthy and functional to effectively engage with our forces and support these missions.

The HIV-AIDS epidemic has a devastating impact on many countries, including on their militaries. It reduces readiness, unit deployments become limited, and it saps the morale and capabilities of the infected individuals and their communities.

DOD's HIV-AIDS prevention program pairs health and security assistance to provide care and treatment in concert with military training, exercises, and humanitarian activities.

This amendment would eliminate a successful military-to-military HIV-AIDS prevention, care, and treatment efforts in more than 55 countries.

In doing so, it would increase the burdens and risks for American forces and weaken global security by reducing the capacity of our partner forces.

For these reasons, I will urge defeat of this amendment.

Mr. Chair, I yield to the gentleman from California (Mr. CALVERT).

Mr. CALVERT. Mr. Chair, the amendment strikes $15 million for HIV prevention education activities undertaken in connection with the United States military training exercises and the humanitarian assistance activities conducted primarily in African nations.

This funding supports the Defense Health Program, and those funds are credited with scaling back the AIDS epidemic in Africa. This program has long enjoyed support across party lines.

Ms. GREENE of Georgia. Mr. Chair, may I inquire as to the time remaining.

The Acting CHAIR. The gentlewoman from Georgia has 2 minutes remaining.

Ms. GREENE of Georgia. Mr. Chair, while the Defense appropriations bill funds $15 million for HIV prevention educational activities undertaken in connection with the United States military training exercises and humanitarian assistance activities conducted primarily in Africa, I will talk about something that is plaguing Black Americans today.

According to the Department of Education, 85 percent of Black students lack proficiency in mathematics and reading skills.

That is appalling. That is a failure of our education system to Black Americans, but in the Department of Defense Appropriations Act, we are supposed to send $15 million to teach soldiers how to avoid getting AIDS?

Isn't this already known?

This has been going on for years and years and years, and we are having to pay for that. Why are the American people that are $37 trillion in debt having to pay for people in Africa, soldiers in Africa, to tell them how to avoid getting AIDS when our own Black students here in America, 85 percent of them, lack proficiency in mathematics and reading skills, which is extremely

important for success in their adult life.

Furthermore, there are entire high schools in our cities where not a single student scores proficiently on a standardized test, but the most important thing we can do is send $15 million to teach adult soldiers in Africa how to not get AIDS? This is insanity, and this is the exact America last spending that the American people are fed up with.

Mr. Chair, at what point does sanity enter the Halls of Congress because it hasn't been here for a very long time.

Mr. Chair, I urge my colleagues to vote for this amendment to at least save the American people $15 million or help students in America.

Mr. Chair, I yield back the balance of my time.

Ms. MCCOLLUM. Mr. Chair, I agree with the gentlewoman from Georgia. We need to do more for our children here at home. I fail to see how cutting the Department of Education, canceling grants, some of them in my district for special education teachers, ending the AmeriCorps help that our schools were getting with many students having someone to sit with them and help them with extra one-on-one for reading and for math to help them succeed, not to mention the cuts to SNAP.

I used to teach. The last thing you want is a child with a hungry stomach in your classroom because they are more focused on what they didn't eat than learning.

Mr. Chair, there is more we can do, and that is another reason why I am so glad I didn't vote for the President's tax cut.

I just reiterate, again, that this milto-mil training builds resilience, support, and respect between the militaries. It keeps their militaries healthy, and I continue to oppose this amendment.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Georgia (Ms. GREENE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. GREENE of Georgia. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Georgia will be postponed.

AMENDMENT NO. 114 OFFERED BY MS. GREENE OF GEORGIA

The Acting CHAIR. It is now in order to consider amendment No. 114 printed in part A of House Report 119–199.

Ms. GREENE of Georgia. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Strike section 8067 (page 92, beginning on line 12 through page 93, line 13).

The Acting CHAIR. Pursuant to House Resolution 580, the gentlewoman from Georgia (Ms. GREENE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Georgia.

Ms. GREENE of Georgia. Mr. Chair, as the House considers the Defense appropriations bill today that costs the American people $831 billion, it is important to talk about the fact that this is the funding for our great men and women serving in our military and our Nation's defense.

The Department of Defense's mission statement is to deter war and ensure our Nation's security. That is worthy of the American people's hard-earned tax dollars. However, the American people are $37 trillion in debt, so this is money that is being spent that they already don't have.

My amendment would strike $500 million in funding for nuclear-armed Israel's missile defense system, and it is important to phrase it that way.

Israel is a nuclear-armed nation, which is very capable of defending themselves, and they have been proving that so as we have watched on the world stage.

The U.S. already provides Israel with $3.8 billion annually in foreign aid. That is $3.8 billion. That is a lot of money.

Additionally, the April 2024 security supplemental included $8.7 billion for Israel. That is nuclear-armed Israel. During the recent 12-day war, the U.S. used 15 to 20 percent of our Terminal High Altitude Area Defense missile stockpiles defending nuclear-armed Israel, which cost us over $800 million.

□ 1350

The $500 million provided in this bill will fund Israel's—that is, nuclear-armed Israel's—missile defense system—the Iron Dome, David's Sling, Arrow system—yet Israel is a nuclear-armed nation. That is a pretty big deterrent for any of their enemies. Any nation that has a nuclear bomb has the greatest threat against their enemies.

U.S. aid typically accounts for 15 to 20 percent of Israel's defense budget, even though Israel—nuclear-armed Israel—has universal healthcare for their citizens and subsidized college for their citizens. They are able to provide that. However, here in America, we are $37 trillion in debt.

My amendment to strike $500 million in foreign aid will ensure an America First Department of Defense. That is exactly what we need, and we haven't had it for a very long time.

Mr. CALVERT. Mr. Chair, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chair, the gentlewoman's amendment would strike $500 million in funding for the vital Israeli missile defense capability.

Over the past 2 years, Israel repeatedly has been attacked by Iran and its terrorist proxy groups, Hezbollah, Hamas, and the Houthis. Each time, these groups have vowed to destroy the State of Israel.

The United States has affirmed our resolve to stand with Israel by helping defend against the recent missile raids launched by Iran against Israel's civilian population.

The success of Israel's robust missile defense capability is, in part, because these funds were provided in this bill and prior bills. Furthermore, this funding benefits our own missile defense industrial base, as it provides for coproduction activities and shared technology development. It is certainly to our mutual advantage.

With that, I urge a ''no'' vote on the amendment.

Mr. Chair, I yield 1½ minutes to the gentlewoman from Minnesota (Ms. MCCOLLUM), the ranking member.

Ms. MCCOLLUM. Mr. Chair, I rise in opposition to this amendment.

To be clear, I have disagreements with Prime Minister Netanyahu's government.

Israel totally had the right to defend itself after the heinous attacks on October 7, and all the hostages should come home.

The Israeli military campaign has been an absolute tragedy for the people of Palestine. The people of Gaza are in desperate need of more humanitarian relief, which I strongly support.

The funding in this bill does not support offensive weapons for Israel. That is funding in a separate appropriations bill. This bill provides for defensive measures only, like Iron Dome, which I support.

Safety is what everyone in the region deserves. Israeli children deserve to go to bed at night knowing that missiles from Yemen, Iran, the Houthis, or anywhere else in the region will not rain down on them. Palestinian children deserve to go to bed at night knowing that their schools, hospitals, and homes will not be bombed. That is what we all need to work toward: Peace.

Mr. Chair, I urge the defeat of this amendment.

Ms. GREENE of Georgia. Mr. Chair, Israel is a nuclear-armed nation, and they are less than $400 billion in debt. They are quite a thriving and successful nation. Their economy is strong. They are doing a great job for their people.

However, the United States, the American citizens, are $37 trillion in debt, yet we are continuing to send hundreds of billions of dollars in foreign aid constantly to foreign countries. This has to end at some point.

Our problems here at home for Americans and the American taxpayer who are paying for all of this have gotten too large.

I also want to point out that Israel bombed a Catholic church in Gaza, and that an entire population is being wiped out as they continue their aggressive war in Gaza.

We are heartfelt about the October 7 tragedy when innocent people were killed. However, at some point, the United States needs to recognize that Israel is a strong country. They are nuclear-armed, and they are capable of defeating their own enemies.

It is right to stop funding this as we give them $3.8 billion every single year anyway.

Mr. Chair, I ask for support for my amendment, and I yield back the balance of my time.

Mr. CALVERT. Mr. Chair, I yield 1 minute to the gentleman from Florida (Mr. FINE).

Mr. FINE. Mr. Chair, I rise in opposition to this America last amendment and reject the premise of the arguments that are being made.

There are 600,000 Americans who live in Israel, and one rocket has been fired against every 23 of them, 26,000 rockets since October 7. Forty-three Americans were killed on October 7, and 12 were taken hostage.

More importantly, the research that this funds is the premise behind the Golden Dome. When we support research and development for the Iron Dome, we are creating the capability for the United States to defend itself as well.

I have news. We have a nuclear weapon, too. That doesn't get you off the hook with those who are out to get you.

When we oppose this amendment, when we vote it down, we are not only standing with Israel. We are standing with the best interests of the United States.

Mr. CALVERT. Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Georgia (Ms. GREENE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. GREENE of Georgia. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Georgia will be postponed.

AMENDMENT NO. 115 OFFERED BY MS. GREENE OF GEORGIA

The Acting CHAIR. It is now in order to consider amendment No. 115 printed in part A of House Report 119–199.

Ms. GREENE of Georgia. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Strike section 8117 (page 118, lines 20 through 24).

The Acting CHAIR. Pursuant to House Resolution 580, the gentlewoman from Georgia (Ms. GREENE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Georgia.

Ms. GREENE of Georgia. Mr. Chair, as we are considering the Defense appropriations bill that costs the American people $831 billion, it is important to consider the amount of foreign funding that we are spending every single year. The American people are $37 trillion in debt. Life in America has become unaffordable, especially for our youngest generation.

This amendment would strike $500 million in military assistance to Jordan. This bill provides up to $500 million in military assistance to support the Armed Forces of Jordan. However, our Department of Defense mission statement is to deter war and ensure our Nation's security.

My amendment would strike this provision to ensure that our Defense appropriations bill funds only our military, not foreign militaries. Why does our Department of Defense appropriations bill continue to pay for other countries' militaries?

Furthermore, the Subcommittee on National Security, Department of State, and Related Programs appropriations bill released this week already provides for an additional $1.65 billion in aid to Jordan. Why are we giving them another $500 million in our appropriations bill for our Department of Defense?

Congress has appropriated between $1.5 billion and $1.65 billion in economic and military aid annually to Jordan since 2018—annually. We are already sending them billions and billions of dollars as the American people continue to tumble further and further into a graveyard of debt.

Mr. Chair, $37 trillion is a debt that we don't think we will ever be able to claw our way out of. However, it is this institution and the irresponsible continued spending year after year that continues to enslave the American people in debt.

At what point do our military bases in the Middle East and around the world make our country safer? In America today, there are still hundreds of American people dying every single day from fentanyl that has come from China, which the cartels create into press pills and other drugs and smuggle them into our country.

It is time to put the American people first, Mr. Chair, and it is time to finally consider the drastic amount of spending that we spend every single year on foreign aid.

Mr. CALVERT. Mr. Chair, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chair, Jordan remains an indispensable ally in an extremely dangerous region. Our partnership with the Kingdom of Jordan is critical both to the regional and U.S. national security.

We must continue to ensure Jordan can counter extremist terrorist threats and have the resources necessary to continue their role as the linchpin in the region.

Mr. Chair, I urge a ''no'' vote on the amendment, and I yield 1½ minutes to the gentlewoman from Minnesota (Ms. MCCOLLUM), the ranking member.

Ms. MCCOLLUM. Mr. Chair, I rise in opposition to the amendment.

Jordan is a longstanding, reliable ally in the region, as the chair pointed out. When there is any type of incident in the region, for our national security officials, from CENTCOM generals to diplomats, the first contact they make is to get the temperature of the region from their Jordan counterparts.

The United States and Jordan have, since 1996, a status of forces agreement, a 2006 acquisition and cross-service training agreement, and a 2021 defense cooperation agreement. This is a 30-year stability-built relationship in the Middle East with an Arab partner. We need to nurture and maintain it.

We have deployed military personnel to Jordan to support operations that defeated ISIS to enhance Jordan's security and to promote regional stability. Jordan air bases have been particularly important for the U.S. to conduct intelligence, surveillance, and target acquisition and reconnaissance missions in Syria and Iraq.

□ 1400

Just 2 weeks ago, our U.S. Central Commander traveled to Jordan, where he met with the chairman of the Jordan Joint Chiefs of Staff and key staff. They discussed the evolving security situation in the region, the deepening bilateral defense relationship between the United States and Jordan and further expanding the military-to-military relationship between Jordan's Armed Forces and ours.

This partnership continues to serve as a steadfast, capable, strategic partner for peace and stability in the region. We need strong allies. Jordan has been and continues to be one of our strongest.

For this reason I oppose this amendment. I ask my colleagues to do the same, and I yield back the balance of my time.

Ms. GREENE of Georgia. Mr. Chair, with the American people $37 trillion in debt, we are weighing whether we should send another $500 million to Jordan. They already have received $1.65 billion from another appropriations request, and they already receive another $1.65 billion every single year from the American taxpayer, who can hardly afford to pay their bills.

Let's talk about America's veterans. For the past several decades, we have men and women in our country, great men and women who served in our military, yet they were shipped over to some foreign war in the Middle East. That didn't defend America's border. Our border continued to be overrun by foreign people from all over the world, but they were sent over there to fight for our freedoms.

Do you know what they came home with?

They came home with physical injuries that they have to live with for the rest of their lives. They came home

with PTSD and mental injuries that they live with for the rest of their lives.

Unfortunately, they have a suicide rate of over 22 a day. Over 6,400 veterans committed suicide in 2022 and 32,000 veterans were homeless in 2024, yet the debate is about spending another $500 million for the defense of Jordan. That is a country I guarantee you most Americans can't even find on a map, but most Americans have a veteran in their family or their friends that suffers every single day from this country's continued pursuit of foreign wars and funding foreign wars.

Mr. Chair, enough of the foreign aid and foreign wars and funding for the security of foreign borders that have nothing to do with our own borders and our own American people and the $37 trillion in debt that is killing us.

Mr. Chair, I ask my colleagues to support my amendment, and I yield back the balance of my time.

Mr. CALVERT. I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Georgia (Ms. GREENE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. GREENE of Georgia. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Georgia will be postponed.

AMENDMENT NO. 116 OFFERED BY MS. GREENE OF GEORGIA

The Acting CHAIR. It is now in order to consider amendment No. 116 printed in part A of House Report 119–199.

Ms. GREENE of Georgia. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used for assistance to Ukraine.

The Acting CHAIR. Pursuant to House Resolution 580, the gentlewoman from Georgia (Ms. GREENE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Georgia.

Ms. GREENE of Georgia. Mr. Chair, as we are considering the Department of Defense appropriations of 2026 that is going to cost the American people $831 billion, my amendment would be that none of the funds made available in this act may be used for the assistance to the Ukraine war.

This is a war that has nothing to do with America. Ukraine is not a NATO member nation. It is not the American people's responsibility to pay for this war, and it is not the American military's responsibility to fund it.

My amendment would ensure that no further resources will be sent to Ukraine. To date, Congress has provided nearly $175 billion in assistance to Ukraine, including direct military aid, funding for their government, and other forms of economic assistance.

For the past 4 years, we had a Democratic President who cared more about the borders of Ukraine than the country he swore to protect, the United States of America. They allowed our own country to be invaded by murderers, rapists, and terrorists, all while sending nearly $175 billion to defend the borders of Ukraine and fund their entire economy.

Our country funded their government at $1 billion a month, and the American people were forced to pay for their businesses. At a time when our government shut down American-owned businesses, families could not afford groceries, and our people were suffering, it was reported that nightlife in Ukraine was thriving and that there were more bars and restaurants open in the capital city, Kyiv, than before the start of the war.

Yet, the American people couldn't send their children to school, their businesses were shut down, and life here was closed, but the American people were paying for Ukraine. It was shameful that Americans were forced to foot the bill of the Ukrainian economy while ours suffered.

Furthermore, Ukraine is one of the most corrupt governments in the world, and Zelenskyy is a dictator who, by the way, stopped elections in his country because of this war. He has jailed journalists. He has canceled his elections, controlled state media, and persecuted Christians. The American people should not be forced to continue to pay for another foreign war in a country that has no effect on our own, and we are not contractually bound to defend.

Madam Chair, I reserve the balance of my time.

Ms. MCCOLLUM. Madam Chair, I rise in strong opposition to this amendment.

The Acting CHAIR (Ms. MALLIOTAKIS). The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Madam Chair, first, the majority has already eliminated funding for the Ukraine Security Assistance Initiative in this bill. It is zero. I personally believe that to be a huge mistake, and that that only emboldens Putin. President Trump seems to be agreeing now because just the other day he announced the decision to provide billions of dollars of equipment to Ukraine through our NATO partners. I give credit to the President for that decision.

Now we have an amendment to further prohibit any support of Ukraine as they fight to defend their country from an illegal Russian invasion. Putin is attempting to rewrite the map of Europe through use of force. He is doing so in violation of international law. He is deliberately killing civilians, targeting hospitals and schools, destroying the economy and the livelihood of Ukraine in the process.

Putin and his thugs are committing war crimes on a mass scale. They are putting the United States and the democratic nations of the world on notice, and that is why we must strongly oppose him. If we do not, then he or other authoritarian leaders will likely try something like this again, either in Ukraine or elsewhere in the world.

□ 1410

Ms. MCCOLLUM. Madam Chair, America is not alone in our military support of Ukraine. Our NATO and European allies are continuing to provide billions of dollars for support themselves. That is in line with the decision that President Trump announced the other day.

Let's not abandon the EU or our NATO allies now, and let's not abandon Ukraine. The Ukrainian people did not ask for this war. They deserve our continued support. I urge my colleagues to oppose this amendment.

Madam Chair, I yield to the gentleman from California (Mr. CALVERT).

Mr. CALVERT. Madam Chair, I rise in opposition to the gentlewoman's amendment.

Sadly, we saw for years how the Biden administration failed to provide Ukraine the resources necessary to fight back in an effective way against Russian aggression. Just the other day, President Trump took decisive action to provide weapons to Ukraine to defend against these unprovoked attacks.

The President is right to support efforts to ensure innocent lives are no longer lost. He is right to undertake efforts to stop the bloodshed. As he continues to work toward a peaceful solution, we should not remove the ability to provide what he thinks will help the Ukrainian people to prevent further losses and use as leverage to negotiate a peace agreement hopefully very soon.

Madam Chair, I urge a ''no'' vote on the amendment.

Ms. MCCOLLUM. Madam Chair, I reserve the balance of my time.

Ms. GREENE of Georgia. Madam Chair, may I inquire as to how much time is remaining.

The Acting CHAIR. The gentlewoman from Georgia has 2½ minutes remaining.

Ms. GREENE of Georgia. Madam Chair, Democrats used to be the antiwar party. Yet, every single Democrat voted to fund the war in Ukraine. This funding has been approximately $175 billion of the American people's hard-earned tax dollars. Yet, the American people are in debt by $37 trillion.

It is said that the Ukrainian people didn't ask for that war. The American people didn't ask for this debt. The American people are not obligated to defend every single country around the world.

At what point do we defend our own citizens and their ability to actually be able to afford life in America? As our debt continues to climb because Congress refuses to stop spending on priorities that put America last and refuses

to stop spending on foreign aid and foreign wars, the American people will have no chance.

Now that our border is closed—thank God for Tom Homan, ICE, and President Trump and his administration—we are conducting the largest deportation operations our country has ever seen. We must continue to put America first and continue to address the needs of our own people within our own homeland.

This means no more assistance to Ukraine. The only assistance that America should be providing is a pathway to peace and not furthering a war. That is not what the American people want. That is not what the American people voted for.

Americans do not deserve to have their hard-earned tax dollars fund a bloody and deadly war in Ukraine. We need peace, and we need peace all over the world.

This is an unwinnable war in which Americans are footing the bill, and it has resulted in mass casualties in both Nations. Americans don't want to pay for murder.

Rough estimates show that over 1.5 million people have been killed and injured since the start of this war. A Ukrainian assessment earlier in 2024 placed Ukrainian troop losses at 80,000 killed and 400,000 wounded. Estimates from June of this year show that approximately 1 million Russian soldiers have been killed or wounded.

These are people's sons. These are people's brothers. They are their cousins and their husbands. An entire generation of Ukrainian men are being wiped out. Russian men are, as well. This isn't something the American people should pay for.

Madam Chair, I yield back the balance of my time.

Ms. MCCOLLUM. Madam Chair, I would stress to the body that the majority has already eliminated any funding for the Ukraine Security Assistance Initiative in this bill. I believe this is a huge mistake. The amendment does not accomplish cutting the funding.

I would point out again, Madam Chair, when I talked about international war crimes and when the previous speaker was talking about the loss of life in Ukraine, there are 20,000 Ukrainian children who have been kidnapped by Russia. They were ripped from their homes and the arms of their mothers and fathers. That is a war crime, and we should not be silent on that.

Madam Chair, I thank President Trump for now realizing it is important we come to Ukraine's aid through our NATO partners.

Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Georgia (Ms. GREENE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. GREENE. Madam Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Georgia will be postponed.

AMENDMENT NO. 159 OFFERED BY MR. JOYCE OF PENNSYLVANIA

The Acting CHAIR. It is now in order to consider amendment No. 159 printed in part A of House Report 119–199.

Mr. JOYCE of Pennsylvania. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

On page 28, line 9, after the dollar amount, insert ''(increased by $30,000,000)''.

On page 39, line 9, after the dollar amount, insert ''(reduced by $30,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 580, the gentleman from Pennsylvania (Mr. JOYCE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Pennsylvania.

Mr. JOYCE of Pennsylvania. Madam Chair, I rise today to speak in support of amendment No. 159, to provide funding for the purchase of heavy dump trucks, or HDTs, for the Active Army, the Army National Guard, and the Army Reserve.

While much of the focus in our FY26 Defense appropriations bill is on weapons and on other Defense materials, the tools that our military use to ensure that the infrastructure is in place to support our servicemembers are just as critical to our Nation's success.

HDTs are necessary for the construction and the maintenance of supply routes, airfields, helipads, and logistical facilities in both combat and noncombat zones.

Currently, our military is forced to rely on an outdated and an unreliable fleet of trucks. Upgrading these vehicles will provide our servicemembers with up-to-date safety features such as blind spot detection, collision avoidance, and antilock brakes that are common in most modern vehicles.

Additionally, modernization of the fleet will also accommodate armored ballistic cabs, vitally critical for protecting our warfighters.

Not only will this amendment ensure that our servicemembers can utilize modern technology when building the infrastructure that our warfighters rely on, but it also puts millions of dollars into local economies throughout our country.

From my home State of Pennsylvania to Minnesota, communities across the United States play a vital role in supporting the HDT industrial base. This amendment will continue to support the hardworking Americans who build these trucks.

Madam Chair, I urge my colleagues to support this commonsense amendment to ensure our servicemembers have the most up-to-date technology to support our warfighters.

Madam Chair, I reserve the balance of my time.

□ 1420

Mr. JOYCE of Pennsylvania. Madam Chair, I yield to the gentleman from Pennsylvania (Mr. MACKENZIE).

Mr. MACKENZIE. Madam Chair, I rise in support of this amendment by my colleague from Pennsylvania that increases funding by $30 million for procurement of the Army's heavy dump trucks and offsets it with a $30 million reduction to future tactical unmanned aircraft system development. While that development remains important, the Army's heavy dump trucks are critical to current operational needs.

These trucks are manufactured by companies like Mack Defense in Allentown, Pennsylvania. I have had the opportunity to tour that facility and see firsthand how this facility provides well-paying jobs in our community while at the same time reinforcing the strength of our Nation's defense industrial base.

This amendment delivers the tactical vehicles our troops rely on that are built by a critical manufacturer right in the Lehigh Valley.

Madam Chair, I am proud to cosponsor this amendment, and I urge my colleagues to join me in supporting its passage.

Mr. JOYCE of Pennsylvania. Madam Chair, I reserve the balance of my time.

The Acting CHAIR. The gentleman has the only time.

Mr. JOYCE of Pennsylvania. Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Pennsylvania (Mr. JOYCE).

The amendment was agreed to.

AMENDMENT NO. 221 OFFERED BY MRS. MILLER-MEEKS

The Acting CHAIR. It is now in order to consider amendment No. 221 printed in part A of House Report 119–199.

Mrs. MILLER-MEEKS. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title) insert the following:

SEC. ____. None of the funds made available by this Act be used to reduce the workforce at any active United States Army arsenal.

The Acting CHAIR. Pursuant to House Resolution 580, the gentlewoman from Iowa (Mrs. MILLER-MEEKS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Iowa.

Mrs. MILLER-MEEKS. Madam Chair, America's warfighters rely on more than courage and training. They rely on an uninterrupted supply of expertly manufactured weapons, parts, and ammunition. That lifeline begins with our Army arsenals.

My amendment to the Department of Defense Appropriations Act protects that lifeline by prohibiting any Federal funds from being used to reduce the workforce at Rock Island Arsenal, Joint Munitions Command, Army Sustainment Command, or any other active U.S. Army arsenal.

Rock Island Arsenal is more than just a military installation. It is a critical node in our Nation's defense infrastructure. Its civilian experts, many of them veterans, produce, repair, and innovate the equipment our troops depend on from the front lines to forward operating bases.

Every rifle sight calibrated, every artillery shell inspected, and every 3D-printed replacement part shipped from Rock Island shortens the time between a soldier's need and the answer that keeps that soldier alive.

When rumors surfaced of workforce reductions at the island, I wrote to Secretary of the Army Driscoll, made a site visit with him, and spoke directly with the men and women whose skills cannot be replicated overnight. This amendment cements their mission readiness. It prevents talent loss, preserves irreplaceable know-how, and keeps our defense industrial base resilient against any adversary who hopes to see it weakened.

In addition to being a pillar of our national defense, Rock Island Arsenal supports more than 15,000 jobs. Nearly one-half of those workers live in Iowa. It also contributes over $1.2 billion annually to the economy of the Quad Cities region. These are good-paying jobs that support families, grow our communities, and, most importantly, provide the backbone of our military supply chain.

As a 24-year Army veteran, I know how vital these arsenals are, not just to the military, but to the Nation. This is about protecting readiness, our military, and America.

With the assurance of the chair that he will work with me to ensure that this amendment does what we intend it to do and continues to supply our military with the munitions they need, I will always fight for Rock Island Arsenal, and the men and women in and out of uniform who power its mission and protect our Nation.

Madam Chair, I reserve the balance of my time.

Mr. CALVERT. Madam Chair, I claim the time in opposition but not the intent of the amendment.

The Acting CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. CALVERT. Madam Chair, I state to the gentlewoman that certainly I look forward to working with her as we move forward with this legislation to make sure that we have the right type of language.

What I am going to do is work with the gentlewoman as we move forward on this legislation to make sure that we don't have any unintended consequences in the language. We will do that as we move this legislation forward. I appreciate the gentlewoman withdrawing the amendment.

Mrs. MILLER-MEEKS. Madam Chair, with the assurance that the chairman and I will work together, I yield back the balance of my time, and I withdraw the amendment.

The Acting CHAIR. The amendment is withdrawn.

Mr. CALVERT. Madam Chair, I yield back the balance of my time.

AMENDMENT NO. 248 OFFERED BY MR. OGLES

The Acting CHAIR. It is now in order to consider amendment No. 248 printed in part A of House Report 119–199.

AMENDMENT NO. 277 OFFERED BY MR. STEUBE

The Acting CHAIR. It is now in order to consider amendment No. 277 printed in part A of House Report 119–199.

Mr. STEUBE. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title) insert the following:

SEC. ____. None of the funds made available by this Act be used for assistance to the Lebanese Armed Forces.

The Acting CHAIR. Pursuant to House Resolution 580, the gentleman from Florida (Mr. STEUBE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. STEUBE. Madam Chair, it is our duty to afford the American people the assurance that their tax dollars are spent fulfilling the needs of the American people, not funneled to terrorist proxies that threaten our very existence.

My amendment would ensure that not a single taxpayer dollar would be sent to the Lebanese Armed Forces, a military force riddled with Hezbollah sympathizers that acts as yet another proxy of the Iranian terror regime.

To say that Hezbollah and its allies do not have any control over the Lebanese state is just categorically false. Hezbollah and other terror groups that operate freely throughout the country have launched countless attacks on our ally Israel.

In the past year alone, Hezbollah has indiscriminately launched nearly 2,000 missiles into Israeli territory, attempting to replicate the horrific atrocities that occurred on October 7, yet the Lebanese military has consistently failed to take any substantive action to eliminate Hezbollah from its control over the Lebanese state.

Not only do Hezbollah and its allies control dozens of seats in Lebanon's Parliament, but they literally sit at the helm of the military force that the American taxpayer has been propping up since 2006.

As a matter of fact, Nabih Berri, the speaker of the Lebanese Parliament, is a Hezbollah sympathizer himself. As the head of the Amal Movement, his group joined Hezbollah in their war against Israel and launched attacks upon the IDF. Like Hezbollah, Amal is just another proxy of the Iranian terror regime.

Why should we trust the Lebanese Government that our assistance to their military wouldn't be funneled to terrorism when their own speaker of parliament is a terrorist supporter himself?

While the Lebanese military alleges a willingness to disband and disarm Hezbollah, their actions prove otherwise. The Lebanese military is conveniently absent in Hezbollah strongholds and is far too reluctant to take any meaningful action to eliminate Hezbollah once and for all.

That is why I introduced legislation providing for an eight-point plan to condition aid to the Lebanese military, including provisions that would disband Hezbollah, eliminate all coordination with and support from the Iranian regime, and end persecution of American citizens who have advocated against Hezbollah's influence over the Government of Lebanon.

This bill, the PAGER Act, offers a clear roadmap to strategically realign the Lebanese Government to no longer threaten the United States or our allies and interests in the Middle East.

In fact, a significant portion of Lebanon's military expenditures don't even go toward its defense. Over 70 percent of its budget has consistently been allocated for personnel salaries and excessive benefits, including domestic servants and drivers for high-ranking officers. American taxpayers expect their hard-earned tax dollars to be spent on American interests, not armored Mercedes and other luxury goods for Lebanese generals.

This really should be a bipartisan issue. Where are the Democrats complaining about Lebanon's human rights atrocities?

The Democrats were silent when the Lebanese military shot protesters, silent when they forcibly repatriated Syrian refugees, and silent when the Lebanese military failed to prevent Hezbollah from indiscriminately targeting our ally Israel. Yet, they tell us to turn a blind eye and let the Lebanese military abuse the generosity of the American taxpayer.

We cannot, in good conscience, continue sending U.S. taxpayer dollars to Lebanon when they are complicit in empowering a terrorist organization whose primary mission is to destroy America and Israel.

Money is fungible, and every dollar funneled to Lebanon is another resource aiding Hezbollah's operations, undermining regional stability, and threatening Israel's security.

Until they finally eliminate Hezbollah and stop reporting to their handlers in Tehran, any more funds to the Lebanese military are simply unjustifiable.

I encourage my colleagues to recognize the pressing danger that still exists within the Lebanese military and vote for my amendment.

Madam Chair, I reserve the balance of my time.

□ 1430

Mr. ISSA. Madam Chair, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. ISSA. Madam Chair, I yield such time as he may consume to the gentleman from Illinois (Mr. LAHOOD).

Mr. LAHOOD. Madam Speaker, I rise in strong opposition to this misguided amendment.

The longstanding U.S. military investment for the independent Lebanese Armed Forces, also known as the LAF, has worked to support U.S. security interests in the Middle East for close to 20 years.

As co-chair of the U.S.-Lebanon Friendship Caucus and a member of the House Intelligence Committee, I work closely with the brave men and women in the U.S. military who work alongside the LAF to ensure robust oversight of U.S. military funding and training resources.

The stability of the LAF is important not only to the security of Lebanon but also their neighboring countries and the United States. That stability is more important than ever as the LAF works to permanently disarm and destroy Hezbollah's presence in Lebanon.

Building on the tremendous success of Israel in weakening Iran and eliminating Hezbollah's terrorist leader network, Hezbollah is now at its weakest point. This is a tremendous opportunity for the LAF and for the people of Lebanon to root out terror proxy influence from within their borders.

The LAF has an active mission and expectation from the United States and others to fully disarm Hezbollah, and they are working to accomplish that every day.

Eliminating military funding from the LAF now will only serve to further embolden Hezbollah and allow them to regroup. This cannot happen with Hezbollah on their back foot. U.S. support and funding for the LAF is more important than ever.

This amendment is misguided. To prove that point, I will reference an article from earlier this week, from July 12 of 2025: This week the Trump administration, the State Department, and the DOD approved $100 million to go to the LAF for the Super Tucano aircraft.

In listening to what the State Department said regarding the sale of military equipment to Lebanon, this is their statement: ''This proposed sale will support the foreign policy and national security of the United States by improving the security of a partner country, [Lebanon,] that continues to be an important force for political stability and economic progress in the Middle East.''

Madam Chair, I include in the RECORD an article dated July 12, 2025, which shows that the current Trump administration supports military funding to the LAF.

[From L'Orient Today, July 12, 2025]

US APPROVES POTENTIAL $100 MILLION SALE TO LEBANON FOR A–29 SUPER TUCANO MAINTENANCE

Beirut—The U.S. State Department has approved a potential $100 million sale to Lebanon for maintenance services and support equipment for the A–29 Super Tucano aircraft, the Pentagon announced in a statement Friday. The Super Tucano is a multimission aircraft used for training and light attack operations.

According to the statement, the ''government of Lebanon has requested to buy support equipment, and other related elements of a logistics program and support.''

''This proposed sale will support the foreign policy and national security of the United States by improving the security of a partner country that continues to be an important force for political stability and economic progress in the Middle East,'' the statement read.

The State Department noted that the Lebanese Armed Forces (LAF) were deployed to southern Lebanon to help implement the November 2024 cease-fire, which followed 13 months of conflict between Hezbollah and Israel.

''Sustainment of the A–29 fleet will support the LAF's role in maintaining the cessation of hostilities by ensuring maintenance of this critical aircraft, which is used for Close Air Support in ground maneuver operations, as well as manned Intelligence, Surveillance and Reconnaissance missions,'' the statement added.

''The sale of A–29 sustainment will support the LAF's implementation of the cessation of hostilities by providing maintenance for this critical aircraft, which is used to conduct Close Air Support as part of ground maneuver operations, as well as manned Intelligence, Surveillance, and Reconnaissance,'' the statement adds.

Moreover, the State Department noted that the ''principal contractor will be Sierra Nevada Corporation [SNC], located in Sparks, NV'', adding that at this time, the ''U.S. Government is not aware of any offset agreement proposed in connection with this potential sale.''

During the clashes in March between clans close to Hezbollah and the Syrian army along the Lebanese-Syrian border, the LAF deployed its Super Tucano attack aircraft to strike at a position in Syria, demonstrating its growing operational capabilities and use of such weapons. Despite the cease-fire agreement, Israel has continued to carry out near-daily airstrikes, mainly in southern Lebanon, and maintains control over five areas within Lebanese territory.

Mr. LAHOOD. Madam Chair, I oppose this misguided amendment, and I urge my colleagues to do the same.

Mr. STEUBE. Madam Chair, may I inquire as to the time remaining.

The Acting CHAIR. The gentleman from Florida has 1½ minutes remaining.

Mr. STEUBE. Madam Chair, I reserve the balance of my time.

Mr. ISSA. Madam Chair, may I inquire as to the time remaining.

The Acting CHAIR. The gentleman from California has 2½ minutes remaining.

Mr. ISSA. Madam Chair, in closing, the gentleman from Florida is entitled to his opinion. It is an opinion he has brought to us not once, but multiple times. Each time this body has voted down, on a broad bipartisan basis, this amendment.

There is reason for that, Madam Chair. It has been voted down repeatedly because, in fact, it is misguided, and it relies on facts that simply aren't facts.

I don't know about the author of this bill, where he got it, but I can tell you this. I have stood in Lebanon with our Special Forces who are training and working on a constant basis with the LAF. I have stood in Lebanon and seen the destruction of Hezbollah caches, massive amounts. More than that, I have met with our ally Israel, and in conversation with Prime Minister Bibi Netanyahu, I asked him: Should we continue to give money to the LAF? His answer was short: Give them more.

Madam Chair, King Abdullah of Jordan has been passing on necessary vehicles to help them do their job better, and Israel created the opportunity for them to retake all of Lebanon and rid it of the Iranian influence and Hezbollah once and for all.

Our President; his predecessor, Joe Biden; his predecessor, Donald Trump; his predecessor, Barack Obama; and his predecessor, George W. Bush, don't agree on much, but they agree on this: It has been worth the investment. It is paying dividends. You do not let up just at a point when they are clearing out and making safe for a democracy that, in fact, would work there but for foreign forces with weapons.

Madam Chair, this has been defeated before, but before we didn't have the good news and the support of every neighbor and our President the way we do today.

I ask all Members to vote against this, not because they can't make a point that Lebanon is a country that has been influenced but because they can't make a point that the LAF is anything but the only force that can, in fact, bring an eradication of Hezbollah and keep Iran from reoccupying that, something that Israel supports and we support.

Madam Chair, I yield back the balance of my time.

Mr. STEUBE. Madam Chair, this is a headline from 2 days ago: ''Israeli military attacks Hezbollah sites in eastern Lebanon.''

''The Israeli military on Tuesday said it attacked Hezbollah positions in Lebanon. Fighter jets targeted military sites in the eastern Bekaa Valley, which the Iran-backed militia used for training purposes.''

I include in the RECORD this Yahoo News report.

ISRAELI MILITARY ATTACKS HEZBOLLAH SITES IN EASTERN LEBANON

July 15, 2025

The Israeli military on Tuesday said it attacked Hezbollah positions in Lebanon.

Fighter jets targeted military sites in the eastern Bekaa Valley, which the Iran-backed militia used for training purposes, the Israel Defense Forces (IDF) said.

''The military compounds that were struck were used by the Hezbollah terrorist organization for training and exercising terrorists

to plan and carry out terrorist attacks against IDF troops and the State of Israel,'' the IDF stated.

''As part of the terrorists' exercises and training at these military sites, the terrorists carried out drills for gunfire combat and the use of various weapons,'' it added.

The Israeli military said ''the storage of weapons and the activities of the Hezbollah terrorist organization at these sites constitute a blatant violation of the understandings between Israel and Lebanon.''

Lebanese security sources said that Israeli warplanes flew more than 10 attacks in several eastern locations early on Tuesday.

According to residents, loud explosions could be heard in the region. The area is known as a Hezbollah stronghold.

Israel and Hezbollah agreed on a ceasefire November 2024 after more than a year of mutual shelling.

Nevertheless, the Israeli military continues to attack targets in Lebanon. Both sides accuse each other of violating the agreement.

Mr. STEUBE. Madam Chair, I also include in the RECORD another one from 2 days ago: ''12 said killed as Israel hits elite Hezbollah force deep inside Lebanon.''

''Israeli jets carried out a wave of airstrikes deep inside Lebanon aimed at stopping an elite Hezbollah unit from regrouping and rebuilding . . .''

''The military camps that were targeted are used by the Hezbollah terror organization for training and preparing terrorists for the planning and execution of terror operations against IDF forces and the State of Israel.'''

12 SAID KILLED AS ISRAEL HITS ELITE HEZBOLLAH FORCE DEEP INSIDE LEBANON

(By Emanuel Fabian)

Military says targets in northeastern Beqaa Valley include Radwan unit facilities, where military activity was taking place in 'blatant violation' of November ceasefire.

Israeli jets carried out a wave of airstrikes deep inside Lebanon aimed at stopping an elite Hezbollah unit from regrouping and rebuilding its strength, authorities said Tuesday.

Lebanese state media reported that 12 people were killed.

''Enemy warplanes launched raids on the Wadi Fara area in the northern Beqaa Valley, one of which targeted a camp for displaced Syrians, resulting in the deaths of 12 martyrs, including seven Syrians, and eight wounded,'' the country's state-run National News Agency reported.

The strikes in Lebanon's northeastern Beqaa Valley were aimed at military facilities belonging to the Hezbollah terror group's Radwan force, where operatives and weapon depots had been detected, the Israel Defense Forces said.

''The military camps that were targeted are used by the Hezbollah terror organization for training and preparing terrorists for the planning and execution of terror operations against IDF forces and the State of Israel,'' the military said in a statement.

The weapons stored at the sites and Hezbollah's activity ''constitute a blatant violation of the understandings between Israel and Lebanon, and pose a future threat to the State of Israel,'' the statement added.

Defense Minister Israel Katz called the strikes ''a clear message to the Hezbollah terror organization, which is plotting to rebuild its invasion-of-Israel capabilities through the Radwan force, and also to the Lebanese government, which is responsible for upholding the agreement.''

''We will strike every terrorist and thwart any threat to the residents of the north and to the State of Israel, and we will respond with maximum force against any attempt [by Hezbollah] to rebuild,'' he added.

Israel has carried out dozens of strikes in southern Lebanon targeting Hezbollah operatives and arms since reaching a ceasefire with the group in November following several weeks of intense fighting, while attacks deeper inside Lebanon are less common.

There was no immediate comment from the Lebanese government about Tuesday's strikes, though the official National News Agency reported that ''enemy warplanes launched a raid'' southeast of Baalbek, the main city in the region.

The rugged Beqaa Valley is seen as a stronghold for Hezbollah, and had been considered a key conduit for smuggling weapons into Lebanon via Syria before Hezbollah ally Bashar al-Assad was ousted from the leadership of Syria late last year.

On Sunday, the IDF said Israeli troops had raided military facilities of the deposed Syrian regime last week, seizing some three tons of weapons. It indicated that the arms had been intended to be smuggled into Lebanon.

According to Israel, the Radwan force had in recent years planned to carry out a large-scale invasion of northern Israel, but was forced to shelve the scheme after Hamas attacked southern Israel from Gaza on October 7, 2023, plunging the region into war.

A day after the attack, Hezbollah began firing rockets, drones, and anti-tank missiles at northern Israeli communities, carrying out attacks on a near-daily basis in solidarity with Hamas.

The rocket fire displaced some 60,000 residents of northern Israel. In a bid to ensure their safe return, Israel stepped up operations in Lebanon in September, leading to two months of open warfare with Hezbollah in which the terror group's leadership and arsenal were decimated.

A ceasefire in November largely stopped the fighting, but Israeli strikes against Hezbollah operatives have continued on a regular basis. The agreement allows Israel to strike imminent threats, though Jerusalem is required to bring less urgent concerns to an international committee.

Hezbollah is currently under pressure from Lebanon's Western-backed government to disarm as part of an arrangement that could reportedly see Israel halt attacks and pull its troops south of the border.

Mr. STEUBE. We should put America first, not Lebanon first and America last.

Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. STEUBE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. STEUBE. Madam Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Florida will be postponed.

AMENDMENT NO. 287 OFFERED BY MS. TENNEY

The Acting CHAIR. It is now in order to consider amendment No. 287 printed in part A of House Report 119–199.

Ms. TENNEY. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 40, line 1, after the dollar amount, insert ''(reduced by $71,000,000) (increased by $71,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 580, the gentlewoman from New York (Ms. TENNEY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from New York.

Ms. TENNEY. Madam Chair, I rise today to offer and withdraw my amendment No. 287 to provide $71 million for nonrecurring engineering expenses associated with designing the new LC–130J as part of LC–130 recapitalization project.

LC–130s are polar ski planes that possess the unique capability of being able to land on snow instead of solely on a paved runway. The LC–130 is the only plane in the world with this capability and provides the United States with a key competitive edge in the Arctic and Antarctic domains.

The LC–130 fleet is wholly operated by the 109th Airlift Wing of the New York Air National Guard at Stratton Air National Guard Base in Scotia, New York.

Beyond its national security importance in supporting our Arctic strategy, the LC–130 fleet is also critical in supporting our Nation's scientific research efforts.

Each year, the current LC–130 fleet assists in critical missions in both Greenland and Antarctica pursuant to President Ronald Reagan's Presidential memorandum 6646.

However, our current LC–130H fleet is aging quickly, with some planes over 50 years old. Despite the great work of the 109th Airlift Wing in maintaining these planes, we must quickly recapitalize these planes to ensure the U.S. does not lose the critical capabilities provided by the LC–130 fleet.

Before I conclude, I want to thank Bob Epp and Dennis Feeney from the New York National Guard's legislative team, General Steven Slosek from the 109th Airlift Wing, General Michael Bank, the New York Air National Guard Commander; and General Ray Shields, the New York Adjutant General, for their tireless efforts in advocating alongside me for the LC–130 recapitalization.

Last year, with the help of these individuals and Chairman CALVERT, we were able to secure $29 million in the FY25 CR spend plan for the Department of Defense for these nonrecurring engineering expenses.

Rest assured, I will continue fighting to secure the additional funding in the final FY26 Defense bill.

Before I withdraw this amendment, I ask Chairman CALVERT to commit to working with me on the continued LC–130 recapitalization project as you have so graciously in the past.

Madam Chair, I yield such time as he may consume to the gentleman from California (Mr. CALVERT).

□ 1440

Mr. CALVERT. Madam Chair, I look forward to working with the gentlewoman. We need a place for those aircraft to land in Greenland.

Ms. TENNEY. Madam Chair, that is a mission of our President, of course.

Madam Chair, I yield back the balance of my time, and I withdraw my amendment.

The Acting CHAIR. The amendment is withdrawn.

AMENDMENT NO. 293 OFFERED BY MR. TIFFANY

The Acting CHAIR. It is now in order to consider amendment No. 293 printed in part A of House Report 119–199.

Mr. TIFFANY. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), add the following:

SEC. __. None of the funds appropriated or otherwise made available by this Act may be expended to create, procure, or display any map that depicts Taiwan, Kinmen, Matsu, Penghu, Wuciou, Green Island, or Orchid Island as part of the territory of the People's Republic of China.

The Acting CHAIR. Pursuant to House Resolution 580, the gentleman from Wisconsin (Mr. TIFFANY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Wisconsin.

Mr. TIFFANY. Madam Chair, my amendment would prohibit the Department of Defense from creating, procuring, or displaying any map which depicts Taiwan as a part of the territory of the People's Republic of China.

The House approved a similar amendment as part of the State Department appropriations bill last Congress, and today's amendment would simply extend this policy to the Department of Defense.

This is not a controversial amendment since all of us know that Taiwan is not, nor has it ever been, part of Communist China, even for a single day.

The people of Taiwan elect their own leaders, deploy their own armed forces, conduct their own foreign policy, and maintain their own trade agreements with other countries.

By every measure, Taiwan is a sovereign, democratic, and independent nation, and any claims to the contrary are simply false.

Since the 1970s, America's so-called One China policy has acknowledged Beijing's unsubstantiated claims over Taiwan. This is an antiquated and dishonest policy, and it is one that we should abandon. While my amendment will not end that misguided policy, it will at least require that the maps that we use reflect a simple reality: China is China. Taiwan is Taiwan.

Madam Chair, I ask for a ''yes'' vote on my honest maps amendment, and I reserve the balance of my time.

Ms. MCCOLLUM. Madam Chair, I rise in opposition to this amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Madam Chair, I understand why the gentleman from Wisconsin is offering this, and I don't agree with the spirit in which it is being offered.

The Department of Defense, the administration, this Congress, and I have been pretty clear on opposition to the unwelcome assertions of China's control over Taiwan.

As a former social studies teacher, geography was part of what I would teach. I would never use or display in my classroom a map showing that China is in possession of Taiwan, but let me take the teaching just one step further.

This amendment would prevent the Department of Defense from buying or displaying a map that shows how China views itself in the world, how China is putting out mis- and disinformation on what they think the world should look like according to them.

It would force the Department, in my opinion, to put its head in the sand when showing at the military academies China's view of the world and why we have to work so hard to defeat that.

I hope we can all agree that it is important to know what our allies and our adversaries are thinking and that we have adults at our military academies who can sort out the difference and see the differences in the maps.

As a geography teacher and a person who used to use maps, that is my only opposition to the gentleman's amendment.

I know what he is getting at. I don't disagree with it, but sometimes you have to have what your enemy has, how they view the world and what they are showing the world, in juxtaposition to how we view the world and how Taiwan needs to remain independent.

Congress and the Department should focus our time and energy on being clear about China with respect to international boundaries and rule of law.

As a geography teacher, I had to say something, and I yield back the balance of my time.

Mr. TIFFANY. Madam Chair, I yield such time as he may consume to the gentleman from California (Mr. CALVERT).

Mr. CALVERT. Madam Chair, I certainly rise in support of the amendment. The amendment prohibits the expenditure of funds to create, procure, or display any map that depicts Taiwan as part of the territory of the People's Republic of China.

Let's be clear: Taiwan is not a part of the People's Republic of China. We should not appease the desires of the Communist Chinese leadership by pretending that it is. Our maps should accurately reflect this reality.

Madam Chair, I urge my colleagues to support the amendment, and I yield back the balance of my time.

Mr. TIFFANY. Madam Chair, I yield 1 minute to the gentleman from Arizona (Mr. BIGGS).

Mr. BIGGS of Arizona. Madam Chair, Taiwan is a great friend of the United States, and it is a unique friend to Arizona.

The CCP uses every tool it can, including maps, to undermine truth and assert illegitimate claims over sovereign territory. Congress should not fund anything that supports the CCP's disinformation efforts, and now is the time for strategic clarity, with rising bellicosity coming from the CCP.

We cannot allow authoritarian regimes to dictate how our government communicates facts. If we truly stand for freedom, sovereignty, and truth, then we must also stand with Taiwan. This is one way to do so.

Mr. TIFFANY. Madam Chair, I will close by saying that I appreciate the consistency by the gentlewoman from Minnesota because she said the same thing a couple of years ago. Yet, this body was excluded back in 1979 when the One China policy was implemented by President Carter, and it is up to this body to make sure that it claims its rightful place in foreign policy when we have an issue like this before us.

The gentlewoman talks about the spirit of this amendment. This amendment is issued in the spirit of freedom, and that is all that Taiwan is looking for, to defend its freedom, and it should be able to do it.

Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Wisconsin (Mr. TIFFANY).

The amendment was agreed to.

The Acting CHAIR. The Chair understands that amendment No. 303 will not be offered.

Mr. CALVERT. Madam Chair, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. FINE) having assumed the chair, Ms. MALLIOTAKIS, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 4016) making appropriations for the Department of Defense for the fiscal year ending September 30, 2026, and for other purposes, had come to no resolution thereon.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Proceedings will resume on questions previously postponed.

Votes will be taken in the following order:

Passage of H.R. 3633;

Passage of S. 1582; and

Passage of H.R. 1919.

The first electronic vote will be conducted as a 15-minute vote. Pursuant to clause 9 of rule XX, remaining electronic votes will be conducted as 5-minute votes.

DIGITAL ASSET MARKET CLARITY ACT OF 2025

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on passage of the bill (H.R. 3633) to provide for a system of regulation of the offer and sale of digital commodities by the Securities and Exchange Commission and the Commodity Futures Trading Commission, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the passage of the bill.

The vote was taken by electronic device, and there were—yeas 294, nays 134, not voting 4, as follows:

[Roll No. 199]

YEAS—294

Aderholt
Aguilar
Alford
Allen
Amodei (NV)
Ansari
Arrington
Auchincloss
Babin
Bacon
Baird
Balderson
Barr
Barrett
Baumgartner
Bean (FL)
Begich
Bentz
Bera
Bergman
Bice
Biggs (AZ)
Biggs (SC)
Bilirakis
Boebert
Bost
Boyle (PA)
Brecheen
Bresnahan
Buchanan
Budzinski
Burchett
Burlison
Bynum
Calvert
Cammack
Carbajal
Carey
Carter (GA)
Carter (TX)
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Conaway
Correa
Costa
Craig
Crane
Crank
Crawford
Crenshaw
Cuellar
Davidson
Davis (NC)
De La Cruz
DelBene
DesJarlais
Diaz-Balart
Donalds
Downing
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Evans (CO)
Ezell
Fallon
Fedorchak
Feenstra
Fields
Figures
Fine
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Fong
Foxx
Frankel, Lois
Franklin, Scott
Fry
Fulcher
Garbarino
Gill (TX)
Gillen
Gimenez
Golden (ME)
Goldman (NY)
Goldman (TX)
Gomez
Gonzales, Tony
Gonzalez, V.
Gooden
Goodlander
Gosar
Gottheimer
Graves
Gray
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Hamadeh (AZ)
Harder (CA)
Haridopolos
Harrigan
Harris (MD)
Harris (NC)
Harshbarger
Hern (OK)
Higgins (LA)
Hill (AR)
Hinson
Horsford
Houchin
Houlahan
Hudson
Huizenga
Hunt
Hurd (CO)
Issa
Jack
Jackson (IL)
Jackson (TX)
James
Johnson (LA)
Johnson (SD)
Johnson (TX)
Jordan
Joyce (OH)
Joyce (PA)
Kean
Kelly (MS)
Kelly (PA)
Kennedy (UT)
Khanna
Kiggans (VA)
Kiley (CA)
Kim
Knott
Krishnamoorthi
Kustoff
LaHood
LaLota
LaMalfa
Landsman
Langworthy
Latimer
Latta
Lee (FL)
Lee (NV)
Letlow
Levin
Lieu
Lofgren
Loudermilk
Lucas
Luna
Luttrell
Mace
Mackenzie
Malliotakis
Maloy
Mann
Mannion
Mast
McBath
McBride
McCaul
McClain
McClain Delaney
McClintock
McCormick
McDonald Rivet
McDowell
McGuire
Menendez
Messmer
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Min
Moolenaar
Moore (AL)
Moore (NC)
Moore (UT)
Moore (WV)
Moran
Moskowitz
Moulton
Mullin
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Onder
Owens
Palmer
Panetta
Pappas
Patronis
Pelosi
Perez
Pfluger
Pou
Reschenthaler
Riley (NY)
Rogers (AL)
Rogers (KY)
Rose
Rouzer
Roy
Ruiz
Rulli
Rutherford
Ryan
Salazar
Scalise
Schmidt
Schneider
Scholten
Schrier
Schweikert
Scott, Austin
Self
Sessions
Sewell
Sherrill
Shreve
Simon
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Sorensen
Soto
Spartz
Stanton
Stauber
Stefanik
Steil
Steube
Stevens
Strickland
Strong
Stutzman
Subramanyam
Suozzi
Taylor
Tenney
Thanedar
Thompson (CA)
Thompson (PA)
Tiffany
Timmons
Torres (NY)
Tran
Turner (OH)
Valadao
Van Drew
Van Duyne
Van Orden
Vasquez
Veasey
Vindman
Wagner
Walberg
Weber (TX)
Webster (FL)
Westerman
Whitesides
Wied
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—134

Adams
Amo
Balint
Barragán
Beatty
Bell
Beyer
Bishop
Bonamici
Brown
Brownley
Carson
Carter (LA)
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Cisneros
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Courtney
Crockett
Crow
Davids (KS)
Davis (IL)
Dean (PA)
DeGette
DeLauro
Deluzio
DeSaulnier
Dexter
Dingell
Doggett
Elfreth
Escobar
Espaillat
Evans (PA)
Fletcher
Foster
Foushee
Friedman
Frost
Garamendi
Garcia (CA)
García (IL)
Garcia (TX)
Green, Al (TX)
Hayes
Himes
Hoyer
Hoyle (OR)
Huffman
Ivey
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Kaptur
Keating
Kelly (IL)
Kennedy (NY)
Larsen (WA)
Larson (CT)
Lee (PA)
Leger Fernandez
Liccardo
Lynch
Magaziner
Matsui
McClellan
McCollum
McGarvey
McGovern
McIver
Meeks
Meng
Mfume
Moore (WI)
Morelle
Morrison
Mrvan
Nadler
Neal
Neguse
Norcross
Ocasio-Cortez
Olszewski
Omar
Pallone
Peters
Pettersen
Pingree
Pocan
Pressley
Quigley
Ramirez
Randall
Raskin
Rivas
Ross
Salinas
Sánchez
Scanlon
Schakowsky
Scott (VA)
Scott, David
Sherman
Smith (WA)
Stansbury
Swalwell
Sykes
Takano
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Trahan
Underwood
Vargas
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Williams (GA)
Wilson (FL)

NOT VOTING—4

Green (TN)
Lawler
Massie
Perry

□ 1530

Mr. GARAMENDI changed his vote from ''yea'' to ''nay.''

Messrs. VICENTE GONZALEZ and MILLS changed their vote from ''nay'' to ''yea.''

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. PERRY. Madam Speaker, had I been present, I would have voted YEA on Roll Call 199.

GUIDING AND ESTABLISHING NATIONAL INNOVATION FOR U.S. STABLECOINS ACT

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on passage of the bill (S. 1582) to provide for the regulation of payment stablecoins, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the passage of the bill.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 308, nays 122, not voting 2, as follows:

[Roll No. 200]

YEAS—308

Aderholt
Aguilar
Alford
Allen
Amo
Amodei (NV)
Arrington
Babin
Bacon
Baird
Balderson
Barr
Barrett
Baumgartner
Bean (FL)
Begich
Bell
Bentz
Bera
Bergman
Bice
Biggs (SC)
Bilirakis
Boebert
Bost
Boyle (PA)
Brecheen
Bresnahan
Brownley
Buchanan
Budzinski
Burchett
Bynum
Calvert
Cammack
Carbajal
Carey
Carter (GA)
Carter (TX)
Cherfilus-McCormick
Ciscomani
Clark (MA)
Cline
Clyde
Cole
Collins
Comer
Conaway
Correa
Costa
Craig
Crank
Crawford
Crenshaw
Crockett
Cuellar
Davis (NC)
De La Cruz
DelBene
DesJarlais
Diaz-Balart
Donalds
Downing
Dunn (FL)
Edwards
Ellzey
Emmer
Espaillat
Estes
Evans (CO)
Ezell
Fallon
Fedorchak
Feenstra
Fields
Figures
Fine
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Fong
Foxx
Frankel, Lois
Franklin, Scott
Fry
Garbarino
Garcia (CA)
Gill (TX)
Gillen
Gimenez
Golden (ME)
Goldman (NY)
Goldman (TX)
Gomez
Gonzales, Tony
Gonzalez, V.
Gooden
Goodlander
Gosar
Gottheimer
Graves
Gray
Grothman
Guest
Guthrie
Hageman
Hamadeh (AZ)
Harder (CA)
Haridopolos
Harrigan
Harris (NC)
Harshbarger
Hern (OK)
Higgins (LA)
Hill (AR)
Himes
Hinson
Horsford
Houchin
Houlahan
Hudson
Huizenga
Hunt
Hurd (CO)
Issa
Jack
Jackson (IL)
Jackson (TX)
James
Jeffries
Johnson (LA)
Johnson (SD)
Johnson (TX)
Jordan
Joyce (OH)
Joyce (PA)
Kamlager-Dove
Kean
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy (NY)
Kennedy (UT)
Khanna
Kiggans (VA)
Kiley (CA)
Kim
Knott
Krishnamoorthi
Kustoff
LaHood
LaLota
LaMalfa
Landsman
Langworthy
Larsen (WA)
Latimer
Latta
Lawler
Lee (FL)
Lee (NV)
Letlow
Levin
Liccardo
Lieu
Lofgren
Loudermilk
Lucas
Luna
Luttrell
Mace
Mackenzie
Magaziner
Malliotakis
Maloy
Mann
Mannion
Mast
Matsui
McBath
McCaul
McClain
McClain Delaney
McClintock
McCormick
McDonald Rivet
McDowell
McGarvey
McGuire
Meeks
Menendez
Meng
Messmer
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Min
Moolenaar
Moore (AL)
Moore (NC)
Moore (UT)
Moore (WV)
Moran
Moskowitz
Moulton
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Olszewski
Onder
Owens

Palmer
Panetta
Pappas
Patronis
Pelosi
Perez
Peters
Pettersen
Pfluger
Pou
Quigley
Reschenthaler
Riley (NY)
Rogers (AL)
Rogers (KY)
Rose
Rouzer
Ruiz
Rulli
Rutherford
Ryan
Salazar
Scalise
Schmidt
Schneider
Scholten
Schrier
Schweikert
Self
Sessions
Sewell
Sherrill
Shreve
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Sorensen
Soto
Spartz
Stanton
Stauber
Stefanik
Steil
Steube
Stevens
Strickland
Strong
Stutzman
Subramanyam
Suozzi
Swalwell
Sykes
Taylor
Tenney
Thanedar
Thompson (CA)
Thompson (PA)
Tiffany
Timmons
Titus
Torres (NY)
Trahan
Tran
Turner (OH)
Valadao
Van Drew
Van Duyne
Van Orden
Vasquez
Veasey
Vindman
Wagner
Walberg
Wasserman Schultz
Weber (TX)
Webster (FL)
Westerman
Whitesides
Wied
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—122

Adams
Ansari
Auchincloss
Balint
Barragán
Beatty
Beyer
Biggs (AZ)
Bishop
Bonamici
Brown
Burlison
Carson
Carter (LA)
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chu
Cisneros
Clarke (NY)
Cleaver
Cloud
Clyburn
Cohen
Courtney
Crane
Crow
Davids (KS)
Davidson
Davis (IL)
Dean (PA)
DeGette
DeLauro
Deluzio
DeSaulnier
Dexter
Dingell
Doggett
Elfreth
Escobar
Evans (PA)
Fletcher
Foster
Foushee
Friedman
Frost
Fulcher
Garamendi
García (IL)
Garcia (TX)
Green, Al (TX)
Greene (GA)
Griffith
Harris (MD)
Hayes
Hoyer
Hoyle (OR)
Huffman
Ivey
Jacobs
Jayapal
Johnson (GA)
Kaptur
Keating
Larson (CT)
Lee (PA)
Leger Fernandez
Lynch
McBride
McClellan
McCollum
McGovern
McIver
Mfume
Moore (WI)
Morelle
Morrison
Mrvan
Mullin
Nadler
Neal
Neguse
Norcross
Ocasio-Cortez
Omar
Pallone
Perry
Pingree
Pocan
Pressley
Ramirez
Randall
Raskin
Rivas
Ross
Roy
Salinas
Sánchez
Scanlon
Schakowsky
Scott (VA)
Scott, Austin
Scott, David
Sherman
Simon
Smith (WA)
Stansbury
Takano
Thompson (MS)
Tlaib
Tokuda
Tonko
Torres (CA)
Underwood
Vargas
Velázquez
Waters
Watson Coleman
Williams (GA)
Wilson (FL)

NOT VOTING—2

Green (TN)
Massie

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1553

Mr. MRVAN changed his vote from ''yea'' to ''nay.''

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

ANTI-CBDC SURVEILLANCE STATE ACT

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on passage of the bill (H.R. 1919) to amend the Federal Reserve Act to prohibit the Federal reserve banks from offering certain products or services directly to an individual, to prohibit the use of central bank digital currency for monetary policy, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the passage of the bill.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 219, nays 210, not voting 3, as follows:

[Roll No. 201]

YEAS—219

Aderholt
Alford
Allen
Amodei (NV)
Arrington
Babin
Bacon
Baird
Balderson
Barr
Barrett
Baumgartner
Bean (FL)
Begich
Bentz
Bergman
Bice
Biggs (AZ)
Biggs (SC)
Bilirakis
Boebert
Bost
Brecheen
Bresnahan
Buchanan
Burchett
Burlison
Calvert
Cammack
Carey
Carter (GA)
Carter (TX)
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crank
Crawford
Crenshaw
Davidson
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Downing
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Evans (CO)
Ezell
Fallon
Fedorchak
Feenstra
Fine
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Fong
Foxx
Franklin, Scott
Fry
Fulcher
Garbarino
Gill (TX)
Gimenez
Golden (ME)
Goldman (TX)
Gonzales, Tony
Gooden
Gosar
Graves
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Hamadeh (AZ)
Haridopolos
Harrigan
Harris (MD)
Harris (NC)
Harshbarger
Hern (OK)
Higgins (LA)
Hill (AR)
Hinson
Houchin
Hudson
Huizenga
Hunt
Hurd (CO)
Issa
Jack
Jackson (TX)
James
Johnson (LA)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean
Kelly (MS)
Kelly (PA)
Kennedy (UT)
Kiggans (VA)
Kiley (CA)
Kim
Knott
Kustoff
LaHood
LaLota
LaMalfa
Langworthy
Latta
Lawler
Lee (FL)
Letlow
Loudermilk
Lucas
Luna
Luttrell
Mace
Mackenzie
Malliotakis
Maloy
Mann
Mast
McCaul
McClain
McClintock
McCormick
McDowell
McGuire
Messmer
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Moolenaar
Moore (AL)
Moore (NC)
Moore (UT)
Moore (WV)
Moran
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Ogles
Onder
Owens
Palmer
Patronis
Perry
Pfluger
Reschenthaler
Rogers (AL)
Rogers (KY)
Rose
Rouzer
Roy
Rulli
Rutherford
Salazar
Scalise
Schmidt
Schweikert
Scott, Austin
Self
Sessions
Shreve
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Stefanik
Steil
Steube
Strong
Stutzman
Taylor
Tenney
Thanedar
Thompson (PA)
Tiffany
Timmons
Turner (OH)
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Weber (TX)
Webster (FL)
Westerman
Wied
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—210

Adams
Aguilar
Amo
Ansari
Auchincloss
Balint
Barragán
Beatty
Bell
Bera
Beyer
Bishop
Bonamici
Boyle (PA)
Brown
Brownley
Budzinski
Bynum
Carbajal
Carson
Carter (LA)
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Cisneros
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Conaway
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dexter
Dingell
Doggett
Elfreth
Escobar
Espaillat
Evans (PA)
Fields
Figures
Fletcher
Foster
Foushee
Frankel, Lois
Friedman
Frost
Garamendi
Garcia (CA)
García (IL)
Garcia (TX)
Gillen
Goldman (NY)
Gomez
Gonzalez, V.
Goodlander
Gottheimer
Gray
Green, Al (TX)
Harder (CA)
Hayes
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jacobs
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kamlager-Dove
Kaptur
Keating
Kelly (IL)
Kennedy (NY)
Khanna
Krishnamoorthi
Landsman
Larsen (WA)
Larson (CT)
Latimer
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Liccardo
Lieu
Lofgren
Lynch
Magaziner
Mannion
Matsui
McBath
McBride
McClain Delaney
McClellan
McCollum
McDonald Rivet
McGarvey
McGovern
McIver
Meeks
Menendez
Meng
Mfume
Min
Moore (WI)
Morelle
Morrison
Moskowitz
Moulton
Mrvan
Mullin
Nadler
Neal
Neguse
Norcross
Ocasio-Cortez
Olszewski
Omar
Pallone
Panetta
Pappas
Pelosi
Perez
Peters
Pettersen
Pingree
Pocan
Pou
Pressley
Quigley
Ramirez
Randall
Raskin
Riley (NY)
Rivas
Ross
Ruiz
Ryan
Salinas
Sánchez
Scanlon
Schakowsky
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Simon
Smith (WA)
Sorensen
Soto
Stansbury
Stanton
Stevens
Strickland
Subramanyam
Suozzi
Swalwell
Sykes
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Tran
Underwood
Vargas
Vasquez
Veasey
Velázquez
Vindman
Wasserman Schultz
Waters
Watson Coleman
Whitesides
Williams (GA)
Wilson (FL)

NOT VOTING—3

Green (TN)
Massie
Obernolte

□ 1601

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 4 o'clock and 2 minutes p.m.), the House stood in recess.

□ 2201

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. DESJARLAIS) at 10 o'clock and 1 minute p.m.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 4 of rule I, the following enrolled bills were signed by the Speaker on Thursday, July 17, 2025:

H.R. 1815, to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to take certain actions in the case of a default on a home loan guaranteed by the Secretary, and for other purposes;

S. 1582, to provide for the regulation of payment stablecoins, and for other purposes;

S. 1596, to rename the Anahuac National Wildlife Refuge located in the State of Texas as the ''Jocelyn Nungaray National Wildlife Refuge''.

REPORT ON RESOLUTION RELATING TO CONSIDERATION OF THE SENATE AMENDMENT TO H.R. 4, RESCISSIONS ACT OF 2025

Ms. FOXX, from the Committee on Rules, submitted a privileged report (Rept. No. 119–208) on the resolution (H. Res. 590) relating to consideration of the Senate amendment to the bill (H.R. 4) to rescind certain budget authority proposed to be rescinded in special messages transmitted to the Congress by the President on June 3, 2025, in accordance with section 1012(a) of the Congressional Budget and Impoundment Control Act of 1974, which was referred to the House Calendar and ordered to be printed.

RELATING TO CONSIDERATION OF THE SENATE AMENDMENT TO H.R. 4, RESCISSIONS ACT OF 2025

Ms. FOXX. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 590 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 590

Resolved, That upon adoption of this resolution, the House shall be considered to have taken from the Speaker's table the bill (H.R. 4) to rescind certain budget authority proposed to be rescinded in special messages transmitted to the Congress by the President on June 3, 2025, in accordance with section 1012(a) of the Congressional Budget and Impoundment Control Act of 1974, with the Senate amendment thereto, and to have concurred in the Senate amendment.

The SPEAKER pro tempore. The gentlewoman from North Carolina is recognized for 1 hour.

Ms. FOXX. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), pending which I yield myself such time as I may consume.

During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Ms. FOXX. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from North Carolina?

There was no objection.

Ms. FOXX. Mr. Speaker, I rise in support of the rule and of the underlying legislation. This evening, the Rules Committee met and produced a rule, House Resolution 590, providing for the House's consideration of the Senate amendment to H.R. 4, the Rescissions Act of 2025. Passage of this Rule will send H.R. 4 directly to the President's desk.

Mr. Speaker, if you told the American people that wasteful spending overtook Washington during the Biden-Harris administration, they would not be surprised. Their jaws would not drop, and their pupils would not dilate in utter shock.

The American people saw the fiscal ruin that was created by the previous administration. That is why they overwhelmingly chose Republicans to lead the Nation and restore fiscal sanity. That restoration is here, Mr. Speaker. H.R. 4 is part of our efforts to get Washington's fiscal house in order.

H.R. 4 rescinds $9 billion in spending that the President has identified as wasteful and unnecessary. As I said in the Rules Committee, it is unfortunate that the Senate was not able to execute all of President Trump's recommended rescissions. That said, there are many pertinent rescissions that remain, and they are very impactful.

Now, our Democrat colleagues will scoff and say that this $9 billion we are clawing back is a drop in the bucket; that it is merely peanuts. That is where they are wrong, Mr. Speaker. The thing is that in their arguments against H.R. 4, Democrats can only grasp at straws. Their positions are weak, and their claims are even weaker. They will talk in circles and just bloviate. In the end, they simply don't make any points that are worth remembering. They will rail against H.R. 4 so much that they say absolutely nothing.

Here is the truth. If this rescissions package was not put forth and passed by Congress, taxpayer dollars would still be funneled to ideologues at PBS and NPR and taxpayer dollars would continue to be funneled to all manner of foreign aid repositories that do not align with the fiscal sensibilities and values of the American people. That money, the people's money, would continue to be squandered. That is the truth of the matter.

Republicans understand that $1 of taxpayer money wasted is $1 too many. We must pass this rescissions package and send it to the President so that we can continue our work and continue to secure wins for the American people.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I thank the gentlewoman from North Carolina for yielding me the customary 30 minutes, and I yield myself such time as I may consume.

Mr. Speaker, this process sucks. None of what we are doing here today is about governing. We aren't here to improve healthcare access or to put money back in hardworking people's pockets or to make life better for Americans or, for that matter, anybody in any way.

We are here because Republicans want to protect powerful people. They want to protect billionaires and protect those at the top. It is about doing Donald Trump's bidding. Shame on them.

Earlier this week, I offered a simple amendment to release the Epstein files that Donald Trump, his AG, his FBI director, and his supporters tell us contain a list of clients of Jeffrey Epstein. Let the American people make up their own mind. But Republicans voted it down, every single one of them. Why? Because Donald Trump, for whatever reason, doesn't want these records to get out anymore.

After years of promising America that his administration would release the Epstein files and tapes, Trump is now calling it a hoax. He is calling his own supporters stupid for believing the things he told them, and you are deeming adoption of a bullshit resolution on Epstein that does nothing.

Let me be clear. This resolution does not have the force of law. This does not have the force of law. It is political theater. It is a smokescreen for Republicans to hide from doing something that would demand Trump's DOJ release of these files.

This is a glorified press release, a talking point to save face, something they can wave around and say: See, we care, so they can walk free of shame while doing absolutely nothing.

□ 2210

This nonbinding resolution does nothing to get these files released.

Mr. Speaker, when we asked them when this nonbinding, useless resolution is coming to the House floor, the answer was, well, it is up to the majority leader.

Mr. Speaker, either Republicans want to actually release the files, or they don't. There is no middle ground here.

Republicans don't get credit for pretending to care. They don't get points for playing PR games while the people who enabled Epstein's abuse go unnamed and unpunished.

This is why people hate Congress. This is why they don't trust government.

Republicans talk about supporting the victims. They talk about holding

powerful people accountable, but it is lipservice. When the time comes to do something, they come up with a phony, fake vote to give themselves political cover, which brings me to this rescissions package, Mr. Speaker, another disaster, fiscal irresponsibility masquerading as cuts.

The other side just added $4 trillion to the debt with their big, ugly, billionaire-tax-break bill. The big, ugly bill costs 450 times what these rescissions will save. It doesn't even come close.

Mr. Speaker, I should mention that these rescissions are also deeply harmful. It cuts funding for international aid that provides lifesaving healthcare. People are going to die because of these cuts. It undermines Ukraine and our allies. It slashes public broadcasting that delivers essential news to communities nationwide.

Republicans call it tightening the belt, but it is the same old story. Republicans blow up the budget for billionaires, and then they nickel and dime everyone else to pretend that they care about the debt and the deficit. It is nuts.

If we were all being honest here, nobody even truly knows exactly what the hell is in this bill. As Senator TILLIS, a Republican, said: ''I suspect we're going to find out there are some things that we're going to regret.''

SUSAN COLLINS, another Republican, said: ''The rescissions package has a big problem—nobody really knows what program reductions are in it.''

You can't make this stuff up.

Finally, let's not forget that the Trump administration, as we speak, is illegally withholding over $425 billion in congressionally approved funding while Republicans in Congress rush to get these rescissions done, covering for the President once again, afraid to raise an eyebrow to question what he is doing.

This is not how this place should work. None of what we have experienced with this majority is normal. This is government by chaos, run by a party that can't count its own votes, can't pass its own rules, and can't stand up to the White House after all of their broken promises.

This week has been shameful. People are watching. They see what is happening, and they are tired of being sold out, spun, and left behind.

Mr. Speaker, I reserve the balance of my time.

The SPEAKER pro tempore. Members are reminded to avoid using profanity while speaking on the House floor.

Ms. FOXX. Mr. Speaker, I yield 2 minutes to the gentleman from Florida (Mr. BEAN).

Mr. BEAN of Florida. Mr. Speaker, I thank Chair FOXX for yielding to me.

Mr. Speaker, we all know what Neil Armstrong said when he first walked on the Moon. As founder of the DOGE Caucus, I am proud to say that, with this rescissions package, the first of its kind in 25 years, we are taking one small step to cut wasteful spending but one giant leap toward fiscal sanity. Yet, Houston, we have a problem. We are still $37 trillion in debt. This year alone, we will run a $1.7 trillion deficit. With this small step today, let's commit to the giant leap.

Here is my challenge to the White House: Let's do a rescissions package every month because America has had enough—enough to wasteful spending, enough to out-of-control deficits.

We do have a long journey ahead, but, thankfully, not as far as the Moon. All systems are go. Let the countdown begin, and let's launch to fiscal sanity by voting ''yes'' to clawing back $9 billion.

I am ready. The House is ready. America is ready. Let's go get 'em.

Mr. MCGOVERN. Mr. Speaker, the gentleman is concerned about unchecked deficits and debt. He just voted for a bill to add $4 trillion to the debt. Come on. Give me a break.

Mr. Speaker, I yield 1 minute to the gentleman from New York (Mr. JEFFRIES), the Democratic leader.

Mr. JEFFRIES. Mr. Speaker, I thank the distinguished gentleman, the top Democrat on the Committee on Rules, Mr. MCGOVERN, for his leadership and for yielding.

I thank all the distinguished members of the Committee on Rules for their steadfast, courageous, and insightful participation in opposition to this rule and the substantive legislation that underlies this particular rule.

I also thank ROSA DELAURO for her principled and strong opposition to this reckless Republican rescissions package, this effort by the Trump administration to, once again, hurt everyday Americans.

Mr. Speaker, it was just said on the House floor that the American people are fed up with out-of-control, wasteful government spending. As Democrats, we are committed to making sure that taxpayer dollars are spent in an effective, efficient, and equitable manner.

This bill that is on the floor right now has nothing to do with waste, fraud, and abuse. It represents an attack on the public health of the American people, the national security of the American people, the public safety of the American people, and the ability of the American people to actually get information, particularly in rural America, that they may need through public radio or public television in the face of an emergency.

Mr. Speaker, no one is buying the notion that Republicans are actually trying to improve wasteful spending.

In the aftermath of this one big, ugly bill that just passed this Chamber and has been signed into law that explodes the debt by more than $3 trillion, and then asks everyday Americans to pay for part of the expenses in the bill by ripping away healthcare for more than 17 million Americans, hospitals will close, nursing homes will shut down, and community-based health clinics will be unable to provide services to everyday Americans. As a result of the one big, ugly bill, people will die.

It is an all-out assault on healthcare and the largest cut to Medicaid in American history. It also rips food out of the mouths of hungry children, seniors, and veterans. All of this is being done to provide massive tax breaks to billionaires.

Then, Mr. Speaker, in this one big, ugly bill that has now been signed into law, the debt and the deficit will explode by trillions of dollars.

How dare anyone from the other side of the aisle claim to be the party of fiscal responsibility. That is fake, and that is phony.

When you look at this particular piece of legislation that is in front of us right now, this reckless Republican rescissions package, it undermines American national security and American leadership in the world.

This is not an America First bill. It is a China first bill because of the void that is being created all across the world. It is in America's interests, our national security interests and our leadership interests, to make sure that we are investing in development, diplomacy, and democracy all across the world.

Great leaders have recognized that throughout the American journey. It was Abraham Lincoln who came to the House Chamber in the middle of the Civil War, in the early 1860s, and spoke to the Congress and talked about America being ''the last best hope on Earth.''

President Lincoln said that in the 1860s, a visionary declaration of the role that America might one day play as the leader of the free world.

This legislation, this reckless Republican rescissions package, undermines our ability to keep our people safe here and to project America's soft power all over the globe.

□ 2220

Mr. Speaker, why would we undermine our ability to use diplomacy, democracy, and development to protect our own national security?

The President promised that on day one he was going to end the war in Ukraine that is now going on. In this particular piece of legislation, we are undermining the ability of Ukraine to continue to valiantly fight against Russian aggression.

Russia is not our friend. They are our enemy. Vladimir Putin is a sworn enemy of the United States of America.

Mr. Speaker, why is it Republicans in this bill are once again undermining Ukraine?

Ukraine stands on the side of democracy. Ukraine stands on the side of freedom. Ukraine stands on the side of truth. Russia stands on the side of autocracy, tyranny, and propaganda.

Why would we stand on the side of Russia? That is inconsistent with American leadership. This reckless Republican rescissions package does the exact opposite.

Mr. Speaker, we just saw tragedy unfold in the Texas Hill Country. More than two dozen children have died. Parents should never have to bury their children. More than 100 Texans died in the deadly floods.

There are a lot of questions that need to be asked about government failure and State government failure in Texas. The Governor of Texas has a lot of questions that need to be answered. Instead, he is trying to rig the Texas congressional map in the middle of a search and rescue operation. He has got to answer some questions.

The Trump administration needs to answer some questions about the National Weather Service and the devastating cuts that have been inflicted on them. Mr. Speaker, the Trump administration needs to answer some questions about the stated goal to defund FEMA.

In the midst of this tragedy that we all need to collectively respond to in Texas, just as we needed to respond to the tragedy that unfolded in California and the wildfires earlier this year, this reckless Republican rescissions package is going to undermine the ability of people in rural America and in small-town American to receive advance warning or necessary information when disaster strikes, when extreme weather strikes, when flooding strikes, and when hurricanes strike.

That is what happens when public radio is shut down and public television is shut down, which is what this reckless rescissions package will do. It is all extraordinary.

Mr. Speaker, I don't understand why Republicans continue to advance legislation on the floor of the House of Representatives that hurt everyday Americans. Is it simply because the goal is, as always, to reward billionaires, as was done with the one big, ugly bill, providing them with massive and unnecessary tax breaks?

Mr. Speaker, at the beginning of this Congress, as House Democrats, we made it clear that we would work with anyone in this town in order to make life better for the American people. We would work to lower the high cost of living of the American people and to address the affordability crisis afflicting the American people.

We thought perhaps we would have some partners in this necessary endeavor. Why? Mr. Speaker, Donald Trump and House Republicans promised that they were going to lower costs. In fact, costs were going to go down on day one. Those are not my words. Those are President Trump's words.

Costs haven't gone down in the United States of America. Costs are going up. Inflation is on the way up. Life is getting more expensive for the American people.

Nothing in this reckless rescissions package is going to make life more affordable for everyday Americans. It is going to complicate their life even further just like what happened with the one big, ugly bill.

Mr. Speaker, we are strongly opposed to this legislation. This is legislation that apparently Republicans don't even want to actually debate on the House floor. Once again, they want to address an issue to be debated in this Chamber under the cover of darkness.

Finally, Mr. Speaker, the challenge that we have with this legislation is that the appropriations process has historically and traditionally been bipartisan. It means Democrats and Republicans will work and try to come together to reach a spending agreement that meets the needs of the American people in terms of their health, their safety, and their economic well-being. House Democrats and Senate Democrats, along with House Republicans and Senate Republicans, will do it in a bipartisan appropriations process to try to reach an enlightened agreement.

Mr. Speaker, what this rescissions package signals to us and the people that we represent and, more importantly, what it signals to America, as the OMB Director just said, Republicans aren't interested in bipartisanship. They aren't interested in commonsense solutions to finding common ground anchored in Democrats and Republicans coming together.

We know that is the case because we have made clear our willingness to solve the challenges that the American people face and work with anyone in this town, particularly when it comes to lowering the high cost of living in the United States of America. Republicans continue to do nothing about that. They are not doing a damn thing to make life more affordable for the American people.

That is one of many reasons why we continue to be opposed to this reckless legislation that Republicans bring to the House floor. It will hurt everyday Americans. It will hurt children. It will hurt families. It will hurt older Americans. It will hurt people that Republicans represent in rural America and all while undermining American leadership in the world.

Mr. Speaker, once again, this is unfortunate. Once again, we see a Congress not functioning as a separate and coequal branch of government. We see a Congress, given this Republican majority, not willing to serve as a check and balance on an out-of-control executive branch but always willing to do the bidding of the executive branch, as if we work for the Article II branch of government.

Mr. Speaker, we don't work for Donald Trump. We don't work for JD Vance. We don't work for the OMB Director. We work for the American people, and that is why we are a hard ''no'' against this reckless rescissions package.

Ms. FOXX. Mr. Speaker, two words from me: Low energy.

Mr. Speaker, I yield 2 minutes to the gentleman from Georgia (Mr. AUSTIN SCOTT).

Mr. AUSTIN SCOTT of Georgia. Mr. Speaker, we all know from watching the last 4 years the Democrats have been working for an autopen the last 4 years and not the American citizens.

As a guy from a small town, I want my friends on the other side of the aisle to know this. My town is so small that we literally don't have a red light unless the train comes through. We don't need big-city people telling us how to live. We get along just fine.

In fact, right down the road from my house, a person can open up a cooler and pull fresh vegetables out of there based on the honor system. The bag says how much someone is supposed to pay for them. There is a box with cash in it.

Mr. Speaker, try that in one of your metropolitan areas. While I hear my colleague talk about how much help we in the small town need for more government, as a small-town guy, the deficit and the debt scares us. It does.

Let's talk about the facts about this package. If there is anything that is wrong with the package, it is that it doesn't cut enough.

□ 2230

The net increase in spending so far this fiscal year, the last 9 months, is $318 billion.

Let me say that again for the American citizens.

The net increase in spending has gone up $318 billion in the last 9 months.

This piece of legislation cuts less than one-half of 1 percent of discretionary spending. It is a rounding error on the increase. I wish that DOGE were working as effectively today as it was the first several months of the year. I hope that we, as Republicans, get back to exposing where the American tax dollars have been wasted over the last several years.

Mr. Speaker, I encourage people to vote for this minor cut, but a minor cut is better than no cut.

The SPEAKER pro tempore. Members are reminded to direct their remarks to the Chair.

Mr. MCGOVERN. Mr. Speaker, you have to love the gentleman from Georgia when he says that he worries about the deficit and the debt. My question is, why the hell did you vote for the big, ugly bill that adds $4 trillion to the debt? It makes no sense.

Mr. Speaker, I urge that we defeat the previous question, and I will offer an amendment to the rule to immediately bring up to the House floor H.R. 4405, the bipartisan Epstein Files Transparency Act, introduced by Representatives KHANNA and MASSIE under a closed rule with 1 hour of debate.

Mr. Speaker, tonight in the Rules Committee, Democrats offered a motion, several motions, to allow a vote on the floor to actually release the Epstein files, and Republicans on the committee just voted to block it, time and time again.

The only reason it won't be considered on the floor immediately after this rule passes is because of nine Republicans on the Rules Committee who voted no.

Now with the previous question, I will give the entire Republican Conference another chance to vote to release the Epstein files, the only other chance to vote on it this week. As I just said, the resolution Republicans just voted on in the Rules Committee is a glorified press release. It is nonbinding.

The Republicans are pretending to do something because they are feeling the heat at home, but it won't even come to the House floor this week, Mr. Speaker. We can't even get a commitment for when it is coming to the floor.

The bipartisan bill we are offering, if we defeat the previous question, would actually release the files. It would have the power of law. It would not be a glorified press release.

Ask yourself, Mr. Speaker, why would anybody want to stop this bill from getting a vote? What are Republicans so afraid of?

Mr. Speaker, I ask unanimous consent to insert the text of my amendment into the RECORD, along with extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Massachusetts?

There was no objection.

Mr. MCGOVERN. Mr. Speaker, I yield 2 minutes to the gentleman from California (Mr. KHANNA), the sponsor of the bill, to discuss our proposal.

Mr. KHANNA. Mr. Speaker, the American people, Republicans, Independents, and Democrats want the Epstein files released with the victims' identity protected.

Now most people don't understand how this town works, so I am going to try to explain this really simply.

Congressman MASSIE and I introduced a bipartisan bill to release all the Epstein files and to make sure victims were protected. There are 10 Republican cosponsors of that bill, including MAGA stalwarts like Representatives MARJORIE TAYLOR GREENE, LAUREN BOEBERT, and TIM BURCHETT. We have the votes tonight to pass it, but what happened in the Rules Committee is they don't want to have this vote tonight because they know they are going to lose because they know their own Members want to vote for it.

What is even sillier is they had this nonbinding resolution, so I thought surely we would vote on a nonbinding resolution. They don't even want to vote on the nonbinding resolution in case Donald Trump gets slightly offended. They don't even want the vote on the nonbinding resolution tonight.

Now, the President is paying attention—not just because his favorite Congressman THOMAS MASSIE is involved—and he directs the Attorney General Pam Bondi to ask the courts to release the grand jury testimony.

Here is the problem: The grand jury testimony is largely about Epstein and Maxwell, not about all the rich and powerful men who abused, assaulted, and abandoned young women. Those people are still being protected.

By the way, the courts usually don't release grand jury testimony. The President is hearing the American people, and the President knows that if there is a vote tonight, this body overwhelmingly would vote for the release of the files.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. MCGOVERN. Mr. Speaker, I yield an additional 30 seconds to the gentleman from California.

Mr. KHANNA. I don't need more than 30 seconds. I need 10 seconds. This question is: Whose side are you on?

Today, the Democrats are on the side of the people. The Democrats are on the side of the children. There are 10 Republicans who are on the side of the people and the children, but the entire Democratic Party is on that side and the Republicans have chosen to protect the rich and powerful men who have abused our children. It is wrong, and that is the clear difference tonight.

Ms. FOXX. Mr. Speaker, I yield 1 minute to the gentleman from Louisiana (Mr. SCALISE), the majority leader.

Mr. SCALISE. Mr. Speaker, I thank the Chair for yielding and for helping get this process to the floor, despite so many attempts by the Democrats to block this effort to cut waste, fraud, and abuse in government spending. We have seen it over and over and over again.

Every time we have tried to get our economy back on track to put more money in the pockets, by the way, of hardworking families, as we just succeeded in doing with the One Big Beautiful Bill Act, every step of the way, the only people trying to block that effort have been Democrats in Washington.

They are getting nervous. They are feeling the heat from people back home, Mr. Speaker, that are angry, saying why did you vote—those waiters and waitresses, who make $32,000 a year, when they keep hearing them talk about billionaires. They are not voting against billionaires. They are voting against waiters and waitresses earning $32,000 a year and cops working the beat who don't want to have to pay overtime taxes. We protected them from that.

Every Democrat voted no, Mr. Speaker. I can understand why they come up here and want to talk about anything other than what we are actually doing to deliver for those families.

It is interesting how they talk about Jeffrey Epstein because for 4 years, Mr. Speaker, President Joe Biden had those files and not a single Democrat that you are hearing tonight tried to get those files released.

The House Republicans are working to do that and, of course, they are in a tizzy, Mr. Speaker, because they are finally being exposed for covering it up for 4 years.

Let them continue to come up and talk about all the deficit spending that they created while they cite and talk about the One Big Beautiful Bill Act. If you look at our scorekeeper here in the House, Mr. Speaker, they said it is going to add $4 trillion to the deficit by giving people their money back, along with cutting waste, fraud, and abuse that we did in this bill.

They are citing the same organization that the last time we gave families more of their hard-earned money back, that same group, CBO, said, oh, it is going to add $1.5 trillion to the deficit.

Mr. Speaker, we actually have the numbers now, and CBO was just a little bit off. The same people they cite as Gospel on $4 trillion said that we were going to add $1.5 trillion to the deficit back then. Do you know how much they were off by, Mr. Speaker? The numbers are in. They were off by $1.5 trillion.

They have lost their credibility. The Office of Management and Budget actually came out and said that the One Big Beautiful Bill Act would reduce the deficit by $1.4 trillion. They don't want to talk about that because every Democrat voted no. Every Democrat voted against, by the way, reforming and revamping America's air traffic control system, which was in that bill. Every Democrat voted no.

Every American family wants that air traffic control system reformed. They sure want that tax relief. Those small businesses want to be able to get back up on their feet, and they will be able to because House Republicans said we are going to just focus on doing the work of the American people. Anybody that just wants to go root for failure and continue to try to keep inflation high, interest rates high, and vote ''no'' on every bill that puts power back in the pockets of families, let them have to answer for that back home, Mr. Speaker.

We are going to keep working. This bill tonight is part of continuing that trend of getting spending under control. Does it answer all the problems? No. I would say $9 billion is a good start. Hopefully, we do more things like this, but they are going to come up here and talk about everything other than this bill because they are all going to vote ''no.''

I think it is important to know, Mr. Speaker, what they are going to vote ''no'' against. Let's talk about what is in the bill.

□ 2240

They are going to be voting against $6 million that was spent for net zero cities in Mexico, and $8 million for the anti-Israel U.N. Human Rights Council, a group that is anti-Israel. Why should $8 million of American tax dollars that are being borrowed from other countries be going to that organization? How about we actually get spending under control?

$300,000 was to hold a Pride parade in Lesotho. If Lesotho wants to hold a Pride parade, let them do it with their tax dollars, not with American tax dollars.

$1 million was for voter ID in Haiti. This is rich. They are angry that we are cutting that money off, but those same Democrats who are going to vote ''no'' on that will oppose voter ID in America. They are okay with voter ID in Haiti, but they are against it in America.

I will continue.

They keep talking about Sesame Street. $3 million was going to Iraqi Sesame Street. Again, if the people in Iraq want to have Sesame Street on TV, let them go do it. How about if they do it with their own tax dollars, not with American tax dollars? Better yet, they probably can get it put on one of the many options that the private sector would have, just like here in America. We have thousands of private-sector options to watch any kind of show you would want. Anybody in America can watch all of that.

$33,000 was for ''Being LBGTQI in the Caribbean.'' That is what we are cutting, and every Democrat will vote against that cut.

$643,000 was for LGBTQI programs in the Western Balkans. Mr. Speaker, every Democrat is going to vote against that cut and start talking about, oh, my God, the world is going to end, and that we won't even be able to do diplomacy because we are not going to be spending taxpayer dollars to have an LGBTQI program in the Western Balkans. I think our relations with the Western Balkans will be just fine if we save that taxpayer money and try to get spending under control in Washington. They don't want to do it. At least we do.

$5.1 million was to strengthen the resilience of lesbian, gay, bisexual, transgender, intersex, and queer global movements. I don't know what those global movements are. I think they can do that without taxpayer money. Then, of course, there was funding drag shows in Ecuador.

The list goes on and on, Mr. Speaker.

Let's finally get control over waste, fraud, and abuse. We started it in the One Big Beautiful Bill Act. We are continuing it here, and we are going to continue it through the appropriations process.

If Democrats want to vote ''no,'' that is their prerogative. They have become the party of socialists. Let them vote that way.

We are going to fight for those hard-working families who want to get our great country back on track.

Let's pass this bill, keep moving, and keep working toward a better, stronger America.

Mr. MCGOVERN. Mr. Speaker, let me go back to something the gentleman said in his long and rambling speech.

He talked about a coverup. Let me just say to him, who is doing the coverup? You guys are in charge. You control the White House. You control the House. You control the Senate. Get a grip on reality, for God's sake.

Either you don't want to know the truth because you have been conned by Trump that there is nothing in the files, or you are afraid that there might be something in the files. You are in charge.

By the way, I was hoping the majority leader would tell us when he is going to schedule the vote on his meaningless bill on the Epstein files, but I think we will have to wait until he gets back on the floor.

Mr. Speaker, I yield 3 minutes to the gentlewoman from Connecticut (Ms. DELAURO), the distinguished ranking member of the Committee on Appropriations.

The SPEAKER pro tempore. Members are reminded to direct their remarks to the Chair.

Ms. DELAURO. Mr. Speaker, I remain strongly opposed to this rescissions bill, which is a rubberstamp on stealing from the American people.

Since taking office, the Trump administration has stolen funds appropriated by the Congress, passed by Republicans and Democrats in the House and Senate, and signed into law by the President of the United States, upending the separation of powers and our constitutional order.

This rescissions bill is another effort to subvert the Congress' power of the purse. That is precisely what they are trying to do. For what ends? To hand billionaires and the biggest corporations that already pay little or no taxes a massive tax break and, ultimately, to embrace privatization; to give the biggest companies unchecked power to rig the economy against the middle class, the working class, and vulnerable people; and to ensure the American people have no faith in their government.

This bill will shut down rural television and radio stations, cutting off coverage of local news, eliminating emergency information like severe weather alerts, jeopardizing access to PBS KIDS, children's programs like Sesame Street—yes, Sesame Street.

This bill rips lifesaving support away from hungry, displaced, and sick people in developing countries and conflict zones and will end programs that prevent conflict and pandemics.

This bill abandons the people of Ukraine while they resist Putin's tyranny.

This bill puts America last.

When we retreat from the world diplomatically and through our assistance to vulnerable people, America will be alone without allies in a less stable world without the support of the international community.

Do you know who will come out ahead? China, Russia, Iran.

All of this is being done in the name of combating waste. I will tell you what waste is: 500 tons of food grown by American farmers destroyed at a cost of $130,000 to American taxpayers because of the chaos caused by dismantling USAID. It was left there to expire.

This is the bill to help Republicans claim that they are practicing fiscal responsibility while concealing that what they are doing is ripping health insurance away from at least 17 million Americans in order to make billionaires even more rich, and they increase the debt by $4 trillion.

How dare they talk about the deficit when they have just increased it? They are not addressing the cost of living in this country, the single biggest issue. They are making it worse.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. MCGOVERN. Mr. Speaker, I yield an additional 30 seconds to the gentlewoman from Connecticut.

Ms. DELAURO. This bill codifies the right of the Trump administration to steal from vulnerable American communities, children, and the global poor for the sake of handing even more money to billionaires.

Congress needs to reassert its role. Fight for the middle class, the working class, the vulnerable, not to protect the interests of billionaires and big corporations.

I strongly oppose this bill. It forfeits our global leadership, undermines our national security, and steals from the American people.

Mr. Speaker, I urge my colleagues to vote ''no.''

Ms. FOXX. Mr. Speaker, I yield 2 minutes to the gentleman from North Carolina (Mr. HARRIS).

Mr. HARRIS of North Carolina. Mr. Speaker, if this $9 billion House rescissions package doesn't reach President Trump's desk, Congress will have blown the political opportunity of a lifetime.

Mr. Speaker, I rise today with a simple message to my colleagues: This is a baby step, but if we don't take it, we are not living up to our promises. We all ran on fiscal responsibility, so let's be responsible now and for future rescission packages.

This is low-hanging fruit in the eyes of America, but it breaks the cycle of spending without accountability. It is proof that Congress can and will act responsibly when it wants to.

When the American people put President Trump in office, they demanded lasting changes to a bloated Federal Government. We must not let them down.

Mr. MCGOVERN. Mr. Speaker, the gentleman voted for the big, ugly bill and added $4 trillion to the debt.

Mr. Speaker, I yield 1 minute to the gentlewoman from New Mexico (Ms. LEGER FERNANDEZ), a distinguished member of the Rules Committee.

Ms. LEGER FERNANDEZ. Mr. Speaker, Republicans are destroying that which is good and kind in America. Abraham Lincoln said that America is ''the last best hope of Earth.''

Our public radio and TV and our work across the globe for public health and peace are what is the best of America. They are taking Elmo off the air because they gave billionaires a tax break. They are defunding Tribal radio and rural broadcasting while Trump

burns through $56 million of taxpayer money on golf and throws himself a $45 million birthday parade.

Republicans are engaged in waste, fraud, and abuse. That is the definition of it. That is the definition of destruction, deception, and corruption.

The bill doesn't protect Tribal broadcasting, doesn't protect emergency alerts, and doesn't protect the working families who rely on public media for news, safety, and education.

Republicans are eating your public programs to serve caviar to their donors. The public will remember who stood with Big Bird and who strangled him.

□ 2250

Ms. FOXX. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, give me a break. Republicans are finally offering taxpayers relief from years of spending from Democrats. Again, with President Biden they expanded the Federal Government with an unprecedented $11 trillion in spending, $6 trillion of which has been added to the national debt. It needs to end. We voted to end it in H.R. 1. We are ending it in this package here today, and we won't stop fighting for taxpayers.

Mr. Speaker, I yield 2 minutes to the gentleman from Pennsylvania (Mr. MEUSER).

Mr. MEUSER. Mr. Speaker, I thank Chairwoman FOXX very much for her leadership.

Mr. Speaker, let's set something straight about tax cuts, so-called, for billionaires. There are fewer than 800 billionaires in the United States of America. We kept taxes low for over 160 million Americans, and the Democrats all voted to increase taxes on 160 million Americans. As a matter of fact, Mr. Speaker, most of those billionaires—over 70 percent—are huge Democratic donors.

During President Trump's first term, we had progrowth policies, a booming economy, and revenues increased. Then the Biden administration accelerated the deficit by those in the administration, by the way, who referred to themselves as the Politburo who were actually running the administration.

Service on the debt alone increased during that time from $400 billion in 2020 to nearly $1 trillion last year. That is why we must rein in irresponsible agencies. They have been taken over by ideologues, Mr. Speaker, doing things that are simply not in the interest of the people of the United States.

USAID has done some good things, but they have also done things that were an enormous waste, totally inappropriate, and, in fact, they lost the trust of the American people. Agencies like this need to be reformed. The American people aren't going to put up with it anymore.

Why is the government still funding public television when most people have hundreds of channels, as has been mentioned, to watch their news or whatever they want to watch? Is it just because it has been around for 50 years? That is not reason enough.

Unless we want to pass along $37 trillion, and climbing, of debt to our children, we have to start spending money on the must-haves, not on the nice-to-haves. These stations are not only nice-to-have to some, they are not-nice-to-have to most, and they are certainly not must-haves.

Mr. Speaker, let's pass this rescissions package. Let's get on our way to having some accountability for the American people and codify President Trump's spending reductions into law.

Mr. MCGOVERN. Mr. Speaker, according to CBO, the top 1 percent get 22 percent of the tax cuts. The top 20 percent get 66 percent of the tax cuts. Only in a Republican mind would that be considered fair.

I yield 1 minute to the gentleman from Colorado (Mr. NEGUSE), a distinguished member of the Rules Committee.

Mr. NEGUSE. Mr. Speaker, only in Washington, D.C., could politicians come to the floor and brag about cutting $9 billion from rural radio stations while 2 weeks ago they voted to increase the deficit by $4 trillion. Spare us these lectures.

For years, Republicans have lectured us and the country about so-called fiscal responsibility, the deficit, the debt, and then they have the audacity to increase the deficit by $4 trillion to pay for tax cuts for the 800 billionaires that my Republican colleague from Pennsylvania is so carefully tracking. It is shameful.

This bill, make no mistake, Mr. Speaker, is a war on rural America. They are closing rural hospitals by virtue of the bill they passed 15 days ago. Now they will close rural radio stations in the chairwoman's district in North Carolina and in my State, Colorado, the western part of my State that I have the privilege of representing. There are rural radio stations across the country that help constituents during wildfires and during floods. It is shameful. It should be rejected, Mr. Speaker.

Ms. FOXX. Mr. Speaker, I yield 1 minute to the distinguished gentleman from Michigan (Mr. WALBERG), chairman of the Education and Workforce Committee.

Mr. WALBERG. Mr. Speaker, the Biden administration's reckless spending caused rampant inflation, burdening workers, families, farmers, and small businesses, unless you believe the spin that continues tonight. I don't think America is believing it.

After passing the largest savings in America's history through the One Big Beautiful Bill Act earlier this month, the Rescissions Act builds on House Republicans' unprecedented success in reining in wasteful spending and the President's willingness to not spend everything that we give him. That is unusual.

The list of egregious foreign aid projects is endless. Here are just a few: $3 million for Iraqi Sesame Street, $18 million to improve gender diversity in the Mexican street lighting industry, $2.5 million to teach children how to make environmentally friendly reproductive health decisions, whatever that means.

This abuse of taxpayer dollars must end. The Rescissions Act would prioritize the needs of Americans over everyone else.

The SPEAKER pro tempore. The time of the gentleman has expired.

Ms. FOXX. Mr. Speaker, I yield an additional 30 seconds to the gentleman from Michigan.

Mr. WALBERG. The Rescissions Act would prioritize the needs of American people instead of funding far-left foreign initiatives.

Mr. Speaker, I urge my colleagues to pass this bill, which represents a vital step in reining in wasteful spending and Big Government abuse of the taxpayer.

Mr. MCGOVERN. That was riveting.

Mr. Speaker, I yield 2 minutes to the gentlewoman from California (Ms. PELOSI), the Speaker Emerita.

Ms. PELOSI. Mr. Speaker, I thank the gentleman for yielding and for his leadership. We are so proud of him.

Now, tonight is a dangerous night for our country. I am not even talking about the defense bill and whether we agree or disagree on that. I am talking about what is happening in this Rescissions Act.

Don't take it from me. Just take it from Navy Admiral William McRaven, who was a Navy SEAL and a 4-star admiral. He warned that cutting State Department USAID will put every American at risk.

This is the quote: ''This is no time to weaken any element of America's power. The dismissal of highly trained diplomats at the State Department and the dismantling of USAID will jeopardize national security and make the military's job much more difficult. Our national security has never depended on military strength alone; rather, it relies on collaboration with a strong Foreign Service and diplomatic corps,'' and I am adding with our USAID.

In this bill, over $8 billion is taken away from what we do to alleviate poverty in the world, to lessen things like HIV and AIDS and other diseases, which have an impact on global health, by stopping the funding for the World Health Organization.

I gave praise to President Bush when he put forth PEPFAR. We worked closely with him to fund it as appropriators. There were 25 million people's lives saved, but we are saying the alleviation of poverty and the eradication of disease is no longer the point. They did this in the 1990s, too, when they took control of the House. Do you know what they did? They opened the door for China and Russia to go into these countries, have geopolitical victories funded by our money that they made in trade against us, speaking of China, and then, and then us walking

out the door. This is absolutely a shame, an absolute shame.

Mr. Speaker, I urge everyone to vote ''no'' on this and understand what this is.

□ 2300

Ms. FOXX. Mr. Speaker, I yield 1½ minutes to the gentleman from California (Mr. MCCLINTOCK), who is one of our most eloquent speakers.

Mr. MCCLINTOCK. Mr. Speaker, we have had a great debate between deficits and taxes, but deficits and taxes are two sides of the same coin. To spend a dollar, Mr. Speaker, you must either tax it now or borrow it now and tax it later. Taxes and deficits are both driven by spending.

This bill rescinds some of the most stupid spending in the entire Federal Government. These are the kindest cuts of all: subsidies for state media and grants to corrupt NGOs for outrageous foreign propaganda.

Mr. Speaker, $9 billion comes to about $70 for an average American family.

Mr. Speaker, do you think they prefer to spend that $70 on a new pair of shoes for their child or for ''girl-centric climate change programs'' in Brazil?

That is the choice.

Congress squanders hundreds of billions of dollars annually on destructive subsidies and useless grants like these. Let us finally take this first, small step toward the solvency of our Nation, relief for our people, and redemption for our Congress.

Mr. MCGOVERN. Mr. Speaker, I yield 2 minutes to the gentleman from Maryland (Mr. RASKIN), who is the distinguished ranking member of the Committee on the Judiciary.

Mr. RASKIN. Mr. Speaker, I thank Mr. MCGOVERN for yielding.

The American people across the political spectrum are now demanding the release of the complete Epstein file. This is what President Trump and Vice President Vance and the whole Trump team was demanding up until the last couple of weeks when President Trump suddenly decided he wanted to sweep the whole thing under the rug. There are now two approaches in Congress.

We have got a bipartisan, binding law which has teeth to compel disclosure of all the relevant material that America wants to see, but on the other hand, the Republicans in the Rules Committee just unveiled a meaningless, hortatory, fig leaf, Swiss cheese resolution that has no teeth at all. It doesn't even have dentures. It is all cavities what they have offered.

We have got a choice now. We can go with a bill that would actually have teeth for enforcement or a meaningless, hortatory resolution that has all the legal force of National Chrysanthemum Month.

Now, the original Khanna-Massie bill asks for comprehensive release from the Attorney General, and it is binding, which means if they don't turn it over, then we can go to court. It is comprehensive. It includes everything from flight logs and travel records to individuals, including government officials named or referenced, in connection with all of Epstein's criminal activities, all of the entities involved. We want to know about all the immunity deals.

It even tried to deter and account for destruction, deletion, alteration, misplacement, or concealment of documents and records. All of that falls out of this fraudulent resolution they have thrown up at the last minute here.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. MCGOVERN. Mr. Speaker, I yield an additional 30 seconds to the gentleman from Maryland.

Mr. RASKIN. There is nothing in there except for a series of qualifying weasel words which are added to give complete, unilateral, and subjective discretion to the Attorney General to decide what should be in and what should be out. It starts off by saying whereas—our resolution says: ''All documents, records, and communications.'' Theirs says: ''All credible documents, records, and communications.''

Well, who is going to decide that?

It will be Attorney General Bondi in conjunction with Donald Trump who today said that a letter that he wrote to Jeffrey Epstein on his birthday which was published and which has all the indicia of credibility is not credible. That would not be included.

Let's release the real Epstein file.

Ms. FOXX. Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. ROY), who is a Rules Committee member.

Mr. ROY. Mr. Speaker, I thank the chairwoman for yielding.

So here we are. Democrats couldn't seem to find a single thing to say about Epstein when President Biden was in office, but now they want to make this the centerpiece of their entire conversation.

The fact of the matter is right now they know it is true, and right now what they don't want to do is have the American people focusing on the Republicans in Congress who are doing the thing they sent us here to do, which is end wasteful spending, to stop the ridiculous spending of a bureaucratic government that has been weaponized against the people. These are dollars that are being used and wasted and sent around the world for $32,000 for transgender comic books in Peru. That is how they want to use taxpayer money.

We are over here trying to make sure we are saving that money instead of having $6 million to fund tourism in Egypt or $2 million for sex changes and LGBT activism in Guatemala.

Why should the people of Texas be paying for that instead of paying to clean up the flood in Texas?

The fact of the matter is the people of Texas want their money to be used for the things they care about.

We have listened to the minority leader come to the floor and lecture us about the virtues of public radio and public broadcasting.

Yet, nevertheless, the truth is it took NPR through Texas public radio 19 hours to post anything about the flooding on its social media pages after the floods hit in Texas.

What was NPR and Texas public radio doing that morning?

They weren't breaking to talk about what was happening in Texas. They were running ads saying people should call Congress to fund them, but the private stations in Texas were breaking to release reports and tell people what to do because that is what private stations can do. They can respond to the people because they are locally owned, they are locally run, and they are not run by bureaucrats from this town.

The fact is, we are going to save money for the American people and end the absurdity of this leftist propaganda being put under public radio.

Mr. MCGOVERN. Mr. Speaker, my head is about to explode. That guy just voted to increase the debt ceiling by $5 trillion, and he is trying to blame Democrats for Jeffrey Epstein.

Who was President when Jeffrey Epstein died in his cell?

It was Donald Trump.

Who is in charge now and blocking the release of the files?

It is Donald Trump, so please.

Mr. Speaker, I yield 1½ minutes to the gentlewoman from Florida (Ms. LOIS FRANKEL).

Ms. LOIS FRANKEL of Florida. Mr. Speaker, we are witnessing a reckless, cruel, and shortsighted assault on American values, global leadership, and our constitutional responsibilities.

Let's be clear. This is not a budget fix. It is a dangerous retreat from our role in the world. Foreign aid is just a sliver of our budget, but it saves lives. It prevents wars, and it opens markets for American businesses. It is a smart investment in our national security.

As we speak, Mr. Speaker, there are millions of dollars of food that has been left rotting over in ports, leaving massive numbers of people in conflict zones starving. This is all due to the chaos and mismanagement of the White House.

This is not fiscal responsibility. It is moral failure. This bad bill pulls millions of children out of school, leaves small farmers without tools, wipes out access to clean water, and cuts off contraception for women and girls.

Meanwhile, our adversaries are stepping in. China and Russia are seizing influence as we retreat. This bill cedes Congress' power of the purse giving one man the authority to cancel funds we have already approved.

I call us the disappearing Congress, and that is not how democracy works. It is how autocracy begins. Vote ''no'' on this very bad bill.

Ms. FOXX. Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. GILL).

Mr. GILL of Texas. Mr. Speaker, tonight is the culmination of months of work from House Republicans to defund leftwing state-sponsored media outlets like NPR.

During that process, we got to bring in leadership from these outlets like the CEO of NPR, Katherine Maher, to testify before the House Oversight and Government Reform Committee.

I got to ask her about a lot of her past public statements. It turns out she has a prolific Twitter history. She has written extensively about every single major woke buzzword that you can think of, Mr. Speaker, including ''the ravages of late-stage capitalism,'' ''structural privilege,'' and her own ''cis White mobility privilege.''

Mr. Speaker, most Americans, including myself, didn't know what that meant until reading this.

She wrote about the ''politics of representation,'' and, of course, ''toxic masculinity.''

She also wrote about herself, about one of her major pet peeves, which is whenever she goes on an airplane and finds out that the demographics are ''usually > 80% male, usually white.''

□ 2310

Mr. Speaker, that is flagrantly racist. She has written about how: ''I do wish Hillary''—meaning Hillary Clinton—''wouldn't use the language of 'boy and girl'—it's erasing language for non-binary people.''

Mr. Speaker, this is the person running the outlet the other side of the aisle wants our tax dollars to subsidize.

Of course, she has written extensively about race, about how America is ''addicted to white supremacy,'' how she grew up ''feeling superior'' because she is White, how ''America begins in black plunder and white democracy.'' Mr. Speaker, this is directly from her own Twitter account.

Mr. Speaker, nonpartisan news outlets are not run by lunatics like this. Republicans are done using the power that voters give us to fund Democrat media machines. We are playing to win now.

Mr. MCGOVERN. Mr. Speaker, that guy voted to add $4 trillion to the debt, too.

Mr. Speaker, I yield 2 minutes to the gentleman from New York (Mr. MEEKS), the distinguished ranking member of the Committee on Foreign Affairs.

Mr. MEEKS. Mr. Speaker, this rescissions package is disastrous. It cuts $8 billion in lifesaving and critical U.S. foreign assistance, including food assistance, access to clean water, and lifesaving medicine.

Let's stop pretending that this is about fiscal responsibility. This package is not about saving money. It is about selling a con yet again to the American people.

The President claimed the United States was wastefully sending condoms to Gaza. The fact is that they were sending them to Mozambique to stop the spread of HIV and AIDS.

The President claimed that there was a wasteful $21 million grant to India. The fact is the grant never existed.

It goes on from there.

The President claimed that there was a national emergency in Brazil to justify slapping a 50 percent tariff on a country where the U.S. has run a trade surplus for over a decade. There is no emergency.

He shouted about the Epstein files, and now his administration is saying there are no such files.

This all, once again, is to serve as a con to the American people.

Let's be clear about what the Republicans are voting to defund today: programs that help educate women and girls, programs that fight deadly diseases.

Food, clean water, humanitarian relief for the world's most vulnerable—are we really going to take these things away from the most vulnerable with it? America's credibility and global leadership must not yield to this con.

Let's get to the real waste. The real waste is incinerating 500 metric tons of expired aid sitting in warehouses meant to feed suffering children in Afghanistan and Pakistan.

The real fraud is telling the American people that these cuts will help them, and they won't.

The real fraud is letting Elon Musk and his DOGE minions wreak havoc at State and USAID after the President fired the independent watchdogs at those agencies.

This is not how you run and lead a country. This is how you run a scam on the American people. Let's call this for what it is. It is a con.

Republicans claim that they are doing this to save taxpayer money, but as Mr. MCGOVERN says continually, you cut $8 billion in Foreign Service and then you add over $3 trillion or $4 trillion to the American debt. It is a con.

Ms. FOXX. Mr. Speaker, I yield myself such time as I may consume.

Here we go again, not talking about the subject at hand but trying to distract people. It is the same old, tired song and dance. Our friends revert to demonizing and misrepresenting the big, beautiful bill. They say you can't make this stuff up, but that is what they do.

We are having one success after another, and it is driving our friends across the aisle to distraction.

When they had full control of the levers of power just a few years ago, they expanded the Federal Government with an unprecedented $11 trillion in spending, $6 trillion of which has been added to the national debt.

What is most revealing is their refusal to articulate a single program, a single outlay, or a single area of Federal spending they want to reduce on behalf of taxpayers. They want every single dime of taxpayer money, and they don't like the historic cutting of $1.6 trillion in waste, fraud, and abuse in H.R. 1. They can't stomach the $9 billion here in this discretionary cuts to wasteful spending. There is no upper limit to the amount of taxpayer dollars they will throw at their government-centered schemes.

How about a million? Can democrats articulate a cut to Federal spending in the amount of a million? How about in the thousands, like the $500,000 for electric buses in Rwanda or the $8,000 for promoting vegan food in Zambia that we are cutting now? They can't do it, and that is very unfortunate because it has dire consequences for our Nation.

The fact is, we can't work in a bipartisan fashion to cut Federal spending anymore, and that wasn't always the case. Our colleagues are addicted to a tax-and-spend formula that has been bankrupting our government.

But we won't stand idly by. We won't wait on Democrats to take their heads out of the sand or wake up from this woke-induced coma. We are taking bold action at every level and in every facet of the Federal Government to get our Federal spending under control. We will do it $8,000 at a time when we have to or $1.6 trillion at a time when we can. We have been given this mandate, and the American people are counting on us.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield 1 minute to the gentleman from New York (Mr. GOLDMAN).

Mr. GOLDMAN of New York. Mr. Speaker, I rise today in strong opposition to President Trump's reckless and destructive rescissions bill.

The proposed $8 billion cut to global aid programs is not only a shortsighted betrayal of American leadership, but it is going to result in millions of people getting sick and losing their lives.

If we continue to retreat from helping countries around the world as this administration is doing, our adversaries like China will fill the vacuum. That makes us less powerful and less safe.

It is not just lives at risk abroad. Lives here will be lost, too. By defunding the Corporation for Public Broadcasting, millions of Americans will no longer have access to our national emergency weather alert system. Simply put: Americans will die because of these cuts.

In addition to gutting one of the last vestiges of independent journalism, which is only biased if you think the truth is biased, the Republicans are also defunding free children's educational programs enjoyed by millions around the country.

Mr. Speaker, I urge my colleagues to vote ''no.''

Ms. FOXX. Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield 1 minute to the gentlewoman from North Carolina (Ms. ADAMS).

Ms. ADAMS. Mr. Speaker, I thank the gentleman for yielding.

I rise today in opposition to the rule to consider the rescissions package of

2025 and its reckless cuts to public broadcasting.

It is not hyperbole to say that public broadcasting saves lives during emergency situations and natural disasters. My State knows that firsthand.

When Hurricane Helene devastated western North Carolina last year, public broadcasting was there when traditional communication failed. Widespread power, cellular, and internet outages meant that, for thousands of North Carolinians, public radio was how they received their news.

Our local public broadcasting stations provided lifesaving updates for our residents, broadcasted emergency resource information like food and water and distribution, and gave a direct line for North Carolinians to speak to their communities.

Slashing public broadcasting funding will limit their ability to operate during crises and delay critical information to the people who need it most.

Make no mistake: Without public broadcasting, we would have seen more lives lost in Helene. We need to protect these stations so we can protect our communities.

□ 2320

Ms. FOXX. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, let's talk about the Public Broadcasting Act of 1967, which mandates that all public broadcasting programs must demonstrate strict adherence to objectivity and balance in all programs. There are a myriad of statistical studies that prove that they are not.

Perhaps most damning for NPR is the fact that it had to utilize a $1.9 million Federal grant to ''improve objectivity and diverse viewpoints'' last year. This is despite the fact that NPR's CEO recently testified, as our colleague said, that she didn't witness any bias at the organization. Then why the need for the Federal grant?

The problem with the Public Broadcasting Act is that it lacks an enforcement mechanism, so we will go with our constitutional prerogatives here to enforce the law. It starts with the rescission of funding.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield 1 minute to the gentlewoman from New Mexico (Ms. STANSBURY).

Ms. STANSBURY. Mr. Speaker, you guys are so weak that you won't even vote to release the files. It is 11:20 p.m. in the middle of the night, and once again, you are trying to jam your dark agenda through Congress in the dark of night.

It makes me wonder: Have you even read this bill? I mean, really, because this bill rescinds $9 billion for international aid, public health, and public media. It will make America less safe. It will undermine our national security. It will threaten lives across the world and kill children.

On top of that, it undermines our Constitution, the power of the people, the power of the purse, and the separation of powers in our Constitution, as Russell Vought, OMB, and the architects of Project 2025 are trying to use this rescission bill to undermine the power of Congress.

That is why we will vote ''no,'' a ''hell no'' to the blatant power grab that it represents in the face of the chaotic and corrupt administration and Congress that is stealing from our people.

The SPEAKER pro tempore. Members are reminded to direct their remarks to the Chair.

Ms. FOXX. Mr. Speaker, we are far from weak. We are doing what the American people want us to do, and that is to let them keep more of their money and not take it and let unnamed bureaucrats spend it on their behalf.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, may I ask how many more speakers the gentlewoman has.

Ms. FOXX. Mr. Speaker, I am not quite ready to close, but will be shortly.

Mr. MCGOVERN. Mr. Speaker, I reserve the balance of my time.

Ms. FOXX. Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. ARRINGTON), the distinguished chairman of the Budget Committee.

Mr. ARRINGTON. Mr. Speaker, the era of woke and wasteful spending in the people's government is over, and it is sad to watch this last-ditch effort by my Democratic colleagues to fight for status quo. The status quo is a cesspool of these leftist ideological programs that they would say is soft power for America's interests or that they would say are lifesaving services.

Mr. Speaker, the American people rejected this radical agenda. They rejected the failed policies of my Democratic colleagues and their unbridled spending that is bankrupting this country.

They sent President Trump here with a mandate and unified Republican leadership to restore competent leadership, commonsense policies, and a commitment to America First. There is nothing common sense or America First about transgender comic books in Peru and all the other woke and wasteful programs that my Democratic colleagues are fighting to defend.

Mr. Speaker, I am thankful that we have a President who has heard from the people and is hell-bent on rightsizing this bureaucracy, reining in this waste, and restoring fiscal sanity here in Washington, D.C., not only for the taxpayers of today but for the future, for prosperity, for freedom, and for our children.

This is why my colleagues are going to wander in the wilderness for years to come. While that might benefit us politically, it is sad for my country. I am sad as an American to see the defense of these crazy, divisive, and dangerous ideological programs that my taxpayers in west Texas are spending their hard-earned money for.

Mr. Speaker, I encourage and urge my colleagues on both sides to support this rescissions package.

Mr. MCGOVERN. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, before I close, let's talk about what is actually in front of us.

This rescissions package is a joke. Republicans passed a massive tax giveaway for the rich, one of the most expensive in history. That giveaway was 450 times the size of these rescissions, and every single Republican who spoke tonight voted to add $4 trillion to the debt—every single one of them.

This isn't even good policy or process. It is rushed. It is sloppy. Even Republicans in the Senate are warning about the consequences, but the House majority doesn't care. They are more interested in headlines than outcomes. Once again, it is everyday people who pay the price.

Mr. Speaker, let us end where we started: the Epstein files.

Republicans can take a real vote today, a vote that will put them on the side of truth and justice, a vote to tell victims that we hear you, we see you, and we will not protect the powerful at your expense.

Instead, they are choosing cowardice. They are choosing obedience to Trump, so they cooked up this nonbinding resolution, a press release, pretending to do something.

Let's be clear: Republicans can either vote to release the files or vote to bury them. If every Republican votes to block our attempt to release the records, they are telling Epstein's victims that they don't matter as much as their political convenience. That should disgust every single one of us.

This place deserves better. This country deserves better. The victims, most of all, deserve the truth.

Release the Epstein files. Release the Epstein files. Release the files.

Mr. Speaker, I yield back the balance of my time.

Ms. FOXX. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, all night, our colleagues across the aisle have been talking about what we are not here to discuss, which is this rescissions package. They keep trying to distract the American people with things that we are not here to talk about.

The American people do not want to see their hard-earned tax dollars being squandered, not one bit. At its core, H.R. 4 is about shutting off the spigot of wasteful money, clawing back the tax dollars of Americans, and ensuring that wasteful and unnecessary spending is uprooted and left to wither and die.

It is just that simple. That is all there is to it. With more rescissions packages on the horizon, the President and Speaker have indicated that the best is yet to come.

We are doing our job to help save the American taxpayers' dollars. We know how hard it is to earn those dollars, and we don't want to see them squandered.

Mr. Speaker, I urge my colleagues to vote ''yes'' on the previous question, ''yes'' on the rule, and ''yes'' on the underlying bill.

The material previously referred to by Mr. MCGOVERN is as follows:

AN AMENDMENT TO H. RES. 590 OFFERED BY MR. MCGOVERN OF MASSACHUSETTS

At the end of the resolution, add the following:

SEC. 2. Immediately upon adoption of this resolution, the House shall proceed to the consideration in the House of the bill (H.R. 4405) to require the Attorney General to release all documents and records in possession of the Department of Justice relating to Jeffrey Epstein, and for other purposes. All points of order against consideration of the bill are waived. The bill shall be considered as read. All points of order against provisions in the bill are waived. The previous question shall be considered as ordered on the bill and on any amendment thereto, to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary or their respective designees; and (2) one motion to recommit.

SEC. 3. Clause 1(c) of rule XIX and clause 8 of rule XX shall not apply to the consideration of H.R. 4405.

SEC. 4. The Clerk shall transmit to the Senate a message that the House has passed H.R. 4405 no later than one week after passage.

□ 2330

Ms. FOXX. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore (Mr. BOST). The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. MCGOVERN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, the Chair will reduce to 5 minutes the minimum time for any electronic vote on the question of adoption of the resolution.

The vote was taken by electronic device, and there were—yeas 218, nays 211, not voting 3, as follows:

[Roll No. 202]

YEAS—218

Aderholt
Alford
Allen
Amodei (NV)
Arrington
Babin
Bacon
Baird
Balderson
Barr
Barrett
Baumgartner
Bean (FL)
Begich
Bentz
Bergman
Bice
Biggs (AZ)
Biggs (SC)
Bilirakis
Boebert
Bost
Brecheen
Bresnahan
Buchanan
Burchett
Calvert
Cammack
Carey
Carter (GA)
Carter (TX)
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crank
Crawford
Crenshaw
Davidson
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Downing
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Evans (CO)
Ezell
Fallon
Fedorchak
Feenstra
Fine
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Fong
Foxx
Franklin, Scott
Fry
Fulcher
Garbarino
Gill (TX)
Gimenez
Goldman (TX)
Gonzales, Tony
Gooden
Gosar
Graves
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Hamadeh (AZ)
Haridopolos
Harrigan
Harris (MD)
Harris (NC)
Harshbarger
Hern (OK)
Higgins (LA)
Hill (AR)
Hinson
Houchin
Hudson
Huizenga
Hunt
Hurd (CO)
Issa
Jack
Jackson (TX)
James
Johnson (LA)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean
Kelly (MS)
Kelly (PA)
Kennedy (UT)
Kiggans (VA)
Kiley (CA)
Kim
Knott
Kustoff
LaHood
LaLota
LaMalfa
Langworthy
Latta
Lawler
Lee (FL)
Letlow
Loudermilk
Lucas
Luna
Luttrell
Mace
Mackenzie
Malliotakis
Maloy
Mann
Massie
Mast
McCaul
McClain
McClintock
McCormick
McDowell
McGuire
Messmer
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Moolenaar
Moore (AL)
Moore (NC)
Moore (UT)
Moore (WV)
Moran
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Onder
Owens
Palmer
Patronis
Perry
Pfluger
Reschenthaler
Rogers (AL)
Rogers (KY)
Rose
Rouzer
Roy
Rulli
Rutherford
Salazar
Scalise
Schmidt
Schweikert
Scott, Austin
Self
Sessions
Shreve
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Stefanik
Steil
Steube
Strong
Stutzman
Taylor
Tenney
Thompson (PA)
Tiffany
Timmons
Turner (OH)
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Weber (TX)
Webster (FL)
Westerman
Wied
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—211

Adams
Aguilar
Amo
Ansari
Auchincloss
Balint
Barragán
Beatty
Bell
Bera
Beyer
Bishop
Bonamici
Boyle (PA)
Brown
Brownley
Budzinski
Bynum
Carbajal
Carson
Carter (LA)
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Cisneros
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Conaway
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dexter
Dingell
Doggett
Elfreth
Escobar
Espaillat
Evans (PA)
Fields
Figures
Fletcher
Foster
Foushee
Frankel, Lois
Friedman
Frost
Garamendi
Garcia (CA)
García (IL)
Garcia (TX)
Gillen
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, V.
Goodlander
Gottheimer
Gray
Green, Al (TX)
Harder (CA)
Hayes
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jacobs
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kamlager-Dove
Kaptur
Keating
Kelly (IL)
Kennedy (NY)
Khanna
Krishnamoorthi
Landsman
Larsen (WA)
Larson (CT)
Latimer
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Liccardo
Lieu
Lofgren
Lynch
Magaziner
Mannion
Matsui
McBath
McBride
McClain Delaney
McClellan
McCollum
McDonald Rivet
McGarvey
McGovern
McIver
Meeks
Menendez
Meng
Mfume
Min
Moore (WI)
Morelle
Morrison
Moskowitz
Moulton
Mrvan
Mullin
Nadler
Neal
Neguse
Norcross
Ocasio-Cortez
Olszewski
Omar
Pallone
Panetta
Pappas
Pelosi
Perez
Peters
Pettersen
Pingree
Pocan
Pou
Pressley
Quigley
Ramirez
Randall
Raskin
Riley (NY)
Rivas
Ross
Ruiz
Ryan
Salinas
Sánchez
Scanlon
Schakowsky
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Simon
Smith (WA)
Sorensen
Soto
Stansbury
Stanton
Stevens
Strickland
Subramanyam
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Tran
Underwood
Vargas
Vasquez
Veasey
Velázquez
Vindman
Wasserman Schultz
Waters
Watson Coleman
Whitesides
Williams (GA)
Wilson (FL)

NOT VOTING—3

Burlison
Green (TN)
Suozzi

□ 2356

Ms. PEREZ changed her vote from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. MCGOVERN. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 216, noes 213, not voting 3, as follows:

[Roll No. 203]

AYES—216

Aderholt
Alford
Allen
Amodei (NV)
Arrington
Babin
Bacon
Baird
Balderson
Barr
Barrett
Baumgartner
Bean (FL)
Begich
Bentz
Bergman
Bice
Biggs (AZ)
Biggs (SC)
Bilirakis
Boebert
Bost
Brecheen
Bresnahan
Buchanan
Burchett
Calvert
Cammack
Carey
Carter (GA)
Carter (TX)
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crank
Crawford
Crenshaw
Davidson
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Downing
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Evans (CO)
Ezell
Fallon
Fedorchak
Feenstra
Fine
Finstad
Fischbach
Fitzgerald
Fleischmann
Flood
Fong
Foxx
Franklin, Scott
Fry
Fulcher
Garbarino
Gill (TX)
Gimenez
Goldman (TX)
Gonzales, Tony
Gooden
Gosar
Graves
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Hamadeh (AZ)
Haridopolos
Harrigan
Harris (MD)
Harris (NC)
Harshbarger
Hern (OK)
Higgins (LA)
Hill (AR)
Hinson
Houchin
Hudson
Huizenga
Hunt
Hurd (CO)
Issa
Jack
Jackson (TX)
James
Johnson (LA)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean
Kelly (MS)
Kelly (PA)
Kennedy (UT)
Kiggans (VA)
Kiley (CA)
Kim
Knott
Kustoff
LaHood
LaLota
LaMalfa
Langworthy
Latta
Lawler
Lee (FL)
Letlow
Loudermilk
Lucas
Luna
Luttrell
Mace

Mackenzie	Nunn (IA)	Smucker
Malliotakis	Obernolte	Spartz
Maloy	Ogles	Stauber
Mann	Onder	Stefanik
Massie	Owens	Steil
Mast	Palmer	Steube
McCaul	Patronis	Strong
McClain	Perry	Stutzman
McClintock	Pfluger	Taylor
McCormick	Reschenthaler	Tenney
McDowell	Rogers (AL)	Thompson (PA)
McGuire	Rogers (KY)	Tiffany
Messmer	Rose	Timmons
Meuser	Rouzer	Valadao
Miller (IL)	Roy	Van Drew
Miller (OH)	Rulli	Van Duyne
Miller (WV)	Rutherford	Van Orden
Miller-Meeks	Salazar	Wagner
Mills	Scalise	Walberg
Moolenaar	Schmidt	Weber (TX)
Moore (AL)	Schweikert	Webster (FL)
Moore (NC)	Scott, Austin	Westerman
Moore (UT)	Self	Wied
Moore (WV)	Sessions	Williams (TX)
Moran	Shreve	Wilson (SC)
Murphy	Simpson	Wittman
Nehls	Smith (MO)	Womack
Newhouse	Smith (NE)	Yakym
Norman	Smith (NJ)	Zinke

NOES—213

Adams	Garamendi	Moulton
Aguilar	García (CA)	Mrvan
Amo	García (IL)	Mullin
Ansari	García (TX)	Nadler
Auchincloss	Gillen	Neal
Balint	Golden (ME)	Neguse
Barragán	Goldman (NY)	Norcross
Beatty	Gomez	Ocasio-Cortez
Bell	Gonzalez, V.	Olszewski
Bera	Goodlander	Omar
Beyer	Gottheimer	Pallone
Bishop	Gray	Panetta
Bonamici	Green, Al (TX)	Pappas
Boyle (PA)	Harder (CA)	Pelosi
Brown	Hayes	Perez
Brownley	Himes	Peters
Budzinski	Horsford	Pettersen
Bynum	Houlahan	Pingree
Carbajal	Hoyer	Pocan
Carson	Hoyle (OR)	Pou
Carter (LA)	Huffman	Pressley
Casar	Ivey	Quigley
Case	Jackson (IL)	Ramirez
Casten	Jacobs	Randall
Castor (FL)	Jayapal	Raskin
Castro (TX)	Jeffries	Riley (NY)
Cherfilus-McCormick	Johnson (GA)	Rivas
	Johnson (TX)	Ross
Chu	Kamlager-Dove	Ruiz
Cisneros	Kaptur	Ryan
Clark (MA)	Keating	Salinas
Clarke (NY)	Kelly (IL)	Sánchez
Cleaver	Kennedy (NY)	Scanlon
Clyburn	Khanna	Schakowsky
Cohen	Krishnamoorthi	Schneider
Conaway	Landsman	Scholten
Correa	Larsen (WA)	Schrier
Costa	Larson (CT)	Scott (VA)
Courtney	Latimer	Scott, David
Craig	Lee (NV)	Sewell
Crockett	Lee (PA)	Sherman
Crow	Leger Fernandez	Sherrill
Cuellar	Levin	Simon
Davids (KS)	Liccardo	Smith (WA)
Davis (IL)	Lieu	Sorensen
Davis (NC)	Lofgren	Soto
Dean (PA)	Lynch	Stansbury
DeGette	Magaziner	Stanton
DeLauro	Mannion	Stevens
DelBene	Matsui	Strickland
Deluzio	McBath	Subramanyam
DeSaulnier	McBride	Swalwell
Dexter	McClain Delaney	Sykes
Dingell	McClellan	Takano
Doggett	McCollum	Thanedar
Elfreth	McDonald Rivet	Thompson (CA)
Escobar	McGarvey	Thompson (MS)
Espaillat	McGovern	Titus
Evans (PA)	McIver	Tlaib
Fields	Meeks	Tokuda
Figures	Menendez	Tonko
Fitzpatrick	Meng	Torres (CA)
Fletcher	Mfume	Torres (NY)
Foster	Min	Trahan
Foushee	Moore (WI)	Tran
Frankel, Lois	Morelle	Turner (OH)
Friedman	Morrison	Underwood
Frost	Moskowitz	Vargas
Vasquez	Wasserman Schultz	Whitesides
Veasey	Waters	Williams (GA)
Velázquez	Watson Coleman	Wilson (FL)
Vindman		

NOT VOTING—3

Burlison	Green (TN)	Suozzi

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 0003

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

SENATE AMENDMENT TO H.R. 4, RESCISSIONS ACT OF 2025

Pursuant to the adoption of House Resolution 590, the Senate amendment to H.R. 4 is considered as agreed to.

The text of the Senate Amendment is as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Rescissions Act of 2025''.

SEC. 2. RESCISSIONS OF BUDGET AUTHORITY.

(a) IN GENERAL.—Pursuant to the special message transmitted by the President on June 3, 2025, to the House of Representatives and the Senate proposing the rescission of budget authority under section 1012 of part B of title X of the Congressional Budget and Impoundment Control Act of 1974 (2 U.S.C. 682 et seq.), the rescissions described under subsection (b) shall take effect immediately upon the date of enactment of this Act.

(b) RESCISSIONS.—The rescissions described in this subsection are as follows:

(1) Of the unobligated balances under the heading ''International Organizations—Contributions to International Organizations'' made available by the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2024 (division F of Public Law 118–47), $33,008,764 are rescinded.

(2) Of the unobligated balances under the heading ''International Organizations—Contributions to International Organizations'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $168,837,230 are rescinded.

(3) Of the unobligated balances under the heading ''International Organizations—Contributions for International Peacekeeping Activities'' made available by the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2024 (division F of Public Law 118–47), $203,328,007 are rescinded.

(4) Of the unobligated balances under the heading ''International Organizations—Contributions for International Peacekeeping Activities'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $157,906,000 are rescinded.

(5) Of the unobligated balances in the first paragraph under the heading ''Bilateral Economic Assistance—Funds Appropriated to the President—Global Health Programs'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $500,000,000 are rescinded: Provided, That none of the amounts rescinded under this paragraph shall be from the unobligated balances for the following programs: HIV/AIDS, Tuberculosis, Malaria, Nutrition, or Maternal and Child Health: Provided further, That the preceding proviso does not apply to family planning and reproductive health programs.

(6) Of the unobligated balances under the heading ''Department of State—Migration and Refugee Assistance'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $800,000,000 are rescinded.

(7) Of the unobligated balances under the heading ''Bilateral Economic Assistance—Funds Appropriated to the President—Complex Crises Fund'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $43,000,000 are rescinded.

(8) Of the unobligated balances under the heading ''Bilateral Economic Assistance—Funds Appropriated to the President—Democracy Fund'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $83,000,000 are rescinded.

(9) Of the unobligated balances under the heading ''Bilateral Economic Assistance—Funds Appropriated to the President—Economic Support Fund'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $1,650,000,000 are rescinded: Provided, That none of the funds rescinded under this paragraph shall be from the unobligated balances for assistance to Jordan, Egypt, or the Countering PRC Influence Fund.

(10) Of the unobligated balances under the heading ''Multilateral Assistance—International Financial Institutions—Contribution to the Clean Technology Fund'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $125,000,000 are rescinded.

(11) Of the unobligated balances under the heading ''Multilateral Assistance—Funds Appropriated to the President—International Organizations and Programs'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $436,920,000 are rescinded.

(12) Of the unobligated balances under the heading ''Bilateral Economic Assistance—Funds Appropriated to the President—Development Assistance'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $2,500,000,000 are rescinded: Provided, That none of the funds rescinded under this paragraph shall be from the unobligated balances for Feed the Future Innovation Labs or the Countering PRC Influence Fund: Provided further, That none of the funds rescinded under this paragraph shall affect the administration of United States commodity-based food aid, including the Food for Peace program and the McGovern-Dole International Food for Education and Child Nutrition Program.

(13) Of the unobligated balances under the heading ''Bilateral Economic Assistance—Funds Appropriated to the President—Assistance for Europe, Eurasia and Central Asia'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $460,000,000 are rescinded.

(14) Of the unobligated balances under the heading ''Bilateral Economic Assistance—Funds Appropriated to the President—International Disaster Assistance'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $496,000,000 are rescinded: Provided, That none of the funds rescinded shall affect the administration of United States commodity-based food aid, including the Food for Peace program and the McGovern-Dole International Food for Education and Child Nutrition Program.

(15) Of the unobligated balances under the heading ''United States Agency for International Development—Funds Appropriated to the President—Operating Expenses'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $125,000,000 are rescinded.

(16) Of the unobligated balances under the heading ''Bilateral Economic Assistance—Funds

Appropriated to the President—Transition Initiatives'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $57,000,000 are rescinded.

(17) Of the unobligated balances under the heading ''Bilateral Economic Assistance—Independent Agencies—Inter-American Foundation'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $27,000,000 are rescinded.

(18) Of the unobligated balances under the heading ''Bilateral Economic Assistance—Independent Agencies—United States African Development Foundation'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $22,000,000 are rescinded.

(19) Of the unobligated balances under the heading ''Related Programs—United States Institute of Peace'' made available by the Full-Year Continuing Appropriations Act, 2025 (division A of Public Law 119–4), $15,000,000 are rescinded.

(20)(A) Amounts made available for ''Corporation for Public Broadcasting'' for fiscal year 2026 by Public Law 118–47 are rescinded.

(B) Amounts made available for ''Corporation for Public Broadcasting'' for fiscal year 2027 by Public Law 119–4 are rescinded.

DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2026

The SPEAKER pro tempore. Pursuant to House Resolution 580 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the further consideration of the bill, H.R. 4016.

Will the gentleman from Illinois (Mr. BOST) kindly take the chair.

□ 0005

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the further consideration of the bill (H.R. 4016) making appropriations for the Department of Defense for the fiscal year ending September 30, 2026, and for other purposes, with Mr. BOST (Acting Chair) in the chair.

The Clerk read the title of the bill.

The Acting CHAIR. When the Committee of the Whole House rose earlier today, amendment No. 293, printed in part A of House Report 119–199, offered by the gentleman from Wisconsin (Mr. TIFFANY) had been disposed of.

Pursuant to clause 6 of rule XVIII, proceedings will now resume on those amendments printed in part A of House Report 119–199, on which further proceedings were postponed in the following order:

Amendment No. 111 by Ms. GREENE of Georgia.

Amendment No. 112 by Ms. GREENE of Georgia.

Amendment No. 113 by Ms. GREENE of Georgia.

Amendment No. 114 by Ms. GREENE of Georgia.

Amendment No. 115 by Ms. GREENE of Georgia.

Amendment No. 116 by Ms. GREENE of Georgia.

Amendment No. 277 by Mr. STEUBE of Florida.

The Chair will reduce to 2 minutes the minimum time of any electronic vote in this series.

AMENDMENT NO. 111 OFFERED BY MS. GREENE OF GEORGIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 111, printed in part A of House Report 119–199, offered by the gentlewoman from Georgia (Ms. GREENE), on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 63, noes 365, not voting 9, as follows:

[Roll No. 204]

AYES—63

Bean (FL)
Begich
Biggs (AZ)
Biggs (SC)
Boebert
Brecheen
Burchett
Burlison
Cammack
Cline
Cloud
Clyde
Collins
Comer
Crane
Crank
Davidson
Donalds
Fine
Fitzgerald
Fry
Fulcher
Gill (TX)
Gosar
Greene (GA)
Grothman
Guest
Hageman
Harrigan
Harris (MD)
Harris (NC)
Harshbarger
Hern (OK)
Higgins (LA)
Houchin
Hudson
Hunt
Jordan
Joyce (PA)
Luna
Mace
Mann
Massie
McClintock
McGuire
Miller (IL)
Mills
Moore (AL)
Nehls
Norman
Ogles
Onder
Palmer
Perry
Rouzer
Roy
Schmidt
Self
Steube
Stutzman
Tiffany
Timmons
Wied

NOES—365

Adams
Aderholt
Aguilar
Alford
Allen
Amo
Amodei (NV)
Ansari
Auchincloss
Babin
Bacon
Baird
Balderson
Balint
Barr
Barragán
Barrett
Baumgartner
Beatty
Bell
Bentz
Bera
Bergman
Beyer
Bice
Bilirakis
Bishop
Bonamici
Bost
Boyle (PA)
Bresnahan
Brown
Brownley
Buchanan
Budzinski
Bynum
Calvert
Carbajal
Carey
Carson
Carter (GA)
Carter (LA)
Carter (TX)
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Ciscomani
Cisneros
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Conaway
Correa
Costa
Courtney
Craig
Crawford
Crenshaw
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
DesJarlais
Dexter
Diaz-Balart
Dingell
Doggett
Downing
Dunn (FL)
Edwards
Elfreth
Ellzey
Emmer
Escobar
Espaillat
Estes
Evans (CO)
Evans (PA)
Ezell
Fallon
Fedorchak
Feenstra
Fields
Figures
Finstad
Fischbach
Fitzpatrick
Fleischmann
Fletcher
Fong
Foster
Foushee
Foxx
Frankel, Lois
Franklin, Scott
Friedman
Frost
Garamendi
Garbarino
Garcia (CA)
García (IL)
Garcia (TX)
Gillen
Gimenez
Golden (ME)
Goldman (NY)
Goldman (TX)
Gomez
Gonzales, Tony
Gonzalez, V.
Gooden
Goodlander
Gottheimer
Graves
Gray
Green, Al (TX)
Griffith
Guthrie
Hamadeh (AZ)
Harder (CA)
Haridopolos
Hayes
Hernández
Hill (AR)
Himes
Hinson
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Huizenga
Hurd (CO)
Issa
Ivey
Jack
Jackson (IL)
Jackson (TX)
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (SD)
Johnson (TX)
Joyce (OH)
Kamlager-Dove
Kaptur
Kean
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy (NY)
Kennedy (UT)
Khanna
Kiggans (VA)
Kiley (CA)
Kim
Knott
Krishnamoorthi
Kustoff
LaHood
LaLota
LaMalfa
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latimer
Latta
Lawler
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Letlow
Levin
Liccardo
Lieu
Lofgren
Loudermilk
Lucas
Luttrell
Lynch
Mackenzie
Magaziner
Malliotakis
Maloy
Mannion
Mast
Matsui
McBath
McBride
McCaul
McClain
McClain Delaney
McClellan
McCollum
McCormick
McDonald Rivet
McDowell
McGarvey
McGovern
McIver
Meeks
Menendez
Meng
Messmer
Meuser
Mfume
Miller (OH)
Miller (WV)
Miller-Meeks
Min
Moolenaar
Moore (NC)
Moore (UT)
Moore (WI)
Moore (WV)
Moran
Morelle
Morrison
Moskowitz
Moulton
Moylan
Mrvan
Mullin
Murphy
Nadler
Neal
Neguse
Newhouse
Norcross
Nunn (IA)
Obernolte
Ocasio-Cortez
Olszewski
Omar
Owens
Pallone
Panetta
Pappas
Patronis
Pelosi
Perez
Peters
Pettersen
Pfluger
Pingree
Plaskett
Pocan
Pou
Pressley
Quigley
Randall
Raskin
Reschenthaler
Riley (NY)
Rivas
Rogers (AL)
Rogers (KY)
Rose
Ross
Ruiz
Rulli
Rutherford
Ryan
Salinas
Sánchez
Scalise
Scanlon
Schakowsky
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sessions
Sewell
Sherman
Sherrill
Shreve
Simon
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spartz
Stansbury
Stanton
Stauber
Stefanik
Steil
Stevens
Strickland
Strong
Subramanyam
Swalwell
Sykes
Takano
Taylor
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Tran
Turner (OH)
Underwood
Valadao
Van Drew
Van Duyne
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Vindman
Wagner
Walberg
Wasserman Schultz
Waters
Watson Coleman
Weber (TX)
Webster (FL)
Westerman
Whitesides
Williams (GA)
Williams (TX)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOT VOTING—9

Arrington
Flood
Green (TN)
King-Hinds
Norton
Radewagen
Ramirez
Salazar
Suozzi

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 0010

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 112 OFFERED BY MS. GREENE OF GEORGIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 112, printed in part A of House Report 119–199, offered by the gentlewoman from Georgia (Ms. GREENE), on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 6, noes 421, not voting 10, as follows:

[Roll No. 205]

AYES—6

Brecheen	Comer	Luna
Burlison	Greene (GA)	Massie

NOES—421

Adams	Clarke (NY)	Flood
Aderholt	Cleaver	Fong
Aguilar	Cline	Foster
Alford	Cloud	Foushee
Allen	Clyburn	Foxx
Amo	Clyde	Frankel, Lois
Amodei (NV)	Cohen	Franklin, Scott
Ansari	Cole	Friedman
Arrington	Collins	Frost
Auchincloss	Conaway	Fry
Babin	Correa	Fulcher
Bacon	Costa	Garamendi
Baird	Courtney	Garcia (CA)
Balderson	Craig	Garcia (IL)
Balint	Crane	Garcia (TX)
Barr	Crank	Gill (TX)
Barragán	Crawford	Gillen
Barrett	Crenshaw	Gimenez
Baumgartner	Crockett	Golden (ME)
Bean (FL)	Crow	Goldman (NY)
Beatty	Cuellar	Goldman (TX)
Begich	Davids (KS)	Gomez
Bell	Davidson	Gonzales, Tony
Bentz	Davis (IL)	Gonzalez, V.
Bera	Davis (NC)	Gooden
Bergman	De La Cruz	Goodlander
Beyer	Dean (PA)	Gosar
Bice	DeGette	Gottheimer
Biggs (AZ)	DeLauro	Graves
Biggs (SC)	DelBene	Gray
Bilirakis	Deluzio	Green, Al (TX)
Bishop	DeSaulnier	Griffith
Boebert	DesJarlais	Grothman
Bonamici	Dexter	Guest
Bost	Diaz-Balart	Guthrie
Boyle (PA)	Dingell	Hageman
Bresnahan	Doggett	Hamadeh (AZ)
Brown	Donalds	Harder (CA)
Brownley	Downing	Haridopolos
Buchanan	Dunn (FL)	Harrigan
Budzinski	Edwards	Harris (MD)
Burchett	Elfreth	Harris (NC)
Bynum	Ellzey	Harshbarger
Calvert	Emmer	Hayes
Cammack	Escobar	Hern (OK)
Carbajal	Espaillat	Hernández
Carey	Estes	Higgins (LA)
Carson	Evans (CO)	Hill (AR)
Carter (GA)	Evans (PA)	Himes
Carter (LA)	Ezell	Hinson
Carter (TX)	Fallon	Horsford
Casar	Fedorchak	Houchin
Case	Feenstra	Houlahan
Casten	Fields	Hoyer
Castor (FL)	Figures	Hoyle (OR)
Castro (TX)	Fine	Hudson
Cherfilus-McCormick	Finstad	Huffman
Chu	Fischbach	Huizenga
Ciscomani	Fitzgerald	Hunt
Cisneros	Fitzpatrick	Hurd (CO)
Clark (MA)	Fleischmann	Issa
	Fletcher	Ivey
Jack	Mfume	Schweikert
Jackson (IL)	Miller (IL)	Scott (VA)
Jackson (TX)	Miller (OH)	Scott, Austin
Jacobs	Miller (WV)	Scott, David
James	Miller-Meeks	Self
Jayapal	Mills	Sessions
Jeffries	Min	Sewell
Johnson (GA)	Moolenaar	Sherman
Johnson (SD)	Moore (AL)	Sherrill
Johnson (TX)	Moore (NC)	Shreve
Jordan	Moore (UT)	Simon
Joyce (OH)	Moore (WI)	Simpson
Joyce (PA)	Moore (WV)	Smith (MO)
Kamlager-Dove	Moran	Smith (NE)
Kaptur	Morelle	Smith (NJ)
Kean	Morrison	Smith (WA)
Keating	Moskowitz	Smucker
Kelly (IL)	Moulton	Sorensen
Kelly (PA)	Moylan	Soto
Kennedy (NY)	Mrvan	Spartz
Kennedy (UT)	Mullin	Stansbury
Khanna	Murphy	Stanton
Kiggans (VA)	Nadler	Stauber
Kiley (CA)	Neal	Stefanik
Kim	Neguse	Steil
Knott	Nehls	Stevens
Krishnamoorthi	Newhouse	Strickland
Kustoff	Norcross	Strong
LaHood	Norman	Stutzman
LaLota	Nunn (IA)	Subramanyam
LaMalfa	Obernolte	Swalwell
Landsman	Ocasio-Cortez	Sykes
Langworthy	Ogles	Takano
Larsen (WA)	Olszewski	Taylor
Larson (CT)	Omar	Tenney
Latimer	Onder	Thanedar
Latta	Owens	Thompson (CA)
Lawler	Pallone	Thompson (MS)
Lee (NV)	Palmer	Thompson (PA)
Lee (PA)	Panetta	Tiffany
Leger Fernandez	Pappas	Timmons
Letlow	Patronis	Titus
Levin	Pelosi	Tlaib
Liccardo	Perez	Tokuda
Lieu	Perry	Tonko
Lofgren	Peters	Torres (CA)
Loudermilk	Pettersen	Torres (NY)
Lucas	Pfluger	Trahan
Luttrell	Pingree	Tran
Lynch	Plaskett	Turner (OH)
Mace	Pocan	Underwood
Mackenzie	Pou	Valadao
Magaziner	Pressley	Van Drew
Malliotakis	Quigley	Van Duyne
Maloy	Randall	Van Orden
Mann	Raskin	Vargas
Mannion	Reschenthaler	Vasquez
Mast	Riley (NY)	Veasey
Matsui	Rivas	Velázquez
McBath	Rogers (AL)	Vindman
McBride	Rogers (KY)	Wagner
McCaul	Rose	Walberg
McClain	Ross	Wasserman Schultz
McClain Delaney	Rouzer	Waters
McClellan	Roy	Watson Coleman
McClintock	Ruiz	Weber (TX)
McCollum	Rulli	Webster (FL)
McCormick	Rutherford	Westerman
McDonald Rivet	Ryan	Whitesides
McDowell	Salazar	Wied
McGarvey	Salinas	Williams (GA)
McGovern	Sánchez	Williams (TX)
McGuire	Scalise	Wilson (FL)
McIver	Scanlon	Wilson (SC)
Meeks	Schakowsky	Wittman
Menendez	Schmidt	Womack
Meng	Schneider	Yakym
Messmer	Scholten	Zinke
Meuser	Schrier	

NOT VOTING—10

Garbarino	Lee (FL)	Steube
Green (TN)	Norton	Suozzi
Kelly (MS)	Radewagen	
King-Hinds	Ramirez	

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 0013

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 113 OFFERED BY MS. GREENE OF GEORGIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 113, printed in part A of House Report 119–199, offered by the gentlewoman from Georgia (Ms. GREENE), on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 104, noes 326, not voting 7, as follows:

[Roll No. 206]

AYES—104

Allen	Gill (TX)	Miller (IL)
Babin	Goldman (TX)	Miller (WV)
Baird	Gosar	Moore (AL)
Balderson	Graves	Moore (NC)
Barr	Greene (GA)	Moore (WV)
Bean (FL)	Griffith	Nehls
Begich	Grothman	Norman
Biggs (AZ)	Guest	Ogles
Biggs (SC)	Hageman	Onder
Boebert	Hamadeh (AZ)	Owens
Bost	Haridopolos	Palmer
Brecheen	Harrigan	Patronis
Burchett	Harris (MD)	Perry
Cammack	Harris (NC)	Reschenthaler
Cline	Harshbarger	Roy
Cloud	Hern (OK)	Rulli
Clyde	Higgins (LA)	Scalise
Collins	Hinson	Schmidt
Comer	Houchin	Self
Crane	Hunt	Smith (MO)
Crank	Jack	Stauber
Crenshaw	Jackson (TX)	Steube
Davidson	Jordan	Stutzman
De La Cruz	Joyce (PA)	Taylor
Donalds	Knott	Tiffany
Downing	LaMalfa	Timmons
Emmer	Latta	Van Orden
Ezell	Luttrell	Walberg
Fine	Mace	Weber (TX)
Finstad	Mann	Webster (FL)
Fischbach	Massie	Westerman
Fitzgerald	McClintock	Wied
Foxx	McDowell	Williams (TX)
Fry	McGuire	Wilson (SC)
Fulcher	Messmer	

NOES—326

Adams	Budzinski	Courtney
Aderholt	Burlison	Craig
Aguilar	Bynum	Crawford
Alford	Calvert	Crockett
Amo	Carbajal	Crow
Amodei (NV)	Carey	Cuellar
Ansari	Carson	Davids (KS)
Arrington	Carter (GA)	Davis (IL)
Auchincloss	Carter (LA)	Davis (NC)
Bacon	Carter (TX)	Dean (PA)
Balint	Casar	DeGette
Barragán	Case	DeLauro
Barrett	Casten	DelBene
Baumgartner	Castor (FL)	Deluzio
Beatty	Castro (TX)	DeSaulnier
Bell	Cherfilus-McCormick	DesJarlais
Bentz	Chu	Dexter
Bera	Ciscomani	Diaz-Balart
Bergman	Cisneros	Dingell
Beyer	Clark (MA)	Doggett
Bice	Clarke (NY)	Dunn (FL)
Bilirakis	Cleaver	Edwards
Bishop	Clyburn	Elfreth
Bonamici	Cohen	Ellzey
Boyle (PA)	Cole	Escobar
Bresnahan	Conaway	Espaillat
Brown	Correa	Estes
Brownley	Costa	Evans (CO)
Buchanan		Evans (PA)

Fallon
Fedorchak
Feenstra
Fields
Figures
Fitzpatrick
Fleischmann
Fletcher
Flood
Fong
Foster
Foushee
Frankel, Lois
Franklin, Scott
Friedman
Frost
Garamendi
Garbarino
Garcia (CA)
García (IL)
Garcia (TX)
Gillen
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzales, Tony
Gonzalez, V.
Gooden
Goodlander
Gottheimer
Gray
Green, Al (TX)
Guthrie
Harder (CA)
Hayes
Hernández
Hill (AR)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hurd (CO)
Issa
Ivey
Jackson (IL)
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (SD)
Johnson (TX)
Joyce (OH)
Kamlager-Dove
Kaptur
Kean
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy (NY)
Kennedy (UT)
Khanna
Kiggans (VA)
Kiley (CA)
Kim
Krishnamoorthi
Kustoff
LaHood
LaLota
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latimer
Lawler
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Letlow
Levin
Liccardo
Lieu
Lofgren
Loudermilk
Lucas
Luna
Lynch
Mackenzie
Magaziner
Malliotakis
Maloy
Mannion
Mast
Matsui
McBath
McBride
McCaul
McClain
McClain Delaney
McClellan
McCollum
McCormick
McDonald Rivet
McGarvey
McGovern
McIver
Meeks
Menendez
Meng
Messmer
Meuser
Mfume
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Min
Moolenaar
Moore (AL)
Moore (NC)
Moore (UT)
Moore (WI)
Moore (WV)
Moran
Morelle
Morrison
Moskowitz
Moulton
Moylan
Mrvan
Mullin
Murphy
Nadler
Neal
Neguse
Newhouse
Norcross
Norman
Nunn (IA)
Obernolte
Ocasio-Cortez
Olszewski
Omar
Onder
Owens
Pallone
Palmer
Panetta
Pappas
Patronis
Pelosi
Perez
Perry
Peters
Pettersen
Pfluger
Pingree
Plaskett
Pocan
Pou
Pressley
Quigley
Randall
Raskin
Reschenthaler
Riley (NY)
Rivas
Rogers (AL)
Rogers (KY)
Rose
Ross
Rouzer
Roy
Ruiz
Rulli
Rutherford
Ryan
Salazar
Salinas
Sánchez
Scalise
Scanlon
Schakowsky
Schmidt
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Self
Sessions
Sewell
Sherman
Sherrill
Shreve
Simon
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Stansbury
Stanton
Stauber
Stefanik
Steil
Steube
Stevens
Strickland
Strong
Stutzman
Subramanyam
Swalwell
Sykes
Takano
Taylor
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tiffany
Timmons
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Tran
Turner (OH)
Underwood
Valadao
Van Drew
Van Duyne
Vargas
Vasquez
Veasey
Velázquez
Vindman
Wagner
Wasserman Schultz
Waters
Watson Coleman
Weber (TX)
Webster (FL)
Westerman
Whitesides
Wied
Williams (GA)
Williams (TX)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOT VOTING—7

Green (TN)
King-Hinds
Norton
Radewagen
Ramirez
Spartz
Suozzi

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 0017

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 114 OFFERED BY MS. GREENE OF GEORGIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 114, printed in part A of House Report 119–199, offered by the gentlewoman from Georgia (Ms. GREENE), on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 6, noes 422, not voting 9, as follows:

[Roll No. 207]

AYES—6

Green, Al (TX)
Greene (GA)
Lee (PA)
Massie
Omar
Tlaib

NOES—422

Adams
Aderholt
Aguilar
Alford
Allen
Amo
Amodei (NV)
Ansari
Arrington
Auchincloss
Babin
Bacon
Baird
Balderson
Balint
Barr
Barragán
Barrett
Baumgartner
Bean (FL)
Beatty
Begich
Bell
Bentz
Bera
Bergman
Beyer
Bice
Biggs (AZ)
Biggs (SC)
Bilirakis
Bishop
Boebert
Bonamici
Bost
Boyle (PA)
Brecheen
Bresnahan
Brown
Brownley
Buchanan
Budzinski
Burchett
Burlison
Bynum
Calvert
Cammack
Carbajal
Carey
Carson
Carter (GA)
Carter (LA)
Carter (TX)
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Ciscomani
Cisneros
Clark (MA)
Clarke (NY)
Cleaver
Cline
Cloud
Clyburn
Clyde
Cohen
Cole
Collins
Comer
Conaway
Correa
Costa
Courtney
Craig
Crane
Crank
Crawford
Crenshaw
Crockett
Crow
Cuellar
Davids (KS)
Davidson
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
DesJarlais
Dexter
Diaz-Balart
Dingell
Doggett
Donalds
Downing
Dunn (FL)
Elfreth
Ellzey
Emmer
Escobar
Espaillat
Estes
Evans (CO)
Evans (PA)
Ezell
Fallon
Fedorchak
Feenstra
Fields
Figures
Fine
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Fong
Foster
Foushee
Foxx
Frankel, Lois
Franklin, Scott
Friedman
Frost
Fry
Fulcher
Garamendi
Garbarino
Garcia (CA)
Garcia (IL)
Garcia (TX)
Gill (TX)
Gillen
Gimenez
Golden (ME)
Goldman (NY)
Goldman (TX)
Gomez
Gonzales, Tony
Gooden
Goodlander
Gosar
Gottheimer
Graves
Gray
Griffith
Grothman
Guest
Guthrie
Hageman
Hamadeh (AZ)
Harder (CA)
Haridopolos
Harrigan
Harris (MD)
Harris (NC)
Harshbarger
Hayes
Hern (OK)
Hernández
Higgins (LA)
Hill (AR)
Himes
Hinson
Horsford
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hunt
Hurd (CO)
Issa
Ivey
Jack
Jackson (IL)
Jackson (TX)
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (SD)
Johnson (TX)
Jordan
Joyce (OH)
Joyce (PA)
Kamlager-Dove
Kaptur
Kean
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy (NY)
Kennedy (UT)
Khanna
Kiggans (VA)
Kiley (CA)
Kim
Knott
Krishnamoorthi
Kustoff
LaHood
LaLota
LaMalfa
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latimer
Latta
Lawler
Lee (FL)
Lee (NV)
Leger Fernandez
Letlow
Levin
Liccardo
Lieu
Lofgren
Loudermilk
Lucas
Luna
Luttrell
Lynch
Mace
Mackenzie
Magaziner
Malliotakis
Maloy
Mann
Mannion
Mast
Matsui
McBath
McBride
McCaul
McClain
McClain Delaney
McClellan
McClintock
McCollum
McCormick
McDonald Rivet
McDowell
McGarvey
McGovern
McGuire
McIver
Meeks
Menendez
Meng
Messmer
Meuser
Mfume
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Min
Moolenaar
Moore (AL)
Moore (NC)
Moore (UT)
Moore (WI)
Moore (WV)
Moran
Morelle
Morrison
Moskowitz
Moulton
Moylan
Mrvan
Mullin
Murphy
Nadler
Neal
Neguse
Nehls
Newhouse
Norcross
Norman
Nunn (IA)
Obernolte
Ocasio-Cortez
Ogles
Olszewski
Onder
Owens
Pallone
Palmer
Panetta
Pappas
Patronis
Pelosi
Perez
Perry
Peters
Pettersen
Pfluger
Pingree
Plaskett
Pocan
Pou
Pressley
Quigley
Randall
Raskin
Reschenthaler
Riley (NY)
Rivas
Rogers (AL)
Rogers (KY)
Rose
Ross
Rouzer
Roy
Ruiz
Rulli
Rutherford
Ryan
Salazar
Salinas
Sánchez
Scalise
Scanlon
Schakowsky
Schmidt
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Self
Sessions
Sewell
Sherman
Sherrill
Shreve
Simon
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Stansbury
Stanton
Stauber
Stefanik
Steil
Steube
Stevens
Strickland
Strong
Stutzman
Subramanyam
Swalwell
Sykes
Takano
Taylor
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tiffany
Timmons
Titus
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Tran
Turner (OH)
Underwood
Valadao
Van Drew
Van Duyne
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Vindman
Wagner
Walberg
Wasserman Schultz
Waters
Watson Coleman
Weber (TX)
Webster (FL)
Westerman
Whitesides
Wied
Williams (GA)
Williams (TX)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOT VOTING—9

Edwards
Gonzalez, V.
Green (TN)
King-Hinds
Norton
Radewagen
Ramirez
Spartz
Suozzi

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (Mr. DESJARLAIS) (during the vote). There is 1 minute remaining.

□ 0020

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 115 OFFERED BY MS. GREENE OF GEORGIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 115, printed in part A of House Report 119–199, offered by the gentlewoman from Georgia (Ms. GREENE), on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 30, noes 400, not voting 7, as follows:

[Roll No. 208]

AYES—30

Bean (FL)
Biggs (AZ)
Boebert
Brecheen
Burchett
Burlison
Cammack
Cloud
Clyde
Comer
Crane
Davidson
Donalds
Fry
Fulcher
Gill (TX)
Gosar
Greene (GA)
Harshbarger
Higgins (LA)
Hunt
Luna
Massie
McGuire
Norman
Ogles
Roy
Steube
Tiffany
Wied

NOES—400

Adams
Aderholt
Aguilar
Alford
Allen
Amo
Amodei (NV)
Ansari
Arrington
Auchincloss
Babin
Bacon
Baird
Balderson
Balint
Barr
Barragán
Barrett
Baumgartner
Beatty
Begich
Bell
Bentz
Bera
Bergman
Beyer
Bice
Biggs (SC)
Bilirakis
Bishop
Bonamici
Bost
Boyle (PA)
Bresnahan
Brown
Brownley
Buchanan
Budzinski
Bynum
Calvert
Carbajal
Carey
Carson
Carter (GA)
Carter (LA)
Carter (TX)
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Ciscomani
Cisneros
Clark (MA)
Clarke (NY)
Cleaver
Cline
Clyburn
Cohen
Cole
Collins
Conaway
Correa
Costa
Courtney
Craig
Crank
Crawford
Crenshaw
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
DesJarlais
Dexter
Diaz-Balart
Dingell
Doggett
Downing
Dunn (FL)
Edwards
Elfreth
Ellzey
Emmer
Escobar
Espaillat
Estes
Evans (CO)
Evans (PA)
Ezell
Fallon
Fedorchak
Feenstra
Fields
Figures
Fine
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Fong
Foster
Foushee
Foxx
Frankel, Lois
Franklin, Scott
Friedman
Frost
Garamendi
Garbarino
Garcia (CA)
García (IL)
Garcia (TX)
Gillen
Gimenez
Golden (ME)
Goldman (NY)
Goldman (TX)
Gomez
Gonzales, Tony
Gonzalez, V.
Gooden
Goodlander
Gottheimer
Graves
Gray
Green, Al (TX)
Griffith
Grothman
Guest
Guthrie
Hageman
Hamadeh (AZ)
Harder (CA)
Haridopolos
Harrigan
Harris (MD)
Harris (NC)
Hayes
Hern (OK)
Hernández
Hill (AR)
Himes
Hinson
Horsford
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hurd (CO)
Issa
Ivey
Jack
Jackson (IL)
Jackson (TX)
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (SD)
Johnson (TX)
Jordan
Joyce (OH)
Joyce (PA)
Kamlager-Dove
Kaptur
Kean
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy (NY)
Kennedy (UT)
Khanna
Kiggans (VA)
Kiley (CA)
Kim
Knott
Krishnamoorthi
Kustoff
LaHood
LaLota
LaMalfa
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latimer
Latta
Lawler
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Letlow
Levin
Liccardo
Lieu
Lofgren
Loudermilk
Lucas
Luttrell
Lynch
Mace
Mackenzie
Magaziner
Malliotakis
Maloy
Mann
Mannion
Mast
Matsui
McBath
McBride
McCaul
McClain
McClain Delaney
McClellan
McClintock
McCollum
McCormick
McDonald Rivet
McDowell
McGarvey
McGovern
McIver
Meeks
Menendez
Meng
Messmer
Meuser
Mfume
Miller (IL)
Miller (OH)
Miller (WV)
Mills
Min
Moolenaar
Moore (AL)
Moore (NC)
Moore (UT)
Moore (WI)
Moore (WV)
Moran
Morelle
Morrison
Moskowitz
Moulton
Moylan
Mrvan
Mullin
Murphy
Nadler
Neal
Neguse
Nehls
Newhouse
Norcross
Nunn (IA)
Obernolte
Ocasio-Cortez
Olszewski
Omar
Onder
Owens
Pallone
Palmer
Panetta
Pappas
Patronis
Pelosi
Perez
Perry
Peters
Pettersen
Pfluger
Pingree
Plaskett
Pocan
Pou
Pressley
Quigley
Randall
Raskin
Reschenthaler
Riley (NY)
Rivas
Rogers (AL)
Rogers (KY)
Rose
Ross
Rouzer
Ruiz
Rulli
Rutherford
Ryan
Salazar
Salinas
Sánchez
Scalise
Scanlon
Schakowsky
Schmidt
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Self
Sessions
Sewell
Sherman
Sherrill
Shreve
Simon
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spartz
Stansbury
Stanton
Stauber
Stefanik
Steil
Stevens
Strickland
Strong
Stutzman
Subramanyam
Swalwell
Sykes
Takano
Taylor
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Timmons
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Tran
Turner (OH)
Underwood
Valadao
Van Drew
Van Duyne
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Vindman
Wagner
Walberg
Wasserman Schultz
Waters
Watson Coleman
Weber (TX)
Webster (FL)
Westerman
Whitesides
Williams (GA)
Williams (TX)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOT VOTING—7

Green (TN)
King-Hinds
Miller-Meeks
Norton
Radewagen
Ramirez
Suozzi

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 0023

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 116 OFFERED BY MS. GREENE OF GEORGIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 116, printed in part A of House Report 119–199, offered by the gentlewoman from Georgia (Ms. GREENE), on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 76, noes 353, not voting 8, as follows:

[Roll No. 209]

AYES—76

Arrington
Balderson
Bean (FL)
Begich
Biggs (AZ)
Biggs (SC)
Boebert
Bost
Brecheen
Burchett
Burlison
Cammack
Cline
Cloud
Collins
Comer
Crane
Crank
Davidson
De La Cruz
Donalds
Ezell
Finstad
Fischbach
Fitzgerald
Fry
Fulcher
Gill (TX)
Gosar
Greene (GA)
Guest
Hageman
Hamadeh (AZ)
Harrigan
Harris (NC)
Harshbarger
Hern (OK)
Higgins (LA)
Hunt
Jack
Jackson (TX)
Jordan
Joyce (PA)
Kennedy (UT)
Knott
Letlow
Luna
Luttrell
Mace
Mann
Massie
McDowell
McGuire
Miller (IL)
Mills
Moore (AL)
Moore (WV)
Nehls
Norman
Ogles
Onder
Palmer
Patronis
Perry
Roy
Rulli
Smith (MO)
Stauber
Steube
Stutzman
Taylor
Tiffany
Timmons
Weber (TX)
Webster (FL)
Wied

NOES—353

Adams
Aderholt
Aguilar
Alford
Allen
Amo
Amodei (NV)
Ansari
Auchincloss
Babin
Bacon
Baird
Balint
Barr
Barragán
Barrett
Baumgartner
Beatty
Bell
Bentz
Bera
Bergman
Beyer
Bice
Bilirakis
Bishop
Bonamici
Boyle (PA)
Bresnahan
Brown
Brownley
Buchanan
Budzinski
Bynum
Calvert
Carbajal
Carey
Carson
Carter (GA)
Carter (LA)
Carter (TX)
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Ciscomani
Cisneros
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Clyde
Cohen
Cole
Conaway
Correa
Costa
Courtney
Craig
Crawford
Crenshaw
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
DesJarlais
Dexter
Diaz-Balart
Dingell
Doggett
Downing
Dunn (FL)
Edwards
Elfreth
Ellzey
Emmer
Escobar
Espaillat
Estes
Evans (CO)
Evans (PA)
Fallon
Fedorchak
Feenstra
Fields
Figures
Fine
Fitzpatrick
Fleischmann
Fletcher
Flood
Fong
Foster
Foushee
Foxx
Frankel, Lois
Franklin, Scott
Friedman
Frost
Garamendi
Garbarino
Garcia (CA)

García (IL)
Garcia (TX)
Gillen
Gimenez
Golden (ME)
Goldman (NY)
Goldman (TX)
Gomez
Gonzales, Tony
Gonzalez, V.
Gooden
Goodlander
Gottheimer
Graves
Gray
Green, Al (TX)
Griffith
Grothman
Guthrie
Harder (CA)
Haridopolos
Harris (MD)
Hayes
Hernández
Hill (AR)
Himes
Hinson
Horsford
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hurd (CO)
Issa
Ivey
Jackson (IL)
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (SD)
Johnson (TX)
Kamlager-Dove
Kaptur
Kean
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy (NY)
Khanna
Kiggans (VA)
Kiley (CA)
Kim
Krishnamoorthi
Kustoff
LaHood
LaLota
LaMalfa
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latimer
Latta
Lawler
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Liccardo
Lieu
Lofgren
Loudermilk
Lucas
Lynch
Mackenzie
Magaziner
Malliotakis
Maloy
Mannion
Mast
Matsui
McBath
McBride
McCaul
McClain
McClain Delaney
McClellan
McClintock
McCollum
McCormick
McDonald Rivet
McGarvey
McGovern
McIver
Meeks
Menendez
Meng
Messmer
Meuser
Mfume
Miller (OH)
Miller (WV)
Miller-Meeks
Min
Moolenaar
Moore (NC)
Moore (UT)
Moore (WI)
Moran
Morelle
Morrison
Moskowitz
Moulton
Moylan
Mrvan
Mullin
Murphy
Nadler
Neal
Neguse
Newhouse
Norcross
Nunn (IA)
Obernolte
Ocasio-Cortez
Olszewski
Omar
Owens
Pallone
Panetta
Pappas
Pelosi
Perez
Peters
Pettersen
Pfluger
Pingree
Plaskett
Pocan
Pou
Pressley
Quigley
Randall
Raskin
Reschenthaler
Riley (NY)
Rivas
Rogers (AL)
Rogers (KY)
Rose
Ross
Rouzer
Ruiz
Rutherford
Ryan
Salazar
Salinas
Sánchez
Scalise
Scanlon
Schakowsky
Schmidt
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Self
Sessions
Sewell
Sherman
Sherrill
Shreve
Simon
Simpson
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Stansbury
Stanton
Stefanik
Steil
Stevens
Strickland
Strong
Subramanyam
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Tran
Turner (OH)
Underwood
Valadao
Van Drew
Van Duyne
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Vindman
Wagner
Walberg
Wasserman Schultz
Waters
Watson Coleman
Westerman
Whitesides
Williams (GA)
Williams (TX)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOT VOTING—8

Green (TN)
Joyce (OH)
King-Hinds
Norton
Radewagen
Ramirez
Spartz
Suozzi

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 0027

Messrs. MOORE of West Virginia and JACKSON of Texas changed their vote from ''no'' to ''aye.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 277 OFFERED BY MR. STEUBE

The Acting CHAIR. The unfinished business is the demand for a recorded vote on amendment No. 277, printed in part A of House Report 119–199, offered by the gentleman from Florida (Mr. STEUBE), on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 76, noes 355, not voting 6, as follows:

[Roll No. 210]

AYES—76

Arrington
Babin
Bean (FL)
Biggs (AZ)
Biggs (SC)
Boebert
Bost
Brecheen
Burchett
Burlison
Cammack
Cline
Cloud
Clyde
Collins
Comer
Crane
Crank
Davidson
Donalds
Ezell
Feenstra
Fine
Finstad
Fischbach
Fitzgerald
Fry
Fulcher
Gill (TX)
Gosar
Greene (GA)
Guest
Hageman
Haridopolos
Harris (NC)
Harshbarger
Hern (OK)
Higgins (LA)
Houchin
Hunt
Jack
Jackson (TX)
Jordan
Joyce (PA)
Luna
Luttrell
Mace
Maloy
Massie
McDowell
McGuire
Miller (IL)
Mills
Moore (AL)
Moore (NC)
Nehls
Norman
Ogles
Onder
Palmer
Patronis
Perry
Roy
Self
Smith (NE)
Smith (NJ)
Spartz
Stauber
Steube
Tiffany
Timmons
Van Duyne
Weber (TX)
Webster (FL)
Wied
Williams (TX)

NOES—355

Adams
Aderholt
Aguilar
Alford
Allen
Amo
Amodei (NV)
Ansari
Auchincloss
Bacon
Baird
Balderson
Balint
Barr
Barragán
Barrett
Baumgartner
Beatty
Begich
Bell
Bentz
Bera
Bergman
Beyer
Bice
Bilirakis
Bishop
Bonamici
Boyle (PA)
Bresnahan
Brown
Brownley
Buchanan
Budzinski
Bynum
Calvert
Carbajal
Carey
Carson
Carter (GA)
Carter (LA)
Carter (TX)
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Ciscomani
Cisneros
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Cole
Conaway
Correa
Costa
Courtney
Craig
Crawford
Crenshaw
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
DesJarlais
Dexter
Diaz-Balart
Dingell
Doggett
Downing
Dunn (FL)
Edwards
Elfreth
Ellzey
Emmer
Escobar
Espaillat
Estes
Evans (CO)
Evans (PA)
Fallon
Fedorchak
Fields
Figures
Fitzpatrick
Fleischmann
Fletcher
Flood
Fong
Foster
Foushee
Foxx
Frankel, Lois
Franklin, Scott
Friedman
Frost
Garamendi
Garbarino
Garcia (CA)
García (IL)
Garcia (TX)
Gillen
Gimenez
Golden (ME)
Goldman (NY)
Goldman (TX)
Gomez
Gonzales, Tony
Gonzalez, V.
Gooden
Goodlander
Gottheimer
Graves
Gray
Green, Al (TX)
Griffith
Grothman
Guthrie
Hamadeh (AZ)
Harder (CA)
Harrigan
Harris (MD)
Hayes
Hernández
Hill (AR)
Himes
Hinson
Horsford
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hurd (CO)
Issa
Ivey
Jackson (IL)
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (SD)
Johnson (TX)
Joyce (OH)
Kamlager-Dove
Kaptur
Kean
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy (NY)
Kennedy (UT)
Khanna
Kiggans (VA)
Kiley (CA)
Kim
Knott
Krishnamoorthi
Kustoff
LaHood
LaLota
LaMalfa
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latimer
Latta
Lawler
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Letlow
Levin
Liccardo
Lieu
Lofgren
Loudermilk
Lucas
Lynch
Mackenzie
Magaziner
Malliotakis
Mann
Mannion
Mast
Matsui
McBath
McBride
McCaul
McClain
McClain Delaney
McClellan
McClintock
McCollum
McCormick
McDonald Rivet
McGarvey
McGovern
McIver
Meeks
Menendez
Meng
Messmer
Meuser
Mfume
Miller (OH)
Miller (WV)
Miller-Meeks
Min
Moolenaar
Moore (UT)
Moore (WI)
Moore (WV)
Moran
Morelle
Morrison
Moskowitz
Moulton
Moylan
Mrvan
Mullin
Murphy
Nadler
Neal
Neguse
Newhouse
Norcross
Nunn (IA)
Obernolte
Ocasio-Cortez
Olszewski
Omar
Owens
Pallone
Panetta
Pappas
Pelosi
Perez
Peters
Pettersen
Pfluger
Pingree
Plaskett
Pocan
Pou
Pressley
Quigley
Randall
Raskin
Reschenthaler
Riley (NY)
Rivas
Rogers (AL)
Rogers (KY)
Rose
Ross
Rouzer
Ruiz
Rulli
Rutherford
Ryan
Salazar
Salinas
Sánchez
Scalise
Scanlon
Schakowsky
Schmidt
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sessions
Sewell
Sherman
Sherrill
Shreve
Simon
Simpson
Smith (MO)
Smith (WA)
Smucker
Sorensen
Soto
Stansbury
Stanton
Stefanik
Steil
Stevens
Strickland
Strong
Stutzman
Subramanyam
Swalwell
Sykes
Takano
Taylor
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Tran
Turner (OH)
Underwood
Valadao
Van Drew
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Vindman
Wagner
Walberg
Wasserman Schultz
Waters
Watson Coleman
Westerman
Whitesides
Williams (GA)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOT VOTING—6

Green (TN)
King-Hinds
Norton
Radewagen
Ramirez
Suozzi

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 0031

So the amendment was rejected.

The result of the vote was announced as above recorded.

The Acting CHAIR. There being no further amendment, under the rule, the Committee rises.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. MURPHY) having assumed the chair, Mr. DESJARLAIS, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 4016) making appropriations for the Department of Defense for the fiscal year ending September 30, 2026, and for other purposes, and, pursuant to House Resolution 580, he reported the bill, as amended by that resolution, back to the House with sundry amendments adopted in the Committee of the Whole.

The SPEAKER pro tempore. Under the rule, the previous question is ordered.

Is a separate vote demanded on any amendment reported from the Committee of the Whole? If not, the Chair will put them en gros.

The question is on the amendments.

The amendments were agreed to.

The SPEAKER pro tempore. The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Ms. KAPTUR. Mr. Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Ms. KAPTUR of Ohio moves to recommit the bill H.R. 4016 to the Committee on Appropriations.

The SPEAKER pro tempore. Pursuant to clause 2(b) of rule XIX, the previous question is ordered on the motion to recommit.

The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Ms. KAPTUR. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, the Chair will reduce to 5 minutes the minimum time for any electronic vote on the question of passage.

The vote was taken by electronic device, and there were—yeas 211, nays 219, not voting 2, as follows:

[Roll No. 211]

YEAS—211

Adams	Bynum	Cohen
Aguilar	Carbajal	Conaway
Amo	Carson	Correa
Ansari	Carter (LA)	Costa
Auchincloss	Casar	Courtney
Balint	Case	Craig
Barragán	Casten	Crockett
Beatty	Castor (FL)	Crow
Bell	Castro (TX)	Cuellar
Bera	Cherfilus-McCormick	Davids (KS)
Beyer	Chu	Davis (IL)
Bishop	Cisneros	Davis (NC)
Bonamici	Clark (MA)	Dean (PA)
Boyle (PA)	Clarke (NY)	DeGette
Brown	Cleaver	DeLauro
Brownley	Clyburn	DelBene
Budzinski	DeSaulnier	Deluzio
Dexter	Latimer	Raskin
Dingell	Lee (NV)	Riley (NY)
Doggett	Lee (PA)	Rivas
Elfreth	Leger Fernandez	Ross
Escobar	Levin	Ruiz
Espaillat	Liccardo	Ryan
Evans (PA)	Lieu	Salinas
Fields	Lofgren	Sánchez
Figures	Lynch	Scanlon
Fletcher	Magaziner	Schakowsky
Foster	Mannion	Schneider
Foushee	Matsui	Scholten
Frankel, Lois	McBath	Schrier
Friedman	McBride	Scott (VA)
Frost	McClain Delaney	Scott, David
Garamendi	McClellan	Sewell
Garcia (CA)	McCollum	Sherman
García (IL)	McDonald Rivet	Sherrill
Garcia (TX)	McGarvey	Simon
Gillen	McGovern	Smith (WA)
Golden (ME)	McIver	Sorensen
Goldman (NY)	Meeks	Soto
Gomez	Menendez	Stansbury
Gonzalez, V.	Meng	Stanton
Goodlander	Mfume	Stevens
Gottheimer	Min	Strickland
Gray	Moore (WI)	Subramanyam
Green, Al (TX)	Morelle	Swalwell
Harder (CA)	Morrison	Sykes
Hayes	Moskowitz	Takano
Himes	Moulton	Thanedar
Horsford	Mrvan	Thompson (CA)
Houlahan	Mullin	Thompson (MS)
Hoyer	Nadler	Titus
Hoyle (OR)	Neal	Tlaib
Huffman	Neguse	Tokuda
Ivey	Norcross	Tonko
Jackson (IL)	Ocasio-Cortez	Torres (CA)
Jacobs	Olszewski	Torres (NY)
Jayapal	Omar	Trahan
Jeffries	Pallone	Tran
Johnson (GA)	Panetta	Underwood
Johnson (TX)	Pappas	Vargas
Kamlager-Dove	Pelosi	Vasquez
Kaptur	Perez	Veasey
Keating	Peters	Velázquez
Kelly (IL)	Pettersen	Vindman
Kennedy (NY)	Pingree	Wasserman Schultz
Khanna	Pocan	Waters
Krishnamoorthi	Pou	Watson Coleman
Landsman	Pressley	Whitesides
Larsen (WA)	Quigley	Williams (GA)
Larson (CT)	Ramirez	Wilson (FL)
	Randall	

NAYS—219

Aderholt	Davidson	Haridopolos
Alford	De La Cruz	Harrigan
Allen	DesJarlais	Harris (MD)
Amodei (NV)	Diaz-Balart	Harris (NC)
Arrington	Donalds	Harshbarger
Babin	Downing	Hern (OK)
Bacon	Dunn (FL)	Higgins (LA)
Baird	Edwards	Hill (AR)
Balderson	Ellzey	Hinson
Barr	Emmer	Houchin
Barrett	Estes	Hudson
Baumgartner	Evans (CO)	Huizenga
Bean (FL)	Ezell	Hunt
Begich	Fallon	Hurd (CO)
Bentz	Fedorchak	Issa
Bergman	Feenstra	Jack
Bice	Fine	Jackson (TX)
Biggs (AZ)	Finstad	James
Biggs (SC)	Fischbach	Johnson (LA)
Bilirakis	Fitzgerald	Johnson (SD)
Boebert	Fitzpatrick	Jordan
Bost	Fleischmann	Joyce (OH)
Brecheen	Flood	Joyce (PA)
Bresnahan	Fong	Kean
Buchanan	Foxx	Kelly (MS)
Burchett	Franklin, Scott	Kelly (PA)
Burlison	Fry	Kennedy (UT)
Calvert	Fulcher	Kiggans (VA)
Cammack	Garbarino	Kiley (CA)
Carey	Gill (TX)	Kim
Carter (GA)	Gimenez	Knott
Carter (TX)	Goldman (TX)	Kustoff
Ciscomani	Gonzales, Tony	LaHood
Cline	Gooden	LaLota
Cloud	Gosar	LaMalfa
Clyde	Graves	Langworthy
Cole	Greene (GA)	Latta
Collins	Griffith	Lawler
Comer	Grothman	Lee (FL)
Crane	Guest	Letlow
Crank	Guthrie	Loudermilk
Crawford	Hageman	Lucas
Crenshaw	Hamadeh (AZ)	Luna
Luttrell	Norman	Smucker
Mace	Nunn (IA)	Spartz
Mackenzie	Obernolte	Stauber
Malliotakis	Ogles	Stefanik
Maloy	Onder	Steil
Mann	Owens	Steube
Massie	Palmer	Strong
Mast	Patronis	Stutzman
McCaul	Perry	Taylor
McClain	Pfluger	Tenney
McClintock	Reschenthaler	Thompson (PA)
McCormick	Rogers (AL)	Tiffany
McDowell	Rogers (KY)	Timmons
McGuire	Rose	Turner (OH)
Messmer	Rouzer	Valadao
Meuser	Roy	Van Drew
Miller (IL)	Rulli	Van Duyne
Miller (OH)	Rutherford	Van Orden
Miller (WV)	Salazar	Wagner
Miller-Meeks	Scalise	Walberg
Mills	Schmidt	Weber (TX)
Moolenaar	Schweikert	Webster (FL)
Moore (AL)	Scott, Austin	Westerman
Moore (NC)	Self	Wied
Moore (UT)	Sessions	Williams (TX)
Moore (WV)	Shreve	Wilson (SC)
Moran	Simpson	Wittman
Murphy	Smith (MO)	Womack
Nehls	Smith (NE)	Yakym
Newhouse	Smith (NJ)	Zinke

NOT VOTING—2

Green (TN)	Suozzi

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 0039

So the motion to recommit was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the passage of the bill.

Pursuant to clause 10 of rule XX, the yeas and nays are ordered.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 221, nays 209, not voting 2, as follows:

[Roll No. 212]

YEAS—221

Aderholt	Crank	Gooden
Alford	Crawford	Gosar
Allen	Crenshaw	Graves
Amodei (NV)	Davidson	Gray
Arrington	Davis (NC)	Griffith
Babin	De La Cruz	Grothman
Bacon	DesJarlais	Guest
Baird	Diaz-Balart	Guthrie
Balderson	Donalds	Hageman
Barr	Downing	Hamadeh (AZ)
Barrett	Dunn (FL)	Haridopolos
Baumgartner	Edwards	Harrigan
Bean (FL)	Ellzey	Harris (MD)
Begich	Emmer	Harris (NC)
Bentz	Estes	Harshbarger
Bergman	Evans (CO)	Hern (OK)
Bice	Ezell	Higgins (LA)
Biggs (AZ)	Fallon	Hill (AR)
Biggs (SC)	Fedorchak	Hinson
Bilirakis	Feenstra	Houchin
Boebert	Fine	Hudson
Bost	Finstad	Huizenga
Brecheen	Fischbach	Hunt
Bresnahan	Fitzgerald	Hurd (CO)
Buchanan	Fitzpatrick	Issa
Burlison	Fleischmann	Jack
Calvert	Flood	Jackson (TX)
Cammack	Fong	James
Carey	Foxx	Johnson (LA)
Carter (GA)	Franklin, Scott	Johnson (SD)
Carter (TX)	Fry	Jordan
Ciscomani	Fulcher	Joyce (OH)
Cline	Garbarino	Joyce (PA)
Cloud	Gill (TX)	Kean
Clyde	Gimenez	Kelly (MS)
Cole	Golden (ME)	Kelly (PA)
Collins	Goldman (TX)	Kennedy (UT)
Comer	Gonzales, Tony	Kiggans (VA)
Crane	Gonzalez, V.	Kiley (CA)

Kim
Knott
Kustoff
LaHood
LaLota
LaMalfa
Langworthy
Latta
Lawler
Lee (FL)
Letlow
Loudermilk
Lucas
Luna
Luttrell
Mace
Mackenzie
Malliotakis
Maloy
Mann
Mast
McCaul
McClain
McClintock
McCormick
McDowell
McGuire
Messmer
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Moolenaar
Moore (AL)
Moore (NC)
Moore (UT)
Moore (WV)
Moran
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Onder
Owens
Palmer
Patronis
Perez
Perry
Pfluger
Reschenthaler
Rogers (AL)
Rogers (KY)
Rose
Rouzer
Roy
Rulli
Rutherford
Salazar
Scalise
Schmidt
Schweikert
Scott, Austin
Self
Sessions
Shreve
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Stefanik
Steil
Steube
Strong
Stutzman
Taylor
Tenney
Thompson (PA)
Tiffany
Timmons
Turner (OH)
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Weber (TX)
Webster (FL)
Westerman
Wied
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—209

Adams
Aguilar
Amo
Ansari
Auchincloss
Balint
Barragán
Beatty
Bell
Bera
Beyer
Bishop
Bonamici
Boyle (PA)
Brown
Brownley
Budzinski
Burchett
Bynum
Carbajal
Carson
Carter (LA)
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Cisneros
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Conaway
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dexter
Dingell
Doggett
Elfreth
Escobar
Espaillat
Evans (PA)
Fields
Figures
Fletcher
Foster
Foushee
Frankel, Lois
Friedman
Frost
Garamendi
Garcia (CA)
Garcia (IL)
Garcia (TX)
Gillen
Goldman (NY)
Gomez
Goodlander
Gottheimer
Green, Al (TX)
Greene (GA)
Harder (CA)
Hayes
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jacobs
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kamlager-Dove
Kaptur
Keating
Kelly (IL)
Kennedy (NY)
Khanna
Krishnamoorthi
Landsman
Larsen (WA)
Larson (CT)
Latimer
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Liccardo
Lieu
Lofgren
Lynch
Magaziner
Mannion
Massie
Matsui
McBath
McBride
McClain Delaney
McClellan
McCollum
McDonald Rivet
McGarvey
McGovern
McIver
Meeks
Menendez
Meng
Mfume
Min
Moore (WI)
Morelle
Morrison
Moskowitz
Moulton
Mrvan
Mullin
Nadler
Neal
Neguse
Norcross
Ocasio-Cortez
Olszewski
Omar
Pallone
Panetta
Pappas
Pelosi
Peters
Pettersen
Pingree
Pocan
Pou
Pressley
Quigley
Ramirez
Randall
Raskin
Riley (NY)
Rivas
Ross
Ruiz
Ryan
Salinas
Sánchez
Scanlon
Schakowsky
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Simon
Smith (WA)
Sorensen
Soto
Stansbury
Stanton
Stevens
Strickland
Subramanyam
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Tran
Underwood
Vargas
Vasquez
Veasey
Velázquez
Vindman
Wasserman Schultz
Waters
Watson Coleman
Whitesides
Williams (GA)
Wilson (FL)

NOT VOTING—2

Green (TN)
Suozzi

□ 0045

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

AUTHORIZING THE CLERK TO MAKE CORRECTIONS IN ENGROSSMENT OF H.R. 4016, DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2026

Mr. CALVERT. Mr. Speaker, I ask unanimous consent that, in the engrossment of H.R. 4016, the Clerk will be authorized to correct section numbers, punctuation, cross-references, and to make such other technical and conforming changes as may be necessary to reflect the actions of the House in amending the bill, and that the second instruction in amendment No. 40 printed in House Report 119–199 be changed from page 39, line 19 to page 40, line 19.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

MOMENT OF SILENCE FOR CONGRESSMAN WILLIAM CLAY

(Mr. BELL asked and was given permission to address the House for 1 minute.)

Mr. BELL. Mr. Speaker, today our country lost a true trailblazer. Congressman William Clay passed away after a lifetime of service that reshaped St. Louis and our Nation.

Already a civil rights icon before he was elected, he didn't come to Washington to play politics. He came to fight for working people, Black families, union members, and those too often left out and unheard. He carried their voices into this Chamber and made sure they echoed.

Bill Clay was a founding member of the Congressional Black Caucus. I and so many others would not be here without the doors he opened and the example he set.

Mr. Speaker, I yield to the gentleman from Missouri (Mr. CLEAVER).

Mr. CLEAVER. Mr. Speaker, as I sat on the bed this morning, trying to get up, I received a phone call to tell me that Congressman Bill Clay had just passed. I sat there for a few minutes, feeling sad.

Then it occurred to me that death is not the greatest loss in life. The greatest loss in life is to die with a life not lived and still inside a man.

Bill Clay did not die with hope for his country inside him. He did not die with his brilliant writing inside him. He did not die with creativity. Bill Clay did not die without working every day he walked into this place for the people of St. Louis.

Mr. BELL. Mr. Speaker, I hold his son, my friend and predecessor, Lacy Clay; the entire Clay family; and the St. Louis community in my prayers.

Mr. Speaker, on behalf of myself, the entire CBC, which he helped found, and the Missouri delegation, I ask for a moment of silence in memory of the Honorable William Lacy Clay, Sr.

□ 0050

RESIGNATION FROM THE HOUSE OF REPRESENTATIVES

The SPEAKER pro tempore laid before the House the following resignation from the House of Representatives:

HOUSE OF REPRESENTATIVES,
Washington, DC, July 3, 2025.

Hon. MIKE JOHNSON,
Speaker, House of Representatives,
Washington, DC.

DEAR SPEAKER JOHNSON: Enclosed is my letter of retirement sent to Tennessee Governor Bill Lee. I will leave the United States House of Representatives effective July 20, 2025, at 11:59 p.m. EST.

Thank you for your steadfast leadership to advance the conservative principles we both hold dear. I appreciate your friendship over the years and look forward to seeing what incredible feats the House of Representatives will accomplish for the American people.

Please do not hesitate to call on me if you need assistance.

Sincerely,

MARK E. GREEN, M.D.,
Member of Congress.

HOUSE OF REPRESENTATIVES,
Washington, DC, July 3, 2025.

Hon. BILL LEE,
Governor of Tennessee,
Nashville, TN.

Hon. Tre Hargett,
Tennessee Secretary of State,
Nashville, TN.

DEAR GOVERNOR LEE: I'm writing to notify you of my retirement as a Member of the United States House of Representatives for the 7th Congressional District of Tennessee effective July 20, 2025, at 11:59 p.m. EST.

It has been my honor to represent the people of Tennessee, and I appreciate your leadership for our great state.

Sincerely,

MARK E. GREEN, M.D.,
Member of Congress.

RECOGNIZING TARQUIN BENNION

(Mr. DOWNING asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DOWNING. Mr. Speaker, I rise today to recognize an extraordinary young Montanan, Tarquin Bennion, who will make his Carnegie Hall debut on July 20.

Tarquin hails from Sidney, Montana, and is one of the 28 violinists from around the country headed to the Big Apple to perform with the National Youth Orchestra of the United States.

Not only will he debut in New York, he will also represent our Nation and

our State as he tours internationally in Japan, Hong Kong, China, and South Korea.

Tarquin's journey began at the age of 5 when his mother, who taught herself to play the violin at age 34, inspired him to pursue music. Since then, his passion has taken him to venues like the Montana Senate Chamber where he performed a piece from Mozart's Violin Concerto No. 4 during his time as a page.

Mr. Speaker, Tarquin's remarkable talent and dedication are an inspiration to his peers and to his State. I congratulate him on this incredible accomplishment and wish him the best of luck in his bright future. I know this is just the beginning.

AMERICA FACES A HOUSING CRISIS

(Mr. LICCARDO asked and was given permission to address the House for 1 minute.)

Mr. LICCARDO. Mr. Speaker, America faces a housing crisis. One part of the solution to that crisis, though, lies right in our backyards. The solution has many names: granny flats, backyard cottages, or accessory dwelling units, but all expand our affordable housing supply.

When I was mayor of San Jose, we made building backyard apartments easier by enabling thousands of homeowners to be able to get their permits online in a single day. The problem, though, is that many homeowners of modest means could never get a shovel in the ground because they couldn't get financing.

We talked to the banks and the banks said they would lend if homeowners could get FHA insurance, or if Fannie or Freddie would backstop the loans.

Today, along with my Republican colleague ANDREW GARBARINO, I have introduced a bill to do just that. The bipartisan SUPPLY Act will empower homeowners to become home providers.

Mr. Speaker, together we can make affordable housing a reality for thousands more Americans.

ADJOURNMENT FROM FRIDAY, JULY 18, 2025, TO MONDAY, JULY 21, 2025

Mr. CARTER of Georgia. Mr. Speaker, I ask unanimous consent that when the House adjourns today, it adjourn to meet at noon on Monday next for morning-hour debate and 2 p.m. for legislative business.

The SPEAKER pro tempore (Mr. OBERNOLTE). Is there objection to the request of the gentleman from Georgia?

There was no objection.

SUSAN MASON: SAVANNAH'S STYLE AND SERVICE ICON

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTER of Georgia. Mr. Speaker, I rise today to recognize Ms. Susan Mason, a resident of Savannah, Georgia, who has dedicated 40 years of her life to bringing elegance, excellence, and warmth to thousands of life's most meaningful celebrations.

When Susan Mason founded her catering company in 1985, she was recently divorced, living rent-free in a friend's home, and inspired by a then-up-and-coming Martha Stewart.

What she lacked in resources, she made up for with resolve, talent, and a sparkling sense of humor. Over the next four decades, Susan Mason Catering became synonymous with silver service, culinary perfection, and timeless Southern style. Whether planning wrap parties for A-list celebrities or elegant weddings for local families, she made sure every detail was flawless.

She is now 85 years young and still very much at the center of the party. With her signature wit and stylish presence, she has become both a cultural fixture and a business force in Savannah.

Mr. Speaker, Susan Mason represents the very best of resilience, charm, and entrepreneurial spirit. It is an honor to recognize her today for 40 years of extraordinary service.

EDESIA PRODUCT STILL IN WAREHOUSE

(Mr. MAGAZINER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MAGAZINER. Mr. Speaker, I rise today for the 30th time to call on the Trump administration to restore life-saving food aid for starving children.

When children are starving, their organs shut down. At a certain point, they are not able to eat traditional food anymore. Ready-to-use therapeutic food is the only chance they have to survive and to get back to health.

Right now in Rhode Island, there are 87,000 boxes of ready-to-use therapeutic foods, already bought and paid for, but sitting in a warehouse because the Trump administration has frozen this aid.

It is time for the administration to honor the will of Congress, to honor its own commitment, and to do the right thing and get this food to the kids around the world who need it. I will keep speaking out every day until they do.

NO MORE MILITARY AID TO ISRAEL

(Mr. GREEN of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GREEN of Texas. Mr. Speaker, tonight, I voted against sending more military aid to Israel. I voted against it because I saw it as I currently see it, as a vote against collective punishment, a vote against ethnic cleansing, and a vote against genocide appearing before my very eyes.

I refuse to have my fingerprints, my imprimatur on the killing of innocent people, including children. I voted ''no.'' I will not become a ''yes'' because Mr. Netanyahu doesn't want peace. He wants all of Palestine. My imprimatur will not be on it.

SAIF MUSALLET KILLING

(Mr. TAKANO asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. TAKANO. Mr. Speaker, I rise to express my shock and outrage over the killing of Saif Musallet, a 20-year-old Palestinian American from Florida who was visiting his family in the West Bank.

He was beaten on his own family's land by settlers. We have grown too used to this kind of violence. We have grown weary of news reports detailing the onslaught of deaths, but we should never accept the killing of innocence, let alone the killing of an innocent American citizen.

In an unusual and forceful statement, Ambassador Huckabee called the killing a ''criminal and terrorist act'' and urged Israeli authorities to conduct a full investigation and bring those responsible to justice.

I echo the call of the ambassador for an investigation and ask my colleagues to do the same. The United States Congress cannot allow silence to reign and complicity to creep in. Instead, we must demand justice.

□ 0100

DON'T GIVE AWAY CHARITY TOO EASILY

(Mr. GROTHMAN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GROTHMAN. Mr. Speaker, as we leave the Capitol for the weekend, I want to leave the body here with a little bit of thought. I am going to quote from a book called ''The Tragedy of American Compassion,'' by Marvin Olasky. It is now a 30-year-old book.

It is an interesting book in that it deals with what we have today called welfare. At the time that was all privatized. I am going to quote from the Society for the Prevention of Pauperism of the City of New York on what they felt was the cause of pauperism at the time and what had to be done to end it.

It listed 10 causes of pauperism. People in the 1820s were brighter than the people today. They listed ignorance, idleness, intemperance, which I take to mean drunkenness, want of economy, imprudent and hasty marriages—you don't hear that one anymore, but they

thought it was one of the top 10—lotteries, pawnbrokers, brothels, gambling houses, and the most interesting one, the vice of charities that gave away money too freely.

When we return next week, let's remember the wisdom from the Society for the Prevention of Pauperism and not give away charity too easily.

AFL–CIO SCORING CRYPTO BILLS

(Mr. SHERMAN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SHERMAN. Mr. Speaker, today is the so-called culmination of crypto week.

The AFL–CIO has sent a letter to every Member, saying that these bills are an attack on working families and that they will score your vote on these issues, and to vote ''no'' on both bills.

Mr. Speaker, I ask unanimous consent to include in the RECORD the ALF-CIO correspondence.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

AFL–CIO SCORING CRYPTO BILLS

DEAR LEGISLATIVE DIRECTORS: I've received several queries about whether the AFL–CIO is scoring the votes on the GENIUS Act and CLARITY Act, which we oppose (see the attached Legislative Alert). The answer is yes, we are scoring these votes. When we send a House-wide or Senate-wide Legislative Alert urging a particular vote is scored.

To reiterate, our concern about these bills is that they shield crypto from proper oversight and regulation. We know from experience that a failure to oversee or properly regulate financial instruments or securities puts workers' and retirees' pensions and 401k plans at risk and can destabilize the economy and threaten jobs. These bills are flashing red danger lights. We urge Members to vote no on these bills. Thank you!

JODY CALEMINE,
Director of Advocacy, AFL–CIO

AFL–CIO,
LEGISLATIVE ALERT,
July 16, 2025.

DEAR REPRESENTATIVE: On behalf of the AFL–CIO, I am writing to urge you to oppose two bills on crypto currency that may soon be up on the House floor for a vote this week. The GENIUS Act, (S. 1582) and the CLARITY Act (HR 3633) pose risks to both retirement funds and to the overall financial stability of the U.S. economy. Instead of regulating crypto currency, these bills will enable the crypto industry to operate without effective oversight, and this will endanger the financial health of working people.

POORLY REGULATED CRYPTO ASSESTS ARE DANGEROUS TO PENSIONS

Unions strongly support workers having retirement benefits and regularly negotiate for pension plans in employment contracts. But retirement plans are only solvent if their assets are protected from fraud and unethical practices. Neither of these bills provide a regulatory structure for crypto assets or stablecoin that is similar to that of other assets in pensions. While currently most pensions do not carry crypto assets because of the risks associated with them, the bills provide the facade of regulation that may make these assets more mainstream in portfolios. Passing this legislation will allow the proliferation of assets that investors will wrongly perceive as safe.

But the problem with these bills is more significant than they do not provide strong regulations for pensions; if they are passed they will reduce the safety of many assets and create problems across retirement investments. We are particularly concerned that a loophole in the CLARITY Act (HR 3633) would allow non-crypto companies to put their stock on the blockchain and evade the entire securities regulatory framework that currently exists. This would reduce reporting requirements, disclosures and other obligations. These changes would put pensions and 401k plans in jeopardy of having unsafe assets even if they were invested in traditional securities.

Because we believe in strong, safe pensions that are there for workers in their retirement, we oppose these bills and ask that you do the same.

FINANCIAL INSTABILITY WOULD INCREASE

The AFL–CIO has always supported measures that properly regulate financial markets so that working people are not cheated of their hard earned wages. In the aftermath of the 2008 financial crisis which had its genesis in unregulated derivatives markets and widespread fraudulent banking activities, we supported legislation that created the Consumer Financial Protection Bureau (CFPB) and strengthened financial regulations through the Dodd-Frank Act.

The GENIUS and CLARITY Acts do not protect consumers, workers or the financial system and instead they expose all to more risk. The GENIUS Act would allow tech companies to become de facto banks or issuers of a corporate currency, without requiring them to adhere to equivalent bank regulatory oversight. Stablecoins are not inherently stable and the assets that are permitted to back the value of stablecoins in the bill are not sufficiently strong. Thus, a situation similar to the failure of Silicon Valley Bank (SVB), which was brought about by the failure of the stablecoin peg, looms large. The bills also do little to curb the fraud, illegal activity and corruption that continues to be prevalent in anonymous crypto markets. As such, these bills provide the perfect environment for the next financial crisis to germinate.

OPPOSE THESE BILLS

For all the reasons above and more, the AFL–CIO strongly urges you to vote no on the GENIUS Act, (S. 1582) and no on the CLARITY Act (HR 3633). Working people need policies that effectively regulate financial markets and ensure that hard earned retirement benefits are not endangered by risky assets. We need to make sure that the financial system is stable instead of creating a casino for crypto billionaires to make more profits.

Sincerely,

JODY CALEMINE,
Director, Government Affairs.

Mr. SHERMAN. Mr. Speaker, this shows what Trump had to say about crypto before he learned he could make money from it.

The bills we have allow the President and the Vice President to sponsor crypto. It means they can print their electronic monopoly money. China is buying $300 million, and Abu Dhabi has agreed to buy $2 billion of Trump coin or Trump stablecoin.

It allows for bailouts by the Fed. Jerome Powell won't bail out Trump coin, but the next Fed Chair will.

It allows for the purchase with your U.S. tax dollars of Bitcoin or Trump coin.

The third bill says that innovation is wonderful except if the U.S. Government does it.

Vote ''no'' on all three bills.

ENROLLED BILLS SIGNED

Kevin F. McCumber, Clerk of the House, reported and found truly an enrolled bill of the House of the following title, which was thereupon signed by the Speaker on Thursday, July 17, 2025:

H.R. 1815. An Act to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to take certain actions in the case of a default on a home loan guaranteed by the Secretary, and for other purposes.

Kevin F. McCumber, Clerk of the House, further reported and found truly an enrolled bill of the House of the following title, which was thereupon signed by the Speaker:

H.R. 4. An Act to rescind certain budget authority proposed to be rescinded in special messages transmitted to the Congress by the President on June 3, 2025, in accordance with section 1012(a) of the Congressional Budget and Impoundment Control Act of 1974.

SENATE ENROLLED BILLS SIGNED

The Speaker, on Thursday, July 17, 2025, announced his signature to enrolled bills of the Senate of the following titles:

S. 1582—An act to provide for the regulation of payment stablecoins, and for other purposes.

S. 1596—An act to rename the Anahauc National Wildlife Refuge located in the State of Texas as the ''Jocelyn Nungaray National Wildlife Refuge''.

BILLS PRESENTED TO THE PRESIDENT

Kevin F. McCumber, Clerk of the House, reported that on July 3, 2025, the following bills were presented to the President of the United States for approval:

H.R. 1. To provide for reconciliation pursuant to title II of H. Con. Res. 14.

H.R. 2215. To redesignate the Salem Maritime National Historic Site as the ''Salem Maritime National Historical Park'', and for other purposes.

H.R. 618. To amend the Apex Project, Nevada Land Transfer and Authorization Act of 1989 to include the City of North Las Vegas and the Apex Industrial Park Owners Association, and for other purposes.

H.R. 43. To amend the Alaska Native Claims Settlement Act to provide that Village Corporations shall not be required to convey land in trust to the State of Alaska for the establishment of Municipal Corporations, and for other purposes.

H.R. 42. To amend the Alaska Native Claims Settlement Act to exclude certain payments to aged, blind, or disabled Alaska Natives or descendants of Alaska Natives from being used to determine eligibility for certain programs, and for other purposes.

Kevin F. McCumber, Clerk of the House, further reported that on July 17, 2025, the following bill was presented to the President of the United States for approval:

H.R. 517. To amend the Internal Revenue Code of 1986 to modify the rules for postponing certain deadlines by reason of disaster.

ADJOURNMENT

Mr. GROTHMAN. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 1 o'clock and 1 minute a.m.), on Friday, July 18, 2025, (legislative day of Thursday, July 17, 2025), under its previous order, the House adjourned until Monday, July 21, 2025, at noon for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

EC–1440. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Federal Railroad Administration's System Safety Program Regulations [Docket No.: FRA-2025-0112] (RIN: 2130-AD53) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC–1441. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Reflectorization of Rail Freight Rolling Stock Regulations [Docket No.: FRA-2025-0092] (RIN: 2130-AD21) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1442. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Railroad Accidents/Incidents: Reports Classification, and Investigations Regulations [Docket No.: FRA-2025-0093] (RIN: 2130-AD23) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1443. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Federal Railroad Administration's Control of Alcohol and Drug Use Regulations [Docket No.: FRA-2025-0087] (RIN: 2130-AD15) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1444. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Railroad Communications Regulations [Docket No.: FRA-2025-0088] (RIN: 2130-AD16) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1445. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Rear End Marking Device-Passenger, Commuter and Freight Trains Regulations [Docket No.: FRA-2025-0089] (RIN: 2130-AD17) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1446. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Use of Locomotive Horns at Public Highway-Rail Grade Crossings Regulations [Docket No.: FRA-2025-0090] (RIN: 2130-AD19) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1447. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Federal Railroad Administration's Track Safety Standards [Docket No.: FRA-2025-0081] (RIN: 2130-AD08) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1448. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Federal Railroad Administration's Railroad Workplace Safety Regulations [Docket No.: FRA-2025-0082] (RIN: 2130-AD09) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1449. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Federal Railroad Administration's Special Notice and Emergency Order Procedures: Railroad Track, Locomotive, and Equipment [Docket No.: FRA-2025-0085] (RIN: 2130-AD12) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1450. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Safety Glazing Standards Regulations [Docket No.: FRA-2025-0091] (RIN: 2130-AD20) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1451. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Federal Railroad Administration's Rules of Practice [Docket No.: FRA-2025-0079] (RIN: 2130-AD06) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1452. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Federal Railroad Administration's State Safety Participation Regulations [Docket No.: FRA-2025-0080] (RIN: 2130-AD07) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1453. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Federal Railroad Administration's Critical Incident Stress Plans Regulations [Docket No.: FRA-2025-0114] (RIN: 2130-AD45) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1454. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Federal Railroad Administration's Safety Integration Plans Governing Railroad Consolidations, Mergers, and Acquisitions of Control Regulations [Docket No.: FRA-2025-0111] (RIN: 2130-AD48) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1455. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Federal Railroad Administration's Risk Reduction Program Regulations [Docket No.: FRA-2025-0113] (RIN: 2130-AD52) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1456. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Bridge Safety Standards Regulations [Docket No.: FRA-2025-0105] (RIN: 2130-AD40) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1457. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Passenger Equipment Safety Standards Regulations [Docket No.: FRA-2025-0106] (RIN: 2130-AD41) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1458. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Passenger Train Emergency Preparedness Regulations [Docket No.: FRA-2025-0107] (RIN: 2130-AD42) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1459. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final — Administrative Updates to the Training, Qualification, and Oversight for Safety-Related Railroad Employees Regulations [Docket No.: FRA-2025-0110] (RIN: 2130-AD43) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1460. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Updating the Definition of Person [Docket No.: FRA-2025-0115] (RIN: 2130-AD56) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1461. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting

the Department's final rule — Repealing a Redundant Reporting Requirement [Docket No.: FRA-2025-0104] (RIN: 2130-AD47) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1462. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Modernizing Dispatcher's Record of Train Movements [Docket No.: FRA-2025-0125] (RIN: 2130-AD36) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1463. A letter from the Attorney Advisor, Federal Railroad Administration, Department of Transportation, transmitting the Department's final rule — Administrative Updates to the Federal Railroad Administration's Railroad Operating Practices Regulations [Docket No.: FRA-2025-0086] (RIN: 2130-AD13) received July 8, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–1464. A letter from the Honors Attorney, Office of Chief Counsel, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, transmitting the Department's final rule — Pipeline Safety: Editorial Change To Reflect the Name Change of the Gulf of Mexico to the Gulf of America [Docket No.: PHMSA-2025-0034; Amdt. Nos.: 191-34; 192-139; 195-108] (RIN: 2137-AF72) received June 25, 2025, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Ms. FOXX: Committee on Rules. House Resolution 590. Resolution relating to consideration of the Senate amendment to the bill (H.R. 4) to rescind certain budget authority proposed to be rescinded in special messages transmitted to the Congress by the President on June 3, 2025, in accordance with section 1012(a) of the Congressional Budget and Impoundment Control Act of 1974 (Rept. 119–208). Referred to the House Calendar.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. THOMPSON of Pennsylvania (for himself, Mr. THOMPSON of California, Mr. BILIRAKIS, and Mrs. DINGELL):

H.R. 4475. A bill to amend title XVIII of the Social Security Act to protect beneficiaries with limb loss and other orthopedic conditions by providing access to appropriate, safe, effective, patient-centered orthotic and prosthetic care, to reduce fraud, waste, and abuse with respect to orthotics and prosthetics, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. BONAMICI (for herself, Ms. DEXTER, Ms. HOYLE of Oregon, Ms. PINGREE, Ms. NORTON, Ms. CHU, Ms. OMAR, Ms. BARRAGÁN, Mr. TONKO, Ms. VELÁZQUEZ, Ms. SALINAS, Mr. CORREA, and Ms. MATSUI):

H.R. 4476. A bill to limit the use of Federal law enforcement officers for crowd control, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. BONAMICI (for herself, Mr. BACON, and Ms. SALINAS):

H.R. 4477. A bill to establish a manufactured housing community improvement grant program, and for other purposes; to the Committee on Financial Services.

By Mr. MOORE of North Carolina (for himself and Mr. TORRES of New York):

H.R. 4478. A bill to amend the Federal Deposit Insurance Act to permit Federal banking agencies to examine qualifying insured depository institutions with under $6 billion in total assets not less than once during each 18-month period, and for other purposes; to the Committee on Financial Services.

By Mr. LICCARDO (for himself, Mr. CLEAVER, Mr. SHERMAN, Mr. THOMPSON of California, Mr. RUIZ, Mr. SOTO, Mr. PETERS, Mr. GARAMENDI, Mr. SWALWELL, Ms. MCBRIDE, Ms. GOODLANDER, Mr. FIELDS, Ms. ELFRETH, Mr. GRAY, Mr. CISNEROS, Mr. STANTON, and Mr. HARDER of California):

H.R. 4479. A bill to amend the National Housing Act to direct the Secretary of Housing and Urban Development to establish a program to insure certain second liens secured against property for the purpose of financing the construction of an accessory dwelling unit, and for other purposes; to the Committee on Financial Services.

By Mr. BARRETT:

H.R. 4480. A bill to amend the Robert T. Stafford Disaster Relief and Emergency Assistance Act to direct the President to designate a Veteran Advocate of the Federal Emergency Management Agency, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. ADERHOLT (for himself, Mr. MOSKOWITZ, Mr. PANETTA, and Mr. ZINKE):

H.R. 4481. A bill to amend the Arms Export Control Act to modify the authorities relating to the Special Defense Acquisition Fund; to the Committee on Foreign Affairs.

By Mr. AMO (for himself, Mr. HUFFMAN, Ms. LOFGREN, Mr. DAVIS of Illinois, Ms. TLAIB, Ms. ELFRETH, Mr. ESPAILLAT, Ms. VELÁZQUEZ, Mr. MULLIN, Ms. BROWNLEY, Mr. PALLONE, Ms. ANSARI, Mr. SMITH of Washington, Ms. STEVENS, Mr. MAGAZINER, Mr. KRISHNAMOORTHI, Ms. GARCIA of Texas, Ms. SIMON, Mrs. WATSON COLEMAN, Mrs. CHERFILUS-MCCORMICK, Ms. NORTON, Ms. PLASKETT, Mrs. DINGELL, Mr. NEGUSE, Mr. LYNCH, Ms. TOKUDA, Mrs. SYKES, Mr. PANETTA, Mr. KENNEDY of New York, Ms. STRICKLAND, Ms. KAPTUR, Ms. JACOBS, Ms. BARRAGÁN, Mr. KEATING, Ms. WASSERMAN SCHULTZ, Mr. CLEAVER, Mr. GARAMENDI, Ms. CASTOR of Florida, Ms. ROSS, Mr. JOHNSON of Georgia, Mr. STANTON, Mr. FIELDS, Ms. SALINAS, Mr. CORREA, Ms. SCANLON, Mr. BEYER, Mr. CARBAJAL, Mr. SUBRAMANYAM, Ms. BONAMICI, Mrs. FOUSHEE, Mr. IVEY, Mr. LATIMER, Mr. TONKO, Mrs. FLETCHER, Ms. TITUS, Mr. TAKANO, Mr. CASE, Ms. LOIS FRANKEL of Florida, Ms. DEXTER, Ms. SCHRIER, Ms. MCBRIDE, Mr. LANDSMAN, Mr. FROST, and Mr. COHEN):

H.R. 4482. A bill to impose a moratorium on closing, suspending, terminating leases of, ceasing construction of, consolidating, or otherwise imposing any new limitation on access to facilities of the National Oceanic and Atmospheric Administration, and for other purposes; to the Committee on Natural Resources, and in addition to the Committees on Science, Space, and Technology, and Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. ARRINGTON (for himself, Ms. VAN DUYNE, Mr. GOSAR, and Mr. ROSE):

H.R. 4483. A bill to require any State to reimburse the Federal Government for costs incurred when Federal military forces are deployed in response to civil disturbances or security threats caused by the State's refusal to cooperate with lawful Federal immigration enforcement; to the Committee on the Judiciary, and in addition to the Committees on Oversight and Government Reform, and Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BALDERSON (for himself, Mrs. DINGELL, Mrs. MILLER of West Virginia, and Ms. DELBENE):

H.R. 4484. A bill to expand psychological mental and behavioral health services to Medicare, Medicaid, and CHIP beneficiaries by permitting reimbursement of psychological services provided by certain supervised psychology trainees, and facilitating the reimbursement of those services; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. BROWNLEY:

H.R. 4485. A bill to establish an advisory panel to study the development of a climate-friendly certification for agricultural products, and for other purposes; to the Committee on Agriculture.

By Ms. BYNUM (for herself and Mr. STEUBE):

H.R. 4486. A bill to direct the Secretary of Health and Human Services, acting through the Commissioner of Food and Drugs, to conduct a study, and submit to Congress a report, on the human health impacts of exposure to microplastics in food and water; to the Committee on Energy and Commerce.

By Mr. CARSON (for himself, Mr. JOHNSON of Georgia, Mr. KRISHNAMOORTHI, Mr. THANEDAR, Mrs. MCBATH, and Ms. KELLY of Illinois):

H.R. 4487. A bill to make unlawful the sale of any firearm by a licensed manufacturer, licensed importer, or licensed dealer without a written notice promoting safe storage and a safe storage device, to create and disseminate best practices regarding safe firearm storage, to create a grant program for the distribution of safe storage devices, and to amend the Internal Revenue Code of 1986 to allow for a credit against tax for sales at retail of safe firearm storage devices, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CARTER of Georgia (for himself, Mr. LAWLER, Mr. CROW, and Mr. HARDER of California):

H.R. 4488. A bill to provide for the issuance of a Veterans Health Care Stamp; to the Committee on Oversight and Government Reform, and in addition to the Committee on Veterans' Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CASTRO of Texas (for himself and Ms. NORTON):

H.R. 4489. A bill to amend the Truth in Lending Act to require certain creditors to disclose dealer fees in solar financing transactions, and for other purposes; to the Committee on Financial Services.

By Mr. CASTRO of Texas (for himself, Mrs. KIM, Mr. OLSZEWSKI, Mr. JOHNSON of South Dakota, Mr. CASE, Mrs. RADEWAGEN, Mr. FOSTER, Mrs. CHERFILUS-MCCORMICK, and Mr. MEEKS):

H.R. 4490. A bill to amend the International Organizations Immunities Act to extend diplomatic privileges and immunities to certain additional international and regional organizations, and for other purposes; to the Committee on Foreign Affairs.

By Mr. CISNEROS (for himself and Mr. JACK):

H.R. 4491. A bill to require the Administrator of the Small Business Administration to implement certain recommendations relating to information technology modernization, and for other purposes; to the Committee on Small Business.

By Mr. CLINE (for himself and Ms. LOFGREN):

H.R. 4492. A bill to amend title 11, United States Code, to account for the protection of genetic information in bankruptcy; to the Committee on the Judiciary.

By Ms. DEXTER (for herself, Ms. VELÁZQUEZ, Ms. NORTON, Ms. ANSARI, Ms. RANDALL, Ms. BARRAGÁN, Ms. JAYAPAL, Mr. RUIZ, Mr. SCHNEIDER, Ms. SIMON, Mr. TONKO, Ms. TLAIB, Mr. CARBAJAL, Mr. BELL, and Mr. THANEDAR):

H.R. 4493. A bill to direct the Secretary of Health and Human Services to declare a public health emergency in connection with health risks associated with climate change, and for other purposes; to the Committee on Energy and Commerce.

By Mr. DONALDS:

H.R. 4494. A bill to amend the Internal Revenue Code of 1986 to provide an above-the-line deduction for flood insurance premiums; to the Committee on Ways and Means.

By Mr. DOWNING (for himself and Mr. CONAWAY):

H.R. 4495. A bill to extend the statute of limitations for fraud under certain pandemic programs, and for other purposes; to the Committee on Small Business.

By Mr. FOSTER (for himself, Ms. NORTON, Mr. THANEDAR, and Mr. SMITH of Washington):

H.R. 4496. A bill to direct the Secretary of Energy to fund projects to restore and modernize National Laboratories, and for other purposes; to the Committee on Science, Space, and Technology.

By Ms. GARCIA of Texas (for herself, Ms. TITUS, Mr. CASTEN, Mr. HUFFMAN, Mr. RUIZ, Mr. CASAR, Ms. NORTON, Mr. MULLIN, Mr. THANEDAR, Mr. FROST, and Mr. LAWLER):

H.R. 4497. A bill to amend the Robert T. Stafford Disaster Relief and Emergency Assistance Act to include extreme heat in the definition of a major disaster; to the Committee on Transportation and Infrastructure.

By Mr. TONY GONZALES of Texas (for himself, Ms. DE LA CRUZ, Mr. CUELLAR, Mr. VICENTE GONZALEZ of Texas, and Ms. ESCOBAR):

H.R. 4498. A bill to amend the Cranston-Gonzalez National Affordable Housing Act to update the eligibility requirements related to metropolitan statistical area population limits for the Community Development Block Grant Colonia Set-Aside Program; to the Committee on Financial Services.

By Mr. HARRIS of North Carolina:

H.R. 4499. A bill to make technical amendments to update statutory references to provisions reclassified to title 34, United States Code, and to correct related technical errors; to the Committee on the Judiciary.

By Mr. HURD of Colorado (for himself, Mr. MANN, Mr. EVANS of Colorado, and Mr. ROSE):

H.R. 4500. A bill to exempt certain livestock hauling vehicles from regulations relating to hours of service and electronic logging devices, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. HURD of Colorado (for himself, Mr. KELLY of Pennsylvania, Mrs. BICE, Mr. GROTHMAN, Mr. LAWLER, Mr. JACK, and Mr. FLEISCHMANN):

H.R. 4501. A bill to protect the citizenship of, and provide tax-exempt status to, any American elected as the Supreme Pontiff of the Roman Catholic Church; to the Committee on Ways and Means, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACOBS (for herself, Ms. DEAN of Pennsylvania, Mr. KEATING, and Mr. CASTRO of Texas):

H.R. 4502. A bill to impose requirements with respect to monitoring the operational use of sales, exports, and transfers of defense articles and services, and for other purposes; to the Committee on Foreign Affairs.

By Mr. JOHNSON of South Dakota (for himself and Mr. PETERS):

H.R. 4503. A bill to improve environmental reviews and authorizations through the use of interactive, digital, and cloud-based platforms, and for other purposes; to the Committee on Natural Resources.

By Ms. KAMLAGER-DOVE (for herself, Ms. MATSUI, Mr. CARBAJAL, and Ms. WASSERMAN SCHULTZ):

H.R. 4504. A bill to require the Secretary of the Treasury to establish a catastrophic property loss reinsurance program, and for other purposes; to the Committee on Financial Services.

By Ms. KAMLAGER-DOVE (for herself, Mr. HUIZENGA, Mr. MEEKS, and Mr. SHREVE):

H.R. 4505. A bill to strengthen enforcement of United States export controls by increasing the number of export control officers of the Bureau of Industry and Security of the Department of Commerce who are stationed in foreign regions; to the Committee on Foreign Affairs.

By Mr. KEATING (for himself and Mrs. KIM):

H.R. 4506. A bill to require the development of a strategy to promote the use of secure telecommunications infrastructure worldwide, and for other purposes; to the Committee on Foreign Affairs.

By Mrs. KIGGANS of Virginia (for herself and Mr. VINDMAN):

H.R. 4507. A bill to amend the Internal Revenue Code of 1986 to establish a temporary tax credit for eligible teachers who provide tutoring services, and for other purposes; to the Committee on Ways and Means.

By Mr. KRISHNAMOORTHI:

H.R. 4508. A bill to require Members of Congress to certify they meet work requirements applicable to beneficiaries under Medicaid and the supplemental nutrition assistance program, and for other purposes; to the Committee on House Administration, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. LANDSMAN (for himself, Mr. VAN ORDEN, Mr. PAPPAS, Mr. BERGMAN, Ms. SEWELL, and Mr. HAMADEH of Arizona):

H.R. 4509. A bill to amend title 38, United States Code, to ensure that the Secretary of Veterans Affairs furnishes certain non-opioid pain medications to veterans, and for other purposes; to the Committee on Veterans' Affairs.

By Ms. LEGER FERNANDEZ (for herself and Mr. FITZPATRICK):

H.R. 4510. A bill to amend the Family Violence Prevention and Services Act to authorize grants to strengthen relationships between health and wellness providers or systems (including for behavioral health) and community-based sexual assault programs to support survivors of sexual assault across the lifespan of the survivor, and for other purposes; to the Committee on Education and Workforce.

By Mr. LEVIN (for himself, Mr. LALOTA, Mr. NEGUSE, and Mr. OBERNOLTE):

H.R. 4511. A bill to amend the Federal Election Campaign Act of 1971 to prohibit the solicitation and acceptance of a recurring contribution or donation in a campaign for election for Federal office by any method which does not require the contributor or donor to give affirmative consent to making the contribution or donation on a recurring basis, and for other purposes; to the Committee on House Administration.

By Ms. MACE (for herself, Mr. GOSAR, Mr. GILL of Texas, and Ms. BOEBERT):

H.R. 4512. A bill to prohibit the availability of Federal funds for certain animal research, and for other purposes; to the Committee on Science, Space, and Technology.

By Ms. MALOY:

H.R. 4513. A bill to amend the Federal Land Policy and Management Act of 1976 to improve the management of grazing permits and leases, and for other purposes; to the Committee on Natural Resources, and in addition to the Committee on Agriculture, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MANNION:

H.R. 4514. A bill to provide tax incentives that support local newspapers and other local media, and for other purposes; to the Committee on Ways and Means.

By Ms. MATSUI (for herself, Mr. SCHNEIDER, Mr. CARBAJAL, Ms. BARRAGÁN, Ms. BONAMICI, Mr. CARSON, Mr. CASTEN, Ms. CHU, Mr. CLEAVER, Mr. COHEN, Mr. COSTA, Mr. ESPAILLAT, Mr. HUFFMAN, Ms. JAYAPAL, Mr. KRISHNAMOORTHI, Ms. NORTON, Ms. PINGREE, Mr. QUIGLEY, Ms. SCHAKOWSKY, Ms. STANSBURY, Mr. THANEDAR, Ms. TOKUDA, Mr. TONKO, and Mrs. WATSON COLEMAN):

H.R. 4515. A bill to direct the Secretary of Health and Human Services to develop and implement a program and national strategic action plan to prepare and empower the health care sector to protect the health and well-being of our workers, our communities,

and our planet in the face of the climate crisis, and for other purposes; to the Committee on Energy and Commerce.

By Mr. MEEKS (for himself, Ms. LOIS FRANKEL of Florida, Ms. MENG, Mr. AMO, Ms. JACOBS, Mr. NADLER, and Ms. WILLIAMS of Georgia):

H.R. 4516. A bill to require the Secretary of State to ensure that commodities procured for the purpose of foreign assistance are made available to intended beneficiaries before such commodities expire, and for other purposes; to the Committee on Foreign Affairs.

By Mr. MFUME (for himself, Ms. NORTON, Ms. ELFRETH, and Mr. DAVID SCOTT of Georgia):

H.R. 4517. A bill to amend section 485 of the Higher Education Act of 1965 to require certain institutions of higher education to develop and implement a venue-specific heat-related illnesses emergency action plan, and for other purposes; to the Committee on Education and Workforce.

By Mrs. MILLER-MEEKS (for herself, Ms. CRAIG, Mr. CRENSHAW, Ms. SCHRIER, Mr. MCDOWELL, Mr. DAVIS of North Carolina, Mr. SCHMIDT, Mr. SUOZZI, and Mr. VAN DREW):

H.R. 4518. A bill to amend the Controlled Substances Act to require electronic communication service providers and remote computing services to report to the Attorney General certain controlled substances violations; to the Committee on Energy and Commerce, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MOOLENAAR (for himself, Mr. COMER, Ms. FOXX, Ms. STEFANIK, Mr. DUNN of Florida, Mr. BILIRAKIS, and Mr. MORAN):

H.R. 4519. A bill to prohibit the District of Columbia government from entering into Sister City relationships with jurisdictions located in foreign adversary countries, and for other purposes; to the Committee on Oversight and Government Reform.

By Ms. MORRISON:

H.R. 4520. A bill to require the Small Business Administration to provide assistance with apply to SBIR and STTR programs to certain small business concerns, and for other purposes; to the Committee on Small Business, and in addition to the Committee on Science, Space, and Technology, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. NORMAN (for himself, Mrs. MILLER of Illinois, Mr. STANTON, and Mr. WEBER of Texas):

H.R. 4521. A bill to award a Congressional Gold Medal to Chad Robichaux, Sarah Verardo, Tim Kennedy, Kevin Rourke, Sean Gabler, Dave Johnson, and Dennis Price, in recognition of their exceptional efforts and selfless dedication during the Afghanistan evacuation in 2021, which led to the safe evacuation of over 17,000 people from Taliban-controlled Afghanistan; to the Committee on Financial Services, and in addition to the Committee on House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. NUNN of Iowa:

H.R. 4522. A bill to provide for working with allies to seek increased compliance by China with certain OECD export credit standards; to the Committee on Financial Services.

By Mr. ONDER:

H.R. 4523. A bill to make technical amendments to title 49, United States Code, as necessary to improve the Code; to the Committee on the Judiciary.

By Ms. PRESSLEY (for herself, Mr. GARCIA of California, Ms. ADAMS, Mrs. BEATTY, Mr. BISHOP, Ms. BROWN, Mr. CARSON, Mr. CLYBURN, Ms. CROCKETT, Mr. DAVIS of Illinois, Mr. FIELDS, Mrs. FOUSHEE, Mr. FROST, Ms. GARCIA of Texas, Mr. HORSFORD, Mr. JACKSON of Illinois, Ms. JAYAPAL, Mr. JOHNSON of Georgia, Ms. KAMLAGER-DOVE, Ms. KELLY of Illinois, Mr. KENNEDY of New York, Ms. LEE of Pennsylvania, Mr. LYNCH, Mrs. MCIVER, Mr. MEEKS, Mr. MFUME, Ms. NORTON, Ms. OCASIO-CORTEZ, Ms. OMAR, Ms. PLASKETT, Mrs. RAMIREZ, Mr. RASKIN, Ms. SIMON, Mr. SOTO, Ms. STANSBURY, Ms. TLAIB, Ms. VELÁZQUEZ, Mrs. WATSON COLEMAN, and Ms. WILLIAMS of Georgia):

H.R. 4524. A bill to amend titles 5, 31, and 44, United States Code, to improve the equitable provision of services to underserved communities and individuals, to establish an Agency Equity Advisory Team, and for other purposes; to the Committee on Oversight and Government Reform.

By Ms. ROSS (for herself, Ms. SCHRIER, Ms. CASTOR of Florida, Mrs. TRAHAN, and Mrs. FLETCHER):

H.R. 4525. A bill to protect an individuals ability to access medicines approved by the Food and Drug Administration to protect a health care providers ability to provide such medicines, and information related to such medicines; to the Committee on Energy and Commerce.

By Mr. RUIZ (for himself, Ms. TENNEY, and Mr. BILIRAKIS):

H.R. 4526. A bill to authorize the use of expeditionary solid waste disposal systems by the Department of Defense and to provide funding for solid waste disposal systems, with an offset, and for other purposes; to the Committee on Armed Services.

By Mr. RUIZ (for himself and Mr. BILIRAKIS):

H.R. 4527. A bill to require the Secretary of Defense and the Secretary of Veterans Affairs to permit supplementation of health records of deceased veterans, and for other purposes; to the Committee on Armed Services, and in addition to the Committee on Veterans' Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. SCHAKOWSKY (for herself, Mr. DELUZIO, Ms. NORTON, Mr. NADLER, Ms. SCANLON, Ms. TLAIB, Ms. JAYAPAL, Mr. TONKO, Mr. KHANNA, Mr. JOHNSON of Georgia, Ms. DELAURO, Ms. CRAIG, and Ms. GOODLANDER):

H.R. 4528. A bill to make price gouging unlawful, to expand the ability of the Federal Trade Commission to seek permanent injunctions and equitable relief, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. DAVID SCOTT of Georgia (for himself, Mr. JACKSON of Illinois, Ms. ADAMS, Mr. BISHOP, Ms. BROWN, Mr. CARSON, Mr. CARTER of Louisiana, Mr. COHEN, Mr. FIELDS, Mr. FIGURES, Mr. JOHNSON of Georgia, Ms. KELLY of Illinois, Ms. MCCLELLAN, Ms. SEWELL, Mr. SOTO, Ms. STRICKLAND, Mr. THANEDAR, Ms. TOKUDA, Ms. WATERS, Ms. WILLIAMS of Georgia, Ms. WILSON of Florida, and Mrs. WATSON COLEMAN):

H.R. 4529. A bill to increase market access for Black farmers and socially disadvantaged farmers and ranchers, to ensure civil rights accountability, and for other purposes; to the Committee on Agriculture, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SELF (for himself and Mr. CASE):

H.R. 4530. A bill to apply licensing requirements under the Export Control Reform Act of 2018 to subsidiaries of entities listed on the Entity List or Military End User List, and for other purposes; to the Committee on Foreign Affairs.

By Mr. SHREVE (for himself, Mr. GOTTHEIMER, Mr. HUIZENGA, Ms. SALAZAR, and Mr. MESSMER):

H.R. 4531. A bill to require a strategy to counter Iranian and Hezbollah influence operations in Latin America; to the Committee on Foreign Affairs.

By Mr. STANTON (for himself and Mr. KEAN):

H.R. 4532. A bill to direct the Secretary of State to develop a strategy on efforts to strengthen subnational cooperation between the United States and Mexico, and for other purposes; to the Committee on Foreign Affairs.

By Mr. STEUBE:

H.R. 4533. A bill to codify Executive Order 14172; to the Committee on Natural Resources.

By Mr. STEUBE:

H.R. 4534. A bill to codify Executive Order 14191 relating to expanding educational freedom and opportunity for families, and for other purposes; to the Committee on Education and Workforce, and in addition to the Committee on Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. TAYLOR (for himself, Mr. HARRIGAN, Mr. WIED, Mrs. MILLER of Illinois, Mr. FINE, Mr. BARRETT, Mr. HAMADEH of Arizona, and Ms. BOEBERT):

H.R. 4535. A bill to require the Secretary of Defense to submit a report on foreign-made small arms and light weapons, and for other purposes; to the Committee on Armed Services.

By Mr. TIMMONS:

H.R. 4536. A bill to recognize and reward exceptional physical fitness among members of the Armed Forces serving on active duty and to promote physical readiness and overall health in the Armed Forces; to the Committee on Armed Services, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. TORRES of New York:

H.R. 4537. A bill to amend the Internal Revenue Code of 1986 to allow a credit against tax for expenses relating to the purchase and installation of qualified emissions control devices on or in connection with qualified cook stoves or qualified char broilers of eligible small restaurant businesses, and for other purposes; to the Committee on Ways and Means.

By Mr. TURNER of Ohio:

H.R. 4538. A bill to prohibit covered entities from requiring consumers to solely use digital monthly statements, and for other

purposes; to the Committee on Financial Services.

By Ms. VELÁZQUEZ (for herself, Mrs. CHERFILUS-MCCORMICK, Ms. SÁNCHEZ, Mrs. MCIVER, Ms. STRICKLAND, Mr. MEEKS, Ms. NORTON, Mr. ESPAILLAT, Mr. JOHNSON of Georgia, Ms. KAMLAGER-DOVE, Ms. CROCKETT, and Ms. SEWELL):

H.R. 4539. A bill to direct the Secretary of Labor to award grants to States for the purpose of providing subgrants to eligible entities for education and technical training on how to perform cosmetology services on textured hair; to the Committee on Education and Workforce.

By Mr. VINDMAN (for himself and Mr. MILLS):

H.R. 4540. A bill to amend title 38, United States Code, to expand the ability of an individual entitled to Post-9/11 education benefits to transfer such benefits to dependents; to the Committee on Veterans' Affairs.

By Ms. WASSERMAN SCHULTZ (for herself, Mrs. MILLER-MEEKS, Ms. CASTOR of Florida, Mr. FITZPATRICK, Mrs. DINGELL, and Mrs. HARSHBARGER):

H.R. 4541. A bill to reauthorize the Young Women's Breast Health Education and Awareness Requires Learning Young Act of 2009; to the Committee on Energy and Commerce.

By Ms. WASSERMAN SCHULTZ (for herself, Mr. FROST, Ms. CASTOR of Florida, Mr. SOTO, Ms. LOIS FRANKEL of Florida, Ms. WILSON of Florida, Mrs. CHERFILUS-MCCORMICK, and Mr. MOSKOWITZ):

H.R. 4542. A bill to prohibit the operation and funding of an immigration detention facility in the Everglades, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Homeland Security, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. WATERS (for herself, Ms. GARCIA of Texas, Ms. NORTON, Ms. VELÁZQUEZ, Ms. WASSERMAN SCHULTZ, Mrs. DINGELL, Ms. CLARKE of New York, Mr. FIELDS, Mr. JOHNSON of Georgia, Ms. TLAIB, Mr. THOMPSON of Mississippi, Ms. SEWELL, Mr. GOTTHEIMER, Mrs. WATSON COLEMAN, Mr. THANEDAR, Ms. LEE of Pennsylvania, Mr. LATIMER, Ms. WILSON of Florida, Mr. VEASEY, Mr. COHEN, Mr. LYNCH, Mrs. MCIVER, Mr. GARCÍA of Illinois, Mrs. CHERFILUS-MCCORMICK, Ms. MOORE of Wisconsin, and Mr. COSTA):

H.R. 4543. A bill to amend title XIX of the Social Security Act to require coverage for certain individual with breast or cervical cancer under the Medicaid program; to the Committee on Energy and Commerce.

By Ms. WATERS:

H.R. 4544. A bill to direct certain Federal banking and credit union agencies to promote the formation of de novo regulated institutions through the review of application processes, the review of capital raising by de novo regulated institutions, and the establishment of various outreach programs, and for other purposes; to the Committee on Financial Services.

By Ms. WATERS (for herself, Ms. GARCIA of Texas, Ms. NORTON, Ms. VELÁZQUEZ, Ms. WASSERMAN SCHULTZ, Mrs. DINGELL, Ms. CLARKE of New York, Mr. FIELDS, Mr. JOHNSON of Georgia, Ms. TLAIB, Mr. THOMPSON of Mississippi, Ms. SEWELL, Mr. GOTTHEIMER, Mrs. WATSON COLEMAN, Mr. THANEDAR, Ms. LEE of Pennsylvania, Mr. LATIMER, Ms. WILSON of Florida, Mr. VEASEY, Mr. COHEN, Mr. LYNCH, Mrs. MCIVER, Mr. GARCÍA of Illinois, Mrs. CHERFILUS-MCCORMICK, Ms. SALINAS, and Mr. OLSZEWSKI):

H.R. 4545. A bill to amend title XVIII of the Social Security Act to require the provision of certain information with respect to breast reconstruction surgery under the Medicare program; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. WIED (for himself, Mr. TIFFANY, Mr. TAYLOR, Mr. COLLINS, and Mr. FULCHER):

H.R. 4546. A bill to amend chapter 44 of title 18, United States Code, to prohibit capacity-based restrictions on firearm magazines, and for other purposes; to the Committee on the Judiciary.

By Mr. YAKYM (for himself, Mr. GOTTHEIMER, Mr. BERGMAN, Mr. SUOZZI, Mr. VAN DREW, Mr. MOORE of North Carolina, Mr. EVANS of Colorado, Mr. FINE, Mr. HARRIGAN, Mr. RUTHERFORD, Mr. WILSON of South Carolina, Mr. FLEISCHMANN, Mr. NEHLS, and Mr. HARRIS of Maryland):

H. Res. 588. A resolution condemning the slogan ''Globalize the Intifada'' as a call to violence against Israeli and Jewish people across the world and urging United States national, State, and local leaders to condemn it as such; to the Committee on Foreign Affairs.

By Mr. NORMAN (for himself, Ms. FOXX, Mrs. FISCHBACH, Mr. ROY, Mrs. HOUCHIN, Mr. LANGWORTHY, Mr. AUSTIN SCOTT of Georgia, Mr. GRIFFITH, and Mr. JACK):

H. Res. 589. A resolution providing for the public release of certain documents, records, and communications related to the investigation of Jeffrey Epstein; to the Committee on the Judiciary.

By Mr. ALFORD (for himself, Mr. DAVIS of North Carolina, Mr. TONY GONZALES of Texas, Mr. CARTER of Texas, Mr. GRAVES, and Mr. CISCOMANI):

H. Res. 591. A resolution a resolution congratulating the members of the 509th and 131st Bomb Wings for successfully completing Operation Midnight Hammer; to the Committee on Armed Services.

By Mr. JOHNSON of Georgia (for himself, Mr. THOMPSON of Mississippi, Ms. CLARKE of New York, Mrs. MCIVER, Ms. NORTON, Mr. CARSON, Mr. EVANS of Pennsylvania, Mr. GOTTHEIMER, Mr. JACKSON of Illinois, Ms. JACOBS, Mr. KRISHNAMOORTHI, Ms. MOORE of Wisconsin, Mr. THANEDAR, Ms. TITUS, Ms. TLAIB, Ms. VELÁZQUEZ, Ms. WILSON of Florida, Ms. BROWN, and Mr. SCOTT of Virginia):

H. Res. 592. A resolution expressing the sense of the House of Representatives on Nelson Mandela International Day; to the Committee on Foreign Affairs.

By Mrs. KIGGANS of Virginia (for herself and Ms. BONAMICI):

H. Res. 593. A resolution congratulating the Oncology Nursing Society on the occasion of its 50th anniversary, and for other purposes; to the Committee on Energy and Commerce.

By Mr. MOORE of West Virginia (for himself, Mr. STEUBE, Mr. GUEST, Mr. GROTHMAN, Mr. MCDOWELL, Mr. GILL of Texas, Mrs. LUNA, and Mr. HARRIGAN):

H. Res. 594. A resolution condemning the persecution of Christians in Muslim-majority countries; to the Committee on Foreign Affairs.

By Mr. NORMAN (for himself, Mrs. MILLER of Illinois, and Mr. WEBER of Texas):

H. Res. 595. A resolution honoring the brave men and women who participated in the Afghanistan evacuation in 2021 following the United States withdrawal, for their extraordinary efforts and exceptional service in the safe evacuation of over 17,000 people from Taliban-controlled Afghanistan, and for other purposes; to the Committee on Armed Services.

By Ms. SALINAS (for herself and Mr. SELF):

H. Res. 596. A resolution supporting the designation of July 20, 2025, as ''National Moon Landing Day''; to the Committee on Oversight and Government Reform.

By Ms. WASSERMAN SCHULTZ (for herself, Mr. DIAZ-BALART, Mr. ESPAILLAT, and Mr. TONY GONZALES of Texas):

H. Res. 597. A resolution condemning the attack on the Argentine Jewish Mutual Association Jewish Community Center in Buenos Aires, Argentina, in July 1994, and encouraging accountability for the attack; to the Committee on Foreign Affairs.

PRIVATE BILLS AND RESOLUTIONS

Under clause 3 of rule XII,

Mr. KELLY of Pennsylvania introduced a bill (H.R. 4547) to advance Thomas B. Hagen on the retired list of the Navy; which was referred to the Committee on Armed Services.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. THOMPSON of Pennsylvania:

H.R. 4475.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the U.S. Constitution.

By Ms. BONAMICI:

H.R. 4476.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 of the U.S. Constitution

By Ms. BONAMICI:

H.R. 4477.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the U.S. Constitution

By Mr. MOORE of North Carolina:

H.R. 4478.

Congress has the power to enact this legislation pursuant to the following:

Section 8 of Article I of the Constitution

By Mr. LICCARDO:

H.R. 4479.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 1.

All legislative powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

By Mr. BARRETT:

H.R. 4480.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8
By Mr. ADERHOLT:
H.R. 4481.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 18
By Mr. AMO:
H.R. 4482.
Congress has the power to enact this legislation pursuant to the following:
Article 1
By Mr. ARRINGTON:
H.R. 4483.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
By Mr. BALDERSON:
H.R. 4484.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
By Ms. BROWNLEY:
H.R. 4485.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
By Ms. BYNUM:
H.R. 4486.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
By Mr. CARSON:
H.R. 4487.
Congress has the power to enact this legislation pursuant to the following:
Clause 18 of section 8 of Article I of the Constitution.
By Mr. CARTER of Georgia:
H.R. 4488.
Congress has the power to enact this legislation pursuant to the following:
Article I Section 8, Clauses 1 and 7 of the United States Constitution.
By Mr. CASTRO of Texas:
H.R. 4489.
Congress has the power to enact this legislation pursuant to the following:
Clause 3 of section 8 of article I of the Constitution
By Mr. CASTRO of Texas:
H.R. 4490.
Congress has the power to enact this legislation pursuant to the following:
Constitutional Authority—Necessary and Proper Clause (Art. I, Sec. 8, Clause 18)
THE U.S. CONSTITUTION ARTICLE I, SECTION 8: POWERS OF CONGRESS CLAUSE 18
The Congress shall have power . . . To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this Constitution in the government of the United States, or in any department or officer thereof.
By Mr. CISNEROS:
H.R. 4491.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8
By Mr. CLINE:
H.R. 4492.
Congress has the power to enact this legislation pursuant to the following:
Congress has the power to enact this legislation pursuant to Article I, Section 8 of the United States Constitution.
By Ms. DEXTER:
H.R. 4493.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8
By Mr. DONALDS:
H.R. 4494.
Congress has the power to enact this legislation pursuant to the following:
Art 1, Sec. 8
By Mr. DOWNING:
H.R. 4495.
Congress has the power to enact this legislation pursuant to the following:
Article 1 Sec. 8
By Mr. FOSTER:
H.R. 4496.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8 of the United States Constitution.
By Ms. GARCIA of Texas:
H.R. 4497.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under clause 18 of section 8 of article I of the Constitution.
By Mr. TONY GONZALES of Texas:
H.R. 4498.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
By Mr. HARRIS of North Carolina:
H.R. 4499.
Congress has the power to enact this legislation pursuant to the following:
Article 1 Section 8.
By Mr. HURD of Colorado:
H.R. 4500.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section VIII of the U.S. Constitution
By Mr. HURD of Colorado:
H.R. 4501.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
By Ms. JACOBS:
H.R. 4502.
Congress has the power to enact this legislation pursuant to the following:
Section 8 of Article I of the Constitution
By Mr. JOHNSON of South Dakota:
H.R. 4503.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the Constitution of the United States
By Ms. KAMLAGER–DOVE:
H.R. 4504.
Congress has the power to enact this legislation pursuant to the following:
This bill is introduced pursuant to the powers granted to Congress under the General Welfare Clause (Art. 1 Sec. 8 Cl. 1), the Commerce Clause (Art. 1 Sec. 8 Cl. 3), and the Necessary and Proper Clause (Art. 1 Sec. 8 CI. 18). Further, this statement of constitutional authority is made for the sole purpose of compliance with clause 7 of Rule XII of the Rules of the House of
By Ms. KAMLAGER-DOVE:
H.R. 4505.
Congress has the power to enact this legislation pursuant to the following:
This bill is introduced pursuant to the powers granted to Congress under the General Welfare Clause (Art. 1 Sec. 8 Cl. 1), the Commerce Clause (Art. 1 Sec. 8 Cl. 3), and the Necessary and Proper Clause (Art. 1 Sec 8Cl. 18).
By Mr. KEATING:
H.R. 4506.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section VIII
By Mrs. KIGGANS of Virginia:
H.R. 4507.
Congress has the power to enact this legislation pursuant to the following:
Article One Section Eight of the U.S. Constitution
By Mr. KRISHNAMOORTHI:
H.R. 4508.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8
By Mr. LANDSMAN:
H.R. 4509.
Congress has the power to enact this legislation pursuant to the following:
Article 1 Section 8 of the U.S. Constitution
By Ms. LEGER FERNANDEZ:
H.R. 4510.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 1 (the Spending Clause) along with Article I, Section 8, Clause 18 (the Necessary and Proper Clause).
By Mr. LEVIN:
H.R. 4511.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
By Ms. MACE:
H.R. 4512.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the Constitution
By Ms. MALOY:
H.R. 4513.
Congress has the power to enact this legislation pursuant to the following:
Article 1 Section 8
By Mr. MANNION:
H.R. 4514.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8
By Ms. MATSUI:
H.R. 4515.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
By Mr. MEEKS:
H.R. 4516.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the Constitution
By Mr. MFUME:
H.R. 4517.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the United States Constitution, which gives Congress the power to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.
By Mrs. MILLER-MEEKS:
H.R. 4518.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8 of the United States Constitution
By Mr. MOOLENAAR:
H.R. 4519.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 17
By Ms. MORRISON:
H.R. 4520.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 18 of the United States Constitution states that ''Congress shall have the authority to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States or in any Department of Office thereof.''
By Mr. NORMAN:
H.R. 4521.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8
By Mr. NUNN of Iowa:
H.R. 4522.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8 of the United States Constitution

To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Mr. ONDER:

H.R. 4523.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Ms. PRESSLEY:

H.R. 4524.

Congress has the power to enact this legislation pursuant to the following:

Section 8 Clause 18

By Ms. ROSS:

H.R. 4525.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the US Constitution

By Mr. RUIZ:

H.R. 4526.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8, Clauses 1 and 18 of the United States Constitution, to provide for the general welfare and make all laws necessary and proper to carry out the powers of Congress.

By Mr. RUIZ:

H.R. 4527.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8, Clauses 1 and 18 of the United States Constitution, to provide for the general welfare and make all laws necessary and proper to carry out the powers of Congress.

By Ms. SCHAKOWSKY:

H.R. 4528.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3: The Congress shall have Power . . . To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. DAVID SCOTT of Georgia:

H.R. 4529.

Congress has the power to enact this legislation pursuant to the following:

To lay and collect taxes, duties, imposts, and excises in order to provide for the general welfate of the United States.

By Mr. SELF:

H.R. 4530.

Congress has the power to enact this legislation pursuant to the following:

Congress has the power to regulate commerce with foreign nations pursuant to Article I, Section 8, Clause 3 of the Constitution of the United States.

By Mr. SHREVE:

H.R. 4531.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution

By Mr. STANTON:

H.R. 4532.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mr. STEUBE:

H.R. 4533.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8

By Mr. STEUBE:

H.R. 4534.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8

By Mr. TAYLOR:

H.R. 4535.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution

By Mr. TIMMONS:

H.R. 4536.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8 of the Constitution of the United States.

By Mr. TORRES of New York:

H.R. 4537.

Congress has the power to enact this legislation pursuant to the following:

Artcle 1, Section 8

By Mr. TURNER of Ohio:

H.R. 4538.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, clause 3

By Ms. VELÁZQUEZ:

H.R. 4539.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1

The Congress shall have Power to . . . provide for the . . . general Welfare of the United States;

By Mr. VINDMAN:

H.R. 4540.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

By Ms. WASSERMAN SCHULTZ:

H.R. 4541.

Congress has the power to enact this legislation pursuant to the following:

US Constitution, Article 1, Section 8

By Ms. WASSERMAN SCHULTZ:

H.R. 4542.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, clause 18

By Ms. WATERS:

H.R. 4543.

Congress has the power to enact this legislation pursuant to the following:

Article 1 of the U.S. Constitution.

By Ms. WATERS:

H.R. 4544.

Congress has the power to enact this legislation pursuant to the following:

Clause 3 of Section 8 of Article I of the Constitution, which provides Congress with the power to ''regulate commerce with foreign nations, and among the several states, and with the Indian tribes.''

By Ms. WATERS:

H.R. 4545.

Congress has the power to enact this legislation pursuant to the following:

Article 1 of the U.S. Constitution.

By Mr. WIED:

H.R. 4546.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8

By Mr. KELLY of Pennsylvania:

H.R. 4547.

Congress has the power to enact this legislation pursuant to the following:

Necessary and Proper Clause (Art. 1, Sec. 8, Cl. 18)

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 45: Mr. PERRY and Mr. ROUZER.
H.R. 247: Mr. QUIGLEY.
H.R. 255: Mr. NEHLS.
H.R. 288: Mr. LATIMER.
H.R. 349: Ms. BUDZINSKI.
H.R. 392: Mr. RILEY of New York.
H.R. 425: Ms. LETLOW.
H.R. 438: Mr. HIMES.
H.R. 516: Mr. BEGICH, Mr. FRY, Mr. SOTO, and Mr. WILSON of South Carolina.
H.R. 539: Mr. MACKENZIE and Ms. STEVENS.
H.R. 718: Ms. SCHRIER.
H.R. 842: Mr. WALBERG and Mr. OGLES.
H.R. 909: Ms. TITUS and Mr. MESSMER.
H.R. 979: Mr. MCGARVEY.
H.R. 1046: Mr. EZELL, Mr. BABIN, and Mr. DUNN of Florida.
H.R. 1057: Mr. PFLUGER.
H.R. 1124: Mr. CASTEN.
H.R. 1171: Mr. CARTER of Georgia and Mr. RILEY of New York.
H.R. 1189: Mr. CASTEN.
H.R. 1197: Ms. HOULAHAN.
H.R. 1246: Mr. TIFFANY.
H.R. 1254: Mrs. MILLER of West Virginia.
H.R. 1262: Mr. WALBERG, Mr. MESSMER, Mr. CARTER of Louisiana, Ms. STRICKLAND, Mrs. SYKES, Ms. JACOBS, Mr. CASTEN, Ms. ADAMS, Mr. SORENSEN, Mr. ESPAILLAT, Mrs. MCCLAIN DELANEY, Ms. WATERS, Ms. KELLY of Illinois, Mr. BERA, Ms. SCHAKOWSKY, Mr. FOSTER, and Mr. MOSKOWITZ.
H.R. 1266: Mr. SMITH of New Jersey and Mr. THOMPSON of California.
H.R. 1267: Mr. LOUDERMILK.
H.R. 1329: Mr. BEGICH and Ms. FRIEDMAN.
H.R. 1394: Mr. GROTHMAN.
H.R. 1502: Mr. MOULTON.
H.R. 1517: Mr. OGLES.
H.R. 1521: Mrs. MILLER of West Virginia and Ms. SEWELL.
H.R. 1575: Mr. FRY, Mr. TIFFANY, and Mr. BAIRD.
H.R. 1585: Mr. VEASEY.
H.R. 1604: Mr. VINDMAN.
H.R. 1616: Ms. ROSS and Mr. PANETTA.
H.R. 1725: Ms. WILLIAMS of Georgia.
H.R. 1735: Mr. HUDSON, Mr. BALDERSON, Mr. GOTTHEIMER, Mr. GOLDMAN of Texas, and Ms. DEXTER.
H.R. 1787: Mr. PFLUGER.
H.R. 1788: Ms. JOHNSON of Texas.
H.R. 1909: Ms. HOULAHAN.
H.R. 1987: Ms. SCHRIER.
H.R. 1993: Mr. LIEU.
H.R. 2075: Mrs. CAMMACK.
H.R. 2089: Mrs. MCCLAIN DELANEY and Ms. PLASKETT.
H.R. 2192: Mr. AMO and Mr. HAMADEH of Arizona.
H.R. 2232: Ms. NORTON.
H.R. 2290: Mr. LAWLER.
H.R. 2294: Mr. MAGAZINER.
H.R. 2467: Mr. THOMPSON of California and Mr. LEVIN.
H.R. 2547: Mr. DAVIS of Illinois.
H.R. 2595: Ms. WATERS.
H.R. 2605: Mr. CASTEN.
H.R. 2627: Mr. MORELLE.
H.R. 2687: Mr. NEGUSE.
H.R. 2733: Mr. KEATING.
H.R. 2777: Mr. TAYLOR.
H.R. 2821: Ms. LEE of Florida.
H.R. 2846: Ms. TOKUDA.
H.R. 2878: Mr. CASE.
H.R. 2913: Mr. MENENDEZ.
H.R. 3045: Ms. GARCIA of Texas and Mr. MOULTON.
H.R. 3095: Mr. TIMMONS and Mr. HURD of Colorado.
H.R. 3159: Mr. BELL.
H.R. 3174: Mr. WIED and Mr. DOWNING.
H.R. 3197: Mr. STUTZMAN and Mr. VICENTE GONZALEZ of Texas.
H.R. 3206: Mr. BARR.
H.R. 3289: Ms. HOULAHAN and Mr. HILL of Arkansas.
H.R. 3332: Mr. BELL.
H.R. 3335: Mrs. MCIVER.
H.R. 3340: Mr. LAWLER.
H.R. 3418: Mr. LAWLER.
H.R. 3429: Mrs. KIM.
H.R. 3474: Mrs. MILLER-MEEKS and Mrs. FLETCHER.
H.R. 3514: Mr. BILIRAKIS.
H.R. 3526: Mr. LATIMER.
H.R. 3541: Ms. TOKUDA.
H.R. 3564: Mr. PAPPAS.

H.R. 3658: Ms. TOKUDA.
H.R. 3682: Mr. CLEAVER.
H.R. 3723: Mrs. FLETCHER.
H.R. 3740: Mr. TONKO.
H.R. 3752: Mr. BELL.
H.R. 3757: Ms. KELLY of Illinois, Ms. SCHRIER, and Mr. SCHNEIDER.
H.R. 3760: Mr. NADLER and Mr. HERNÁNDEZ.
H.R. 3809: Mr. VINDMAN.
H.R. 3827: Mrs. MILLER of Illinois.
H.R. 3916: Mrs. FLETCHER.
H.R. 3930: Ms. WATERS.
H.R. 3946: Ms. BONAMICI.
H.R. 3978: Mr. PFLUGER.
H.R. 4012: Mr. OBERNOLTE.
H.R. 4053: Mrs. MILLER of Illinois.
H.R. 4074: Mr. CARTER of Georgia and Mr. RILEY of New York.
H.R. 4091: Mr. MESSMER, Ms. MACE, and Mr. FRY.
H.R. 4105: Mr. VASQUEZ.
H.R. 4145: Mr. CORREA.
H.R. 4176: Ms. LOFGREN, Ms. ROSS, and Ms. DELBENE.
H.R. 4180: Mr. FROST.
H.R. 4182: Mr. EVANS of Pennsylvania.
H.R. 4197: Ms. CHU, Mr. LIEU, Mr. NEGUSE, Mrs. FLETCHER, and Ms. GARCIA of Texas.
H.R. 4207: Mr. GUEST and Mrs. MILLER of Illinois.
H.R. 4231: Ms. WATERS.
H.R. 4236: Mr. SCOTT FRANKLIN of Florida.
H.R. 4238: Mr. BEGICH.
H.R. 4242: Mr. RUTHERFORD.
H.R. 4253: Ms. LEE of Pennsylvania and Mr. BELL.
H.R. 4256: Ms. KAPTUR and Mrs. KIGGANS of Virginia.
H.R. 4291: Mr. BAUMGARTNER.
H.R. 4294: Mr. OLSZEWSKI.
H.R. 4311: Mr. SCOTT FRANKLIN of Florida, Mr. HAMADEH of Arizona, and Mr. ONDER.
H.R. 4325: Ms. CASTOR of Florida.
H.R. 4329: Mr. TIMMONS.
H.R. 4356: Mr. EVANS of Pennsylvania.
H.R. 4370: Mr. ONDER.
H.R. 4392: Ms. KAMLAGER-DOVE, Ms. WATERS, and Mrs. FLETCHER.
H.R. 4395: Ms. STRICKLAND, Mr. COHEN, Ms. KAMLAGER-DOVE, Ms. WATERS, Mrs. FLETCHER, and Ms. TITUS.
H.R. 4398: Mr. FINE and Ms. OMAR.
H.R. 4401: Mr. MOORE of Utah.
H.R. 4403: Mr. WIED.
H.R. 4405: Ms. ANSARI, Mr. MCGOVERN, Mr. THANEDAR, Mr. JOHNSON of Georgia, Ms. OMAR, and Mr. SHERMAN.
H.R. 4406: Mr. FROST and Mr. POCAN.
H.R. 4407: Mrs. KIGGANS of Virginia.
H.R. 4413: Mr. PALLONE.
H.R. 4418: Ms. WATERS.
H.R. 4433: Ms. JACOBS.
H.R. 4434: Ms. JACOBS.
H.R. 4435: Ms. JACOBS.
H.R. 4436: Ms. JACOBS.
H.R. 4440: Mr. BEYER.
H.R. 4450: Mrs. BIGGS of South Carolina.
H.R. 4456: Mr. TRAN.
H.R. 4469: Mr. THOMPSON of California and Ms. NORTON.
H.R. 4474: Mr. MOOLENAAR, Ms. LETLOW, Mr. MCGUIRE, Mr. BARR, and Mr. KELLY of Mississippi.
H.J. Res. 10: Mr. WIED.
H.J. Res. 80: Ms. POU.
H.J. Res. 101: Mr. CISCOMANI.
H. Res. 120: Ms. MCCLELLAN and Mr. FONG.
H. Res. 220: Mr. ONDER.
H. Res. 297: Mr. NORCROSS.
H. Res. 317: Mr. NADLER and Mr. DAVIS of Illinois.
H. Res. 551: Mrs. KIM.
H. Res. 568: Mrs. RAMIREZ and Mr. SOTO.
H. Res. 570: Mr. MCGUIRE and Mr. MORAN.
H. Res. 571: Mr. VAN DREW and Mr. DELUZIO.
H. Res. 577: Ms. OMAR, Mrs. FLETCHER, Mr. EVANS of Pennsylvania, Mr. MULLIN, Mr. BISHOP, and Mr. TRAN.
H. Res. 579: Ms. WATERS.
H. Res. 581: Mr. MILLER of Ohio, Mr. MCGOVERN, Ms. OCASIO-CORTEZ, Mr. JOHNSON of Georgia, and Ms. MACE.
H. Res. 583: Mr. LUTTRELL.
H. Res. 587: Mr. CISCOMANI.

DISCHARGE PETITIONS

Under clause 2 of rule XV, the following discharge petition was filed:

Petition 7, July 17, 2025, by Mr. MEEKS on House Resolution 462, was signed by the following Members: Mr. Meeks, Ms. Jacobs, Mrs. Watson Coleman, Mr. Amo, Mrs. McIver, Ms. Titus, Mr. Tonko, Mr. Casten, Mrs. Foushee, Mr. Carter of Louisiana, Ms. Ross, Ms. Houlahan, Mr. Menendez, Ms. Leger Fernandez, Mrs. McClain Delaney, Mr. Bera, Mr. Hoyer, Mr. Johnson of Georgia, Mr. Carbajal, Mr. Bishop, Mr. Horsford, Ms. Omar, Mr. Stanton, Mrs. Ramirez, Ms. Bonamici, Ms. Crockett, Mr. Morelle, Ms. Johnson of Texas, Ms. Strickland, Mrs. McBath, Mr. Neguse, Ms. Pettersen, Mr. Magaziner, Ms. Goodlander, Ms. Kamlager-Dove, Mr. Conaway, Ms. McDonald Rivet, Mr. Davis of Illinois, Mr. Cisneros, Mr. Evans of Pennsylvania, Ms. Barragán, Mr. Fields, Mr. Scott of Virginia, Ms. Kelly of Illinois, Mr. Goldman of New York, Mr. Larson of Connecticut, Mr. Vargas, Mr. Keating, Mr. Latimer, Ms. Clarke of New York, Ms. Meng, Mr. Green of Texas, Mr. Landsman, Mr. Correa, Ms. Garcia of Texas, Mr. Cohen, Ms. Dean of Pennsylvania, Mr. Thompson of Mississippi, Mr. Clyburn, Mr. Pallone, Ms. McCollum, Ms. Sewell, Ms. Williams of Georgia, Mr. Foster, Mr. Raskin, Mrs. Beatty, Mr. Olszewski, Mr. Subramanyam, Mr. Ivey, Mr. Gottheimer, Ms. Waters, Ms. Ansari, Ms. Matsui, Ms. McClellan, Mrs. Cherfilus-McCormick, Mr. Whitesides, Mr. Figures, Mr. Jackson of Illinois, Mr. Schneider, Ms. Escobar, Ms. McBride, Ms. Pelosi, Ms. Wasserman Schultz, Ms. Wilson of Florida, Mrs. Hayes, Ms. Brown, Mr. Moulton, Mr. Jeffries, Ms. Simon, Ms. Lois Frankel of Florida, Ms. Kaptur, and Mr. Mfume.

Petition 8, July 17, 2025, by Mr. MEEKS on House Resolution 518, was signed by the following Members: Mr. Meeks, Ms. Jacobs, Mrs. Watson Coleman, Mr. Amo, Mrs. McIver, Ms. Titus, Mr. Krishnamoorthi, Mr. Tonko, Mr. Casten, Mrs. Foushee, Mr. Carter of Louisiana, Ms. Ross, Ms. Houlahan, Mr. Menendez, Ms. Leger Fernandez, Mrs. McClain Delaney, Mr. Bera, Mr. Hoyer, Mr. Johnson of Georgia, Mr. Carbajal, Mr. Bishop, Mr. Horsford, Ms. Omar, Mr. Stanton, Mrs. Ramirez, Ms. Bonamici, Ms. Crockett, Mr. Morelle, Ms. Johnson of Texas, Ms. Strickland, Mrs. McBath, Mr. Neguse, Ms. Pettersen, Mr. Magaziner, Ms. Goodlander, Mr. Liccardo, Ms. Kamlager-Dove, Mr. Conaway, Ms. McDonald Rivet, Mr. Davis of Illinois, Mr. Cisneros, Mr. Evans of Pennsylvania, Ms. Barragán, Ms. Kelly of Illinois, Mr. Scott of Virginia, Ms. Pelosi, Mr. Goldman of New York, Mr. Larson of Connecticut, Mr. Keating, Mr. Vargas, Mr. DeSaulnier, Mr. Latimer, Ms. Clarke of New York, Ms. Meng, Mr. Green of Texas, Mr. Landsman, Mr. Correa, Mr. Thompson of California, Ms. Garcia of Texas, Mr. Cohen, Mr. Vindman, Ms. Dean of Pennsylvania, Mr. Thompson of Mississippi, Mr. Clyburn, Mr. Pallone, Ms. McCollum, Ms. Sewell, Ms. Williams of Georgia, Mr. Foster, Mr. Raskin, Mrs. Beatty, Mr. Olszewski, Mr. Ivey, Mr. Gottheimer, Ms. Waters, Ms. Ansari, Ms. Matsui, Ms. McClellan, Mrs. Cherfilus-McCormick, Mr. Whitesides, Ms. Hoyle of Oregon, Mr. Figures, Mr. Jackson of Illinois, Mr. Schneider, Ms. Escobar, Ms. McBride, Ms. Wasserman Schultz, Ms. Wilson of Florida, Mrs. Hayes, Ms. Brown, Mr. Moulton, Mr. Jeffries, Ms. Lois Frankel of Florida, Ms. Kaptur, and Mr. Mfume.

DISCHARGE PETITIONS—ADDITIONS AND WITHDRAWALS

The following Members added their names to the following discharge petitions:

Petition 4 by Mr. MEEKS on House Resolution 391: Mr. Gomez, Mr. Case, Mr. Pocan, Ms. Stevens, and Ms. Wasserman Schultz.

Petition 5 by Mr. MEEKS on House Resolution 393: Mr. Gomez, Mr. Case, Mr. Pocan, Ms. Stevens, and Ms. Wasserman Schultz.

Petition 6 by Mr. GOLDEN of Maine on House Resolution 432: Mr. Tran, Mr. Courtney, Ms. Brown, Mrs. Hayes, Mr. Lynch, Ms. Williams of Georgia, Mr. Lieu, Mrs. Ramirez, Mr. Norcross, Ms. Stevens, Mr. Pocan, Mr. Foster, Ms. Stansbury, Mr. Olszewski, Ms. Balint, Mr. Quigley, Ms. Elfreth, Mr. Frost, Ms. Tokuda, Ms. McClellan, Mrs. Cherfilus-McCormick, Mr. McGovern, Ms. Velázquez, Ms. Brownley, Ms. Escobar, Ms. Scanlon, Ms. Tlaib, Ms Clark of Massachusetts, Mr. Ryan, Mr. Keating, Mr. Johnson of Georgia, Ms. Lofgren, Ms. Wilson of Florida, Ms. Schakowsky, Ms. Jacobs, Mr. Amo, Mrs. Watson Coleman, Mrs. McIver, Ms. Titus, Mr. Krishnamoorthi, Mr. Tonko, Mr. Casten, Mrs. Foushee, Mr. Carter of Louisiana, Ms. Ross, Ms. Houlahan, Mr. Menendez, Mr. Deluzio, Ms. Randall, Mrs. Trahan, Ms. Adams, Ms. Bynum, Ms. Friedman, Ms. Rivas, Ms. Morrison, Ms. Leger Fernandez, Mrs. McClain Delaney, Mr. Bera, Mr. Hoyer, Mr. Carbajal, Mr. Bishop, Mr. Horsford, Ms. Omar, Mr. Stanton, Ms. Bonamici, Ms. Crockett, Mr. Morelle, Ms. Johnson of Texas, Ms. Perez, Ms. Strickland, Mrs. McBath, Mr. Neguse, Ms. Pettersen, Mr. Magaziner, Ms. Goodlander, Mr. Mrvan, Ms Budzinski, Mr. Garamendi, Mr. Liccardo, Mr. Conaway, Ms. McDonald Rivet, Mr. Davis of Illinois, Mr. Cisneros, Mr. Mannion, Mr. Evans of Pennsylvania, Ms. Barragán, Mr. Fields, Mrs. Sykes, Mr. Scott of Virginia, Ms. Ansari, Mr. Goldman of New York, Ms. Lee of Pennsylvania, Ms. Kelly of Illinois, Mr. Larson of Connecticut, Mr. Sorensen, Mr. Thanedar, Ms. Gillen, Mr. Kennedy of New York, Mr. Figures, Mr. Cleaver, Mr. Suozzi, Ms. DeGette, Mr. Vargas, Mr. DeSaulnier, Mr. Latimer, Mr. Casar, Ms. Clarke of New York, Ms. Meng, Mr. Green of Texas, Ms. Jayapal, Mr. Landsman, Mr. Correa, Mr. Thompson of California, Mr. Cohen, Mr. Vindman, Ms. Dean of Pennsylvania, Mr. Thompson of Mississippi, Mr. Clyburn, Mr. Pallone, Ms. McCollum, Ms Sewell, Mr. Mullin, Mr. Raskin, Mrs. Beatty, Mr. Aguilar, Mr. Ivey, Ms. Kamlager-Dove, Mr. Gottheimer, Ms. Waters, Mr. Whitesides, Ms. Hoyle of Oregon, Ms. Pingree, Mr. Jackson of Illinois, Ms. DelBene, Mr. Schneider, Ms. McBride, Ms. Dexter, Ms. Wasserman Schultz, Mrs. Dingell, Mr. Moulton, Mr. Castro of Texas, Mr. Jeffries, Ms. Simon, Ms. Lois Frankel of Florida, Ms. Kaptur, Mr. Davis of North Carolina, Mr. García of Illinois, Mr. Costa, and Mr. Mfume.